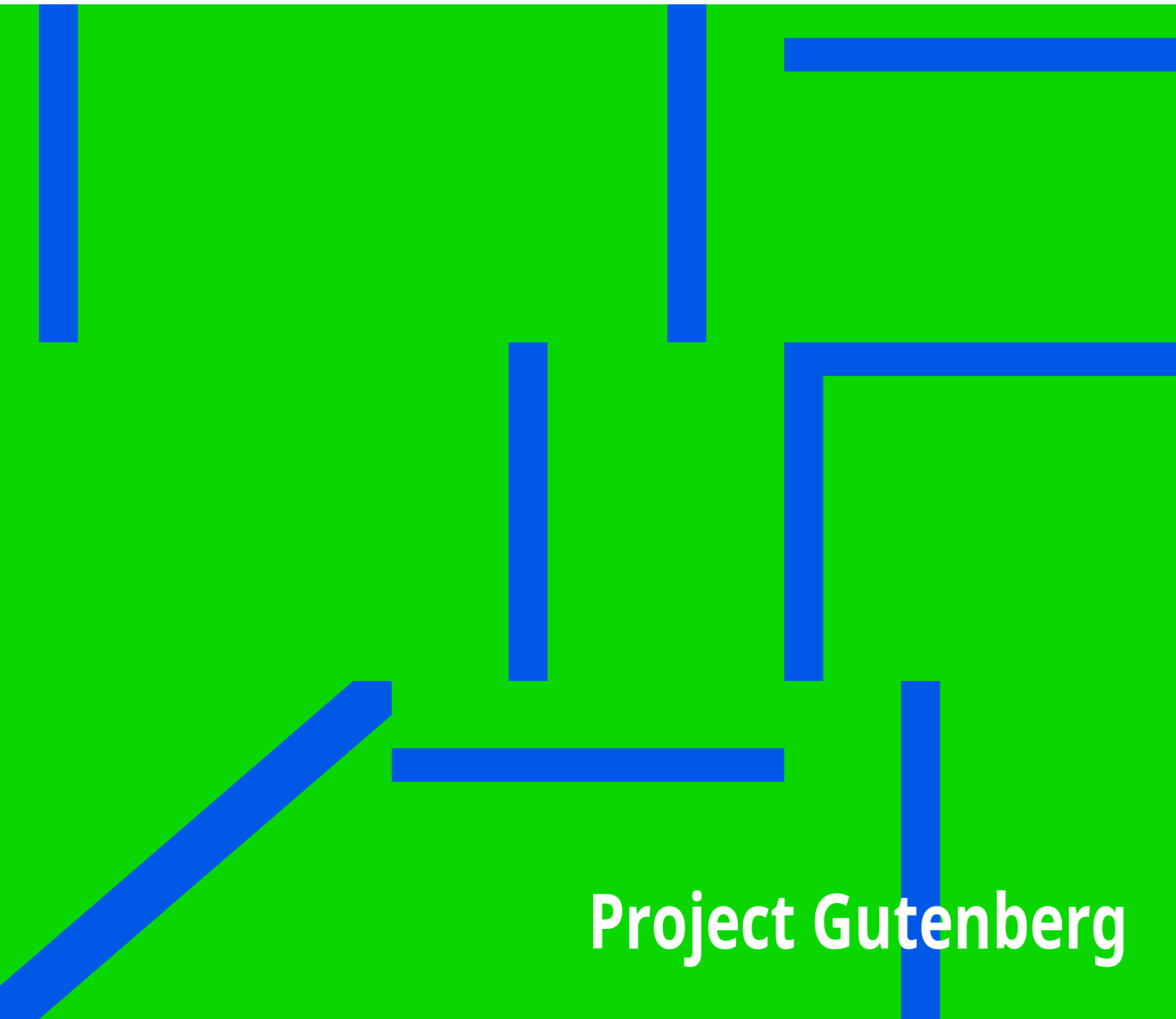


The Bondboy

George W. Ogden



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THE BONDBOY

By G. W. Ogden

Trail's End
Claim Number One
The Land of Last Chance
The Rustler of Wind River
The Duke of Chimney Butte
The Flockmaster of Poison Creek

THE BONDBOY



by
George W. Ogden

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1922

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The Bondboy

CHAPTER I

DELIVERED INTO BONDAGE

Sarah Newbolt enjoyed in her saturnine, brooding way the warmth of April sunshine and the stirring greenery of awakening life now beginning to soften the brown austerity of the dead winter earth. Beside her kitchen wall the pink cones of rhubarb were showing, and the fat buds of the lilacs, which clustered coppicelike in her dooryard, were ready to unlock and flare forth leaves. On the porch with its southern exposure she sat in her low, splint-bottomed rocker, leaning forward, her elbows on her knees.

The sun tickled her shoulders through her linsey dress, and pictured her, grotesquely foreshortened, upon the nail-drawn, warped, and beaten floor. Her hands, nursing her cheeks, chin pivoted in their palms, were large and toil-distorted, great-jointed like a man's, and all the feminine softness with which nature had endowed her seemed to have been overcome by the masculine cast of frame and face which the hardships of her life had developed.

She did not seem, crouched there like an old cat warming herself in the first keen fires of spring, conscious of anything about her; of the low house, with its battered eaves, the sprawling rail-fence in front of it, out of which the gate was gone, like a tooth; of the wild bramble of roses, or the generations of honeysuckle which had grown, layer upon layer—the understratum all dead and brown—over the decaying arbor which led up to the cracked front door. She did not seem conscious that time and poverty had wasted the beauties of that place; that shingles were gone from the outreaching eaves, torn away by March winds; that stones had fallen from the chimney, squatting broad-shouldered at the weathered gable; that panes were missing from the windows, their places supplied by boards and tacked-on cloth, or that pillows crowded into them, making it seem a house that stopped its ears against the unfriendly things which passengers upon the highway might speak of it.

Time and poverty were pressing upon Sarah Newbolt also, relaxing there that bright hour in the sun, straying away from her troubles and her vexations like an autumn butterfly among the golden leaves, unmindful of

the frost which soon must cut short its day. For, poor as she was in all that governments put imposts upon, and men list in tax returns and carry to steel vaults to hoard away, Sarah Newbolt had her dreams. She had no golden past; there was no golden future ready before her feet. There was no review for her in those visions of happy days and tender memories, over which a woman half closes her eyes and smiles, or over the incense of which a man's heart softens. Behind her stretched a wake of turbulence and strife; ahead of her lay the banked clouds of an unsettled and insecure future.

But she had her dreams, in which even the poorest of us may indulge when our taskmaster in the great brickworks of this hot and heavy world is not hard by and pressing us forward with his lash. She had her dreams of what never was and never could be; of old longings, old heart-hungers, old hopes, and loves which never had come near for one moment's caress of her toil-hardened hand. Dreams which roved the world and soothed the ache in her heart by their very extravagance, which even her frugal conscience could not chide; dreams which drew hot tears upon her cheeks, to trickle down among her knotted fingers and tincture the bitterness of things unrealized.

The crunch of wheels in the road now startled her from her profitless excursions among the mist of visions and dreams. She lifted her head like a cow startled from her peaceful grazing, for the vehicle had stopped at the gap in the fence where the gate should have stood warder between its leaning posts.

"Well, he's come," said she with the resignation of one who finds the long expected and dreaded at hand.

A man got out of the buggy and hitched his horse to one of the old gate-posts, first trying it to satisfy himself that it was trustworthy, for stability in even a post on those premises, where everything was going to decay, seemed unreasonable to expect. He turned up the path, bordered by blue flags, thrusting their swordpoints through the ground, and strode toward the house, with that uncouth giving at the knees which marks a man who long has followed the plow across furrowed fields.

The visitor was tall and bony, brown, dry-faced, and frowning of aspect. There was severity in every line of his long, loose body; in the hard wrinkles of his forehead, in his ill-nurtured gray beard, which was so harsh that it rasped like wire upon his coat as he turned his head in quick appraisal of his surroundings. His feet were bunion-distorted and lumpy

in his great coarse shoes; coarse black hair grew down upon his broad, thick-jointed hands; a thicket of eyebrows presented, like a *chevaux-de-frise*, bristling when he drew them down in his peering squint.

Sarah Newbolt rose to meet him, tall in the vigor of her pioneer stock. In her face there was a malarial smokiness of color, although it still held a trace of a past brightness, and her meagerness of feature gave her mouth a set of determination which stood like a false index at the beginning of a book or a misleading sign upon a door. Her eyes were black, her brows small and delicate. Back from her narrow forehead she had drawn her plentiful dark hair in rigid unloveliness; over it she wore a knitted shawl.

"Well, Mr. Chase, you've come to put us out, I reckon?" said she, a little tremor in her chin, although her voice was steady and her eyes met his with an appeal which lay too near the soul for words.

Isom Chase drew up to the steps and placed one knotted foot upon them, standing thus in silence a little while, as if thinking it over. The dust of the highroad was on his broad black hat, and gray upon his grizzly beard. In the attitude of his lean frame, in the posture of his foot upon the step, he seemed to be asserting a mastery over the place which he had invaded to the sad dispersion of Sarah Newbolt's dreams.

"I hate to do it," he declared, speaking hurriedly, as if he held words but frail vehicles in a world where deeds counted with so much greater weight, "but I've been easy on you, ma'am; no man can say that I haven't been easy."

"I know your money's long past due," she sighed, "but if you was to give Joe another chance, Mr. Chase, we could pay you off in time."

"Oh, another chance, another chance!" said he impatiently. "What could you do with all the chances in the world, you and him—what did your husband ever do with his chances? He had as many of 'em as I ever did, and what did he ever do but scheme away his time on fool things that didn't pan out when he ought 'a' been in the field! No, you and Joe couldn't pay back that loan, ma'am, not if I was to give you forty years to do it in."

"Well, maybe not," said she, drawing a sigh from the well of her sad old heart.

"The interest ain't been paid since Peter died, and that's more than two years now," said Chase. "I can't sleep on my rights that way, ma'am; I've got to foreclose to save myself."

“Yes, you’ve been easy, even if we did give you up our last cow on that there inter-est,” she allowed. “You’ve been as kind and easy over it, I reckon, Mr. Chase, as a body could be. Well, I reckon me and Joe we’ll have to leave the old place now.”

“Lord knows, I don’t see what there is to stay for!” said Chase feelingly, sweeping his eyes around the wired-up, gone-to-the-devil-looking place.

“When a body’s bore children in a place,” she said earnestly, “and nussed ’em, and seen ’em fade away and die; and when a body’s lived in a house for upward of forty years, and thought things in it, and everything—”

“Bosh!” said Isom Chase, kicking the rotting step.

“I know it’s all shacklety now,” said she apologetically, “but it’s home to me and Joe!”

Her voice trembled over the words, and she wiped her eyes with the corner of her head-shawl; but her face remained as immobile as features cast in metal. When one has wept out of the heart for years, as Sarah Newbolt had wept, the face is no longer a barometer over the tempests of the soul.

Isom Chase was silent. He stood as if reflecting his coming words, trying the loose boards of the siding with his blunt thumb.

“Peter and I, we came here from Kentucky,” said she, looking at him with a sidelong appeal, as if for permission to speak the profitless sentiments of her heart, “and people was scarce in this part of Missouri then. I rode all the way a-horseback, and I came here, to this very house, a bride.”

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“I didn’t take a mortgage on sentiment—I took it on the land,” said Chase, out of humor with this reminiscent history.

“You can’t understand how I feel, Mr. Chase,” said she, dropping her arms at her sides hopelessly. “Peter—he planted them laylocks and them roses.”

“Better ’a’ planted corn—and tended to it!” grunted Chase. “Well, you can grub ’em all up and take ’em away with you, if you want ’em. They don’t pay interest—I suppose you’ve found that out.”

“Not on money,” said she, reaching out her hand toward a giant lilac with a caressing, tender air.

“Sit down,” said he in voice of command, planting himself upon the porch, his back against a post, “and let’s you and I have a little talk. Where

do you expect to go when you leave here; what plans have you got for the future?"

"Lord, there's not a clap-board in this world that I can poke my head under and lay claim to its shelter!" said she, sitting again in her low rocker, shaking her head sadly.

"Your boy Joe, he'll not be able to command man's wages for three or four years yet," said Chase, studying her averted face as if to take possession of even her thoughts. "He'll not be able to do much toward supportin' you, even if he could light on to a steady, all-the-year job, which he can't, the way times is."

"No, I don't reckon he could," said she.

"And if I was to let you two stay on here I wouldn't be any nearer bein' paid back that four hundred dollar loan in two or three years than I am now. It's nearly five hundred now, with the interest pilin' up, and it'll be a thousand before you know it. It'd take that boy a lifetime to pay it off."

"Peter failed," she nodded; "it was a burden on him that hackled him to the grave. Yes, I reckon you're right. But there's no tellin' how Joe he'll turn out, Mr. Chase. He may turn out to be a better manager than his pap was."

"How old is he?" asked Chase.

"Most nineteen," said she, some kind of a faraway hope, indefinable and hazy, lifting the cloud of depression which had fallen over her, "and he's uncommon big and stout for his age. Maybe if you'd give Joe work he could pay it off, interest and all, by the time he's twenty-one."

"Not much need for him," said Chase, shaking his head, "but I might—well, I might figure around so I could take him over, on certain conditions, you understand? It all depends on your plans. If you haven't anywhere to go when you leave this house, you're bound to land on the county."

"Don't tell me that, Mr. Chase—don't tell me that!" she begged, pressing her battered hands to her eyes, rocking and moaning in her chair.

"What's the use of puttin' the truth back of you when you're bound to come face up to it in the end?" he asked. "I was talkin' to Judge Little, of the county court, about you this morning. I told him I'd have to foreclose and take possession of this forty to save myself."

"'It'll throw her and that boy on the county,' he says. 'Yes, I reckon it will,' I told him, 'but no man can say I've been hard on 'em.'"

“Oh, you wouldn’t throw me on the county at the end of my days, Mr. Chase!” she appealed. “Joe he’ll take care of me, if you’ll only give him a chance—if you’ll only give him a chance, Mr. Chase!”

“I meant to take that up with you,” said he, “on the conditions I spoke of a minute ago.”

He turned to her, as if for her consent to give expression to his mysterious terms. She nodded, and he went on:

“In the winter time, ma’am, to tell you the plain truth, Joe wouldn’t be worth wages to me, and in the summer not very much. A boy that size and age eats his head off, you might say.

“But I’ll make you this offer, out of consideration of my friendship for Peter, and your attachment for the old place, and all of that stuff: I’ll take Joe over, under writing, till he’s twenty-one, at ten dollars a month and all found, winter and summer through, and allow you to stay right on here in the house, with a couple of acres for your chickens and garden patch and your posies and all the things you set store on and prize. I’ll do this for you, Missis Newbolt, but I wouldn’t do it for any other human being alive.”

She turned slowly to him, an expression of mingled amazement and fear on her face.

“You mean that you want me to bind Joe out to you till he’s his own man?” said she.

“Well, some call it by that name,” nodded Chase, “but it’s nothing more than any apprenticeship to any trade, except—oh, well, there ain’t no difference, except that there’s few trades that equal the one the boy’ll learn under me, ma’am.”

“You’re askin’ me to bind my little son—my only child left to me of all that I bore—you want me to bind him out to you like a nigger slave!”

Her voice fell away to a whisper, unable to bear the horror that grew into her words.

“Better boys than him have been bound out in this neighborhood!” said Chase sharply. “If you don’t want to do it, *don’t* do it. That’s all I’ve got to say. If you’d rather go to the poorhouse than see your son in steady and honorable employment, in a good home, and learning a business under a man that’s made some success of it, that’s your lookout, not mine. But that’s where you’ll land the minute you set your foot out in that road. Then the

county court'll take your boy and bind him out to somebody, and you'll have no word to say in the matter, at all. But you can suit yourself." 9

"It—kind of—shook me," she muttered, the mother-love, the honor and justice in her quailing heart shrinking back before the threat of that terrible disgrace—the poorhouse.

The shadow of the poorhouse had stood in her way for years. It had been the fear of Peter when he was there, and his last word was one of thankfulness to the Almighty that he had been permitted to die in a freeman's bed, under his own humble roof. That consolation was to be denied her; the shadow of the poorhouse had advanced until it stood now at her door. One step and it would envelop her; the taint of its blight would wither her heart.

Sarah Newbolt had inherited that dread of publicly confessed poverty and dependence. It had come down to her through a long line of pioneer forebears who feared neither hardship, strife nor death, so that it might come to them without a master and under the free sky. Only the disgraced, the disowned, the failures, and the broken-minded made an end in the poorhouse in those vigorous days. It was a disgrace from which a family never could hope to rise again. There, on the old farm with Peter she had been poor, as poor as the poorest, but they had been free to come and go.

"I know I've got the name of being a hard man and a money-grabber and a driver," said Chase with crabbed bitterness, "but who is it that gives that reputation to me? People that can't beat me and take advantage of me and work money out of me by their rascally schemes! I'm not a hard man by nature—my actions with you prove that, don't they?"

"You've been as kind as a body could expect," she answered. "It's only right that you should have your money back, and it ain't been your fault that we couldn't raise it. But we've done the best we could." 10

"And that best only led you up to the poorhouse door," said he. "I'm offering you a way to escape it, and spend the rest of your days in the place you're attached to, but I don't seem to get any thanks for it."

"I am thankful to you for your offer—from the bottom of my heart I'm thankful, Mr. Chase," she hastened to declare.

"Well, neither of us knows how Joe's going to turn out," said he. "Under my training he might develop into a good, sober farmer, one that knows his business and can make it pay. If he does, I promise you I'll give him a

chance on this place to redeem it. I'll put him on it to farm on shares when he fills out his time under me, my share of the crops to apply to the debt. Would that be fair?"

"Nobody in this world couldn't say it wasn't generous and fair of you, and noble and kind, Mr. Chase," she declared, her face showing a little color, the courage coming back into her eyes.

"Then you'd better take up my offer without any more foolishness," he advised.

"I'll have to talk it over with Joe," said she.

"He's got nothing to do with it, I tell you," protested Chase, brushing that phase of it aside with a sweep of his hairy hand. "You, and you alone, are responsible for him till he's twenty-one, and it's your duty to keep him off the county and away from the disgrace of pauperism, and yourself as well."

"I ought to see Joe about it first, Mr. Chase, I ought to talk it over with him. Let me think a minute."

She settled down to her pensive attitude, elbows on knees, chin in hands, and looked over the homely scene of riotous shrubbery, racked buildings, leaning well-curb, rotting fences. In one swift, painful moment she pictured what that spot would be after Isom Chase had taken possession. 11

He would uproot the lilacs; he would level the house and the chimney, stone by stone; he would fill up the well and pull down the old barn that Peter built, and drive his plow over the hearthstone where she had suckled her babies in the years of her youth and hope. He would obliterate the landmarks of her bridal days, and sow his grain in the spot where Peter, fresh in the strong heat of youth, had anchored their ambitions.

It was not so much for what it had been that her heart was tender to it, for the years had been heavy there and toilsome, disappointing and full of pain; not so much for what it had been, indeed, as what she and young Peter, with the thick black hair upon his brow, had planned to make it. It was for the romance un-lived, the hope unrealized, that it was dear. And then again it was poor and pitiful, wind-shaken and old, but it was home. The thought of the desolation that waited it in the dread future struck her breast like the pangs of bereavement. Tears coursed down her face; sobs rose in her aching throat.

Joe, she thought, would do that much for her and the old home place; it would be but a little more than two years of sacrifice for him, at the most,

with the bright hope of independence and redemption at the end. Being bound out would not be so disgraceful as going to the poorhouse. Joe would do it for her, she was sure of that. But it would be better to wait until evening and ask him.

“Joe, he’ll be along home from his work about dusk,” said she, “and we could let you know tomorrow.”

“Tomorrow,” said Isom Chase, rising stiffly, “I’ll have to send the sheriff here with the papers. Tomorrow, ma’am, will be too late.”

That dreadful picture swept across her inner vision once more—the chimney down, the house gone. She saw corn growing over the spot where she sat that moment; she remembered that Isom Chase had plowed up a burying-ground once and seeded it to timothy.

“What will I have to do to bind Joe over to you?” she asked, facing him in sudden resolution.

“We’ll git in the buggy,” said he, with new friendliness, seeing that he had won, “and drive over to Judge Little’s. He can make out the papers in a few minutes, and I’ll pay you a month’s wages in advance. That will fix you up for groceries and garden seeds and everything, and you’ll be as snug and happy as any woman in the county.”

In less than two hours the transaction was completed, and Sarah Newbolt was back again in the home upon which she had secured her slipping tenure at the sacrifice of her son’s liberty. As she began “stirring the pots for supper,” as she called it, she also had time to stir the deep waters of reflection.

She had secured herself from the threat of the county farm, and Joe had been the price; Joe, her last-born, the sole remaining one of the six who had come to her and gone on again into the mists.

She began to fear in her heart when she stood off and viewed the result of her desperate panic, the pangs of which Isom Chase had adroitly magnified. If Joe could work for Isom Chase and thus keep her from the poorhouse, could he not have worked for another, free to come and go as he liked, and with the same security for her?

Chase said that he had not taken a mortgage on sentiment, but he had made capital out of it in the end, trading upon her affection for the old home and its years-long associations. As the gloomy evening deepened and she stood in the door watching for her son’s return, she saw through the scheme

of Isom Chase. She never would have been thrown on the county with Joe to depend on; the question of his ability to support both of them admitted of no debate. 13

Joe's industry spoke for that, and that was Isom Chase's reason for wanting him. Isom wanted him because he was strong and trustworthy, honest and faithful. And she had bargained him in selfishness and sold him in cowardice, without a word from him, as she might have sold a cow to pay a pressing debt.

The bargain was binding. Judge Little had pressed that understanding of it upon her. It was as irrevocable as a deed signed and sealed. Joe could not break it; she could not set it aside. Isom Chase was empowered with all the authority of absolute master.

"If he does anything that deserves thrashing for, I've got a right to thrash him, do you understand that?" Isom had said as he stood there in the presence of Judge Little, buttoning his coat over the document which transferred Joe's services to him.

Her heart had contracted at the words, for the cruelty of Isom Chase was notorious. A bound boy had died in his service not many years before, kicked by a mule, it was said. There had been mutterings at that time, and talk of an investigation, which never came to a head because the bound lad was nobody, taken out of the county home. But the fear in the widow's heart that moment was not for her son; it was for Isom Chase.

"Lord 'a' mercy, Mr. Chase, you mustn't never strike Joe!" she warned. "You don't know what kind of a boy he is, Mr. Chase. I'm afraid he might up and hurt you maybe, if you ever done that."

"I'll handle him in my own way," with portentous significance; "but I want you to understand my rights fully at the start."

"Yes, sir," she answered meekly.

Joe was coming now, pitchfork over his shoulder, from the field where he had been burning corn-stalks, making ready for the plow. She hastened 14 to set out a basin of water on the bench beside the kitchen door, and turned then into the room to light the lamp and place it on the waiting table.

Joe appeared at the door, drying his hands on the dangling towel. He was a tall, gaunt-faced boy, big-boned, raw-jointed, the framework for prodigious strength. His shoulders all but filled the narrow doorway, his crown came within an inch of its lintel. His face was glowing from the

scrubbing which he had given it with home-made lye soap, his drenched hair fell in heavy locks down his deep forehead.

“Well, Mother, what’s happened?” he asked, noting her uneasiness as she sat waiting him at the table, the steaming coffee-pot at her hand.

“Sit down and start your supper, son, and we’ll talk as we go along,” said she.

Joe gave his hair a “lick and a promise” with the comb, and took his place at the table. Mrs. Newbolt bent her head and pronounced the thanksgiving which that humble board never lacked, and she drew it out to an amazing and uncomfortable length that evening, as Joe’s impatient stomach could bear clamorous witness.

Sarah Newbolt had a wide fame as a religious woman, and a woman who could get more hell-fire into her belief and more melancholy pleasure out of it than any hard-shell preacher in the land. It was a doleful religion, with little promise or hope in it, and a great deal of blood and suffering between the world and its doubtful reward; but Sarah Newbolt lived according to its stern inflexibility, and sang its sorrowful hymns by day, as she moved about the house, in a voice that carried a mile. But for all the grimness in her creed, there was not a being alive with a softer heart. She would have divided her last square of corn-bread with the wayfarer at her door, without question of his worth or unworthiness, his dissension, or his faith. 15

“Mr. Chase was here this afternoon, Joe,” said she as the lad began his supper.

“Well, I suppose he’s going to put us out?”

Joe paused in the mixing of gravy and corn-bread—designed to be conveyed to his mouth on the blade of his knife—and lifted inquiring eyes to his mother’s troubled face.

“No, son; we fixed it up,” said she.

“You fixed it up?” he repeated, his eyes beaming with pleasure. “Is he going to give us another chance?”

“You go on and eat your supper, Joe; we’ll talk it over when you’re through. Lands, you must be tired and hungry after workin’ so hard all afternoon!”

He was too hungry, perhaps, to be greatly troubled by her air of uneasiness and distraction. He bent over his plate, not noting that she sipped

her coffee with a spoon, touching no food. At last he pushed back with a sigh of repletion, and smiled across at his mother.

“So you fixed it up with him?”

“Yes, I went into a dishonorable deal with Isom Chase,” said she, “and I don’t know what you’ll say when you hear what’s to be told to you, Joe.”

“What do you mean by ‘dishonorable deal’?” he asked, his face growing white.

“I don’t know what you’ll say, Joe, I don’t know what you’ll say!” moaned she, shaking her head sorrowfully.

“Well, Mother, I can’t make out what you mean,” said he, baffled and mystified by her strange behavior.

“Wait—I’ll show you.”

She rose from the table and reached down a folded paper from among the soda packages and tins on the shelf. Saying no more, she handed it to him. Joe took it, wonder in his face, spread his elbows, and unfolded the document with its notarial seal.

Joe was ready at printed matter. He read fast and understandingly, and his face grew paler as his eyes ran on from line to line. When he came to the end, where his mother’s wavering signature stood above that of Isom Chase, his head dropped a little lower, his hands lay listlessly, as if paralyzed, on the paper under his eyes. A sudden dejection seemed to settle over him, blighting his youth and buoyancy.

Mrs. Newbolt was making out to be busy over the stove. She lifted the lid of the kettle, and put it down with a clatter; she opened the stove and rammed the fire with needless severity with the poker, and it snapped back at her, shooting sparks against her hand.

“Mother, you’ve bound me out!” said he, his voice unsteady in its accusing note.

She looked at him, her hands starting out in a little movement of appeal. He turned from the table and sat very straight and stern in his chair, his gaunt face hollowed in shadows, his wild hair falling across his brow.

“Oh, I sold you! I sold you!” she wailed.

She sat again in her place at the table, spiritless and afraid, her hands limp in her lap.

“You’ve bound me out!” Joe repeated harshly, his voice rasping in his throat.

"I never meant to do it, Joe," she pleaded in weak defense; "but Isom, he said nothing else would save us from the county farm. I wanted to wait and ask you, Joe, and I told him I wanted to ask you, but he said it would be too late!"

"Yes. What else did he say?" asked Joe, his hands clenched, his eyes peering straight ahead at the wall.

She related the circumstances of Chase's visit, his threat of eviction, his declaration that she would become a county charge the moment that she set foot in the road.

"The old liar!" said Joe.

There seemed to be nothing more for her to say. She could make no defense of an act which stood before her in all its ugly selfishness. Joe sat still, staring at the wall beyond the stove; she crouched forward in her chair, as if to shrink out of his sight.

Between them the little glass lamp stood, a droning, slow-winged brown beetle blundering against its chimney. Outside, the distant chant of newly wakened frogs sounded; through the open door the warm air of the April night came straying, bearing the incense of the fields and woodlands, where fires smoldered like sleepers sending forth their dreams.

His silence was to her the heaviest rebuke that he could have administered. Her remorse gathered under it, her contrition broke its bounds.

"Oh, I sold you, my own flesh and blood!" she cried, springing to her feet, lifting her long arms above her head.

"You knew what he was, Mother; you knew what it meant to be bound out to him for two long years and more. It wasn't as if you didn't know."

"I knew, I knew! But I done it, son, I done it! And I done it to save my own mis'able self. I ain't got no excuse, Joe, I ain't got no excuse at all."

"Well, Mother, you'll be safe here, anyhow, and I can stand it," said Joe, brightening a little, the tense severity of his face softening. "Never mind; I can stand it, I guess."

"I'll never let you go to him—I didn't mean to do it—it wasn't fair the way he drove me into it!" said she.

She laid her hand, almost timidly, on her son's shoulder, and looked into his face. "I know you could take care of me and keep off of the county, even

if Isom did put us out like he said he'd do, but I went and done it, anyhow. Isom led me into it, Joe; he wasn't fair."

"Yes, and you bound me out for about half what I'm worth to any man and could demand for my services anywhere, Mother," said Joe, the bitterness which he had fought down but a moment past surging up in him again. 18

"Lord forgive me!" she supplicated piteously. She turned suddenly to the table and snatched the paper. "It wasn't fair—he fooled me into it!" she repeated. "I'll tear it up, I'll burn it, and we'll leave this place and let him have it, and he can go on and do whatever he wants to with it—tear it down, burn it, knock it to pieces—for anything I care now!"

Joe restrained her as she went toward the stove, the document in her hand.

"Wait, Mother; it's a bargain. We're bound in honor to it, we can't back down now."

"I'll never let you do it!" she declared, her voice rising beyond her control. "I'll walk the roads and beg my bread first! I'll hoe in the fields, I'll wash folks' clothes for 'em like a nigger slave, I'll lay down my life, Joe, before I let you go into that murderin' man's hands!"

He took the paper from her hands gently.

"I've been thinking it over, Mother," said he, "and it might be worse—it might be a good deal worse. It gives me steady work, for one thing, and you can save most of my wages, counting on the eggs you'll sell, and the few turkeys and things. After a while you can get a cow and make butter, and we'll be better off, all around. We couldn't get out of it, anyway, Mother. He's paid you money, and you've signed your name to the contract along with Isom. If we were to pull out and leave here, Isom could send the sheriff after me and bring me back, I guess. Even if he couldn't do that, he could sue you, Mother, and make no end of trouble. But we wouldn't leave if we could. It wouldn't be quite honorable, or like Newbolts at all, to break our contract that way."

"But he'll drive you to the grave, Joe!"

A slow smile spread over his face. "I don't think Isom would find me a good driving horse," said he. 19

"He said if you done well," she told him, brightening as she clutched at that small stay of justification, "he'd let you work this place on shares till

you paid off the loan. That was one reason—”

“Of course,” said Joe, a cheerfulness in his voice which his pale cheeks did not sustain, “that was one thing I had in mind when I spoke. It’ll all come out right. You’ve done the wisest thing there was to be done, Mother, and I’ll fulfill your agreement to the last day.”

“You’re a brave boy, Joe; you’re a credit to the memory of your pap,” said she.

“I’ll go over to Isom’s early in the morning,” said Joe, quite sprightly, as if the arrangement had indeed solved all their troubles. He stretched his arms with a prodigious yawn. “You don’t need to bother about getting up and fixing breakfast for me, for I’ll get some over there.”

“I hope he’ll give you enough,” said she.

“Don’t you worry over me,” he counseled kindly, “for I’ll be all right at Isom’s. Sunday I’ll come home and see you. Now, you take a good sleep in the morning and don’t bother.”

“I’ll be up before you leave,” said she, her eyes overflowing with tears. “Do you reckon I could lie and sleep and slumber when my last and only livin’ one’s goin’ away to become a servant in the house of bondage? And I sold you to it, Joe, my own flesh and blood!”

There had been little tenderness between them all their days, for in such lives of striving, poverty too often starves affection until it quits the board. But there was a certain nobility of loyalty which outlived the narrowness of their lot, and certain traditions of chivalry in the Newbolt heritage which now guided Joe’s hand to his mother’s head as she sat weeping and moaning with her arms flung upon the disordered table. 20

“It’ll be all right, Mother,” he cheered her, “and the time will soon pass away. What are two years to me? Not much more than a month or two to an old man like Isom. I tell you, this plan’s the finest thing in the world for you and me, Mother—don’t you grieve over it that way.”

She was feeling the comfort of his cheerfulness when he left her to go to bed, although she was sore in conscience and spirit, sore in mind and heart.

“The Lord never gave any woman a son like him,” said she as the sound of Joe’s steps fell quiet overhead, “and I’ve sold him into slavery and bondage, just to save my own unworthy, coward’y, sneakin’ self!”

CHAPTER II

A DRY-SALT MAN

Joe was afoot early. His mother came to the place in the fence where the gate once stood to give him a last word of comfort, and to bewail again her selfishness in sending him away to serve as bondboy under the hard hand of Isom Chase. Joe cheered her with hopeful pictures of the future, when the old home should be redeemed and the long-dwelling shadow of their debt to Isom cleared away and paid. From the rise in the road which gave him the last sight of the house Joe looked back and saw her with her head bowed to the topmost rail of the fence, a figure of dejection and woe in the security which she had purchased for herself at such a heavy price.

Although Joe moved briskly along his way, his feet as light as if they carried him to some destination of certain felicity, there was a cloud upon his heart. This arrangement which his mother had made in an hour of panic had disordered his plans and troubled the bright waters of his dreams. Plans and dreams were all his riches. They were the sole patrimony of value handed down from Peter Newbolt, the Kentucky gentleman, who had married below his state and carried his young mountain wife away to the Missouri woods to escape the censure of family and criticism of friends.

That was the only legacy, indeed, that Joe was conscious of, but everybody else was aware that old Peter had left him something even more dangerous than dreams. That was nothing less than a bridling, high-minded, hot-blooded pride—a thing laughable, the neighbors said, in one so bitterly and hopelessly poor. 22

“The pore folks,” the neighbors called the Newbolts in speaking of them one to another, for in that community of fairly prosperous people there was none so poor as they. The neighbors had magnified their misfortune into a reproach, and the “pore folks” was a term in which they found much to compensate their small souls for the slights which old Peter, in his conscious superiority, unwittingly put upon them.

To the end of his days Peter never had been wise enough to forget that nature had endowed him, in many ways, above the level of the world to

which Fate had chained his feet, and his neighbors never had been kind enough to forget that he was poor.

Even after Peter was dead Joe suffered for the family pride. He was still spoken of, far and near in that community, as the “pore folks’s boy.” Those who could not rise to his lofty level despised him because he respected the gerund, and also said *were* where they said *was*, and *there are*, where usage made it *they is*. It was old Peter’s big-headedness and pride, they said. What business had the pore folks’s boy with the speech of a school-teacher or minister in his mouth? His “coming” and his “going,” indeed! Huh, it made ’em sick.

Joe had lived a lonely, isolated life on account of the family poverty and pride. He was as sensitive as a poet to the boorish brutality, and his poor, unlettered, garrulous mother made it worse for him by her boasting of his parts. She never failed to let it be known that he had read the Bible through, “from back to back,” and the *Cottage Encyclopedia*, and the *Imitation of Christ*, the three books in the Newbolt library.

People had stood by and watched Peter Newbolt at his schemes and dreams for many a year, and all the time they had seen him growing poorer and poorer, and marveled that he never appeared to realize it himself. Just as a great many men spend their lives following the delusion that they can paint or write, and waste their energies and resources on that false and destructive idea, Peter had held the dream that he was singled out to revolutionize industry by his inventions.

He had invented a self-winding clock which, outside his own shop and in the hands of another, would not wind; a self-binding reaper that, in his neighbor’s field, would not perform its part; and a lamp that was designed to manufacture the gas that it burned from the water in its bowl, but which dismally and ignobly failed. He had contrived and patented a machine for milking cows, which might have done all that was claimed for it if anybody—cows included—could have been induced to give it a trial, and he had fiddled around with perpetual motion until the place was a litter of broken springs and rusty wheels.

Nothing had come of all this pother but rustic entertainment, although he demonstrated the truth of his calculations by geometry, and applied Greek names to the things which he had done and hoped to do. All this had eaten up his energies, and his fields had gone but half tilled. Perhaps back of all Peter’s futile strivings there had lain the germ of some useful thing which, if

properly directed, might have grown into the fortune of his dreams. But he had plodded in small ways, and had died at last, in debt and hopeless, leaving nothing but a name of reproach which lived after him, and even hung upon his son that cool April morning as he went forward to assume the penance that his mother's act had set for him to bear.

And the future was clouded to Joe Newbolt now, like a window-pane with frost upon it, where all had been so clear in his calculations but a day before. In his heart he feared the ordeal for Isom Chase was a man of evil repute. 24

Long ago Chase's first wife had died, without issue, cursed to her grave because she had borne him no sons to labor in his fields. Lately he had married another, a woman of twenty, although he was well along the road to sixty-five himself. His second wife was a stranger in that community, the daughter of a farmer named Harrison, who dwelt beyond the county-seat.

Chase's homestead was a place pleasant enough for the abode of happiness, in spite of its grim history and sordid reputation. The mark of thrift was about it, orchards bloomed upon its fair slopes, its hedges graced the highways like cool, green walls, not a leaf in excess upon them, not a protruding bramble. How Isom Chase got all the work done was a matter of unceasing wonder, for nothing tumbled to ruin there, nothing went to waste. The secret of it was, perhaps, that when Chase *did* hire a man he got three times as much work out of him as a laborer ordinarily performed.

There were stories abroad that Chase was as hard and cruel to his young wife as he had been to his old, but there was no better warrant for them than his general reputation. It was the custom in those days for a woman to suffer greater indignities and cruelties than now without public complaint. There never had been a separation of man and wife in that community, there never had been a suit for divorce. Doubtless there were as many unhappy women to the square mile there as in other places, but custom ruled that they must conceal their sorrows in their breasts.

To all of these things concerning Isom Chase, Joe Newbolt was no stranger. He knew, very well indeed, the life that lay ahead of him as the bondboy of that old man as he went forward along the dew-moist road that morning.

Early as it was, Isom Chase had been out of bed two hours or more when Joe arrived. The scents of frying food came out of the kitchen, and Isom 25

himself was making a splash in a basin of water—one thing that he could afford to be liberal with three times a day—on the porch near the open door.

Joe had walked three miles, the consuming fires of his growing body were demanding food. The odors of breakfast struck him with keen relish as he waited at the steps of the porch, unseen by Isom Chase, who had lifted his face from the basin with much snorting, and was now drying it on a coarse brown towel.

“Oh, you’re here,” said he, seeing Joe as he turned to hang up the towel. “Well, come on in and eat your breakfast. We ought to ’a’ been in the field nearly an hour ago.”

Hungry as he was, Joe did not advance to accept the invitation, which was not warmed by hospitality, indeed, but sounded rather like a command. He stood where he had stopped, and pushed his flap-brimmed hat back from his forehead, in nervous movement of decision. Chase turned, half-way to the door, looking back at his bound boy with impatience.

“No need for you to be bashful. This is home for a good while to come,” said he.

“I’m not so very bashful,” Joe disclaimed, placing the little roll which contained his one extra shirt on the wash-bench near the door, taking off his hat, then, and standing serious and solemn before his new master.

“Well, I don’t want to stand here waitin’ on you and dribble away the day, for I’ve got work to do!” said Isom sourly.

“Yes, sir,” said Joe, yielding the point respectfully, but standing his ground; “but before I go across your doorstep, and sit at your table and break bread with you, I want you to understand my position in this matter.”

“It’s all settled between your mother and me,” said Chase impatiently, drawing down his bayoneted eyebrows in a frown, “there’s no understanding to come to between me and you—you’ve got nothing to say in the transaction. You’re bound out to me for two years and three months at ten dollars a month and all found, and that settles it.”

“No, it don’t settle it,” said Joe with rising heat; “it only begins it. Before I put a bite in my mouth in this house, or set my hand to any work on this place, I’m going to lay down the law to you, Mr. Chase, and you’re going to listen to it, too!”

“Now, Joe, you’ve got too much sense to try to stir up a row and rouse hard feelin’s between us at the start,” said Isom, coming forward with his

soft-soap of flattery and crafty conciliation.

"If I hadn't 'a' known that you was the smartest boy of your age anywhere around here, do you suppose I'd have taken you in this way?"

"You scared mother into it; you didn't give me a chance to say anything, and you took an underhanded hold," charged Joe, his voice trembling with scarce-controlled anger. "It wasn't right, Isom, it wasn't fair. You know I could hire out any day for more than ten dollars a month, and you know I'd never let mother go on the county as long as I was able to lift a hand."

"Winter and summer through, Joe—you must consider that," argued Isom, giving his head a twist which was meant to be illustrative of deep wisdom.

"You knew she was afraid of being thrown on the county," said Joe, "you sneaked in when I wasn't around and scared her up so she'd do most anything."

"Well, you don't need to talk so loud," cautioned Isom, turning an uneasy, cross look toward the door, from which the sound of a light step fled. 27

"I'll talk loud enough for you to hear me, and understand what I mean," said Joe. "I could run off and leave you, Isom, if I wanted to, but that's not my way. Mother made the bargain, I intend to live up to it, and let her have what little benefit there is to be got out of it. But I want you to know what I think of you at the start, and the way I feel about it. I'm here to work for mother, and keep that old roof over her head that's dearer to her than life, but I'm not your slave nor your servant in any sense of the word."

"It's all the same to me," said Isom, dropping his sham front of placation, lifting his finger to accent his words, "but you'll work, understand that—you'll *work*!"

"Mother told me," said Joe not in the least disturbed by this glimpse of Isom in his true guise, "that you had that notion in your mind, Isom. She said you told her you could thrash me if you wanted to do it, but I want to tell you—"

"It's the law," cut in Isom. "I can do it if I see fit."

"Well, don't ever try it," said Joe, drawing a long breath. "That was the main thing I wanted to say to you, Isom—don't ever try that!"

"I never intended to take a swingle-tree to you, Joe," said Isom, forcing his dry face into a grin. "I don't see that there ever need be any big

differences between me and you. You do what's right by me and I'll do the same by you."

Isom spoke with lowered voice, a turning of the eyes toward the kitchen door, as if troubled lest this defiance of his authority might have been heard within, and the seeds of insubordination sown in another bond-slave's breast.

"I'll carry out mother's agreement with you to the best of my ability," said Joe, moving forward as if ready now to begin.

"Then come on in and eat your breakfast," said Isom.

28

Isom led the way into the smoky kitchen, inwardly more gratified than displeased over this display of spirit. According to the agreement between them, he had taken under bond-service the Widow Newbolt's "minor male child," but it looked to him as if some mistake had been made in the delivery.

"He's a man!" exulted Isom in his heart, pleased beyond measure that he had bargained better than he had known.

Joe put his lean brown hand into the bosom of his shirt and brought out a queer, fat little book, leather-bound and worn of the corners. This he placed on top of his bundle, then followed Chase into the kitchen where the table was spread for breakfast.

Mrs. Chase was busy straining milk. She did not turn her head, nor give the slightest indication of friendliness or interest in Joe as he took the place pointed out by Chase. Chase said no word of introduction. He turned his plate over with a businesslike flip, took up the platter which contained two fried eggs and a few pieces of bacon, scraped off his portion, and handed the rest to Joe.

In addition to the one egg each, and the fragments of bacon, there were sodden biscuits and a broken-nosed pitcher holding molasses. A cup of roiled coffee stood ready poured beside each plate, and that was the breakfast upon which Joe cast his curious eyes. It seemed absurdly inadequate to the needs of two strong men, accustomed as Joe was to four eggs at a meal, with the stays of life which went with them in proportion.

Mrs. Chase did not sit at the table with them, nor replenish the empty platter, although Joe looked expectantly and hungrily for her to do so. She was carrying pans of milk into the cellar, and did not turn her head once in their direction during the meal.

29

Joe rose from the table hungry, and in that uneasy state of body began his first day's labor on Isom Chase's farm. He hoped that dinner might repair the shortcomings of breakfast, and went to the table eagerly when that hour came.

For dinner there was hog-jowl and beans, bitter with salt, yellow with salt, but apparently greatly to the liking of Isom, whose natural food seemed to be the very essence of salt.

"Help yourself, eat plenty," he invited Joe.

Jowls and beans were cheap; he could afford to be liberal with that meal. Generosity in regard to that five-year-old jowl cost him scarcely a pang.

"Thank you," said Joe politely. "I'm doing very well."

A place was laid for Mrs. Chase, as at breakfast, but she did not join them at the table. She was scalding milk crocks and pans, her face was red from the steam. As she bent over the sink the uprising vapor moved her hair upon her temples like a wind.

"Ain't you goin' to eat your dinner, Ollie?" inquired Isom with considerable lightness, perhaps inspired by the hope that she was not.

"I don't feel hungry right now," she answered, bending over her steaming pan of crocks.

Isom did not press her on the matter. He filled up his plate again with beans and jowl, whacking the grinning jawbone with his knife to free the clinging shreds of meat.

Accustomed as he had been all his life to salt fare, that meal was beyond anything in that particular of seasoning that Joe ever had tasted. The fiery demand of his stomach for liquid dilution of his saline repast made an early drain on his coffee; when he had swallowed the last bean that he was able to force down, his cup was empty. He cast his eyes about inquiringly for more.

"We only drink one cup of coffee at a meal here," explained Isom, a rebuke in his words for the extravagance of those whose loose habits carried them beyond that abstemious limit.

"All right; I guess I can make out on that," said Joe.

There was a pitcher of water at his hand, upon which he drew heavily, with the entire good-will and approbation of Isom. Then he took his hat from the floor at his feet and went out, leaving Isom hammering again at the jowl, this time with the handle of his fork, in the hope of dislodging a bit of gristle which clung to one end.

Joe's hope leaped ahead to supper, unjustified as the flight was by the day's developments. Human creatures could not subsist longer than a meal or two on such fare as that, he argued; there must be a change very soon, of course.

It was a heavy afternoon for Joe. He was weary from the absolute lack of nourishment when the last of the chores was done long after dusk, and Isom announced that they would go to the house for supper.

The supper began with soup, made from the left-over beans and the hog's jaw of dinner. There it swam, that fleshless, long-toothed, salt-reddened bone, the most hateful piece of animal anatomy that Joe ever fixed his hungry eyes upon. And supper ended as it began; with soup. There was nothing else behind it, save some hard bread to soak in it, and its only savor was salt.

Isom seemed to be satisfied with, even cheered by, his liquid refreshment. His wife came to her place at the table when they were almost through, and sat stirring a bowl of the mixture of bread and thin soup, her eyes set in abstracted stare in the middle of the table, far beyond the work of her hands. She did not speak to Joe; he did not undertake any friendly approaches.

Joe never had seen Mrs. Chase before that day, neighbors though they had been for months. She appeared unusually handsome to Joe, with her fair skin, and hair colored like ripe oats straw. She wore a plait of it as big as his wrist coiled and wound around her head.

For a little while after finishing his unsatisfying meal, Joe sat watching her small hand turning the spoon in her soup. He noted the thinness of her young cheeks, in which there was no marvel, seeing the fare upon which she was forced to live. She seemed to be unconscious of him and Isom. She did not raise her eyes.

Joe got up in a little while and left them, going to the porch to look for his bundle and his book. They were gone. He came back, standing hesitatingly in the door.

"They're in your room upstairs," said Mrs. Chase without turning her head to look at him, still leaning forward over her bowl.

"I'll show you where it is," Isom offered.

He led the way up the stairs which opened from the kitchen, carrying a small lamp in his hand.

Joe's room was over the kitchen. It was bleak and bare, its black rafters hung with spiderwebs, plastered with the nests of wasps. A dormer window jutted toward the east like a hollow eye, designed, no doubt, and built by Isom Chase himself, to catch the first gleam of morning and throw it in the eyes of the sleeping hired-hand, whose bed stood under it.

Isom came down directly, took his lantern, and went to the barn to look after a new-born calf. Where there was profit, such as he counted it, in gentleness, Isom Chase could be as tender as a mother. Kind words and caresses, according to his experience, did not result in any more work out of a wife so he spared them the young woman at the table, as he had denied them the old one in her grave.

As Isom hurried out into the soft night, with a word about the calf, Ollie made a bitter comparison between her lot and that of the animals in the barn. Less than six months before that gloomy night she had come to that house a bride, won by the prospect of ease and independence which Chase had held out to her in the brief season of his adroit courtship. The meanest men sometimes turn out to be the nimblest cock-pheasants during that interesting period, and, like those vain birds of the jungles, they strut and dance and cut dazzling capers before the eyes of the ladies when they want to strike up a matrimonial bargain.

Isom Chase had done that. He had been a surprising lover for a dry man of his years, spurring around many a younger man in the contest for Ollie's hand. Together with parental encouragement and her own vain dreams, she had not found it hard to say the word that made her his wife. But the gay feathers had fallen from him very shortly after their wedding day, revealing the worm which they had hidden; the bright colors of his courtship parade had faded like the fustian decorations of a carnival in the rain.

Isom was a man of bone and dry skin, whose greed and penury had starved his own soul. He had brought her there and put burdens upon her, with the assurance that it would be only for a little while, until somebody could be hired to take the work off her hands. Then he had advanced the plea of hard times, when the first excuse had worn out; now he had dropped all pretenses. She was serving, as he had married her to serve, as he had brought her there in unrecompensed bondage to serve, and hope was gone from her horizon, and her tears were undried upon her cheeks.

Isom had profited by a good day's work from Joe, and he had not been obliged to drive him to obtain it. So he was in great spirits when he came

back from the barn, where he had found the calf coming on sturdily and with great promise. He put out the lantern and turned the lamp down a shade seeing that it was consuming a twentieth more oil than necessary to light Ollie about her work. Then he sat down beside the table, stretching his long legs with a sigh.

Ollie was washing the few dishes which had served for supper, moving between table and sink with quick competence, making a neat figure in the somber room. It was a time when a natural man would have filled his pipe and brought out the weekly paper, or sat and gossiped a comfortable hour with his wife. But Isom never had cheered his atrophied nerves with a whiff of tobacco, and as for the county paper, or any paper whatever except mortgages and deeds, Isom held all of them to be frauds and extravagances which a man was better off without.

"Well, what do you think of the new hand?" asked Isom, following her with his eyes.

"I didn't pay any particular notice to him," said she, her back toward him as she stood scraping a pan at the sink.

"Did you hear what he said to me this morning when he was standin' there by the steps?"

"No, I didn't hear," listlessly, indifferently.

"H'm—I thought you was listening."

"I just looked out to see who it was."

"No difference if you did hear, Ollie," he allowed generously—for Isom. "A man's wife ought to share his business secrets, according to my way of lookin' at it; she's got a right to know what's going on. Well, I tell you that chap talked up to me like a man!"

Isom smacked his lips over the recollection. The promise of it was sweet to his taste.

Ollie's heart stirred a little. She wondered if someone had entered that house at last who would be able to set at defiance its stern decrees. She hoped that, if so, this breach in the grim wall might let some sunlight in time into her own bleak heart. But she said nothing to Isom, and he talked on.

"I made a good pick when I lit on that boy," said he, with that old wise twist of the head; "the best pick in this county, by a long shot. I choose a man like I pick a horse, for the blood he shows. A blooded horse will endure

where a plug will fall down, and it's the same way with a man. Ollie, don't you know that boy's got as good a strain in him as you'll find in this part of the country?"

"I never saw him before today, I don't know his folks," said she, apparently little interested in her husband's find.

Isom sat silent for a while, looking at the worn floor.

"Well, he's bound out to me for two years and more," said he, the comfort of it in his hard, plain face. "I'll have a steady hand that I can depend on now. That's a boy that'll do his duty; no doubt in my mind about that. It may go against the grain once in a while, Ollie, like our duty does for all of us sometimes; but, no matter how it tastes to him, that boy Joe, he'll face it.

"He's not one of the kind that'll shirk on me when my back's turned, or steal from me if he gets a chance, or betray any trust I put in him. He's as poor as blue-John and as proud as Lucifer, but he's as straight as the barrel of that old gun. He's got Kentucky blood in him, and the best of it, too."

"He brought a funny little Bible with him," said Ollie in low voice, as if communing with herself.

"Funny?" said Isom. "Is that so?"

"So little and fat," she explained. "I never saw one like it before. It was there on the bench this morning with his bundle. I put it up by his bed."

"Hum-m," said Isom reflectively, as if considering it deeply. Then: "Well, I guess it's all right."

Isom sat a good while, fingering his stiff beard. He gave no surface indication of the thoughts which were working within him, for he was unlike those sentimental, plump, thin-skinned people who cannot conceal their emotions from the world. Isom might have been dreaming of gain, or he might have been contemplating the day of loss and panic, for all that his face revealed. Sun and shadow alike passed over it, as rain and blast and summer sun pass over and beat upon a stone, leaving no mark behind save in that slow and painful wear which one must live a century to note. He looked up at his wife at length, his hand still in his beard, and studied her silently.

"I'm not a hard man, Ollie, like some people give me the name of being," he complained, with more gentleness in his voice than she had heard since he was courting her. He still studied her, as if he expected her to uphold

common report and protest that he was hard and cruel-driving in his way. She said nothing; Isom proceeded to give himself the good rating which the world denied.

"I'm not half as mean as some envious people would make out, if they could find anybody to take stock in what they say. If I'm not as honey-mouthed as some, that's because I've got more sense than to diddle-daddle my time away in words when there's so much to do. I'll show you that I'm as kind at heart, Ollie, as any man in this county, if you'll stand by me and do your part of what's to be done without black looks and grumbles and growls.

"I'm a good many years older than you, and maybe I'm not as light-footed and light-headed as you'd like a husband to be, but I've got weight to me where it counts. I could buy out two-thirds of the young fellers in this county, Ollie, all in a bunch."

"Yes, Isom, I guess you could," she allowed, a weary drag in her voice.

"I'll put a woman in to do the work here in the fall, when I make a turn of my crops and money comes a little freer than it does right now," he promised. "Interest on my loans is behind in a good many cases, and there's no use crowdin' 'em to pay till they sell their wheat and hogs. If I had the ready money in hand to pay wages, Ollie, I'd put a nigger woman in here tomorrow and leave you nothing to do but oversee. You'll have a fine easy time of it this fall, Ollie, when I turn my crops."

Ollie drained the dishpan and wrung out the cloths. These she hung on a line to dry. Isom watched her with approval, pleased to see her so housewifely and neat.

"Ollie, you've come on wonderful since I married you," said he. "When you come here—do you recollect?—you couldn't hardly make a mess of biscuits that was fit to eat, and you knew next to nothing about milk and butter for all that you was brought up on a farm."

"Well, I've learned my lesson," said she, with a bitterness which passed over Isom's head.

Her back was turned to him, she was reaching to hang a utensil on the wall, so high above her head that she stood on tiptoe. Isom was not insensible to the pretty lines of her back, the curve of her plump hips, the whiteness of her naked arms. He smiled.

“Well, it’s worth money to you to know all these things,” said he, “and I don’t know but it’s just as well for you to go on and do the work this summer for the benefit of what’s to be got out of it; you’ll be all the better able to oversee a nigger woman when I put one in, and all the better qualified to take things into your own hands when I’m done and in the grave. For I’ll have to go, in fifteen or twenty years more,” he sighed.

Ollie made no reply. She was standing with her back still turned toward him, stripping down her sleeves. But the sigh which she gave breath to sounded loud in Isom’s ears. 37

Perhaps he thought she was contemplating with concern the day when he must give over his strivings and hoardings, and leave her widowed and alone. That may have moved him to his next excess of generosity.

“I’m going to let Joe help you around the house a good deal, Ollie,” said he. “He’ll make it a lot easier for you this summer. He’ll carry the swill down to the hogs, and water ’em, and take care of the calves. That’ll save you a good many steps in the course of the day.”

Ollie maintained her ungrateful silence. She had heard promises before, and she had come to that point of hopelessness where she no longer seemed to care. Isom was accustomed to her silences, also; it appeared to make little difference to him whether she spoke or held her peace.

He sat there reflectively a little while; then got up, stretching his arms, yawning with a noise like a dog.

“Guess I’ll go to bed,” said he.

He looked for a splinter on a stick of stove-wood, which he lit at the stove and carried to his lamp. At the door he paused, turned, and looked at Ollie, his hand, hovering like a grub curved beside the chimney, shading the light from his eyes.

“So he brought a Bible, did he?”

“Yes.”

“Well, he’s welcome to it,” said Isom. “I don’t care what anybody that works for me reads—just so long as he *works*!”

Isom’s jubilation over his bondboy set his young wife’s curiosity astir. She had not noted any romantic or noble parts about the youth in the casual, uninterested view which she had given him that day. To her then he had appeared only a sprangling, long-bodied, long-legged, bony-shouldered, unformed lad whose hollow frame indicated a great capacity for food. Her

only thought in connection with him had been that it meant another mouth³⁸ to dole Isom's slender allowance out to, more scheming on her part to make the rations go round. It meant another one to wash for, another bed to make.

She had thought of those things wearily that morning when she heard the new voice at the kitchen door, and she had gone there for a moment to look him over; for strange faces, even those of loutish farm-hands, were refreshing in her isolated life. She had not heard what the lad was saying to Isom, for the kitchen was large and the stove far away from the door, but she had the passing thought that there was a good deal of earnestness or passion in the harangue for a farm-hand to be laying on his early morning talk.

When she found the Bible lying there on top of Joe's hickory shirt, she had concluded that he had been talking religion. She hoped that he would not preach at his meals. The only religion that Ollie knew anything of, and not much of that, was a glum and melancholy kind, with frenzied shoutings of the preacher in it, and portentous shaking of the beard in the shudderful pictures of the anguish of unrepentant death. So she hoped that he would not preach at his meals, for the house was sad enough, and terrible and gloomily hopeless enough, without the kind of religion that made the night deeper and the day longer in its dread.

Now Isom's talk about the lad's blood, and his expression of high confidence in his fealty, gave her a pleasant topic of speculation. Did good blood make men different from those who came of mongrel strain, in other points than that of endurance alone? Did it give men nobility and sympathy and loftiness, or was it something prized by those who hired them, as Isom seemed to value it in Joe, because it lent strength to the arms?

Ollie sat on the kitchen steps and turned all this over in her thoughts after Isom had gone to bed.³⁹

Perhaps in the new bondboy, who had come there to serve with her, she would find one with whom she might talk and sometimes ease her heart. She hoped that it might be so, for she needed chatter and laughter and the common sympathies of youth, as a caged bird requires the seed of its wild life. There was hope in the new farm-hand which swept into her heart like a refreshing breeze. She would look him over and sound him when he worked, choring between kitchen and barn.

Ollie had been a poor man's child. Isom had chosen her as he would have selected a breeding-cow, because nature, in addition to giving her a form of

singular grace and beauty, had combined therein the utilitarian indications of ability to plentifully reproduce her kind. Isom wanted her because she was alert and quick of foot, and strong to bear the burdens of motherhood; for even in the shadow of his decline he still held to the hope of his youth—that he might leave a son behind him to guard his acres and bring down his name.

Ollie was no deeper than her opportunities of life had made her. She had no qualities of self-development, and while she had graduated from a high school and still had the ornate diploma among her simple treasures, learning had passed through her pretty ears like water through a funnel. It had swirled and choked there a little while, just long enough for her to make her “points” required for passing, then it had sped on and left her unencumbered and free.

Her mother had always held Ollie’s beauty a greater asset than mental graces, and this early appraisal of it at its trading value had made Ollie a bit vain and ambitious to mate above her family. Isom Chase had held out to her all the allurements of which she had dreamed, and she had married him for his money. She had as well taken a stone to her soft bosom in the hope of warming it into yielding a flower.

Isom was up at four o’clock next morning. A few minutes after him Ollie stumbled down the stairs, heavy with the pain of broken sleep. Joe was snoring above-stairs; the sound penetrated to the kitchen down the doorless casement.

“Listen to that feller sawin’ gourds!” said Isom crabbedly.

The gloom of night was still in the kitchen; in the corner where the stove stood it was so dark that Ollie had to grope her way, yawning heavily, feeling that she would willingly trade the last year of her life for one more hour of sleep that moist spring morning.

Isom mounted the kitchen stairs and roused Joe, lumbering down again straightway and stringing the milk-pails on his arms without waiting to see the result of his summons.

“Send him on down to the barn when he’s ready,” directed Isom, jangling away in the pale light of early day.

Ollie fumbled around in her dark corner for kindling, and started a fire in the kitchen stove with a great rattling of lids. Perhaps there was more alarm than necessary in this primitive and homely task, sounded with the friendly

intention of carrying a warning to Joe, who was making no move to obey his master's call.

Ollie went softly to the staircase and listened. Joe's snore was rumbling again, as if he traveled a heavy road in the land of dreams. She did not feel that she could go and shake him out of his sleep and warn him of the penalty of such remission, but she called softly from where she stood:

"Joe! You must get up, Joe!"

But her voice was not loud enough to wake a bird. Joe slept on, like a heavy-headed boor, and she went back to the stove to put the kettle on to boil. The issue of his recalcitration must be left between him and Isom. If he had good blood in him, perhaps he would fight when Isom lifted his hand and beat him out of his sleep, she reflected, hoping simply that it would turn out that way.

Isom came back to the house in frothing wrath a quarter of an hour later. There was no need to ask about Joe, for the bound boy's nostrils sounded his own betrayal.

Isom did not look at Ollie as he took the steep stairs four treads at a step. In a moment she heard the sleeper's bed squeaking in its rickety old joints as her husband shook him and cut short his snore in the middle of a long flourish.

"Turn out of here!" shouted Isom in his most terrible voice—which was to Ollie's ears indeed a dreadful sound—"turn out and git into your duds!"

Ollie heard the old bed give an extra loud groan, as if the sleeper had drawn himself up in it with suddenness; following that came the quick scuffling of bare feet on the floor.

"Don't you touch me! Don't you lay hands on me!" she heard the bound boy warn, his voice still husky with sleep.

"I'll skin you alive!" threatened Isom. "You've come here to work, not to trifle your days away sleepin'. A good dose of strap-oil's what you need, and I'm the man to give it to you, too!"

Isom's foot was heavy on the floor over her head, moving about as if in search of something to use in the flagellation. Ollie stood with hands to her tumultuous bosom, pity welling in her heart for the lad who was to feel the vigor of Isom's unsparing arm.

There was a lighter step upon the floor, moving across the room like a sudden wind. The bound boy's voice sounded again, clear now and steady,

near the top of the stairs where Isom stood.

“Put that down! Put that down, I tell you!” he commanded. “I warned⁴² you never to lift your hand against me. If you hit me with that I’ll kill you in your tracks!”

Ollie’s heart leaped at the words; hot blood came into her face with a surge. She clasped her hands to her breast in new fervor, and lifted her face as one speeding a thankful prayer. She had heard Isom Chase threatened and defied in his own house, and the knowledge that one lived with the courage to do what she had longed to do, lifted her heart and made it glad.

She heard Isom growl something in his throat, muffled and low, which she could not separate into words.

“Well, then, I’ll let it pass—this time,” said Joe. “But don’t you ever do it any more. I’m a heavy sleeper sometimes, and this is an hour or two earlier than I am used to getting up; but if you’ll call me loud enough, and talk like you were calling a man and not a dog, you’ll have no trouble with me. Now get out of here!”

Ollie could have shouted in the triumph of that moment. She shared the bound boy’s victory and exulted in his high independence. Isom had swallowed it like a coward; now he was coming down the stairs, snarling in his beard, but his knotted fist had not enforced discipline; his coarse, distorted foot had not been lifted against his new slave. She felt that the dawn was breaking over that house, that one had come into it who would ease her of its terrors.

Joe came along after Isom in a little while, slipping his suspenders over his lank shoulders as he went out of the kitchen door. He did not turn to Ollie with the morning’s greetings, but held his face from her and hurried on, she thought, as if ashamed.

Ollie ran to the door on her nimble toes, the dawn of a smile on her face, now rosy with its new light, and looked after him as he hurried away in the brightening day. She stood with her hands clasped in attitude of pleasure, again lifting her face as if to speed a prayer.

“Oh, thank God for a *man*!” said she.

Isom was in a crabbed way at breakfast, sulky and silent. But his evil humor did not appear to weigh with any shadow of trouble on Joe, who ate what was set before him like a hungry horse and looked around for more.

Ollie's interest in Joe was acutely sharpened by the incident of rising. There must be something uncommon, indeed, in a lad of Joe's years, she thought, to enable him to meet and pass off such a serious thing in that untroubled way. As she served the table, there being griddle-cakes of cornmeal that morning to flank the one egg and fragments of rusty bacon each, she studied the boy's face carefully. She noted the high, clear forehead, the large nose, the fineness of the heavy, black hair which lay shaggy upon his temples. She studied the long hands, the grave line of his mouth, and caught a quick glimpse now and then of his large, serious gray eyes.

Here was an uncommon boy, with the man in him half showing; Isom was right about that. Let it be blood or what it might, she liked him. Hope of the cheer that he surely would bring into that dark house quickened her cheek to a color which had grown strange to it in those heavy months.

Joe's efforts in the field must have been highly satisfactory to Isom that forenoon, for the master of the house came to the table at dinner-time in quite a lively mood. The morning's unpleasantness seemed to have been forgotten. Ollie noticed her husband more than once during the meal measuring Joe's capabilities for future strength with calculating, satisfied eyes. She sat at the table with them, taking minute note of Joe at closer range, studying him curiously, awed a little by the austerity of his young face, and the melancholy of his eyes, in which there seemed to lie the concentrated sorrow of many forebears who had suffered and died with burdens upon their hearts.

"Couldn't you manage to pick us a mess of dandelion for supper, Ollie?" asked Isom. "I notice it's comin' up thick in the yard."

"I might, if I could find the time," said Ollie.

"Oh, I guess you'll have time enough," said Isom, severely.

Her face grew pale; she lowered her head as if to hide her fear from Joe.

"Cook it with a jowl," ordered Isom; "they go fine together, and it's good for the blood."

Joe was beginning to yearn forward to Sunday, when he could go home to his mother for a satisfying meal, of which he was sharply feeling the need. It was a mystery to him how Isom kept up on that fare, so scant and unsatisfying, but he reasoned that it must be on account of there being so little of him but gristle and bone.

Joe looked ahead now to the term of his bondage under Isom; the prospect gave him an uneasy concern. He was afraid that the hard fare and harder work would result in stunting his growth, like a young tree that has come to a period of drought green and promising, and stands checked and blighted, never again to regain the hardy qualities which it needs to raise it up into the beauty of maturity.

The work gave him little concern; he knew that he could live and put on strength through that if he had the proper food. So there would have to be a change in the fare, concluded Joe, as he sat there while Isom discussed the merits of dandelion and jowl. It would have to come very early in his term of servitude, too. The law protected the bondman in that, no matter how far it disregarded his rights and human necessities in other ways. So thinking, he pushed away from the table and left the room. 45

Isom drank a glass of water, smacked his dry lips over its excellencies, the greatest of them in his mind being its cheapness, and followed it by another.

“Thank the Lord for water, anyhow!” said he.

“Yes, there’s plenty of that,” said Ollie meaningly.

Isom was as thick-skinned as he was sapless. Believing that his penurious code was just, and his frugality the first virtue of his life, he was not ashamed of his table, and the outcast scraps upon it. But he looked at his young wife with a sharp drawing down of his spiked brows as he lingered there a moment, his cracked brown hands on the edge of the table, which he had clutched as he pushed his chair back. He seemed about to speak a rebuke for her extravagance of desire. The frown on his face foreshadowed it, but presently it lifted, and he nodded shrewdly after Joe.

“Give him a couple of eggs mornings after this,” said he, “they’ve fell off to next to nothing in price, anyhow. And eat one yourself once in a while, Ollie. I ain’t one of these men that believe a woman don’t need the same fare as a man, once on a while, anyhow.”

His generous outburst did not appear to move his wife’s gratitude. She did not thank him by word or sign. Isom drank another glass of water, rubbed his mustache and beard back from his lips in quick, grinding twists of his doubled hand.

“The pie-plant’s comin’ out fast,” said he, “and I suppose we might as well eat it—nothing else but humans will eat it—for there’s no sale for it over

in town. Seems like everybody's got a patch of it nowadays.

"Well, it's fillin', as the old woman said when she swallowed her thimble, and that boy Joe he's going to be a drain on me to feed, I can see that now. I'll have to fill him up on something or other, and I guess pie-plant's about as good as anything. It's cheap." 46

"Yes, but it takes sugar," ventured Ollie, rolling some crumbs between her fingers.

"You can use them molasses in the blue barrel," instructed Isom.

"It's about gone," said she.

"Well, put some water in the barrel and slosh it around—it'll come out sweet enough for a mess or two."

Isom got up from the table as he gave these economic directions, and stood a moment looking down at his wife.

"Don't you worry over feedin' that feller, Ollie," he advised. "I'll manage that. I aim to keep him stout—I never saw a stouter feller for his age than Joe—for I'm goin' to git a pile of work out of him the next two years. I saw you lookin' him over this morning," said he, approvingly, as he might have sanctioned her criticism of a new horse, "and I could see you was lightin' on his points. Don't you think he's all I said he was?"

"Yes," she answered, a look of abstraction in her eyes, her fingers busy with the crumbs on the cloth, "all you said of him—*and more!*"

CHAPTER III

THE SPARK IN THE CLOD

It did not cost Isom so many pangs to minister to the gross appetite of his bound boy as the spring weeks marched into summer, for gooseberries followed rhubarb, then came green peas and potatoes from the garden that Ollie had planted and tilled under her husband's orders.

Along in early summer the wormy codlings which fell from the apple-trees had to be gathered up and fed to the hogs by Ollie, and it was such a season of blighted fruit that the beasts could not eat them all. So there was apple sauce, sweetened with molasses from the new barrel that Isom broached.

If it had not been so niggardly unnecessary, the faculty that Isom had for turning the waste ends of the farm into profit would have been admirable. But the suffering attendant upon this economy fell only upon the human creatures around him. Isom's beasts wallowed in plenty and grew fat in the liberality of his hand. For himself, it looked as if he had the ability to extract his living from the bare surface of a rock.

All of this green truck was filling, as Isom had said, but far from satisfying to a lad in the process of building on such generous plans as Joe. Isom knew that too much skim-milk would make a pot-bellied calf, but he was too stubborn in his rule of life to admit the cause when he saw that Joe began to lag at his work, and grow surly and sour.

Isom came in for quick and startling enlightenment in the middle of a lurid July morning, while he and Joe were at work with one-horse cultivators, "laying by" the corn. Joe threw his plow down in the furrow, cast the lines from his shoulders, and declared that he was starving. He vowed that he would not cultivate another row unless assured, then and there, that Isom would make an immediate enlargement in the bill-of-fare.

Isom stood beside the handles of his own cultivator, there being the space of ten rows between him and Joe, and took the lines from around his shoulders, with the deliberate, stern movement of a man who is preparing for a fight.

"What do you mean by this kind of capers?" he demanded.

“I mean that you can’t go on starving me like you’ve been doing, and that’s all there is to it!” said Joe. “The law don’t give you the right to do that.”

“Law! Well, I’ll law you,” said Isom, coming forward, his hard body crouched a little, his lean and guttered neck stretched as if he gathered himself for a run and jump at the fence. “I’ll feed you what comes to my hand to feed you, you onery whelp! You’re workin’ for me, you belong to me!”

“I’m working for mother—I told you that before,” said Joe. “I don’t owe you anything, Isom, and you’ve got to feed me better, or I’ll walk away and leave you, that’s what I’ll do!”

“Yes, I see you walkin’ away!” said Isom, plucking at his already turned-up sleeve. “I’m goin’ to give you a tannin’ right now, and one you’ll not forget to your dyin’ day!”

At that moment Isom doubtless intended to carry out his threat. Here was a piece of his own property, as much his property as his own wedded wife, defying him, facing him with extravagant demands, threatening to stop work unless more bountifully fed! Truly, it was a state of insurrection such as no upright citizen like Isom Chase could allow to go by unproved and unquieted by castigation of his hand.

“You’d better stop where you are,” advised Joe.

He reached down and righted his plow. Isom could see the straining of the leaders in his lean wrist as he stood gripping the handle, and the thought passed through him that Joe intended to wrench it off and use it as a weapon against him.

Isom had come but a few steps from his plow. He stopped, looking down at the furrow as if struggling to hold himself within bounds. Still looking at the earth, he went back to his implement.

“I’ll put you where the dogs won’t bite you if you ever threaten my life ag’in!” said he.

“I didn’t threaten your life, Isom, I didn’t say a word,” said Joe.

“A motion’s a threat,” said Isom.

“But I’ll tell you now,” said Joe, quietly, lowering his voice and leaning forward a little, “you’d better think a long time before you ever start to lay hands on me again, Isom. This is twice. The next time—”

Joe set his plow in the furrow with a push that sent the swingle-tree knocking against the horse's heels. The animal started out of the doze into which it had fallen while the quarrel went on. Joe grinned, thinking how even Isom's dumb creatures took every advantage of him that opportunity offered. But he left his warning unfinished as for words.

There was no need to say more, for Isom was cowed. He was quaking down to the tap-root of his salt-hardened soul, but he tried to put a different face on it as he took up his plow.

"I don't want to cripple you, and lay you up," he said. "If I was to begin on you once I don't know where I'd leave off. Git back to your work, and don't give me any more of your sass!"

"I'll go back to work when you give me your word that I'm to have meat and eggs, butter and milk, and plenty of it," said Joe.

"I orto tie you up to a tree and lash you!" said Isom, jerking angrily at his horse. "I don't know what ever made me pity your mother and keep her out of the poorhouse by takin' in a loafer like you!"

"Well, if you're sick of the bargain go and tell mother. Maybe she is, too," Joe suggested.

"No, you'll not git out of it now, you'll stick right here and put in your time, after all the trouble and expense I've been put to teachin' you what little you know about farmin'," Isom declared.

He took up his plow and jerked his horse around into the row. Joe stood watching him, with folded arms, plainly with no intention of following. Isom looked back over his shoulder.

"Git to work!" he yelled.

"You didn't promise me what I asked," said Joe, quietly.

"No, and that ain't all!" returned Isom.

The tall corn swallowed Isom and his horse as the sea swallowed Pharaoh and his host. When he returned to the end of the field where the rebellion had broken out, he found Joe sitting on the beam of his plow and the well-pleased horse asleep in the sun.

Isom said nothing, but plunged away into the tall corn. When he came back next time Joe was unhitching his horse.

"Now, look a-here, Joe," Isom began, in quite a changed tone, "don't you fly up and leave an old man in the lurch that way."

"You know what I said," Joe told him.

“I’ll give in to you, Joe; I’ll give you everything you ask for, and more,” yielded Isom, seeing that Joe intended to leave. “I’ll put it in writing if you want me to Joe—I’ll do anything to keep you, son. You’re the only man I ever had on this place I wouldn’t rather see goin’ than comin’.”

Isom’s word was satisfactory to Joe, and he returned to work.

That turned out a day to be remembered in the household of Isom Chase. If he had come into the kitchen at noon with all the hoarded savings of his years and thrown them down before her eyes, Ollie could not have been more surprised and mystified than she was when he appeared from the smokehouse carrying a large ham.

After his crafty way in a tight pinch Isom turned necessity into profit by making out that the act was free and voluntary, with the pleasure and comfort of his pretty little wife underlying and prompting it all. He grinned as if he would break his beard when he put the ham down on the table and cut it in two at the middle joint as deftly as a butcher.

“I’ve been savin’ that ham up for you, Ollie. I think it’s just about right now,” said he.

“That was nice of you, Isom,” said she, moved out of her settled taciturnity by his little show of thought for her, “I’ve been just dying for a piece of ham!”

“Well, fry us a big skilletful of it, and some eggs along with it, and fetch up a crock of sweet milk, and stir it up cream and all,” directed Isom.

Poor Ollie, overwhelmed by the suddenness and freedom of this generosity, stood staring at him, her eyes round, her lips open. Isom could not have studied a more astounding surprise. If he had hung diamonds on her neck, rubies on her wrists, and garnets in her hair, she could quicker have found her tongue.

“It’s all right, Ollie, it’s all right,” said Isom pettishly. “We’re going to have these things from now on. Might as well eat ’em, and git some of the good of what we produce, as let them city people fatten off ’em.”

Isom went out with that, and Ollie attacked the ham with the butcher knife in a most savage and barbarous fashion.

Isom’s old wife must have shifted in her grave at sight of the prodigal repast which Ollie soon spread on the kitchen table. Granting, of course, that people in their graves are cognizant of such things, which, according to this old standard of comparison in human amazement, they must be.

But whether the old wife turned over or lay quiescent in the place where they put her when they folded her tired old hands upon her shrunken breast, it is indisputable that the new one eased the pangs of many a hungry day in that bountiful meal. And Joe's face glowed from the fires of it, and his eyes sparkled in the satisfaction of his long-abused stomach.

Next day a more startling thing happened. Twice each week there passed through the country, from farm to farm, a butcher's wagon from Shelbyville, the county-seat, a few miles away. Isom Chase never had been a customer of the fresh meat purveyor, and the traveling merchant, knowing from the old man's notoriety that he never could expect him to become one, did not waste time in stopping at his house. His surprise was almost apoplectic when Isom stopped him and bought a soup-bone, and it almost became fatal when the order was made a standing one. It was such a remarkable event that the meat man told about it at every stop. It went round the country like the news of a wedding or a death.

Isom seemed to be satisfied with the new dietary regulations, for hams were cheap that summer, anyhow, and the season was late. Besides that, the more that Joe ate the harder he worked. It seemed a kind of spontaneous effort on the lad's part, as if it was necessary to burn up the energy in surplus of the demand of his growing bone and muscle. 53

Ollie had picked up and brightened under the influence of ham and milk also, although it was all a foolish yielding to appetite, as Isom very well knew. He had beaten that weakness in himself to death with the club of abstinence; for himself he could live happily on what he had been accustomed to eating for thirty years and more. But as long as the investment of ham and milk paid interest in kitchen as well as field, Isom was grudgingly willing to see them consumed.

Ollie's brightening was only physical. In her heart she was as gloomily hopeless as before. After his first flash of fire she had not found much comfort or hope of comradeship in the boy, Joe Newbolt. He was so respectful in her presence, and so bashful, it seemed, that it almost made her uncomfortable to have him around.

Man that he was in stature, he appeared no more than a timid boy in understanding, and her little advances of friendliness, her little appeals for sympathy, all glanced from the unconscious armor of his youthful innocence and reserve. She was forced to put him down after many weeks

as merely stupid, and she sighed when she saw the hope of comradeship in her hard lot fade out and give way to a feeling bordering upon contempt.

On Sunday evenings, after he came back from visiting his mother, Ollie frequently saw Joe reading the little brown Bible which he had carried with him when he came. She had taken it up one day while making Joe's bed. It brought back to her the recollection of her Sunday-school days, when she was all giggles and frills; but there was no association of religious training to respond to its appeal. She wondered what Joe saw in it as she put it back on the box beside his bed.

It chanced that she met Joe the next morning after she had made that short incursion between the brown covers of his book, as she was returning from the well and he was setting out for the hog-lot between two pails of sour swill. He stood out of the path to let her pass without stepping into the long, dewy grass. She put her bucket down with a gasp of weariness, and looked up into his eyes with a smile.

The buckets were heavy in Joe's hands; he stood them down, meeting her friendly advances with one of his rare smiles, which came as seldom to his face, thought she, as a hummingbird to the honeysuckle on the kitchen porch.

"Whew, this is going to be a scorcher!" said she.

"I believe it is," he agreed.

From the opposite sides of the path their eyes met. Both smiled again, and felt better for it.

"My, but you're a mighty religious boy, aren't you?" she asked suddenly.

"Religious?" said he, looking at her in serious surprise.

She nodded girlishly. The sun, long slanting through the cherry-trees, fell on her hair, loosely gathered up after her sleep, one free strand on her cheek.

"No, I'm not religious."

"Well, you read the Bible all the time."

"Oh, well!" said he, stooping as if to lift his pails.

"Why?" she wanted to know.

Joe straightened his long back without his pails. Beyond the orchard the hogs were clamoring shrilly for their morning draught; from the barn there came the sound of Isom's voice, speaking harshly to the beasts.

“Well, because I like it, for one thing,” said he, “and because it’s the only book I’ve got here, for another.”

“My, I think it’s awful slow!” said she.

“Do you?” he inquired, as if interested in her likes and dislikes at last.

“I’d think you’d like other books better—detective stories and that kind,” she ventured. “Didn’t you ever read any other book?” 55

“Some few,” he replied, a reflection as of amusement in his eyes, which she thought made them look old and understanding and wise. “But I’ve always read the Bible. It’s one of the books that never seems to get old to you.”

“Did you ever read *True as Steel*?”

“No, I never did.”

“Or *Tempest and Sunshine*?”

He shook his head.

“Oh-h,” said she, fairly lifting herself by the long breath which she drew, like the inhalation of a pleasant recollection, “you don’t know what you’ve missed! They are lovely!”

“Well, maybe I’d like them, too.”

He stooped again, and this time came up with his pails.

“I’m glad you’re not religious, anyhow,” she sighed, as if heaving a trouble off her heart.

“Are you?” he asked, turning to her wonderingly.

“Yes; religious people are so glum,” she explained. “I never saw one of them laugh.”

“There are some that way,” said Joe. “They seem to be afraid they’ll go to hell if they let the Almighty hear them laugh. Mother used to be that way when she first got *her* religion, but she’s outgrowing it now.”

“The preachers used to scare me to death,” she declared. “If I could hear some comfortable religion I might take up with it, but it seems to me that everybody’s so sad after they get it. I don’t know why.”

Joe put down the pails again. Early as the day was, it was hot, and he was sweating. He pushed his hat back from his forehead. It was like lifting a shadow from his serious young face. She smiled.

“A person generally gets the kind of religion that he hears preached,” said he, “and most of it you hear is kind of heavy, like bread without rising. I’ve never seen a laughing preacher yet.” 56

“There must be some, though,” she reflected.

“I hope so,” said Joe.

“I’m *glad* you’re not full of that kind of religion,” said she. “For a long time I thought you were.”

“You did? Why?”

“Oh, because—” said she.

Her cheek was toward him; he saw that it was red, like the first tint of a cherry. She snatched up her bucket then and sped along the path.

Joe walked on a little way, stopped, turned, and looked after her. He saw the flick of her skirt as her nimble heels flew up the three steps of the kitchen porch, and he wondered why she was glad that he was not religious, and why she had gone away like that, so fast. The pigs were clamoring, shriller, louder. It was no hour for a youth who had not yet wetted his feet in manhood’s stream to stand looking after a pair of heels and try to figure out a thing like that.

As Joe had said, he was not religious, according to catechisms and creeds. He could not have qualified in the least exacting of the many faiths. All the religion that he had was of his own making, for his mother’s was altogether too ferocious in its punishments and too dun and foggy in its rewards for him.

He read the Bible, and he believed most of it. There was as much religion, said he, in the Commandments as a man needed; a man could get on with that much very well. Beyond that he did not trouble.

He read the adventures of David and the lamentations of Jeremiah, and the lofty exhortations of Isaiah for the sonority of the phrasing, the poetry and beauty. For he had not been sated by many tales nor blunted by many books. If he could manage to live according to the Commandments, he sometimes told his mother, he would not feel uneasy over a better way to die.

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But he was not giving this matter much thought as he emptied the swill-pails to the chortling hogs. He was thinking about the red in Ollie’s cheeks, like the breast of a bright bird seen through the leaves, and of her quick flight up the path. It was a new Ollie that he had discovered that morning, one unknown and unspoken to before that day. But why had her face grown red that way, he wondered? Why had she run away?

And Ollie, over her smoking pan on the kitchen stove, was thinking that something might be established in the way of comradeship between herself and the bound boy, after all. It took him a long time to get acquainted, she thought; but his friendship might be all the more stable for that. There was comfort in it; as she worked she smiled.

There was no question of the need in which Ollie stood of friendship, sympathy, and kind words. Joe had been in that house six months, and in that time he had witnessed more pain than he believed one small woman's heart could bear. While he was not sure that Isom ever struck his wife, he knew that he tortured her in endless combinations of cruelty, and pierced her heart with a thousand studied pangs. Often, when the house was still and Isom was asleep, he heard her moaning and sobbing, her head on the kitchen table.

These bursts of anguish were not the sudden gusts of a pettish woman's passion, but the settled sorrow of one who suffered without hope. Many a time Joe tiptoed to the bottom of the staircase in his bare feet and looked at her, the moonlight dim in the cheerless kitchen, her head a dark blotch upon the whiteness of her arms, bowed there in her grief. Often he longed to go to her with words of comfort and let her know that there was one at least who pitied her hard fate and sad disillusionment.

In those times of tribulation Joe felt that they could be of mutual help and comfort if they could bring themselves to speak, for he suffered also the pangs of imprisonment and the longings for liberty in that cruel house of bondage. Yet he always turned and went softly, almost breathlessly, back to his bed, leaving her to sob and cry alone in the struggle of her hopeless sorrow.

It was a harder matter to keep his hands from the gristly throat of grim old Isom Chase, slumbering unfeelingly in his bed while his young wife shredded her heart between the burr-stones of his cruel mill. Joe had many an hour of struggle with himself, lying awake, his hot temples streaming sweat, his eyes staring at the ribs of the roof.

During those months Joe had set and hardened. The muscles had thickened over his chest and arms; his neck was losing the long scragginess of youth; his fingers were firm-jointed in his broadening hands. He knew that Isom Chase was no match for him, man to man.

But, for all his big body and great strength, he was only a boy in his sense of justice, in his hot, primitive desire to lunge out quickly and set the

maladjustments of that household straight. He did not know that there was a thing as old as the desires of men at the bottom of Ollie's sorrow, nor understand the futility of chastisement in the case of Isom Chase.

Isom was as far as ever from his hope of a son or heir of any description—although he could not conceive the possibility of fathering a female child—and his bitter reproaches fell on Ollie, as they had fallen upon and blasted the woman who had trudged that somber course before her into the grateful shelter of the grave. It was a thing which Ollie could not discuss with young Joe, a thing which only a sympathetic mother might have lightened the humiliation of or eased with tender counsel.

Isom, seeing that the book of his family must close with him, expelled the small grain of tenderness that his dry heart had held for his wife at the beginning, and counted her now nothing but another back to bear his burdens. He multiplied her tasks, and snarled and snapped, and more than once in those work-crowded autumn days, when she had lagged in her weariness, he had lifted his hand to strike. The day would come when that threatened blow would fall; of that Ollie had no consoling doubt. She did not feel that she would resent it, save in an addition to her accumulated hate, for hard labor by day and tears by night break the spirit until the flints of cruelty no longer wake its fire.

Day after day, as he worked by the side of Isom in the fields, Joe had it foremost in his mind to speak to him of his unjust treatment of his wife. Yet he hung back out of the Oriental conception which he held, due to his Scriptural reading, of that relationship between woman and man. A man's wife was his property in a certain, broad sense. It would seem unwarranted by any measure of excess short of murder for another to interfere between them. Joe held his peace, therefore, but with internal ferment and unrest.

It was in those days of Joe's disquietude that Ollie first spoke to him of Isom's oppressions. The opportunity fell a short time after their early morning meeting in the path. Isom had gone to town with a load of produce, and Joe and Ollie had the dinner alone for the first time since he had been under that roof.

Ollie's eyes were red and swollen from recent weeping, her face was mottled from her tears. Much trouble had made her careless of late of her prettiness, and now she was disheveled, her apron awry around her waist, her hair mussed, her whole aspect one of slovenly disregard. Her depression was so great that Joe was moved to comfort her.

“You’ve got a hard time of it,” said he. “If there’s anything I can do to help you I wish you’d let me know.”

Ollie slung a dish carelessly upon the table, and followed it with Joe’s coffee, which she slopped half out into the saucer.

“Oh, I feel just like I don’t care any more!” said she, her lips trembling, tears starting again in her irritated eyes. “I get treatment here that no decent man would give a dog!”

Joe felt small and young in Ollie’s presence, due to the fact that she was older by a year at least than himself.

That feeling of littleness had been one of his peculiarities as long as he could remember when there were others about older than himself, and supposed from that reason to be graver and wiser. It probably had its beginning in Joe’s starting out rather spindling and undersized, and not growing much until he was ten or thereabout, when he took a sudden shoot ahead, like a water-sprout on an apple-tree.

And then he always had regarded matrimony as a state of gravity and maturity, into which the young and unsophisticated did not venture. This feeling seemed to place between them in Joe’s mind a boundless gulf, across which he could offer her only the sympathy and assistance of a boy. There was nothing in his mind of sympathy from an equality of years and understanding, only the chivalric urging of succor to the oppressed.

“It’s a low-down way for a man to treat a woman, especially his wife,” said Joe, his indignation mounting at sight of her tears.

“Yes, and he’d whip you, too, if he dared to do it,” said she, sitting in Isom’s place at the end of the table, where she could look across into Joe’s face. “I can see that in him when he watches you eat.”

“I hope he’ll never try it,” said Joe.

“You’re not afraid of him?”

“Maybe not,” admitted Joe.

“Then why do you say you hope he’ll never try it?” she pressed.

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“Oh, because I do,” said Joe, bending over his plate.

“I’d think you’d be glad if he did try it, so you could pay him off for his meanness,” she said.

Joe looked across at her seriously.

“Did he slap you this morning?” he asked.

Ollie turned her head, making no reply.

“I thought I heard you two scuffling around in the kitchen as I came to the porch with the milk,” said he.

“Don’t tell it around!” she appealed, her eyes big and terrified at the recollection of what had passed. “No, he didn’t hit me, Joe; but he choked me. He grabbed me by the throat and shook me—his old hand’s as hard as iron!”

Joe had noticed that she wore a handkerchief pinned around her neck. As she spoke she put her hand to her throat, and her tears gushed again.

“That’s no way for a man to treat his wife,” said Joe indignantly.

“If you knew everything—*if you knew everything!*” said she.

Joe, being young, and feeling younger, could not see how she was straining to come to a common footing of understanding with him, to reach a plane where his sympathy would be a balm. He could not realize that her orbit of thought was similar to his own, that she was nearer a mate for him, indeed, than for hairy-limbed, big-jointed Isom Chase, with his grizzled hair and beard.

“It was all over a little piece of ribbon I bought yesterday when I took the eggs up to the store,” she explained. “I got two cents a dozen more than I expected for them, and I put the extra money into a ribbon—only half a yard. Here it is,” said she, taking it from the cupboard; “I wanted it to wear on my neck.”

She held it against her swathed throat with a little unconscious play of coquetry, a sad smile on her lips.

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“It’s nice, and becoming to you, too,” said Joe, speaking after the manner of the countryside etiquette on such things.

“Isom said I ought to have put the money into a package of soda, and when I wouldn’t fuss with him about it, that made him madder and madder. And then he—he—did that!”

“You wouldn’t think Isom would mind ten cents,” said Joe.

“He’d mind one cent,” said she in bitter disdain. “One cent—*huh!* he’d mind one egg! Some people might not believe it, but I tell you, Joe, that man counts the eggs every day, and he weighs every pound of butter I churn. If I wanted to, even, I couldn’t hide away a pound of butter or a dozen of eggs any more than I could hide away that stove.”

“But I don’t suppose Isom means to be hard on you or anybody,” said Joe. “It’s his way to be close and stingy, and he may do better by you one of

these days.”

“No, he’ll never do any better,” she sighed. “If anything, he’ll do worse—if he can do any worse. I look for him to strike me next!”

“He’d better not try that when I’m around!” said Joe hotly.

“What would you do to him, Joe?” she asked, her voice lowered almost to a whisper. She leaned eagerly toward him as she spoke, a flush on her face.

“Well, I’d stop him, I guess,” said Joe deliberately, as if he had considered his words. As he spoke he reached down for his hat, which he always placed on the floor beside his chair when he took his meals.

“If there was a soul in this world that cared for me—if I had anywhere to go, I’d leave him this hour!” declared Ollie, her face burning with the hate of her oppressor.

Joe got up from his chair and left the table; she rose with him and came around the side. He stopped on his way to the door, looking at her with awkward bashfulness as she stood there flushed and brilliant in her tossed state, scarcely a yard between them.

“But there’s nobody in the world that cares for me,” she complained sorrowfully.

Joe was lifting his hat to his head. Midway he stayed his hand, his face blank with surprise.

“Why, you’ve got your mother, haven’t you?” he asked.

“Mother!” she repeated scornfully. “She’d drive me back to him; she was crazy for me to marry him, for she thinks I’ll get all his property and money when he dies.”

“Well, he may die before long,” consoled Joe.

“Die!” said she; and again, “Die! He’ll never die!”

She leaned toward him suddenly, bringing her face within a few inches of his. Her hot breath struck him on the cheek; it moved the clustered hair at his temple and played warm in the doorway of his ear.

“He’ll never die,” she repeated in low, quick voice, which fell to a whisper in the end, “unless somebody he’s tramped on and ground down and cursed and driven puts him out of the way!”

Joe stood looking at her with big eyes, dead to that feminine shock which would have tingled a mature man to the marrow, insensible to the strong

effort she was making to wake him and draw him to her. He drew back from her, a little frightened, a good deal ashamed, troubled, and mystified.

“Why, you don’t suppose anybody would do that?” said he.

Ollie turned from him, the fire sinking down in her face.

“Oh, no; I don’t suppose so,” she said, a little distant and cold in her manner.

She began gathering up the dishes.

Joe stood there for a little while, looking at her hands as they flew from plate to plate like white butterflies, as if something had stirred in him that he did not understand. Presently he went his way to take up his work, no more words passing between them.

Ollie, from under her half raised lids, watched him go, tiptoeing swiftly after him to the door as he went down the path toward the well. Her breath was quick upon her lips; her breast was agitated. If that slow hunk could be warmed with a man’s passions and desires; if she could wake him; if she could fling fire into his heart! He was only a boy, the man in him just showing its strong face behind that mask of wild, long hair. It lay there waiting to move him in ways yet strange to his experience. If she might send her whisper to that still slumbering force and charge it into life a day before its time!

She stood with hand upon the door, trailing him with her eyes as he passed on to the barn. She felt that she had all but reached beyond the insulation of his adolescence in that burning moment when her breath was on his cheek; she knew that the wood, even that hour, was warm under the fire. What might a whisper now, a smile then, a kindness, a word, a hand laid softly upon his hair, work in the days to come?

She turned back to her work, her mind stirred out of its sluggish rut, the swirl of her new thoughts quickening in her blood. Isom Chase would not die; he would live on and on, harder, drier, stingier year by year, unless a bolt from heaven withered him or the hand of man laid him low. What might come to him, he deserved, even the anguish of death with a strangling cord about his neck; even the strong blow of an ax as he slept on his bed, snatching from him the life that he had debased of all its beauty, without the saving chance of repentance in the end.

She had thought of doing it with her own hand; a hundred ways she had planned and contrived it in her mind, goaded on nearer and nearer to it by

his inhuman oppressions day by day. But her heart had recoiled from it as a task for the hand of a man. If a man could be raised up to it, a man who had suffered servitude with her, a man who would strike for the double vengeance, and the love of her in his heart!

She went to the door again, gripping the stove-lid lifter in her little hand, as the jangle of harness came to her when Joe passed with the team. He rode by toward the field, the sun on his broad back, slouching forward as his heavy horses plodded onward. The man in him was asleep yet, yes; but there was a pit of fire as deep as a volcano's throat in his slumbering soul.

If she could lift him up to it, if she could pluck the heart out of him and warm it in her own hot breast, then there would stand the man for her need. For Isom Chase would not die. He would live on and on, like a worm in wood, until some strong hand fed him to the flames.

CHAPTER IV

A STRANGER AT THE GATE

Rain overtook Isom as he was driving home from town that evening, and rain was becoming one of the few things in this world from which he would flee. It aggravated the rheumatism in his knotted toes and stabbed his knee-joints with awl-piercing pains.

For upward of forty-five years Isom had been taking the rains as they came wherever they might find him. It made him growl to turn tail to them now, and trot to shelter from every shower like a hen.

So he was in no sweet humor as he drew near his own barn-yard gate with the early autumn downpour already finding its way through his coat. It came to him as he approached that portal of his domain that if he had a son the boy would be there, with the gate flung wide, to help him. It was only one of the thousand useful offices which a proper boy could fill around that place, thought he; but his wives had conspired in barrenness against him; no son ever would come to cheer his declining days.

Even if he had the kind of a wife that a man should have, reflected he, she would be watching; she would come through rain and hail, thunder and wild blast, to open the gate and ease him through without that troublesome stop.

Matrimony had been a profitless investment for him, said he in bitterness. His first wife had lived long and eaten ravenously, and had worn out shoes and calico slippers, and his second, a poor unwilling hand, was not worth her keep.

So, with all this sour summing up of his wasted ventures in his mind, and the cold rain spitting through his years-worn coat, Isom was in no humor to debate the way with another man when it came to entering into his own property through his own wide gate.

But there was another man in the road, blocking it with his top-buggy, one foot out on the step, his head thrust around the side of the hood with inquiring look, as if he also felt that there should be somebody at hand to open the gate and let him pass without muddying his feet.

“Ho!” called Isom uncivilly, hailing the stranger as he pulled up his team, the end of his wagon-tongue threatening the hood of the buggy; “what do you want here?”

The stranger put his head out a bit farther and twisted his neck to look behind. He did not appear to know Isom, any more than Isom knew him, but there was the surliness of authority, the inhospitality of ownership, in Isom’s mien, and it was the business of the man in the buggy to know men at a glance. He saw that Isom was the landlord, and he gave him a nod and smile.

“I’d like to get shelter for my horse and buggy for the night, and lodging for myself,” said he.

“Well, if you pay for it I reckon you can git it,” returned Isom. “Pile out there and open that gate.”

That was the way that Curtis Morgan, advance agent of the divine light of literature, scout of knowledge, torch-bearer of enlightenment into the dark places of ignorance, made his way into the house of Isom Chase, and found himself in due time at supper in the low-ceiled kitchen, with pretty Ollie, like a bright bead in a rusty purse, bringing hot biscuits from the oven and looking him over with a smile.

Curtis Morgan was a slim and limber man, with a small head and a big mouth, a most flexible and plastic organ. Morgan wore a mustache which was cut back to stubs, giving his face a grubby look about the nose. His light hair was short and thick, curling in little love-locks about his ears. 68

Morgan sold books. He would put you in a set of twenty-seven volumes of the *History of the World* for fifty-three dollars, or he would open his valise and sell you a ready-reckoner for six bits. He carried *Household Compendiums of Useful Knowledge* and *Medical Advisers*; he had poultry guides and horse books, and books on bees, and if he couldn’t sell you one thing he would sell you another, unless you were a worm, or a greased pig, and able, by some extraordinary natural or artificial attribute, to slip out of his hands.

As has been the case with many a greater man before him, Morgan’s most profitable business was done in his smallest article of trade. In the country where men’s lives were counted too short for all the work they had to do, they didn’t have any time for histories of the world and no interest in them, anyhow. The world was to them no more than they could see of it,

and the needs of their lives and their longings—save in some adventurer who developed among them now and then—went no farther than the limit of their vision.

The ready-reckoner was, therefore, the money-maker for Morgan, who seemed to carry an inexhaustible supply. It told a farm-hand what his pay amounted to by days and hours down to the fraction of a cent; it told the farmer what the interest on his note would be; it showed how to find out how many bushels of corn there were in a crib without measuring the contents, and how many tons of hay a stack contained; it told how to draw up a will and write a deed, and make liniment for the mumps.

Isom drew all this information out of his guest at supper, and it did not require much effort to set the sap flowing.

Morgan talked to Isom and looked at Ollie; he asked Joe a question, and cocked his eye on Ollie's face as if he expected to find the answer there; he pronounced shallow platitudes of philosophy aiming them at Isom, but looking at Ollie for approval or dissent. 69

Isom appeared to take rather kindly to him, if his unusual volubility indicated the state of his feelings. He asked Morgan a great deal about his business, and how he liked it, and whether he made any money at it. Morgan leaned back on the hinder legs of his chair, having finished his supper, and fumbled in his waistcoat pocket for his goose-quill pick. He winked at Isom on the footing of one shrewd man to another as he applied the quill to his big white teeth.

“Well, I pay my way,” said he.

There was a great deal back of the simple words; there was an oily self-satisfaction, and there was a vast amount of portentous reserve. Isom liked it; he nodded, a smile moving his beard. It did him good to meet a man who could get behind the sham skin of the world, and take it by the heels, and turn it a stunning fall.

Next morning, the sun being out again and the roads promising to dry speedily, Morgan hitched up and prepared to set out on his flaming path of enlightenment. Before going he made a proposal to Isom to use that place as headquarters for a week or two, while he covered the country lying about.

Anything that meant profit to Isom looked good and fitting in his eyes. The feeding of another mouth would entail little expense, and so the bargain

was struck. Morgan was to have his breakfast and supper each day, and provender for his horse, at the rate of four dollars a week, payable in advance.

Morgan ran over his compendiums and horse books, but Isom was firm for cash; he suggested at least one ready-reckoner on account, but Isom had no need of that. Isom could guess to a hundredweight the contents of a stack of hay, and there never was a banker in this world that could outfigure him on interest. He had no more need for a ready-reckoner than a centipede has of legs. Morgan, seeing that nothing but money would talk there, produced the week's charge on the spot, and drove off to his day's canvassing well satisfied.

Morgan had not been a paying guest in that house two days before the somber domestic tragedy that it roofed was as plain to him as if he had it printed and bound, and in his valise along with the compendiums of his valuable assortment.

He found it pleasant to return to the farm early of an afternoon and sit in the kitchen door with his pipe, and watch Ollie's face clear of clouds as he talked. Consolation and cheer were strangers to her heart; it required no words from her to tell Morgan that.

Her blushing gratitude for small offices of assistance, such as fetching a pail of water or a basket of garden greens, repaid Morgan all that he missed in sales by cutting short his business day just for the pleasure of returning and talking with her.

Isom was too self-centered, and unconscious of his wife's uncommon prettiness, to be jealous or suspicious of Morgan's late goings or early returns. If a man wanted to pay him four dollars a week for the pleasure of carrying up water, cutting stove-wood or feeding the calves, the fool was welcome to do it as long as his money held.

So it was that old Isom, blind and deaf and money-mad, set with his own hand and kindled with his own breath, the insidious spark which trustful fools before his day have seen leap into flame and strip them of honor before the eyes of men.

Morgan made a long stay of it in that section, owing to the density of the population, he claimed, and the proximity of several villages which he could reach in a few miles' drive. He was in his third week when Isom was summoned on jury service to the county seat.

Twelve dollars had passed from the book agent's hands into Isom's, and Isom grinned over it as the easiest money that it ever had been his pleasure to collect. He put it away with his savings, which never had earned interest for a banker, and turned the care of the farm over to Joe.

Jury service at the county seat was an uncertain thing. It might last a day, and then it might tie a man up for two or three weeks, but Isom was able to leave home with a more comfortable feeling than ever before. He had a trustworthy servant to leave behind him, one in whose hands everything would be safe, under whose energy and conscientious effort nothing would drag or fall behind.

Isom felt that he could very well afford to spread on a little soft-soap, as flattery was provincially called, and invest Joe with a greater sense of his responsibility, if possible. When occasion required, Isom could rise to flattery as deftly as the best of them. It was an art at which his tongue was wonderfully facile, considering the fact that he mingled so seldom with men in the outside doings of life. His wits had no foil to whet against and grow sharp, save the hard substance of his own inflexible nature, for he was born with that shrewd faculty for taking men "on the blind side," as they used to call that trick in Missouri.

"I'm turnin' the whole farm over to you to look after like it was your own while I'm away," said he, "and I'm doing it with the feeling that it's in worthy hands. I know you're not the boy to shirk on me when my back's turned, for you never tried to do it to my face. You stand by me, Joe, and I'll stand by you; you'll never lose anything by it in the end.

"I may be a crabbed old feller once in a while, and snarl around some, but my bark's worse than my bite, you know that by this time. So I'll put everything in your hands, with a feeling that it'll be looked after just the same as if I was here."

"I'll do the best I can by you," promised Joe, his generous heart warming to Isom a little in spite of past indignities, and the fact that Joe knew very well the old man's talk was artful pretense.

"I know you will," said Isom, patting his shoulder in fatherly approbation. "In case I'm held over there a week, you keep your eye on that agent, and don't let him stay here a day overtime without another week's board in advance."

"I'll attend to him," promised Joe.

Isom's hand had lingered a minute on Joe's shoulder while he talked, and the old man's satisfaction over the depth of muscle that he felt beneath it was great. He stood looking Joe over with quick-shifting, calculating eyes, measuring him in every part, from flank to hock, like a farrier. He was gratified to see how Joe had filled out in the past six months. If he had paid for a colt and been delivered a draft-horse, his surprise would not have been more pleasant.

As it was, he had bargained for the services of a big-jointed, long-boned lad, and found himself possessed of a man. The fine part of it was that he had nearly two years more of service at ten dollars a month coming from Joe, who was worth twenty of any man's money, and could command it, just as he stood. That was business, that was bargaining.

Isom's starved soul distended over it; the feeling was warm in his veins, like a gill of home-made brandy. He had him, bound body and limb, tied in a corner from which he could not escape, to send and call, to fetch and carry, for the better part of two good, profitable years.

As Isom rode away he rubbed his dry, hard hands above his saddle-horn, feeling more comfortable than he had felt for many a day. He gloated over the excellent bargain that he had made with the Widow Newbolt; he grinned at the roots of his old rusty beard. If ever a man poked himself in the ribs in the excess of self-felicitation, Isom Chase did it as he rode along on his old buckskin horse that autumn morning, with the sun just lifting over the hill.⁷³

It was an excellent thing, indeed, for a patriot to serve his country once in a while on a jury, thought Isom, especially when that patriot had been shrewd in his dealings with the widow and orphan, and had thus secured himself against loss at home while his country called him abroad. Jury duty was nothing but a pleasant season of relaxation in such case.

There would be mileage and *per diem*, and the state would bear the expense of lodging and meals in the event of his being drawn out of the panel to serve in some long criminal case. Mileage and *per diem* would come in very nicely, in addition to the four dollars a week that loose-handed book agent was paying. For the first time in his life when called upon for jury service, Isom went to meet it with no sourness in his face. Mileage and *per diem*, but best of all, a great strong man left at home in his place; one to be trusted in and depended upon; one who would do both his master's work and his own.

Joe had no such pleasant cogitations to occupy his mind as he bent his long back to assume the double burden when Isom went away. For many days he had been unquiet with a strange, indefinable unrest, like the yearn of a wild-fowl when the season comes for it to wing away to southern seas. Curtis Morgan was behind that strong, wild feeling; he was the urge of it, and the fuel of its fire.

Why it was so, Joe did not know, although he struggled in his reason to make it clear. For many days, almost from the first, Joe had felt that Morgan should not be in that house; that his pretext of lingering there on business was a blind too thin to deceive anybody but Isom. Anybody could deceive Isom if he would work his scheme behind a dollar. It was a shield beyond which Isom could not see, and had no wish to inquire.

Joe did not like those late starts which Morgan made of a morning, long after he and Isom were in the field, nor the early homings, long before they came in to do the chores. Joe left the house each morning with reluctance, after Isom's departure, lingering over little things, finding hitherto undiscovered tasks to keep him about in the presence of Ollie, and to throw him between her and the talkative boarder, who seemed always hanging at her heels. Since their talk at dinner on the day that Morgan came, Joe had felt a new and deep interest in Ollie, and held for her an unaccountable feeling of friendliness.

This feeling had been fed, for a few days, by Ollie, who found odd minutes to talk with him as she had not talked before, and by small attentions and kindnesses. She had greeted him in the morning with smiles, where her face once wore the sad mask of misery; and she had touched his hand sometimes, with encouraging or commending caress.

Joe had yielded to her immediately the unreserved loyalty of his unsophisticated soul. The lot of his bondage was lightened by this new tie, the prospect of the unserved term under Isom was not so forbidding now. And now this fellow Morgan had stepped between them, in some manner beyond his power to define. It was as one who beholds a shadow fall across his threshold, which he can neither pick up nor cast away.

Ollie had no more little attentions for Joe, but endless solicitude for Morgan's comfort; no more full smiles for him, but only the reflections of those which beamed for the chattering loungee who made a pretense of selling books while he made love to another man's wife.

It was this dim groping after the truth, and his half-conception of it, that rendered Joe miserable. He did not fully understand what Morgan was about, but it was plain to him that the man had no honest purpose there. He could not repeat his fears to Isom, for Isom's wrath and correction would fall on Ollie. Now he was left in charge of his master's house, his lands, his livestock, and *his honor*.

The vicarious responsibility rested on him with serious weight. Knowing what he knew, and seeing what he saw, should he allow things to proceed as they had been going? Would he be true to the trust that Isom had placed in him with his parting word in standing aside and knowingly permitting this man to slip in and poison the heart of Isom's wife?

She was lonely and oppressed, and hungry for kind words, but it was not this stranger's office to make green the barrenness of her life. He was there, the bondboy, responsible to his master for his acts. She might come to him for sympathy, and go away with honor. But with this other, this man whose pale eyes shifted and darted like a botfly around a horse's ear, could she drink his counsel and remain undefiled?

Joe thought it up and down as he worked in the field near the house that morning, and his face grew hot and his eyes grew fevered, and his resentment against Morgan rose in his throat.

He watched to see the man drive away on his canvassing round, but the sun passed nine o'clock and he did not go. He had no right there, alone in the house with that woman, putting, who could say, what evil into her heart.

Ten o'clock and the agent's buggy had not left the barn. Joe could contain himself no longer. He was at work in a little stony piece of late clover, so rough he did not like to risk the mower in it. For three hours he had been laying the tumbled swaths in winding tracks across the field, and he had a very good excuse for going to the well, indeed. Coupled with that was the need of a whet-rock, and behind it all the justification of his position. He was there in his master's place; he must watch and guard the honor of his house.

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Joe could not set out on that little trip without a good deal of moral cudgeling when it came to the point, although he threw down his scythe with a muttered curse on his lips for the man who was playing such an underhanded game.

It was on Ollie's account he hesitated. Ollie would think that he suspected her, when there was nothing farther from his mind. It was Morgan who would set the snare for her to trip into, and it was Morgan that he was going to send about his business. But Ollie might take offense and turn against him, and make it as unpleasant as she had shown that she could make it agreeable.

But duty was stronger than friendship. It was stern and implacable, and there was no pleasant road to take around it and come out with honor at the other end.

Joe made as much noise as he could with his big feet—and that was no inconsiderable amount—as he approached the house. But near the building the grass was long, and soft underfoot, and it bore Joe around to the kitchen window silently. His lips were too dry to whistle; his heart was going too fast to carry a tune.

He paused a little way beyond the window, which stood open with the sun falling through it, listening for the sound of their voices. It was strangely silent for a time when the book-agent was around.

Joe went on, his shadow breaking the sunbeam which whitened the kitchen floor. There was a little quick start as he came suddenly to the kitchen door; a hurried stir of feet. As he stepped upon the porch he saw Morgan in the door, Ollie not a yard behind him, their hands just breaking their clasp. Joe knew in his heart that Morgan had been holding her in his arms.

Ollie's face was flushed, her hair was disturbed. Her bosom rose and fell like troubled water, her eyes were brighter than Joe ever had seen them. Even Morgan was different, sophisticated and brazen that he was. A flash⁷⁷ of red showed on his cheekbones and under his eyes; his thin nostrils were panting like gills.

Joe stood there, one foot on the porch, the other on the ground, as blunt as honesty, as severe as honor. There was nothing in his face that either of them could read to indicate what was surging in his breast. He had caught them, and they wondered if he had sense enough to know.

Joe pushed his hat back from his sweating forehead and looked inquiringly at Morgan.

“Your horse sick, or something?” he asked.

“No,” said Morgan, turning his back on Joe with a little jerk of contempt in his shoulders.

“Well, I think he must be down, or something,” said Joe, “for I heard a racket in the barn.”

“Why didn’t you go and see what was the matter?” demanded Morgan crossly, snatching his hat from the table.

Ollie was drowned in a confusion of blushes. She stood hanging her head, but Joe saw the quick turn of her eyes to follow Morgan as he went away in long strides toward the barn.

Joe went to the tool-chest which stood in a corner of the kitchen and busied himself clattering over its contents. Presently he looked at Ollie, his hand on the open lid of the box.

“Did you see that long whetstone lying around anywhere, Ollie?” he asked.

She lifted her head with a little start. Joe never had called her familiarly by her name before. It always had been “Missis Chase,” distant and respectful.

“No, I haven’t seen it, Joe,” she answered, the color leaving her cheeks.

“All right, Ollie,” said he, holding her eyes with steady gaze, until she shifted hers under the pain of it, and the questioning reproach. 78

Joe slammed down the lid of the tool-chest, as if with the intention of making as much noise as possible.

There was something in the way he had spoken her name that was stranger than the circumstance itself. Perhaps she felt the authority and the protection which Joe meant that his voice should assume; perhaps she understood that it was the word of a man. She was afraid of him at that moment, as she never had been afraid of Isom in all their married life.

“I suppose Isom put it away somewhere around the barn,” said Joe.

“Maybe he did, Joe.”

“I’ll go down there and see if I can find it,” he said.

Ollie knew, as well as Joe himself, that he was making the whetstone the vehicle to carry his excuse for watching Morgan away from the farm, but she was not certain whether this sudden shrewdness was the deep understanding of a man, or the domineering spirit of a crude lad, jealous of his passing authority.

The uncertainty troubled her. She watched him from the door and saw him approach Morgan, where he was backing his horse into the shafts.

“All right, is he?” asked Joe, stopping a moment.

Morgan was distant.

“I guess he’ll live another day, don’t worry about him,” said he, in surly voice.

“What time do you aim to be back today?” pursued Joe, entirely unmoved by Morgan’s show of temper.

“Say, I’ll set up a bulletin board with my time-table on it if you’ve got to have it, Mr. Overseer!” said Morgan, looking up from the buckling of a shaft-strap, his face coloring in anger.

“Well, you don’t need to get huffy over it.”

“Mind your business then,” Morgan growled.

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He didn’t wait to discuss the matter farther, but got into the buggy without favoring Joe with as much as another glance, gave his horse a vindictive lash with the whip and drove off, leaving the gate open behind him.

Joe shut it, and turned back to his mowing.

Many a time he paused that morning in his labor, leaning on the snath of his scythe, in a manner of abstraction and seeming indolence altogether strange to him. There was a scene, framed by the brown casing of the kitchen door, with two figures in it, two clinging hands, which persisted in its disturbing recurrence in his troubled mind.

Ollie was on dangerous ground. How far she had advanced, he did not know, but not yet, he believed, to the place where the foulness of Morgan had defiled her beyond cleansing. It was his duty as the guardian of his master’s house to watch her, even to warn her, and to stop her before she went too far.

Once he put down his scythe and started to go to the house, his mind full of what he felt it his duty to say.

Then there rose up that feeling of disparity between matron and youth which had held him at a distance from Ollie before. He turned back to his work with a blush upon his sun-scorched face, and felt ashamed. But it was not a thing to be deferred until after the damage had been done. He must speak to her that day, perhaps when he should go in for dinner. So he said.

Ollie seemed self-contained and uncommunicative at dinner. Joe thought she was a little out of humor, or that she was falling back into her old gloomy way, from which she had emerged, all smiles and dimples, like a new and youthful creature, on the coming of Morgan. He thought, too, that this might be her way of showing her resentment of the familiarity that he had taken in calling her by her name.

The feeling of deputy-mastership was no longer important upon his shoulders. He shrank down in his chair with a sense of drawing in, like a snail, while he burned with humiliation and shame. The pinnacle of manhood was too slippery for his clumsy feet; he had plumped down from its altitudes as swiftly as he had mounted that morning under the spur of duty. He was a boy, and felt that he was a boy, and far, far from being anything nobler, or stronger, or better qualified to give saving counsel to a woman older, if not wiser, than himself.

Perhaps it was Ollie's purpose to inspire such feeling, and to hold Joe in his place. She was neither so dull, nor so unpractised in the arts of coquetry, to make such a supposition improbable.

It was only when Joe sighted Morgan driving back to the farm late in the afternoon that his feeling of authority asserted itself again, and lifted him up to the task before him. He must let her understand that he knew of what was going on between them. A few words would suffice, and they must be spoken before Morgan entered the house again to pour his poison into her ears.

Ollie was churning that afternoon, standing at her task close by the open door. Joe came past the window, as he had crossed it that morning, his purpose hot upon him, his long legs measuring the ground in immense, swift steps. He carried his hat in his hand, for the day was one of those with the pepper of autumn in it which puts the red in the apple's cheeks.

Ollie heard him approaching; her bare arm stayed the stroke of the churn-dasher as she looked up. Her face was bright, a smile was in her eyes, revealing the clear depths of them, and the life and the desires that issued out of them, like the waters of a spring in the sun. She was moist and radiant in the sweat of her labor, and clean and fresh and sweet to see.

Her dress was parted back from her bosom to bare it to the refreshment of the breeze, and her skin was as white as the cream on the dasher, and the crimson of her cheeks blended down upon her neck, as if the moisture of her brow had diffused its richness, and spread its beauty there.

She looked at Joe, halted suddenly like a post set upright in the ground, stunned by the revelation of the plastic beauty of neck and bare bosom, and, as their eyes met, she smiled, lifted one white arm and pushed back a straying lock of hair.

Joe's tongue lay cold, and numb as wood against his palate; no word would come to it; it would not move. The wonder of a new beauty in God's created things was deep upon him; a warm fountain rose in him and played and tossed, with a new and pleasurable thrill. He saw and admired, but he was not ashamed.

All that he had come to say to her was forgotten, all that he had framed to speak as he bore hastily on toward the house had evaporated from his heated brain. A new world turned its bright colors before his eyes, a new breadth of life had been revealed, it seemed to him. In the pleasure of his discovery he stood with no power in him but to tremble and stare.

The flush deepened in Ollie's cheeks. She understood what was moving in his breast, for it is given to her kind to know man before he knows himself. She feigned surprise to behold him thus stricken, staring and silent, his face scarlet with the surge of his hot blood.

With one slow-lifted hand she gathered the edges of her dress together, withdrawing the revealed secret of her breast.

"Why, Joe! What are you looking at?" she asked.

"You," he answered, his voice dry and hoarse, like that of one who asks for water at the end of a race. He turned away from her then, saying no more, and passed quickly out of her sight beyond the shrubbery which shouldered the kitchen wall.

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Slowly Ollie lifted the dasher which had settled to the bottom of the churn, and a smile broke upon her lips. As she went on with the completion of her task, she smiled still, with lips, with eyes, with warm exultation of her strong young body, as over a triumphant ending of some issue long at balance and undefined.

Joe went away from the kitchen door in a strange daze of faculties. For that new feeling which leaped in him and warmed him to the core, and gave him confidence in his strength never before enjoyed, and an understanding of things hitherto unrevealed, he was glad. But at heart he felt that he was a traitor to the trust imposed in him, and that he had violated the sanctity of his master's home.

Now he knew what it was that had made his cheeks flame in anger and his blood leap in resentment when he saw Ollie in the door that morning, all flushed and trembling from Morgan's arms; now he understood why he had lingered to interpose between them in past days. It was the wild, deep fear of jealousy. He was in love with his master's wife! What had been given him to guard, he had looked upon with unholy hunger; that which had been left with him to treasure, he had defiled with lustful eyes.

Joe struck across the fields, his work forgotten, now hot with the mounting fires of his newly discovered passion, now cold with the swelling accusation of a trust betrayed. Jealousy, and not a regard for his master's honor, had prompted him to put her on her guard against Morgan. He had himself coveted his neighbor's wife. He had looked upon a woman to lust after her, he had committed adultery in his heart. Between him and Morgan there was no redeeming difference. One was as bad as the other, said Joe. Only this difference; he would stop there, in time, ashamed now of the offending of his eyes and the trespass of his heart. Ollie did not know. He had not wormed his way into her heart by pitying her unhappiness, like the false guest who had emptied his lies into her ears.

Joe was able to see now how little deserving Isom was of any such blessing as Ollie, how ill-assorted they were by nature, inclination and age. But God had joined them, for what pains and penances He alone knew, and it was not the work of any man to put them apart.

At the edge of a hazel coppice, far away from the farmhouse that sheltered the object of his tender thoughts and furtive desires, Joe sat among the first fallen leaves of autumn, fighting to clear himself from the perplexities of that disquieting situation. In the agony of his aching conscience, he bowed his head and groaned.

A man's burden of honor had fallen upon him with the disclosure of a man's desires. His boyhood seemed suddenly to have gone from him like the light of a lamp blown out by a puff of wind. He felt old, and responsible to answer now for himself, since the enormity of his offense was plain to his smarting conscience.

And he was man enough to look after Morgan, too. He would proceed to deal with Morgan on a new basis, himself out of the calculation entirely. Ollie must be protected against his deceitful wiles, and against herself as well.

Joe trembled in his newer and clearer understanding of the danger that threatened her as he hastened back to the barn-yard to take up his neglected chores. The thought that Morgan and Ollie were alone in the house almost threw him into a fever of panic and haste.

He must not be guilty of such an oversight again; he must stand like a stern wall between them, and be able to account for his trust to Isom with unclouded heart.

CHAPTER V

THE SECRET OF THE CLOVER

Until the time he had entered Isom Chase's house, temptation never had come near Joe Newbolt. He never had kissed a maiden; he never had felt the quickening elixir of a soft breast pressed against his own. And so it fell that the sudden conception of what he had unwittingly come to, bore on him with a weight which his sensitive and upright mind magnified into an enormous and crushing shame. While his intention could bear arraignment and come away with acquittal, the fact that he had been perverted enough in the grain, as he looked at it, to drift unknowingly into love with another man's wife, galled him until his spirit groaned.

Isom did not return that evening; the conclusion of his household was that he had been chosen on a jury. They discussed it at supper, Ollie nervously gay, Morgan full of raucous laughter, Joe sober and grudging of his words.

Joe never had borne much of a hand at the table-talk since Morgan came, and before his advent there was none to speak of, so his taciturnity that evening passed without a second thought in the minds of Ollie and her guest. They had words enough for a house full of people, thought Joe, as he saw that for every word from the lips they sent two speeding from their eyes. That had become a language to which he had found the Rosetta Stone; it was as plain to him now as Roman text.

Perhaps Morgan regarded her with an affection as sincere as his own. He did not know; but he felt that it could not be as blameless, for if Joe had desired her in the uninterpreted passion of his full young heart, he had brought himself up to sudden judgment before the tribunal of his conscience. It would go no farther. He had put his moral foot down and smothered his unholy desire, as he would have stamped out a flame.

It seemed to Joe that there was something in Morgan's eyes which betrayed his heart. Little gleams of his underlying purpose which his levity masked, struck Joe from time to time, setting his wits on guard. Morgan must be watched, like a cat within leaping distance of an unfledged bird. Joe set himself the task of watching, determined then and there that Morgan

should not have one dangerous hour alone with Ollie again until Isom came back and lifted the responsibility of his wife's safety from his shoulders.

For a while after supper that night Joe sat on the bench beside the kitchen door, the grape-vine rustling over his head, watching Ollie as she went to and fro about her work of clearing away. Morgan was in the door, his back against the jamb, leisurely smoking his pipe. Once in a while a snoring beetle passed in above his head to join his fellows around the lamp. As each recruit to the blundering company arrived, Morgan slapped at him as he passed, making Ollie laugh. On the low, splotched ceiling of the kitchen the flies shifted and buzzed, changing drowsily from place to place.

"Isom ought to put screens on the windows and doors," said Morgan, looking up at the flies.

"Mosquito bar, you mean?" asked Ollie, throwing him a smile over her shoulder as she passed.

"No, I mean wire-screens, everybody's gettin' 'em in now; I've been thinkin' of takin' 'em on as a side-line."

"It'll be a cold day in July when Isom spends any money just to keep *flies* out of his house!" said she.

Morgan laughed.

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"Maybe if a person could show him that they eat up a lot of stuff he'd come around to it," Morgan said.

"Maybe," said Ollie, and both of them had their laugh again.

Joe moved on the bench, making it creak, an uneasy feeling coming over him. Close as Isom was, and hard-handed and mean, Joe felt that there was a certain indelicacy in his wife's discussion of his traits with a stranger.

Ollie had cleared away the dishes, washed them and placed them in the cupboard, on top of which the one clock of that household stood, scar-faced, but hoarse-voiced when it struck, and strong as the challenge of an old cock. Already it had struck nine, for they had been late in coming to supper, owing to Joe's long set-to with his conscience at the edge of the hazel-copse in the woods.

Joe got up, stretching his arms, yawning.

"Goin' to bed, heh?" asked Morgan.

"No, I don't seem to feel sleepy tonight," Joe replied.

He went into the kitchen and sat at the table, his elbows on the board, his head in his hands, as if turning over some difficult problem in his mind.

Presently he fell to raking his shaggy hair with his long fingers; in a moment it was as disorderly as the swaths of clover hay lying out in the moonlight in the little stone-set field.

Morgan had filled his pipe, and was after a match at the box behind the stove, with the familiarity of a household inmate. He winked at Ollie, who was then pulling down her sleeves, her long day's work being done.

"Well, do you think you'll be elected?" he asked, lounging across to Joe, his hands in his pockets.

Morgan wore a shirt as gay-striped as a Persian tent, and he had removed his coat so the world, or such of it as was present in the kitchen, might behold it and admire. Joe withdrew his hands from his forelock and looked at Morgan curiously. The lad's eyes were sleep-heavy and red, and he was almost as dull-looking, perhaps, as Morgan imagined him to be.

"What did you say?" he asked.

"I asked you if you thought you'd be elected this fall," repeated Morgan, in mock seriousness.

"I don't know what you mean," said Joe, turning from him indifferently.

"Why, ain't you runnin' for President on the squash-vine ticket?" asked Morgan. "I heard you was the can'idate."

Joe got up from the table and moved his chair away with his foot. As he was thus occupied he saw Ollie's shadow on the wall repeat a gesture of caution which she made to Morgan, a lifting of the hand, a shaking of the head. Even the shadow betrayed the intimate understanding between them. Joe went over and stood in the door.

"No use for you to try to be a fool, Morgan; that's been attended to for you already," said he.

There wasn't much heart in Morgan's laugh, but it would pass for one on account of the volume of sound.

"Oh, let a feller have his joke, won't you, Joe?" said he.

"Go ahead," granted Joe, leaning his shoulder against the jamb, facing out toward the dark.

Morgan went over and put his hand on the great lad's shoulder, with a show of friendly condescension.

"What would the world be without its jokes?" he asked. And then, before anybody could answer: "It'd be like home without a mother."

Joe faced him, a slow grin spreading back to his ears.

“Or a ready-reckoner,” said he.

Morgan’s laugh that time was unfeigned.

“Joe, you’ve missed your callin’,” said he. “You’ve got no business foolin’ away your time on a farm. With that solemn, long-hungry look of yours you ought to be sellin’ consumption cure and ringbone ointment from the end of a wagon on the square in Kansas City.”

“Or books, maybe,” suggested Joe.

“No-o-o,” said Morgan thoughtfully, “I wouldn’t just say you’re up to the level of books. But you might rise even to books if you’d cultivate your mind and brain. Well, I think I’ll fly up to roost. I’ve got to take an early start in the morning and clean up on this neck of the woods tomorrow. Good night, folks.”

“I don’t suppose Isom’ll be home tonight,” Ollie ventured, as Morgan’s feet sounded on the stairs.

“No, I guess not,” Joe agreed, staring thoughtfully at the black oblong of the door.

“If he does come, I don’t suppose it’ll hurt him to eat something cold,” she said.

“I’ll wait up a while longer. If he comes I can warm up the coffee for him,” Joe offered.

“Then I’ll go to bed, too,” she yawned wearily.

“Yes, you’d better go,” said he.

Ollie’s room, which was Isom’s also when he was there, was in the front of the house, upstairs. Joe heard her feet along the hall, and her door close after her. Morgan was still tramping about in the room next to Joe’s, where he slept. It was the best room in the house, better than the one shared by Isom and his wife, and in the end of the house opposite to it. Joe sat quietly at the table until Morgan’s complaining bed-springs told him that the guest had retired. Then he mounted the narrow kitchen stairs to his own chamber.

Joe sat on the edge of his bed and pulled off his boots, dropping them noisily on the floor. Then, with shirt and trousers on, he drew the quilt from his bed, took his pillow under his arm, and opened the door into the hall which divided the house from end to end.

The moon was shining in through the double window in the end toward Ollie’s room; it lay on the white floor, almost as bright as the sun. Within five feet of that splash of moonlight Joe spread his quilt. There he set his

pillow and stretched his long body diagonally across the narrow hall, blocking it like a gate.

Joe roused Morgan next morning at dawn, and busied himself with making a fire in the kitchen stove and bringing water from the well until the guest came down to feed his horse. Morgan was in a crusty humor. He had very little to say, and Joe did not feel that the world was any poorer for his silence.

“This will be my last meal with you,” announced Morgan at breakfast. “I’ll not be back tonight.”

Ollie was paler than usual, Joe noticed, and a cloud of dejection seemed to have settled over her during the night. She did not appear to be greatly interested in Morgan’s statement, although she looked up from her breakfast with a little show of friendly politeness. Joe thought that she did not seem to care for the agent; the tightness in his breast was suddenly and gratefully eased.

“You haven’t finished out your week, there’ll be something coming to you on what you’ve paid in advance,” said she.

“Let that go,” said Morgan, obliterating all claim with a sweep of his hand.

“I think you’d better take back what’s coming to you,” suggested Joe.

Morgan turned to him with stiff severity.

“Are you the watch-dog of the old man’s treasury?” he sneered.

“Maybe I am, for a day or two,” returned Joe, “and if you step on me I’ll bite.”

He leveled his steady gray eyes at Morgan’s shifting orbs, and held them there as if to drive in some hidden import of his words. Morgan seemed to understand. He colored, laughed shortly, and busied himself buttering a griddle-cake.

Ollie, pale and silent, had not looked up during this by-passage between the two men. Her manner was of one who expected something, which she dreaded and feared to face.

Morgan took the road early. Joe saw him go with a feeling of relief. He felt like a swollen barrel which had burst its close-binding hoops, he thought, as he went back to the place where he dropped his scythe yesterday.

As he worked through the long morning hours Joe struggled to adjust himself to the new conditions, resulting from the discovery of his own enlargement and understanding. It would be a harder matter now to go on living there with Ollie. Each day would be a trial by fire, the weeks and months a lengthening highway strewn with the embers of his own smoldering passion. Something might happen, almost any day, youth and youth together, galled by the same hand of oppression, that would overturn his peace forever. Yet, he could not leave. The bond of his mother's making, stamped with the seal of the law, held him captive there.

At length, after spending a harrowing morning over it, he reached the determination to stand up to it like a man, and serve Isom as long as he could do so without treason. When the day came that his spirit weakened and his continence failed, he would throw down the burden and desert. That he would do, even though his mother's hopes must fall and his own dreams of redeeming the place of his birth, to which he was attached by a sentiment almost poetic, must dissolve like vapor in the sun.

It was mid-afternoon when Joe finished his mowing and stood casting his eyes up to the sky for signs of rain. There being none, he concluded that it would be safe to allow yesterday's cutting to lie another night in the field while he put in the remainder of the day with his scythe in the lower orchard plot, where the clover grew rank among the trees. 91

Satisfied that he had made a showing thus far with which Isom could find no fault, Joe tucked the snath of his scythe under his arm and set out for that part of the orchard which lay beyond the hill, out of sight of the barn and house, and from that reason called the "lower orchard" by Isom, who had planted it with his own hand more than thirty years ago.

There noble wine-sap stretched out mighty arms to fondle willow-twigs across the shady aisles, and maidenblush rubbed cheeks with Spitzenberg, all reddening in the sun. Under many of the trees the ground was as bare as if fire had devastated it, for the sun never fell through those close-woven branches from May to October, and there no clover grew. But in the open spaces between the rows it sprang rank and tall, troublesome to cut with a mower because of the low-swinging, fruit-weighted limbs.

Joe waded into this paradise of fruit and clover bloom, dark leaf and straining bough, stooping now and then to pick up a fallen apple and try its mellowness with his thumb. They were all hard, and fit only for cider yet, but their rich colors beguiled the eye into betrayal of the palate. Joe fixed

his choice upon a golden willow-twigg. As he stood rubbing the apple on his sleeve, his eye running over the task ahead of him in a rough estimate of the time it would require to clean up the clover, he started at sight of a white object dangling from a bough a few rods ahead of him. His attention curiously held, he went forward to investigate, when a little start of wind swung the object out from the limb and he saw that it was a woman's sun-bonnet, hanging basket-wise by its broad strings. There was no question whose it was; he had seen the same bonnet hanging in the kitchen not three hours before, fresh from the ironing board.

Joe dropped his apple unbitten, and strode forward, puzzled a bit over the circumstance. He wondered what had brought Ollie down there, and where she was then. She never came to that part of the orchard to gather wind-falls for the pigs—she was not gathering them at all during Isom's absence, he had relieved her of that—and there was nothing else to call her away from the house at that time of the day.

The lush clover struck him mid-thigh, progress through it was difficult. Joe lifted his feet like an Indian, toes turned in a bit, and this method of walking made it appear as if he stalked something, for he moved without noise.

He had dropped his scythe with the apple, his eyes held Ollie's swinging bonnet as he approached it as if it were some rare bird which he hoped to steal upon and take. Thus coming on, with high-lifted feet, his breath short from excitement, Joe was within ten yards of the bonnet when a voice sounded behind the intervening screen of clover and boughs.

Joe dropped in his tracks, as if ham-strung, crouched in the clover, pressed his hands to his mouth to stifle the groan that rose to his lips. It was Morgan's voice. He had come sneaking back while the watch-dog was off guard, secure in the belief that he had gone away. As Joe crouched there hidden in the clover, trembling and cold with anger, Morgan's voice rose in a laugh.

"Well, I wouldn't have given him credit for that much sense if I hadn't seen him with my own eyes," said he.

"He's smarter than he looks," said Ollie, their voices distinct in Joe's shamed ears, for it was as quiet in the orchard as on the first day.

They both laughed over what she said.

“He thinks I’m gone, he’ll go to bed early tonight,” said Morgan. “Don’t bother about bringing anything with you.”

“Not even my diamonds?” she laughed.

Morgan’s gruffer mirth joined her, and Joe found himself straining⁹³ to hear, although he despised himself for spying and eavesdropping, even on guilt.

“We can get on without the diamonds,” said Morgan, “and I don’t suppose you’ve got any ball dresses or sealskin cloaks?”

“Three calico wrappers that he’s bought me, and a dress or two that I had when I came,” said Ollie, bitterly.

“You’ll have all you want in a day or two, honey,” said Morgan, in comforting voice.

They were silent a while; then Joe heard her ask the time. Morgan told her it was half-past four.

“Oh, I had no idea it was that late—time goes so fast when I’m with you! I must go back to the house now, Joe might come in and find me gone.”

“Yes, I’d like to wring his damned neck!” said Morgan.

“He’s a good boy, Curtis,” she defended, but with lightness, “but he’s a little—”

She held her words back coquettishly.

“Heh?” queried Morgan.

“Jealous, you old goose! Can’t you see it?”

Morgan had a great laugh over that. From the sound of his voice Joe knew that he was standing, and his whole body ached with the fear that they would discover him lying there in the clover. Not that he was afraid of Morgan, but that he dreaded the humiliation which Ollie must suffer in knowing that her guilty tryst had been discovered.

“I’ll meet you at the gate, I’ll have the buggy on down the road a little ways,” Morgan told her. “There’s only a little while between you and liberty now, sweetheart.”

Joe dared not look up nor move, but he needed no eyes to know that Morgan kissed her then. After that he heard her running away toward the house. Morgan stood there a little while, whistling softly. Soon Joe heard him going in the direction of the road.⁹⁴

Morgan was quite a distance ahead when Joe sprang out of his concealment and followed him, for he wanted to give Ollie time to pass

beyond ear-shot of the orchard. As Joe made no attempt to smother the sound of his feet, Morgan heard him while he was still several yards behind him. He turned, stopped, and waited for Joe to come up.

Joe's agitation was plain in his face, his shocked eyes stared out of its pallor as if they had looked upon violence and death.

"What's the matter, kid?" inquired Morgan carelessly.

"I've got something to say to you," answered Joe thickly. He was panting, more from rage than exertion; his hands trembled.

Morgan looked him over from boots to bandless hat with the same evidence of curiosity as a person displays when turning some washed-up object with the foot on the sands. It was as if he had but an abstract interest in the youth, a feeling which the incident had obtruded upon him without penetrating the reserve of his private cogitations.

"Kid, you look like you'd seen a snake," said he.

"You let that woman alone—you've got to let her alone, I tell you!" said Joe with explosive suddenness, his passion out of hand.

Morgan's face grew red.

"Mind your own business, you sneakin' skunk!" said he.

"I am minding it," said Joe; "but maybe not as well as I ought to 'a' done. Isom left me here in his place to watch and look after things, but you've sneaked in under my arm like a dirty, thieving dog, and you've—you've—"

Morgan thrust his fist before Joe's face.

"That'll do now—that'll do out of you!" he threatened.

Joe caught Morgan's wrist with a quick, snapping movement, and slowly bent the threatening arm down, Morgan struggling, foot to foot with him in the test of strength. Joe held the captured arm down for a moment, and they stood breast to breast, glaring into each other's eyes. Then with a wrench that spun Morgan half round and made him stagger, Joe flung his arm free.

"Now, you keep away from here—keep away!" he warned, his voice growing thin and boyish in the height of his emotion, as if it would break in the treble shallows.

"Don't fool with me or I'll hurt you," said Morgan. "Keep your nose—"

"Let her alone!" commanded Joe sternly, his voice sinking again even below its accustomed level, gruff and deep in his chest. "I heard you—I didn't mean to, but I couldn't help it—and I know what you're up to tonight. Don't come around here tonight after her, for I'm not going to let her go."

“Ya-a, you pup, you pup!” said Morgan nastily.

“It’s a hard life for her here—I know that better than you do,” said Joe, passing over the insult, “but you can’t give her any better—not as good. What you’ve done can’t be undone now, but I can keep you from dragging her down any further. Don’t you come back here tonight!”

“If you keep your fingers out of the fire,” said Morgan, looking at the ground, rolling a fallen apple with his toe, “you’ll not get scorched. You stick to your knittin’ and don’t meddle with mine. That’ll be about the healthiest thing you can do!”

“If Isom knew what you’ve done he’d kill you—if he’s even half a man,” said Joe. “She was a good woman till you came, you hound!”

“She’s a good woman yet,” said Morgan, with some feeling, “too good for that old hell-dog she’s married to!”

“Then let her stay good—at least as good as she is,” advised Joe.

“Oh, hell!” said Morgan disgustedly.

96

“You can’t have her,” persisted Joe.

“We’ll see about that, too,” said Morgan, his manner and voice threatening. “What’re you goin’ to do—pole off and tell the old man?”

“I’ll do what Isom left me here to do, the rest of the time he’s away,” said Joe. “Ollie shan’t leave the house tonight.”

“Yes, you flat-bellied shad, you want her yourself—you’re stuck on her yourself, you fool! Yes, and you’ve got just about as much show of gittin’ her as I have of jumpin’ over that tree!” derided Morgan.

“No matter what I think of her, good or bad, she’d be safe with me,” Joe told him, searching his face accusingly.

“Yes, of course she would!” scoffed Morgan. “You’re one of these saints that’ll live all your life by a punkin and never poke it with your finger. Oh, yes, I know your kind!”

“I’m not going to quarrel with you, Morgan, unless you make me,” said Joe; “but you’ve got the wrong end of the stick. I don’t want her, not the way you do, anyhow.”

Morgan looked at him closely, then put out his hand with a gesture of conciliation.

“I’ll take that back, Joe,” said he. “You’re not that kind of a kid. You mean well, but you don’t understand. Look-a here, let me tell you, Joe: I love that little woman, kid, just as honest and true as any man could love

her, and she thinks the world and all of me. I only want to take her away from here because I love her and want to make her happy. Don't you see it, kid?"

"How would you do that? You couldn't marry her."

"Not for a while, of course," admitted Morgan. "But the old possum he'd get a divorce in a little while."

"Well, I'm not going to let her go," Joe declared, turning away as if that settled the matter for good and all. "You've done—I could kill you for what you've done!" said he, with sudden vehemence. 97

Morgan looked at him curiously, his careless face softening.

"Now, see here, don't you look at it that way, Joe," he argued. "I'm not so bad; neither is Ollie. You'll understand these matters better when you're older and know more about the way men feel. She wanted love, and I gave her love. She's been worked to rags and bones by that old devil; and what I've done, and what I want to do, is in kindness, Joe. I'll take her away from here and provide for her like she was a queen, I'll give her the love and comradeship of a young man and make her happy, Joe. Don't you see?"

"But you can't make her respectable," said Joe. "I'm not going to let her leave with you, or go to you. If she wants to go after Isom comes back, then let her. But not before. Now, you'd better go on away, Morgan, before I lose my temper. I was mad when I started after you, but I've cooled down. Don't roil me up again. Go on your way, and leave that woman alone."

"Joe, you're a man in everything but sense," said Morgan, not unkindly, "and I reckon if you and I was to clinch we'd raise a purty big dust and muss things around a right smart. And I don't know who'd come out on top at the finish, neither. So I don't want to have any trouble with you. All I ask of you is step to one side and leave us two alone in what we've started to do and got all planned to carry out. Go to bed tonight and go to sleep. You're not supposed to know that anything's due to happen, and if you sleep sound you'll find a twenty-dollar bill under your hat in the morning."

The suggestion brought a blush to Joe's face. He set his lips as if fighting down hot words before he spoke.

"If I have to tie her I'll do it," said Joe earnestly. "She shan't leave. And if I have to take down that old gun from the kitchen wall to keep you away from here till Isom comes home, I'll take it down. You can come to the gate tonight if you want to, but if you do—" 98

Joe looked him straight in the eyes. Morgan's face lost its color. He turned as if to see that his horse was still standing, and stood that way a little while.

"I guess I'll drive on off, Joe," said Morgan with a sigh, as if he had reached the conclusion after a long consideration.

"All right," said Joe.

"No hard feelin's left behind me?" facing Joe again with his old, self-assured smile. He offered his hand, but Joe did not take it.

"As long as you never come back," said Joe.

Morgan walked to the fence, his head bent, thoughtfully. Joe followed, as if to satisfy himself that the wily agent was not going to work some subterfuge, having small faith in his promise to leave, much less in the probability that he would stay away.

Joe stood at the fence, looking after Morgan, long after the dust of his wheels had settled again to the road. At last he went back to the place where he had dropped his scythe, and cut a swath straight through to the tree where Ollie's bonnet had hung. And there he mowed the trampled clover, and obliterated her footprints with his own.

The weight of his discovery was like some dead thing on his breast. He felt that Ollie had fallen from the high heaven of his regard, never to mount to her place again. But Isom did not know of this bitter thing, this shameful shadow at his door. As far as it rested with him to hold the secret in his heart, poison though it was to him, Isom should never know.

CHAPTER VI

BLOOD

Joe had debated the matter fully in his mind before going in to supper. Since he had sent her tempter away, there was no necessity of taking Ollie to task, thus laying bare his knowledge of her guilty secret. He believed that her conscience would prove its own flagellant in the days to come, when she had time to reflect and repent, away from the debauching influence of the man who had led her astray. His blame was all for Morgan, who had taken advantage of her loneliness and discontent.

Joe now recalled, and understood, her reaching out to him for sympathy; he saw clearly that she had demanded something beyond the capacity of his unseasoned heart to give. Isom was to blame for that condition of her mind, first and most severely of all. If Isom had been kind to her, and given her only a small measure of human sympathy, she would have clung to him, and rested in the shelter of his protection, content against all the world. Isom had spread the thorns for his own feet, in his insensibility to all human need of gentleness.

Joe even doubted, knowing him as he did, whether the gray old miser was capable of either jealousy or shame. He did not know, indeed, what Isom might say to it if his wife's infidelity became known to him, but he believed that he would rage to insanity. Perhaps not because the sting of it would penetrate to his heart, but in his censure of his wife's extravagance in giving away an affection which belonged, under the form of marriage and law, to him.

Joe was ashamed to meet Ollie at the table, not for himself, but for her. He was afraid that his eyes, or his manner, might betray what he knew. He might have spared himself this feeling of humiliation on her account, for Ollie, all unconscious of his discovery, was bright and full of smiles. Joe could not rise to her level of light-heartedness, and, there being no common ground between them, he lapsed into his old-time silence over his plate.

After supper Joe flattened himself against the kitchen wall where he had sat the night before on the bench outside the door, drawing back into the shadow. There he sat and thought it over again, unsatisfied to remain silent,

yet afraid to speak. He did not want to be unjust, for perhaps she did not intend to meet Morgan at all. In addition to this doubt of her intentions, he had the hope that Isom would come very soon. He decided at length that he would go to bed and lie awake until he heard Ollie pass up to her room, when he would slip down again and wait. If she came down, he would know that she intended to carry out her part of the compact with Morgan. Then he could tell her that Morgan would not come.

Ollie was not long over her work that night. When Joe heard her door close, he took his boots in his hand and went downstairs. He had left his hat on the kitchen table, according to his nightly custom; the moonlight coming in through the window reminded him of it as he passed. He put it on, thinking that he would take a look around the road in the vicinity of the gate, for he suspected that Morgan's submissive going masked some iniquitous intent. Joe pulled on his boots, sitting in the kitchen door, listening a moment before he closed it after him, and walked softly toward the road.

A careful survey as far as he could see in the bright moonlight, satisfied him that Morgan had not left his horse and buggy around there anywhere. He might come later. Joe decided to wait around there and see.

101

It was a cool autumn night; a prowling wind moved silently. Over hedgerow and barn roof the moonlight lay in white radiance; the dusty highway beyond the gate was changed by it into a royal road. Joe felt that there were memories abroad as he rested his arms on the gate-post. Moonlight and a soft wind always moved him with a feeling of indefinite and shapeless tenderness, as elusive as the echo of a song. There was a soothing quality in the night for him, which laved his bruised sensibilities like balm. He expanded under its influence; the tumult of his breast began to subside.

The revelations of that day had fallen rudely upon the youth's delicately tuned and finely adjusted nature. He had recoiled in horror from the sacrilege which that house had suffered. In a measure he felt that he was guilty along with Ollie in her unspeakable sin, in that he had been so stupid as to permit it.

But, he reflected as he waited there with his hand upon the weathered gate, great and terrible as the upheaval of his day-world had been, the night had descended unconscious of it. The moonlight had brightened untroubled by it; the wind had come from its wooded places unhurried for it, and

unvexed. After all, it had been only an unheard discord in the eternal, vast harmony. The things of men were matters of infinitesimal consequence in nature. The passing of a nation of men would not disturb its tranquillity as much as the falling of a leaf.

It was then long past the hour when he was habitually asleep, and his vigil weighed on him heavily. No one had passed along the road; Morgan had not come in sight. Joe was weary from his day's internal conflict and external toil. He began to consider the advisability of returning to bed.

Perhaps, thought he, his watch was both futile and unjust. Ollie did not intend to keep her part in the agreement. She must be burning with remorse for her transgression.

102

He turned and walked slowly toward the house, stopping a little way along to look back and make sure that Morgan had not appeared. Thus he stood a little while, and then resumed his way.

The house was before him, shadows in the sharp angles of its roof, its windows catching the moonlight like wakeful eyes. There was a calm over it, and a somnolent peace. It seemed impossible that iniquitous desires could live and grow on a night like that. Ollie must be asleep, said he, and repentant in her dreams.

Joe felt that he might go to his rest with honesty. It would be welcome, as the desire of tired youth for its bed is strong. At the well he stopped again to look back for Morgan.

As he turned a light flashed in the kitchen, gleamed a moment, went out suddenly. It was as if a match had been struck to look for something quickly found, and then blown out with a puff of breath.

At once the fabric of his hopes collapsed, and his honest attempts to lift Ollie back to her smirched pedestal and invest her with at least a part of her former purity of heart, came to a painful end. She was preparing to leave. The hour when he must speak had come.

He approached the door noiselessly. It was closed, as he had left it, and within everything was still. As he stood hesitating before it, his hand lifted to lay upon the latch, his heart laboring in painful lunges against his ribs, it opened without a sound, and Ollie stood before him against the background of dark.

The moonlight came down on him through the half-bare arbor, and fell in mottled patches around him where he stood, his hand still lifted, as if to

help her on her way. Ollie caught her breath in a frightened start, and shrank back.

“You don’t need to be afraid, Ollie—it’s Joe,” said he.

103

“Oh, you scared me so!” she panted.

Each then waited as if for the other to speak, and the silence seemed long.

“Were you going out somewhere?” asked Joe.

“No; I forgot to put away a few things, and I came down,” said she. “I woke up out of my sleep thinking of them,” she added.

“Well!” said he, wonderingly. “Can I help you any, Ollie?”

“No; it’s only some milk and things,” she told him. “You know how Isom takes on if he finds anything undone. I was afraid he might come in tonight and see them.”

“Well!” said Joe again, in a queer, strained way.

He was standing in the door, blocking it with his body, clenching the jamb with his hands on either side, as if to bar any attempt that she might make to pass.

“Will you strike a light, Ollie? I want to have a talk with you,” said he gravely.

“Oh, Joe!” she protested, as if pleasantly scandalized by the request, intentionally misreading it.

“Have you got another match in your hand? Light the lamp.”

“Oh, what’s the use?” said she. “I only ran down for a minute. We don’t need the light, do we, Joe? Can’t you talk without it?”

“No; I want you to light the lamp,” he insisted.

“I’ll not do it!” she flared suddenly, turning as if to go to her room. “You’ve not got any right to boss me around in my own house!”

“I don’t suppose I have, Ollie, and I didn’t mean to,” said he, stepping into the room.

Ollie retreated a few steps toward the inner door, and stopped. Joe could hear her excited breathing as he flung his hat on the table.

104

“Ollie, what I’ve got to say to you has to be said sooner or later tonight, and you’d just as well hear it now,” said Joe, trying to assure her of his friendly intent by speaking softly, although his voice was tremulous. “Morgan’s gone; he’ll not be back—at least not tonight.”

“Morgan?” said she. “What do you mean—what do I care where he’s gone?”

Joe made no reply. He fumbled for the box behind the stove and scraped a slow sulphur match against the pipe. Its light discovered Ollie shrinking against the wall where she had stopped, near the door.

She was wearing a straw hat, which must have been a part of her bridal gear. A long white veil, which she wore scarf-wise over the front display of its flowers and fruits, came down and crossed behind her neck. Its ends dangled upon her breast. The dress was one that Joe never had seen her wear before, a girlish white thing with narrow ruffles. He wondered as he looked at her with a great ache in his heart, how so much seeming purity could be so base and foul. In that bitter moment he cursed old Isom in his heart for goading her to this desperate bound. She had been starving for a man’s love, and for the lack of it she had thrown herself away on a dog.

Joe fitted the chimney on the burner of the lamp, and stood in judicial seriousness before her, the stub of the burning match wasting in a little blaze between his fingers.

“Morgan’s gone,” he repeated, “and he’ll never come back. I know all about you two, and what you’d planned to do.”

Joe dropped the stub of the match and set his foot on it.

Ollie stared at him, her face as white as her bridal dress, her eyes big, like a barn-yard animal’s eyes in a lantern’s light. She was gathering and wadding the ends of her veil in her hands; her lips were open, showing the points of her small, white teeth.

105

“Isom—he’ll kill me!” she whispered.

“Isom don’t know about it,” said Joe.

“You’ll tell him!”

“No.”

Relief flickered in her face. She leaned forward a little, eagerly, as if to speak, but said nothing. Joe shrank back from her, his hand pressing heavily upon the table.

“I never meant to tell him,” said he slowly.

She sprang toward him, her hands clasped appealingly.

“Then you’ll let me go, you’ll let me go?” she cried eagerly. “I can’t stay here,” she hurried on, “you know I can’t stay here, Joe, and suffer like he’s made me suffer the past year! You say Morgan won’t come—”

“The coward, to try to steal a man’s wife, and deceive you that way, too!” said Joe, his anger rising.

“Oh, you don’t know him as well as I do!” she defended, shaking her head solemnly. “He’s so grand, and good, and I love him, Joe—oh, Joe, I love him!”

“It’s wrong for you to say that!” Joe harshly reproved her. “I don’t want to hear you say that; you’re Isom’s wife.”

“Yes, God help me,” said she.

“You could be worse off than you are, Ollie; as it is you’ve got a *name*!”

“What’s a name when you despise it?” said she bitterly.

“Have you thought what people would say about you if you went away with Morgan, Ollie?” inquired Joe gently.

“I don’t care. We intend to go to some place where we’re not known, and—”

“Hide,” said Joe. “Hide like thieves. And that’s what you’d be, both of you, don’t you see? You’d never be comfortable and happy, Ollie, skulking around that way.”

“Yes, I would be happy,” she maintained sharply. “Mr. Morgan is a gentleman, and he’s good. He’d be proud of me, he’d take care of me like a lady.”

106

“For a little while maybe, till he found somebody else that he thought more of,” said Joe. “When it comes so easy to take one man’s wife, he wouldn’t stop at going off with another.”

“It’s a lie—you know it’s a lie! Curtis Morgan’s a gentleman, I tell you, and I’ll not hear you run him down!”

“Gentlemen and ladies don’t have to hide,” said Joe.

“You’re lying to me!” she charged him suddenly, her face coloring angrily. “He wouldn’t go away from here on the say-so of a kid like you. He’s down there waiting for me, and I’m going to him.”

“I wouldn’t deceive you, Ollie,” said he, leaving his post near the door, opening a way for her to pass. “If you think he’s there, go and see. But I tell you he’s gone. He asked me to shut my eyes to this thing and let you and him carry it out; but I couldn’t do that, so he went away.”

She knew he was not deceiving her, and she turned on him with reproaches.

“You want to chain me here and see me work myself to death for that old miserly Isom!” she stormed. “You’re just as bad as he is; you ain’t got a soft spot in your heart.”

“Yes, I’d rather see you stay here with Isom and do a nigger woman’s work, like you have been doing ever since you married him, than let you go away with Morgan for one mistaken day. What you’d have to face with him would kill you quicker than work, and you’d suffer a thousand times more sorrow.”

“What do you know about it?” she sneered. “You never loved anybody. That’s the way with you religious fools—you don’t get any fun out of life yourselves, and you want to spoil everybody else’s. Well, you’ll not spoil mine, I tell you. I’ll go to Morgan this very night, and you can’t stop me!”

“Well, we’ll see about that, Ollie,” he told her, showing a little temper. “I told him that I’d keep you here if I had to tie you, and I’ll do that, too, if I have to. Isom—”

“Isom, Isom!” she mocked. “Well, tell Isom you spied on me and tell the old fool what you saw—tell him, tell him! Tell him all you know, and tell him more! Tell the old devil I hate him, and always did hate him; tell him I’ve got out of bed in the middle of the night more than once to get the ax and kill him in his sleep! Tell him I wish he was dead and in hell, where he belongs, and I’m sorry I didn’t send him there! What do I care about Isom, or you, or anybody else, you spy, you sneaking spy!”

“I’ll go with you to the road if you want to see if he’s there,” Joe offered.

Ollie’s fall from the sanctified place of irreproachable womanhood had divested her of all awe in his eyes. He spoke to her now as he would have reasoned with a child.

“No, I suppose you threatened to go after Isom, or something like that, and he went away,” said she. “You couldn’t scare him, he wouldn’t run from you. Tomorrow he’ll send me word, and I’ll go to him in spite of you and Isom and everything else. I don’t care—I don’t care—you’re mean to me, too! you’re as mean as you can be!”

She made a quick tempestuous turn from anger to tears, lifting her arm to her face and hiding her eyes in the bend of her elbow. Her shoulders heaved; she sobbed in childlike pity for herself and the injury which she seemed to think she bore.

Joe put his hand on her shoulder.

“Don’t take on that way about it, Ollie,” said he.

“Oh, oh!” she moaned, her hands pressed to her face now; “why couldn’t you have been kind to me; why couldn’t you have said a good word to me sometimes? I didn’t have a friend in the world, and I was so lonesome and tired and—and—and—everything!”

108

Her reproachful appeal was disconcerting to Joe. How could he tell her that he had not understood her striving and yearning to reach him, and that at last understanding, he had been appalled by the enormity of his own heart’s desire. He said nothing for a little while, but took her by one tear-wet hand and led her away from the door. Near the table he stopped, still holding her hand, stroking it tenderly with comforting touch.

“Never mind, Ollie,” said he at last; “you go to bed now and don’t think any more about going away with Morgan. If I thought it was best for your peace and happiness for you to go, I’d step out of the way at once. But he’d drag you down, Ollie, lower than any woman you ever saw, for they don’t have that kind of women here. Morgan isn’t as good a man as Isom is, with all his hard ways and stinginess. If he’s honest and honorable, he can wait for you till Isom dies. He’ll not last more than ten or fifteen years longer, and you’ll be young even then, Ollie. I don’t suppose anybody ever gets too old to be happy any more than they get too old to be sad.”

“No, I don’t suppose they do, Joe,” she sighed.

She had calmed down while he talked. Now she wiped her eyes on her veil, while the last convulsions of sobbing shook her now and then, like the withdrawing rumble of thunder after a storm.

“I’ll put out the light, Ollie,” said he. “You go on to bed.”

“Oh, Joe, Joe!” said she in a little pleading, meaningless way; a little way of reproach and softness.

She lifted her tear-bright eyes, with the reflection of her subsiding passion in them, and looked yearningly into his. Ollie suddenly found herself feeling small and young, penitent and frail, in the presence of this quickly developed man. His strength seemed to rise above her, and spread round her, and warm her in its protecting folds. There was comfort in him, and promise.

The wife of the dead viking could turn to the living victor with a smile. It is a comforting faculty that has come down from the first mother to the last daughter; it is as ineradicable in the sex as the instinct which cherishes fire.

Ollie was primitive in her passions and pains. If she could not have Morgan, perhaps she could yet find a comforter in Joe. She put her free hand on his shoulder and looked up into his face again. Tears were on her lashes, her lips were loose and trembling.

“If you’d be good to me, Joe; if you’d only be good and kind, I could stay,” she said.

Joe was moved to tenderness by her ingenuous sounding plea. He put his hand on her shoulder in a comforting way. She was very near him then, and her small hand, so lately cold and tear-damp, was warm within his. She threw her head back in expectant attitude; her yearning eyes seemed to be dragging him to her lips.

“I will be good to you, Ollie; just as good and kind as I know how to be,” he promised.

She swayed a little nearer; her warm, soft body pressed against him, her bright young eyes still striving to draw him down to her lips.

“Oh, Joe, Joe,” she murmured in a snuggling, contented way.

Sweat sprang upon his forehead and his throbbing temples, so calm and cool but a moment before. He stood trembling, his damp elf-locks dangling over his brow. Through the half-open door a little breath of wind threaded in and made the lamp-blaze jump; it rustled outside through the lilac-bushes like the passing of a lady’s gown.

Joe’s voice was husky in his throat when he spoke.

“You’d better go to bed, Ollie,” said he.

110

He still clung foolishly to her willing hand as he led her to the door opening to the stairs.

“No, you go on up first, Joe,” she said. “I want to put the wood in the stove ready to light in the morning, and set a few little things out. It’ll give me a minute longer to sleep. You can trust me now, Joe,” she protested, looking earnestly into his eyes, “for I’m not going away with Morgan now.”

“I’m glad to hear you say that, Ollie,” he told her, unfeigned pleasure in his voice.

“I want you to promise me you’ll never tell Isom,” said she.

“I never intended to tell him,” he replied.

She withdrew her hand from his quickly, and quickly both of them fled to his shoulders.

“Stoop down,” she coaxed with a seductive, tender pressure of her hands, “and tell me, Joe.”

Isom’s step fell on the porch. He crashed the door back against the wall as he came in, and Joe and Ollie fell apart in guilty haste. Isom stood for a moment on the threshold, amazement in his staring eyes and open mouth. Then a cloud of rage swept him, he lifted his huge, hairy fist above his head like a club.

“I’ll kill you!” he threatened, covering the space between him and Joe in two long strides.

Ollie shrank away, half stooping, from the expected blow, her hands raised in appealing defense. Joe put up his open hand as if to check Isom in his assault.

“Hold on, Isom; don’t you hit me,” he said.

Whatever Isom’s intention had been, he contained himself. He stopped, facing Joe, who did not yield an inch.

“Hit you, you whelp!” said Isom, his lips flattened back from his teeth. “I’ll do more than hit you. You—” He turned on Ollie: “I saw you. You’ve disgraced me! I’ll break every bone in your body! I’ll throw you to the hogs!”

111

“If you’ll hold on a minute and listen to reason, Isom, you’ll find there’s nothing at all like you think there is,” said Joe. “You’re making a mistake that you may be sorry for.”

“Mistake!” repeated Isom bitterly, as if his quick-rising rage had sunk again and left him suddenly weak. “Yes, the mistake I made was when I took you in to save you from the poorhouse and give you a home. I go away for a day and come back to find you two clamped in each other’s arms so close together I couldn’t shove a hand between you. Mistake—”

“That’s not so, Isom,” Joe protested indignantly.

“Heaven and hell, didn’t I see you!” roared Isom. “There’s law for you two if I want to take it on you, but what’s the punishment of the law for what you’ve done on me? Law! No, by God! I’ll make my own law for this case. I’ll kill both of you if I’m spared to draw breath five minutes more!”

Isom lifted his long arm in witness of his terrible intention, and cast his glaring eyes about the room as if in search of a weapon to begin his work.

“I tell you, Isom, nothing wrong ever passed between me and your wife,” insisted Joe earnestly. “You’re making a terrible mistake.”

Ollie, shrinking against the wall, looked imploringly at Joe. He had promised never to tell Isom what he knew, but how was he to save himself now without betraying her? Was he man enough to face it out and bear the strain, rush upon old Isom and stop him in his mad intention, or would he weaken and tell all he knew, here at the very first test of his strength? She could not read his intention in his face, but his eyes were frowning under his gathered brows as he watched every move that old Isom made. He was leaning forward a little, his arms were raised, like a wrestler waiting for the clinch. 112

Isom's face was as gray as ashes that have lain through many a rain. He stood where he had stopped at Joe's warning, and now was pulling up his sleeves as if to begin his bloody work.

"You two conspired against me from the first," he charged, his voice trembling; "you conspired to eat me holler, and now you conspire to bring shame and disgrace to my gray hairs. I trust you and depend on you, and I come home—"

Isom's arraignment broke off suddenly.

He stood with arrested jaw, gazing intently at the table. Joe followed his eyes, but saw nothing on the table to hold a man's words and passions suspended in that strange manner. Nothing was there but the lamp and Joe's old brown hat. That lay there, its innocent, battered crown presenting to Joe's eyes, its broad and pliant brim tilted up on the farther side as if resting on a fold of itself.

It came to Joe in an instant that Isom's anger had brought paralysis upon him. He started forward to assist him, Isom's name on his lips, when Isom leaped to the table with a smothered cry in his throat. He seemed to hover over the table a moment, leaning with his breast upon it, gathering some object to him and hugging it under his arm.

"Great God!" panted Isom in shocked voice, standing straight between them, his left arm pressed to his breast as if it covered a mortal wound. He twisted his neck and glared at Joe, but he did not disclose the thing that he had gathered from the table.

"Great God!" said he again, in the same shocked, panting voice.

"Isom," began Joe, advancing toward him.

Isom retreated quickly. He ran to the other end of the table where he stood, bending forward, hugging his secret to his breast as if he meant to

defend it with the blood of his heart. He stretched out his free hand to keep Joe away.

113

“Stand off! Stand off!” he warned.

Again Isom swept his wild glance around the room. Near the door, on two prongs of wood nailed to the wall, hung the gun of which Joe had spoken to Morgan in his warning. It was a Kentucky rifle, long barreled, heavy, of two generations past. Isom used it for hawks, and it hung there loaded and capped from year’s beginning to year’s end. Isom seemed to realize when he saw it, for the first time in that season of insane rage, that it offered to his hand a weapon. He leaped toward it, reaching up his hand.

“I’ll kill you now!” said he.

In one long spring Isom crossed from where he stood and seized the rifle by the muzzle.

“Stop him, stop him!” screamed Ollie, pressing her hands to her ears.

“Isom, Isom!” warned Joe, leaping after him.

Isom was wrenching at the gun to free the breech from the fork when Joe caught him by the shoulder and tried to drag him back.

“Look out—the hammer!” he cried.

But quicker than the strength of Joe’s young arm, quicker than old Isom’s wrath, was the fire in that corroded cap; quicker than the old man’s hand, the powder in the nipple of the ancient gun.

Isom fell at the report, his left hand still clutching the secret thing to his bosom, his right clinging to the rifle-barrel. He lay on his back where he had crashed down, as straight as if stretched to a line. His staring eyes rolled, all white; his mouth stood open, as if in an unuttered cry.

CHAPTER VII

DELIVERANCE

Joe, stunned by the sudden tragedy, stood for a moment as he had stopped when he laid his hand on Isom's shoulder. Ollie, on the other side of the fallen man, leaned over and peered into his face.

In that moment a wild turmoil of hopes and fears leaped in her hot brain. Was it deliverance, freedom? Or was it only another complication of shame and disgrace? Was he dead, slain by his own hand in the baseness of his own heart? Or was he only hurt, to rise up again presently with revilings and accusations, to make the future more terrible than the past. Did this end it; did this come in answer to her prayers for a bolt to fall on him and wither him in his tracks?

Even in that turgid moment, when she turned these speculations, guilty hopes, wild fears, in her mind, Isom's eyelids quivered, dropped; and the sounding breath in his nostrils ceased.

Isom Chase lay dead upon the floor. In the crook of his elbow rested a little time-fingered canvas bag, one corner of which had broken open in his fall, out of which poured the golden gleanings of his hard and bitter years.

On the planks beneath his shoulder-blades, where his feet had come and gone for forty years, all leached and whitened by the strong lye of countless scrubblings at the hands of the old wife and the new, his blood ran down in a little stream. It gathered in a cupped and hollowed plank, and stood there in a little pool, glistening, black. His wife saw her white face reflected in it as she raised up from peering into his blank, dead eyes. 115

"Look at his blood!" said she, hoarsely whispering. "Look at it—look at it!"

"Isom! Isom!" called Joe softly, a long pause between his words, as if summoning a sleeper. He stooped over, touching Isom's shoulder.

There was a trickle of blood on Isom's beard, where the rifle ball had struck him in the throat; back of his head that vital stream was wasting, enlarging the pool in the hollowed plank near Ollie's foot.

"He's dead!" she whispered.

Again, in a flash, that quick feeling of lightness, almost joyful liberty, lifted her. Isom was dead, dead! What she had prayed for had fallen. Cruel, hard-palmed Isom, who had gripped her tender throat, was dead there on the floor at her feet! Dead by his own act, in the anger of his loveless heart.

“I’m afraid he is,” said Joe, dazed and aghast.

The night wind came in through the open door and vexed the lamp with harassing breath. Its flame darted like a serpent’s tongue, and Joe, fearful that it might go out and leave them in the dark with that bleeding corpse, crossed over softly and closed the door.

Ollie stood there, her hands clenched at her sides, no stirring of pity in her heart for her husband with the stain of blood upon his harsh, gray beard. In that moment she was supremely selfish. The possibility of accusation or suspicion in connection with his death did not occur to her. She was too shallow to look ahead to that unpleasant contingency. The bright lure of liberty was in her eyes; it was dancing in her brain. As she looked at Joe’s back the moment he stood with hand on the door, her one thought was:

“Will he tell?”

Joe came back and stood beside the lifeless form of Isom, looking down at him for a moment, pity and sorrow in his face. Then he tiptoed far around the body and took up his hat from the floor where it had fallen in Isom’s scramble for the sack of gold.

“What are we going to do?” asked Ollie, suddenly afraid.

“I’ll go after the doctor, but he can’t help him any,” said Joe. “I’ll wake up the Greenings as I go by and send some of them over to stay with you.”

“Don’t leave me here with it—don’t leave me!” begged Ollie. “I can’t stay here in the house with it alone!”

She shrank away from her husband’s body, unlovely in death as he had been unloved in life, and clung to Joe’s arm.

But a little while had passed since Isom fell—perhaps not yet five minutes—but someone had heard the shot, someone was coming, running, along the hard path between gate and kitchen door. Ollie started.

“Listen!” she said. “They’re coming! What will you say?”

“Go upstairs,” he commanded, pushing her toward the door, harshness in his manner and words. “It’ll not do for you to be found here all dressed up that way.”

“What will you tell them—what will you say?” she insisted, whispering.

“Go upstairs; let me do the talking,” he answered, waving her away.

A heavy foot struck the porch, a heavy hand beat a summons on the door. Ollie’s white dress gleamed a moment in the dark passage leading to the stairs, the flying end of her veil glimmered.

“Come in,” called Joe.

Sol Greening, their neighbor, whose gate was almost opposite Isom’s, whose barn was not eighty rods from the kitchen door, stood panting in the lamplight, his heavy beard lifting and falling on his chest. 117

“What—what’s happened—who was that shootin’—Isom! God A’mighty, is he hurt?”

“Dead,” said Joe dully, standing hat in hand. He looked dazedly at the excited man in the door, whose mouth was open as he stared fearfully at the corpse.

“How? Who done it?” asked Greening, coming in on tiptoe, his voice lowered to a whisper, in the cautious fashion of people who move in the vicinity of the sound-sleeping dead. The tread of living man never more would disturb old Isom Chase, but Sol Greening moved as silently as a blowing leaf.

“Who done it?” he repeated.

“He did,” answered Joe.

“*He* done it!” repeated Greening, looking from the rifle, still clutched in Isom’s hand, to the gold in the crook of his arm, and from that to Joe’s blanched face. “*He* done it!”

“Jerking down the gun,” explained Joe, pointing to the broken rack.

“Jerkin’ down the gun! What’d he want—look—look at all that money! The sack’s busted—it’s spillin’ all over him!”

“He’s dead,” said Joe weakly, “and I was going after the doctor.”

“Stone dead,” said Greening, bending over the body; “they ain’t a puff of breath left in him. The doctor couldn’t do him no good, Joe, but I reckon—”

Greening straightened up and faced Joe, sternly.

“Where’s Missis Chase?” he asked.

“Upstairs,” said Joe, pointing.

“Does *she* know? Who was here when it happened?”

“Isom and I,” said Joe.

“God A’mighty!” said Greening, looking at Joe fearfully, “just you and him?”

“We were alone,” said Joe, meeting Greening’s eyes unfalteringly. “We had some words, and Isom lost his temper. He jumped for the gun and I tried to stop him, but he jerked it by the barrel and the hammer caught.”

“Broke his neck,” said Greening, mouth and eyes wide open; “broke it clean! Where’d that money come from?”

“I don’t know,” said Joe; “I didn’t see it till he fell.”

“Words!” said Greening, catching at it suddenly, as if what Joe had said had only then penetrated his understanding. “You and him had some words!”

“Yes, we had some words,” said Joe.

“Where’s Missis Chase?” demanded Greening again, turning his eyes suspiciously around the room.

“Upstairs, I told you Sol,” replied Joe. “She went to bed early.”

“Hush!” cautioned Greening, holding up his hand, listening intently. “I hear her movin’ around. Let me talk to her.”

He tiptoed to the door at the foot of the stairs, and listened again; tiptoed back to the outer portal, which he had left swinging behind him, and closed it gently. There was no sound from above now to indicate that Ollie was awake. Sol stood near Isom’s body, straining and listening, his hand to his ear.

“She must ’a’ been turnin’ over in bed,” said he. “Well, I guess I’ll have to call her. I hate to do it, but she’s got to be told.”

“Yes, she must be told,” said Joe.

Sol stood as if reflecting on it a little while. Joe was on the other side of Isom’s body, near the table. Both of them looked down into his bloodless face.

“You had words!” said Greening, looking sternly at Joe. “What about?”

“It was a matter between him and me, Sol, it don’t concern anybody else,” said Joe in a manner of dignity and reserve that was blunter than his words. Sol was not impressed by this implied rebuke, and hint to mind his own business.

“That ain’t no answer,” said he.

“Well, it will have to do for you, Sol,” said Joe.

“I don’t know about that,” declared Sol. “If you can’t give me the straight of it, in plain words, I’ll have to take you up.”

Joe stood thoughtfully silent a little while. Then he raised his head and looked at Sol steadily.

“If there’s any arresting to be done—” he began, but checked himself abruptly there, as if he had reconsidered what he started to say. “Hadn’t we better pick Isom up off the floor?” he suggested.

“No, no; don’t touch him,” Greening interposed hurriedly. “Leave him lay for the coroner; that’s the law.”

“All right.”

“I’ll have to tell Missis Chase before we go,” said Sol.

“Yes, you must tell her,” Joe agreed.

Sol rapped on the woodwork of the wall at the bottom of the stairs with his big knuckles. The sound rose sudden and echoing in the house. Ollie was heard opening her door.

“Missis Chase—oh, Missis Chase!” called Greening.

“Who’s that, who’s that?” came Ollie’s voice, tremulous and frightened, little above a whisper, from above.

“It’s Sol Greening. Don’t come down here, don’t come down!”

“What was that noise? It sounded like a gun,” said Ollie, a bit nearer the head of the stairs, her words broken and disjointed.

“Something’s happened, something mighty bad,” said Sol. “You stay right where you are till I send the old woman over to you—do you hear me?—stay right there!”

“Oh, what is it, what is it?” moaned Ollie. “Joe—where’s Joe? Call him, Mr. Greening, call Joe!”

120

“He’s here,” Sol assured her, his voice full of portent “he’s goin’ away with me for a little while. I tell you it’s terrible, you must stay right up there.”

“Oh, I’m so afraid—I’m so afraid!” said Ollie, coming nearer.

“Go back! Go back!” commanded Greening.

“If you’ll only stick to it that way,” thought Joe as Ollie’s moans sounded in his ears.

“Was it robbers—is somebody hurt?” she asked.

“Yes, somebody’s hurt, and hurt bad,” said Greening, “but you can’t do no good by comin’ down here. You stay right there till the old woman comes over; it’ll only be a minute.”

“Let me go with you. Oh, Mr. Greening, don’t leave me here alone!” she implored.

“There’s nothing to hurt you, Ollie,” said Joe. “You do as Sol tells you and stay here. Go to your room and shut the door, and wait till Mrs. Greening comes.”

Sol leaned into the staircase and listened until he heard her door close. Then he turned and shut the kitchen window and the door leading into the body of the house, leaving the burning lamp on the table to keep watch over Isom and his money.

“We’ll go out the front way,” said Sol to Joe. “Nothing must be touched in that room till the coroner orders it. Now, don’t you try to dodge me, Joe.”

“I’ve got no reason to want to dodge any man,” said Joe.

“Well, for your own sake, as well as your old mother’s, I hope to God you ain’t!” said Sol. “But this here thing looks mighty bad for somebody, Joe. I’m goin’ to take you over to Bill Frost’s and turn you over to the law.”

Joe made no comment, but led the way around the house. At the kitchen window Greening laid a restraining hand on Joe’s shoulder and stopped him, while he looked in at the corpse of Isom Chase. 121

“Him and me, we served on the same jury this afternoon,” said Sol, nodding toward the window as he turned away. “I rode to overtake him on the way home, but he had the start of me; and I was just goin’ in the gate when I heard that shot. I poled right over here. On the same jury, and now he’s dead!”

As they approached the gate Joe looked back, the events of the past few minutes and the shock of the tragedy, which had fallen as swift as a lightning stroke, stunning him out of his usual cool reasoning.

There lay the house, its roof white in the moonlight, a little stream of yellow coming through the kitchen window, striking the lilac-bushes and falling brokenly on the grass beyond. There was reality in that; but in this whirl of events which crowded his mind there was no tangible thing to lay hold upon.

That Isom was dead on the kitchen floor seemed impossible and unreal, like an event in a dream which one struggles against the terror of, consoling

himself, yet not convincingly, as he fights its sad illusions, with the argument that it is nothing but a vision, and that with waking it will pass away.

What was this awful thing with which Sol Greening had charged him, over which the whole neighborhood soon must talk and conjecture?

Murder!

There was no kinder word. Yet the full terror of its meaning was not over him, for his senses still swirled and felt numb in the suddenness of the blow. He had not meant that this accusation should fasten upon him when he sent Ollie from the room; he had not thought that far ahead. His one concern was that she should not be found there, dressed and ready to go, and the story of her weakness and folly given heartlessly to the world.

And Curtis Morgan—where was he, the man to blame for all this thing? Not far away, thought Joe, driving that white road in security, perhaps, even that very hour, while he, who had stood between him and his unholy desires, was being led away by Sol Greening like a calf in a rope. They were going to charge him with the murder of Isom Chase and take him away to jail.

How far would Morgan permit them to go? Would he come forward to bear his share of it, or would he skulk away like a coward and leave him, the bondman, to defend the name of his dead master's wife at the cost of his own honor and liberty, perhaps his life?

All that had gone before Isom threw his life away in that moment of blind anger, must be laid bare if he was to free himself of the shadow of suspicion. It was not the part of an honorable man to seek his own comfort and safety at the cost of a woman's name, no matter how unworthy he knew her to be, while that name and fame still stood flawless before the world. In the absence of some other avenue to vindication, a gentleman must suffer in silence, even to death. It would be cruel, unjust, and hard to bear, but that was the only way. He wondered if Ollie understood.

But there were certain humiliations and indignities which a gentleman could not bend his neck to; and being led away by an inferior man like Sol Greening to be delivered up, just as if he thought that he might have run away if given an opening, was one of them. Sol had passed on through the open gate, which he had not stopped to close when he ran in, before he

noticed that Joe was not following. He looked back. Joe was standing inside the fence, his arms folded across his chest.

“Come on here!” ordered Sol.

“No, I’m not going any farther with you, Sol,” said Joe quietly. “If there’s any arresting to be done, I guess I can do it myself.” 123

Greening was a self-important man in his small-bore way, who saw in this night’s tragedy fine material for increasing his consequence, at least temporarily, in that community. The first man on the bloody scene, the man to shut up the room for the coroner, the man to make the arrest and deliver the murderer to the constable—all within half an hour. It was a distinction which Greening did not feel like yielding.

“Come on here, I tell you!” he commanded again.

“If you want to get on your horse and go after Bill, I’ll wait right here till he comes,” said Joe; “but I’ll not go any farther with you. I didn’t shoot Isom, Sol, and you know it. If you don’t want to go after Bill, then I’ll go on over there alone and tell him what’s happened. If he wants to arrest me then, he can do it.”

Seeing that by this arrangement much of his glory would get away from him, Greening stepped forward and reached out his hand, as if to compel submission. Joe lifted his own hand to intercept it with warning gesture.

“No, don’t you touch me, Sol!” he cautioned.

Greening let his hand fall. He stepped back a pace, Joe’s subdued, calm warning penetrating his senses like the sound of a blow on an anvil. Last week this gangling strip of a youngster was nothing but a boy, fetching and carrying in Isom Chase’s barn-yard. Tonight, big and bony and broad-shouldered, he was a man, with the same outward gentleness over the iron inside of him as old Peter Newbolt before him; the same soft word in his mouth as his Kentucky father, who had, without oath or malediction, shot dead a Kansas Redleg, in the old days of border strife, for spitting on his boot.

“Will you go, or shall I?” asked Joe.

Greening made a show of considering it a minute.

“Well, Joe, you go on over and tell him yourself,” said he, putting on the front of generosity and confidence, “I know you won’t run off.” 124

“If I had anything to run off for, I’d go as quick as anybody, I guess,” said Joe.

“I’ll go and fetch the old lady over to keep company with Mrs. Chase,” said Sol, hurriedly striking across the road.

Joe remained standing there a little while. The growing wind, which marked the high tide of night, lifted his hat-brim and let the moonlight fall upon his troubled face. Around him was the peace of the sleeping earth, with its ripe harvest in its hand; the scents of ripe leaves and fruit came out of the orchard; the breath of curing clover from the fields.

Joe brought a horse from the barn and leaped on its bare back. He turned into the highroad, lashing the animal with the halter, and galloped away to summon Constable Bill Frost.

Past hedges he rode, where cricket drummers beat the long roll for the muster of winter days; past gates letting into fields, clamped and chained to their posts as if jealous of the plenty which they guarded; past farmsteads set in dark forests of orchard trees and tall windbreaks of tapering poplar, where never a light gleamed from a pane, where sons and daughters, worn husbandmen and weary wives, lay soothed in honest slumber; past barnyards, where cattle sighed as they lay in the moonshine champing upon their cud; down into swales, where the air was damp and cold, like a wet hand on the face; up to hill-crests, over which the perfumes of autumn were blowing—the spices of goldenrod and ragweed, the elusive scent of hedge orange, the sweet of curing fodder in the shock; past peace and contentment, and the ripe reward of men’s summer toil.

Isom Chase was dead; stark, white, with blood upon his beard.

There a dog barked, far away, raising a ripple on the placid night; there a cock crowed, and there another caught his cry; it passed on, on, fading away eastward, traveling like an alarm, like a spreading wave, until it spent itself against the margin of breaking day.

Isom Chase was dead, with an armful of gold upon his breast.

Aye, Isom Chase was dead. Back there in the still house his limbs were stiffening upon his kitchen floor. Isom Chase was dead on the eve of the most bountiful harvest his lands had yielded him in all his toil-freighted years. Dead, with his fields around him; dead, with the maize dangling heavy ears in the white moonlight; dead, with the gold of pumpkin lurking like unminted treasure in the margin of his field. Dead, with fat cattle in his pastures, fat swine in his confines, sleek horses in his barn-stalls, fat cockerels on his perch; dead, with a young wife shrinking among the

shadows above his cold forehead, her eyes unclouded by a tear, her panting breast undisturbed by a sigh of pity or of pain.

CHAPTER VIII

WILL HE TELL?

Constable Bill Frost was not a man of such acute suspicion as Sol Greening. He was a thin, slow man with a high, sharp nose and a sprangling, yellow mustache which extended broadly, like the horns of a steer. It did not enter his mind to connect Joe with the tragedy in a criminal way as they rode together back to the farm.

When they arrived, they found Sol Greening and his married son Dan sitting on the front steps. Mrs. Greening was upstairs, comforting the young widow, who was “racked like a fiddle,” according to Sol.

Sol took the constable around to the window and pointed out the body of Isom stretched beside the table.

“You’re a officer of the law,” said Sol, “and these here primisis is now in your hands and charge, but I don’t think you orto go in that room. I think you orto leave him lay, just the way he dropped, for the coroner. That’s the law.”

Frost was of the same opinion. He had no stomach for prying around dead men, anyhow.

“We’ll leave him lay, Sol,” said he.

“And it’s my opinion that you orto put handcuffs on that feller,” said Sol.

“Which feller?” asked Bill.

“That boy Joe,” said Sol.

“Well, I ain’t got any, and I wouldn’t put ’em on him if I had,” said Bill. “He told me all about how it happened when we was comin’ over. Why, you don’t suspicient he done it, do you, Sol?”

“Circumstantial evidence,” said Sol, fresh from jury service and full of the law, “is dead ag’in’ him, Bill. If I was you I’d slap him under arrest. They had words, you know.”

“Yes; he told me they did,” said Bill.

“But he didn’t tell you what them words was about,” said Sol deeply.

The constable turned to Sol, the shaft of suspicion working its way through the small door of his mind.

“By ganny!” said he.

“I’d take him up and hand him over to the sheriff in the morning,” advised Sol.

“I reckon I better do it,” Frost agreed, almost knocked breathless by the importance of the thing he had overlooked.

So they laid their heads together to come to a proper method of procedure, and presently they marched around the corner of the house, shoulder to shoulder, as if prepared to intercept and overwhelm Joe if he tried to make a dash for liberty.

They had left Joe sitting on the steps with Dan, and now they hurried around as if they expected to find his place empty and Dan stretched out, mangled and bleeding. But Joe was still there, in friendly conversation with Dan, showing no intention of running away. Frost advanced and laid his hand on Joe’s shoulder.

“Joe Newbolt,” said he, “I put you under arrest on the suspicion of shootin’ and murderin’ Isom Chase in cold blood.”

It was a formula contrived between the constable and Sol. Sol had insisted on the “cold blood.” That was important and necessary, he declared. Omit that in making the arrest, and you had no case. It would fall through.

Joe stood up, placing himself at the immediate disposal of the constable, which was rather embarrassing to Bill.

“Well, Bill, if you think it’s necessary, all right,” said he.

“Form of law demands it,” said Sol.

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“But you might wait and see what the coroner thinks about it,” suggested Joe.

“Perliminaries,” said Greening in his deep way.

Then the question of what to do with the prisoner until morning arose. Joe pointed out that they could make no disposition of him, except to hold him in custody, until the coroner had held an inquest into the case and a conclusion had been reached by the jury. He suggested that they allow him to go to bed and get some needed sleep.

That seemed to be a very sensible suggestion, according to Bill’s view of it. But Sol didn’t know whether it would be a regular proceeding and in strict accord with the forms of law. Indeed, he was of the opinion, after deliberating a while, that it would weaken the case materially. He was

strongly in favor of handcuffs, or, in the absence of regulation manacles, a half-inch rope.

After a great deal of discussion, during which Frost kept his hand officiously on Joe's shoulder, it was agreed that the prisoner should be allowed to go to bed. He was to be lodged in the spare room upstairs, the one lately occupied by Morgan. Frost escorted him to it, and locked the door.

"Is they erry winder in that room?" asked Sol, when Bill came back.

"Reckon so," said Frost, starting nervously. "I didn't look."

"Better see," said Sol, getting up to investigate.

They went round to the side of the house. Yes, there was a window, and it was wide open.

But any doubt that the prisoner might have escaped through it was soon quieted by the sound of his snore. Joe had thrown himself across the bed, boots and all, and was already shoulder-deep in sleep. They decided that, at daylight, Sol's son should ride to the county-seat, seven miles distant, and notify the coroner. 129

During the time they spent between Joe's retirement and daybreak, Sol improved the minutes by arraigning, convicting, and condemning Joe for the murder of old Isom. He did it so impressively that he had Constable Frost on edge over the tremendous responsibility that rested on his back. Bill was in a sweat, although the night was cool. He tiptoed around, listening, spying, prying; he stood looking up at Joe's window until his neck ached; he explored the yard for hidden weapons and treasure, and he peered and poked with a rake-handle into shrubbery and vines.

They could hear the women upstairs talking once in a while, and now and again they caught the sound of a piteous moan.

"She ain't seen him," said Sol; "I wouldn't let her come down. She may not be in no condition to look on a muss like that, her a young woman and only married a little while."

Bill agreed on that, as he agreed on every hypothesis which Sol propounded out of his wisdom, now that his official heat had been raised.

"If I hadn't got here when I did he'd 'a' skinned out with all of that money," said Sol. "He was standin' there with his hat in his hand, all ready to scoop it up."

"How'd he come to go after me?" asked Bill.

“Well, folks don’t always do things on their own accord,” said Sol, giving Bill an unmistakable look.

“Oh, that was the way of it,” nodded Bill. “I thought it was funny if he—”

“He knewed he didn’t have a ghost of a chance to git away between me and you,” said Sol.

Morning came, and with it rode Sol’s son to fetch the coroner.

Sol had established himself in the case so that he would lose very little glory in the day’s revelations, and there remained one pleasant duty yet which he proposed to take upon himself. That was nothing less than carrying the news of the tragedy and Joe’s arrest to Mrs. Newbolt in her lonely home at the foot of the hill.

Sol’s son spread the news as he rode through the thin morning to the county-seat, drawing up at barn-yard gates, hailing the neighbors on the way to their fields, pouring the amazing story into the avid ears of all who met him. Sol carried the story in the opposite direction, trotting his horse along full of leisurely importance and the enjoyment of the distinction which had fallen on him through his early connection with the strange event. When they heard it, men turned back from their fields and hastened to the Chase farm, to peer through the kitchen window and shock their toil-blunted senses in the horror of the scene.

Curiosity is stronger than thrift in most men, and those of that community were no better fortified against it than others of their kind. Long before Sol Greening’s great lubberly son reached the county-seat, a crowd had gathered at the farmstead of Isom Chase. Bill Frost, now bristling with the dignity of his official power, moved among them soberly, the object of great respect as the living, moving embodiment of the law.

Yesterday he was only Bill Frost, a tenant of rented land, filling an office that was only a name; this morning he was Constable Bill Frost, with the power and dignity of the State of Missouri behind him, guarding a house of mystery and death. Law and authority had transformed him overnight, settling upon him as the spirit used to come upon the prophets in the good old days.

Bill had only to stretch out his arm, and strong men would fall back, pale and awed, away from the wall of the house; he had but to caution them in a low word to keep hands off everything, to be instantly obeyed. They drew

away into the yard and stood in low-voiced groups, the process of thought momentarily stunned by this terrible thing. 131

“Ain’t it awful?” a graybeard would whisper to a stripling youth.

“Ain’t it terrible?” would come the reply.

“Well, well, well! Old Isom!”

That was as far as any of them could go. Then they would walk softly, scarcely breathing, to the window and peep in again.

Joe, unhailed and undisturbed, was spinning out his sleep. Mrs. Greening brought coffee and refreshments for the young widow from her own kitchen across the road, and the sun rose and drove the mists out of the hollows, as a shepherd drives his flocks out to graze upon the hill.

As Sol Greening hitched his horse to the Widow Newbolt’s fence, he heard her singing with long-drawn quavers and lingering semibreves:

*There is a fountain filled with blood,
Drawn from Immanuel’s veins....*

She appeared at the kitchen door, a pan in her hand, a flock of expectant chickens craning their necks to see what she had to offer, at the instant that Sol came around the corner of the house. She all but let the pan fall in her amazement, and the song was cut off between her lips in the middle of a word, for it was not more than six o’clock, uncommonly early for visitors.

“Mercy me, Sol Greening, you give me an awful jump!” said she.

“Well, I didn’t aim to,” said Sol, turning over in his mind the speech that he had drawn up in the last uninterrupted stage of his journey over.

Mrs. Newbolt looked at him sharply, turning her head a little with a quick, pert movement, not unlike one of her hens.

“Is anybody sick over your way?” she asked.

She could not account for the early visit in any other manner. People commonly came for her at all hours of the day and night when there was somebody sick and in need of a herb-wise nurse. She had helped a great many of the young ones of that community into the world, and she had eased the pains of many old ones who were quitting it. So she thought that Greening’s visit must have something to do with either life or death. 131

“No, nobody just azackly sick,” dodged Greening.

“Well, laws my soul, you make a mighty mystery over it! What’s the matter—can’t you talk?”

“But I can’t say, Missis Newbolt, that everybody’s just azackly well,” said he.

“Some of your folks?”

“No, not none of mine,” said Sol.

“Then whose?” she inquired impatiently.

“Isom’s,” said he.

“You don’t mean my Joe?” she asked slowly, a shadow of pain drawing her face.

“I mean Isom,” said Sol.

“Isom?” said she, relieved. “Why didn’t Joe come after me?” Before Sol could adjust his program to meet this unexpected exigency, she demanded: “Well, what’s the matter with Isom?”

“Dead,” said Sol, dropping his voice impressively.

“You don’t mean—well, shades of mercy, Isom dead! What was it—cholera-morbus?”

“Killed,” said Sol; “shot down with his own gun and killed as dead as a dornix.”

“His own gun! Well, sakes—who done it?”

“Only one man knows,” said Sol, shaking his head solemnly. “I’ll tell you how it was.”

Sol started away back at the summons to jury service, worked up to the case in which he and Isom had sat together, followed Isom then along the road home, and galloped to overtake him. He arrived at his gate—all in his long and complete narrative—again, as he had done in reality the night past; he heard the shot in Isom’s house; he leaped to the ground; he ran. He saw a light in the kitchen of Isom’s house, but the door was closed; he knocked, and somebody called to him to enter. He opened the door and saw Isom lying there, still and bloody, money—gold money—all over him, and a man standing there beside him. There was nobody else in the room.

“Shades of mercy!” she gasped. “Who was that man?”

Sol looked at her pityingly. He put his hand to his forehead as if it gave him pain to speak.

“It was your Joe,” said he.

She sighed, greatly lightened and relieved.

“Oh, then Joe he told you how it happened?” said she.

“Ma’am,” said Sol impressively, “he said they was alone in the kitchen when it happened; he said him and Isom had some words, and Isom he reached up to pull down the gun, and the hammer caught, and it went off and shot him. That’s what Joe told me, ma’am.”

“Well, Sol Greening, you talk like you didn’t believe him!” she scorned. “If Joe said that, it’s so.”

“I hope to God it is!” said Sol, drawing a great breath.

If Sol had looked for tears, his eyes were cheated; if he had listened for screams, wailings, and moanings, his ears were disappointed. Sarah Newbolt stood straight and haughtily scornful in her kitchen door, her dark eyes bright between their snapping lids.

“Where’s Joe?” she asked sternly.

“He’s over there,” said Sol, feeling that he had made a noise like a peanut-bag which one inflates and smashes in the palm in the expectation of startling the world.

“Have they took him up?”

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“Well, you see, Bill Frost’s kind of keepin’ his eye on him till the inquest,” explained Sol.

“Yes, and I could name the man that put him up to it,” said she.

“Well, circumstantial evidence—” began Sol.

“Oh, circumstance your granny!” she stopped him pettishly.

Mrs. Newbolt emptied her pan among the scrambling fowls by turning it suddenly upside down. That done, she reached behind her and put it on the table. Her face had grown hard and severe, and her eyes were fierce.

“Wouldn’t believe my boy!” said she bitterly. “Are you going over that way now?”

“Guess I’ll be ridin’ along over.”

“Well, you tell Joe that I’ll be there as quick as shank’s horses can carry me,” she said, turning away from the door, leaving Sol to gather what pleasure he was able out of the situation.

She lost no time in primping and preparing, but was on the road before Sol had gone a quarter of a mile.

Mrs. Newbolt cut across fields, arriving at the Chase farm almost as soon as Sol Greening did on his strawberry roan. The coroner had not come when she got there; Bill Frost allowed Joe to come down to the unused parlor of

old Isom's house to talk with her. Frost showed a disposition to linger within the room and hear what was said, but she pushed him out.

"I'll not let him run off, Bill Frost," said she. "If he'd wanted to run, if he'd had anything to run from, he could 'a' gone last night, couldn't he, you dunce?"

She closed the door, and no word of what passed between mother and son reached the outside of it, although Bill Frost strained his ear against it, listening.

When the coroner arrived in the middle of the forenoon he found ¹³⁵no difficulty in obtaining a jury to inquire into Isom's death. The major and minor male inhabitants of the entire neighborhood were assembled there, every qualified man of them itching to sit on the jury. As the coroner had need of but six, and these being soon chosen, the others had no further pleasure to look forward to save the inquiry into the tragedy.

After examining the wound which caused Isom's death, the coroner had ordered the body removed from the kitchen floor. The lamp was still burning on the table, and the coroner blew it out; the gold lay scattered on the floor where it had fallen, and he gathered it up and put it in the little sack.

When the coroner went to the parlor to convene the inquest, the crowd packed after him. Those who were not able to get into the room clustered in a bunch at the door, and protruded themselves in at the windows, silent and expectant.

Joe sat with his mother on one hand, Constable Frost on the other, and across the room was Ollie, wedged between fat Mrs. Sol Greening and her bony daughter-in-law, who claimed the office of ministrants on the ground of priority above all the gasping, sympathetic, and exclaiming females who had arrived after them.

Ollie was pale and exhausted in appearance, her face drawn and bloodless, like that of one who wakes out of an anesthetic after a surgical operation upon some vital part. Her eyes were hollowed, her nostrils pinched, but there was no trace of tears upon her cheeks. The neighbors said it was dry grief, the deepest and most lasting that racks the human heart. They pitied her, so young and fair, so crushed and bowed under that sudden, dark sorrow.

Mrs. Greening had thrown something black over the young widow's shoulders, of which she seemed unaware. It kept slipping and falling down, revealing her white dress, and Mrs. Greening kept adjusting it with motherly hand. Sitting bent, like an old woman, Ollie twisted and wound her nervous hot fingers in her lap. Now and then she lifted her eyes to Joe's, as if struggling to read what intention lay behind the pale calm of his face.

No wonder she looked at him wild and fearful, people said. It was more than anybody could understand, that sudden development of fierce passion and treachery in a boy who always had been so shy and steady. No wonder she gazed at him that way, poor thing!

Of course they did not dream how far they were from interpreting that look in the young widow's eyes. There was one question in her life that morning, and one only, it seemed. It stood in front of the future and blocked all thought of it like a heavy door. Over and over it revolved in her mind. It was written in fire in her aching brain.

When they put Joe Newbolt on the witness-stand and asked him how it happened, would he stand true to his first intention and protect her, or would he betray it all?

That was what troubled Ollie. She did not know, and in his face there was no answer.

Sol Greening was the first witness. He told again to the jury of his neighbors the story which he had gone over a score of times that morning. Mrs. Newbolt nodded when he related what Joe had told him, as if to say there was no doubt about that; Joe had told her the same thing. It was true.

The coroner, a quick, sharp little man with a beard of unnatural blackness, thick eyebrows and sleek hair, helped him along with a question now and then.

"There was nobody in the room but Joe Newbolt when you arrived?"

"Nobody else—no livin' body," replied Sol.

"No other living body. And Joe Newbolt was standing beside the body of Isom Chase, near the head, you say?"

"Yes, near Isom's head."

"With his hat in his hand, as if he had just entered the room, or was about to leave it?"

Sol nodded.

“Do you know anything about a man who had been boarding here the past week or two?”

The coroner seemed to ask this as an afterthought.

“Morgan,” said Sol, crossing his legs the other way for relief. “Yes, I knowed him.”

“Did you see him here last night?”

“No, he wasn’t here. The old lady said he stopped in at our house yesterday morning to sell me a ready-reckoner.”

Sol chuckled, perhaps over what he considered a narrow escape.

“I was over at Shelbyville, on the jury, and I wasn’t there, so he didn’t sell it. Been tryin’ to for a week. He told the old lady that was his last day here, and he was leavin’ then.”

“And about what time of night was it when you heard the shot in Isom Chase’s house, and ran over?”

“Along about first rooster-crow,” said Sol.

“And that might be about what hour?”

“Well, I’ve knowed ’em to crow at ’leven this time o’ year, and ag’in I’ve knowed ’em to put it off as late as two. But I should judge that it was about twelve when I come over here the first time last night.”

Sol was excused with that. He left the witness-chair with ponderous solemnity. The coroner’s stenographer had taken down his testimony, and was now leaning back in his chair as serenely as if unconscious of his own marvelous accomplishment of being able to write down a man’s words as fast as he could talk.

Not so to those who beheld the feat for the first time. They watched the young man, who was a ripe-cheeked chap with pale hair, as if they expected to catch him in the fraud and pretense of it in the end, and lay bare the deceit which he practised upon the world.

The coroner was making notes of his own, stroking his black beard thoughtfully, and in the pause between witnesses the assembled neighbors had the pleasure of inspecting the parlor of dead Isom Chase which they had invaded, into which, living, he never had invited them.

Isom’s first wife had arranged that room, in the hope of her young heart, years and years ago. Its walls were papered in bridal gaiety, its colors still bright, for the full light of day seldom fell into it as now. There hung a picture of that bride’s father, a man with shaved lip and a forest of beard

from ears to Adam's apple, in a little oval frame; and there, across the room, was another, of her mother, Quakerish in look, with smooth hair and a white something on her neck and bosom, held at her throat by a portrait brooch. On the table, just under that fast-writing young man's eyes, was a glass thing shaped like a cake cover, protecting some flowers made of human hair, and sprigs of bachelor's button, faded now, and losing their petals.

There hung the marriage certificate of Isom and his first wife, framed in tarnished gilt which was flaking from the wood, a blue ribbon through a slit in one corner of the document, like the pendant of a seal, and there stood the horsehair-upholstered chairs, so spare of back and thin of shank that the rustics would stand rather than trust their corn-fed weight upon them. Underfoot was a store-bought carpet, as full of roses as the Elysian Fields, and over by the door lay a round, braided rag mat, into which Isom's old wife had stitched the hunger of her heart and the brine of her lonely tears.

The coroner looked up from his little red-leather note-book.

"Joe Newbolt, step over here and be sworn," said he.

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Joe crossed over to the witness-chair, picking his way through feet and legs. As he turned, facing the coroner, his hand upraised, Ollie looked at him steadily, her fingers fluttering and twining.

Twelve hours had made a woeful change in her. She was as gaunt as a suckling she-hound, an old terror lay lurking in her young eyes. For one hour of dread is worse than a year of weeping. One may grieve, honestly and deeply, without wearing away the cheeks or burning out the heart, for there is a soft sorrow which lies upon the soul like a deadening mist upon the autumn fields. But there is no worry without waste. One day of it will burn more of the fuel of human life than a decade of placid sorrow.

How much would he tell? Would it be all—the story of the caress in the kitchen door, the orchard's secret, the attempt to run away from Isom—or would he shield her in some manner? If he should tell all, there sat an audience ready to snatch the tale and carry it away, and spread it abroad. Then disgrace would follow, pitiless and driving, and Morgan was not there to bear her away from it, or to mitigate its sting.

Bill Frost edged over and stood behind the witness chair. His act gave the audience a thrill. "He's under arrest!" they whispered, sending it from ear to ear. Most of them had known it before, but there was something so full and satisfying in the words. Not once before in years had there been occasion to

use them; it might be years again before another opportunity presented. They had an official sound, a sound of adventure and desperation. And so they whispered them, neighbor nodding to neighbor in deep understanding as it went round the room, like a pass-word in secret conclave: "He's under arrest!"

There was nobody present to advise Joe of his rights. He had been accused of the crime and taken into custody, yet they were calling on him now to give evidence which might be used against him. If he had any doubt about the legality of the proceeding, he was too certain of the outcome of the inquiry to hesitate or demur. There was not a shadow of doubt in his mind that his neighbors, men who had known him all his life, and his father before him, would acquit him of all blame in the matter and set him free. They would believe him, assuredly. Therefore, he answered cheerfully when the coroner put the usual questions concerning age and nativity. Then the coroner leaned back in his chair.

"Now, Joe, tell the jury just how it happened," said he.

The jury looked up with a little start of guilt at the coroner's reference to itself, presenting a great deal of whiskers and shocks of untrimmed hair, together with some reddening of the face. For the jury had been following the movements of the coroner's stenographer, as if it, also, expected to catch him in the trick of it that would incriminate him and send him to the penitentiary for life.

"I'd been down to the barn and out by the gate, looking around," said Joe. There he paused.

"Yes; looking around," encouraged the coroner, believing from the lad's appearance and slow manner that he had a dull fellow in hand. "Now, what were you looking around for, Joe?"

"I had a kind of uneasy feeling, and I wanted to see if everything was safe," said Joe.

"Afraid of horse-thieves, or something like that?"

"Something like that," nodded Joe.

Mrs. Newbolt, sitting very straight-backed, held her lips tight, for she was impressed with the seriousness of the occasion. Now and then she nodded, as if confirming to herself some foregone conclusion.

"Isom had left me in charge of the place, and I didn't want him to come back and find anything gone," Joe explained.

"I see," said the coroner in a friendly way. "Then what did you do?"

"I went back to the house and lit the lamp in the kitchen," said Joe.

"How long was that before Isom came in?"

"Only a little while; ten or fifteen minutes, or maybe less."

"And what did Isom say when he came in, Joe?"

"He said he'd kill me, he was in a temper," Joe replied.

"You had no quarrel before he said that, Isom just burst right into the room and threatened to kill you, did he, Joe? Now, you're sure about that?"

"Yes, I'm perfectly sure."

"What had you done to send Isom off into a temper that way?"

"I hadn't done a thing," said Joe, meeting the coroner's gaze honestly.

The coroner asked him concerning his position in the room, what he was doing, and whether he had anything in his hands that excited Isom when he saw it.

"My hands were as empty as they are this minute," said Joe, but not without a little color in his cheeks when he remembered how hot and small Ollie's hand had felt within his own.

"When did you first see this?" asked the coroner, holding up the sack with the burst corner which had lain on Isom's breast.

The ruptured corner had been tied with a string, and the sack bulged heavily in the coroner's hand.

"When Isom was lying on the floor after he was shot," said Joe.

A movement of feet was audible through the room. People looked at each other, incredulity in their eyes. The coroner returned to the incidents which led up to the shooting snapping back to that phase of the inquiry suddenly, as if in the expectation of catching Joe off his guard.

"What did he threaten to kill you for?" he asked sharply.

"Well, Isom was an unreasonable and quick-tempered man," Joe replied.

The coroner rose to his feet in a quick start, as if he intended to leap over the table. He pointed his finger at Joe, shaking his somber beard.

"What did Isom Chase catch you at when he came into that kitchen?" he asked accusingly.

"He saw me standing there, just about to blow out the light and go to bed," said Joe.

"What did you and Isom quarrel about last night?"

Joe did not reply at once. He seemed debating with himself over the advisability of answering at all. Then he raised his slow eyes to the coroner's face.

"That was between him and me," said he.

"Very well," said the coroner shortly, resuming his seat. "You may tell the jury how Isom Chase was shot."

Joe described Isom's leap for the gun, the struggle he had with him to restrain him, the catching of the lock in the fork as Isom tugged at the barrel, the shot, and Isom's death.

When he finished, the coroner bent over his note-book again, as if little interested and less impressed. Silence fell over the room. Then the coroner spoke, his head still bent over the book, not even turning his face toward the witness, his voice soft and low.

"You were alone with Isom in the kitchen when this happened?"

A flash of heat ran over Ollie's body. After it came a sweeping wave of cold. The room whirled; the world stood on edge. Her hour had struck; the last moment of her troubled security was speeding away. What would Joe answer to that?

"Yes," said Joe calmly, "we were alone."

Ollie breathed again; her heart's constriction relaxed.

The coroner wheeled on Joe.

"Where was Mrs. Chase?" he asked.

A little murmur, as of people drawing together with whispers; a little soft scuffling of cautiously shifted feet on the carpet, followed the question. Ollie shrank back, as if wincing from pain.

"Mrs. Chase was upstairs in her room," answered Joe.

The weight of a thousand centuries lifted from Ollie's body. Her vision cleared. Her breath came back in measured flow to her lips, moist and refreshing.

He had not told. He was standing between her and the sharp tongues of those waiting people, already licking hungrily in their awakened suspicion, ready to sear her fair name like flames. But there was no gratitude in her heart that moment, no quick lifting of thankfulness nor understanding of the great peril which Joe had assumed for her. There was only relief, blessed, easing, cool relief. He had not told.

But the coroner was a persistent man. He was making more than an investigation out of it; he was fairly turning it into a trial, with Joe as the defendant. The people were ready to see that, and appreciate his attempts to uncover the dark motive that lay behind this deed, of which they were convinced, almost to a man, that Joe was guilty.

“Was Isom jealous of you?” asked the coroner, beginning the assault on Joe’s reserve suddenly again when it seemed that he was through. For the first time during the inquiry Joe’s voice was unsteady when he replied.

“He had no cause to be, and you’ve got no right to ask me that, either, sir!” he said. 144

“Shame on you, shame on you!” said Mrs. Newbolt, leaning toward the coroner, shaking her head reprovingly.

“I’ve got the right to ask you anything that I see fit and proper, young man,” the coroner rebuked him sternly.

“Well, maybe you have,” granted Joe, drawing himself straight in the chair.

“Did Isom Chase ever find you alone with his wife?” the coroner asked.

“Now you look here, sir, if you’ll ask me questions that a gentleman ought to ask, I’ll answer you like a gentleman, but I’ll never answer such questions as that!”

There was a certain polite deference in Joe’s voice, which he felt that he owed, perhaps, to the office that the man represented, but there was a firmness above it all that was unmistakable.

“You refuse to answer any more questions, then?” said the coroner slowly, and with a significance that was almost sinister.

“I’ll answer any proper questions you care to ask me,” answered Joe.

“Very well, then. You say that you and Isom quarreled last night?”

“Yes, sir; we had a little spat.”

“A little spat,” repeated the coroner, looking around the room as if to ask the people on whose votes he depended for reelection what *they* thought of a “little spat” which ended in a man’s death. There was a sort of broad humor about it which appealed to the blunt rural sense. A grin ran over their faces like a spreading wavelet on a pool. “Well now, what was the beginning of that ‘little spat’?”

“Oh, what’s that got to do with it?” asked Joe impatiently. “You asked me that before.”

“And I’m asking you again. What was that quarrel over?”

“None of your business!” said Joe hotly, caring nothing for consequences.

“Then you refuse to answer, and persist in your refusal?”

“Well, we don’t seem to get on very well,” said Joe.

“No, we don’t,” the coroner agreed snappishly. “Stand down; that will be all.”

The listening people shifted and relaxed, leaned and whispered, turning quick eyes upon Joe, studying him with furtive wonder, as if they had discovered in him some fearful and hideous thing, which he, moving among them all his life, had kept concealed until that day.

Ollie followed him in the witness-chair. She related her story, framed on the cue that she had taken from Greening’s testimony and Joe’s substantiation of it, in low, trembling voice, and with eyes downcast. She knew nothing about the tragedy until Sol called up to her, she said, and then she was in ignorance of what had happened. Mrs. Greening had told her when she came that Isom was killed.

Ollie was asked about the book-agent boarder, as Greening had been asked. Morgan had left on the morning of the fateful day, she said, having finished his work in that part of the country. She and Joe were alone in the house that night.

The coroner spared her, no matter how far his sharp suspicions flashed into the obscurity of the relations between herself and the young bondman. The people, especially the women, approved his leniency with nods. Her testimony concluded the inquiry, and the coroner addressed the jury.

“Gentlemen,” he said, “you will take into consideration the evidence you have heard, and determine, if possible, the manner in which Isom Chase came to his death, and fix the responsibility for the same. It is within your power to recommend that any person believed by you to be directly or indirectly responsible for his death, be held to the grand jury for further investigation. Gentlemen, you will now view the body.”

Alive, Isom Chase had walked in the secret derision and contempt of his neighbors, despised for his parsimony, ridiculed for his manner of life. Dead, he had become an object of awe which they approached softly and with fear.

Isom lay upon his own cellar door, taken down from its hinges to make him a couch. It stood over against the kitchen wall, a chair supporting it at either end, and Isom stretched upon it covered over with a sheet. The coroner drew back the covering, revealing the face of the dead, and the jurymen, hats in hand, looked over each other's shoulders and then backed away.

For Isom was no handsomer as a corpse than he had been as a living, striving man. The hard, worn iron of his frame was there, like an old plowshare, useless now, no matter what furrows it had turned in its day. The harsh speech was gone out of his crabbed lips, but the scowl which delinquent debtors feared stood frozen upon his brow. He had died with gold above his heart, as he had lived with the thought of that bright metal crowding every human sentiment out of it, and the mystery of those glittering pieces under his dead hand was unexplained.

Somebody, it appeared, had sinned against old Isom Chase at the end, and Joe Newbolt knew who that person was. Here he had stood before them all and lifted up a wall of stubborn silence to shield the guilty head, and there was no doubt that it was his own.

That also was the opinion of the coroner's jury, which walked out from its deliberations in the kitchen in a little while and gave as its verdict that Isom Chase had come to his death by a gunshot wound, inflicted at the hands of Joseph Newbolt. The jury recommended that the accused be held to the grand jury, for indictment or dismissal.

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Mrs. Newbolt did not understand fully what was going forward, but she gathered that the verdict of the neighbors was unfriendly to Joe. She sat looking from the coroner to Joe, from Joe to the jurors, lined up with backs against the wall, as solemn and nervous as if waiting for a firing squad to appear and take aim at their patriotic breasts. She stood up in her bewilderment, and looked with puzzled, dazed expression around the room.

"Joe didn't do it, if that's what you mean," said she.

"Madam—" began the coroner severely.

"Yes, you little whiffet," she burst out sharply, "you're the one that put 'em up to do it! Joe didn't do it, I tell you, and you men know that as well as I do. Every one of you has knowed him all his life!"

"Madam, I must ask you not to interrupt the proceedings," said the coroner.

“Order in the court!” commanded the constable in his deepest official voice.

“Oh, shut your fool mouth, Bill Frost!” said Mrs. Newbolt scornfully.

“Never mind, Mother,” counseled Joe. “I’ll be all right. They have to do what they’re doing, I suppose.”

“Yes, they’re doin’ what that little snip-snapper with them colored whiskers tells ’em to do!” said she.

Solemn as the occasion was, a grin went round at the bald reference to a plainer fact. Even the dullest there had seen the grayish-red at the roots of the coroner’s beard. The coroner grew very red of face, and gave some orders to his stenographer, who wrote them down. He thanked the jurors and dismissed them. Bill Frost began to prepare for the journey to Shelbyville to turn Joe over to the sheriff.

The first, and most important, thing in the list of preliminaries for the journey, was the proper adjustment of Bill’s mustache. Bill roached it up with a turn of the forefinger, using the back of it, which was rough, like a corn-cob. When he had got the ends elevated at a valiant angle, his hat firmly settled upon his head, and his suspenders tightened two inches, he touched Joe’s shoulder.

“Come on!” he ordered as gruffly and formally as he could draw his edged voice.

Joe stood, and Bill put his hand on his arm to pilot him, in all officiousness, out of the room. Mrs. Newbolt stepped in front of them as they approached.

“Joe!” she cried appealingly.

“That’s all right, Mother,” he comforted her, “everything will be cleared up and settled in a day or two. You go on home now, Mother, and look after things till I come.”

“Step out of the way, step out of the way!” said Bill with spreading impatience.

Mrs. Newbolt looked at the blustering official pityingly.

“Bill Frost, you ain’t got as much sense as you was born with!” said she. She patted Joe’s shoulder, which was as near an approach to tenderness as he ever remembered her to make.

Constable Frost fell into consultation with his adjutant, Sol Greening, as soon as he cleared the room with the prisoner. They discussed gravely in the

prisoner's hearing, for Bill kept his hand on Joe's arm all the time, the advisability of tying him securely with a rope before starting on the journey to jail.

Joe grew indignant over this base proposal. He declared that if Bill was afraid of him he would go alone to the county-seat and give himself up to the sheriff if they would set him free. Bill was a little assured by his prisoner's evident sincerity.

Another consultation brought them to the agreement that the best they could do, in the absence of handcuffs, was to hitch up to Isom's buggy and make the prisoner drive. With hands employed on the lines, he could be watched narrowly by Bill who was to take Sol's old navy six along in his mighty hand.

Mrs. Newbolt viewed the officious constable's preparations for the journey with many expressions of anger and disdain.

"Just look at that old fool, Bill Frost, with that revolver!" said she, turning to the neighbors, who stood silently watching. "Just as if Joe would hurt anybody, or try to run away!"

Sympathy seemed to be lacking in the crowd. Everybody was against Joe, that was attested by the glum faces and silence which met her on every hand. She was amazed at their stupidity. There they stood, people who had seen Joe grow up, people who knew that a Newbolt would give his last cent and go hungry to meet an obligation; that he would wear rags to pay his debts, as Peter had done, as Joe was doing after him; that he would work and strive night and day to keep fair his honorable name, and to preserve the honest record of the family clear and clean.

They all knew that, and they knew that a Newbolt never lied, but they hunched their backs and turned away their heads as if they thought a body was going to hit them when she spoke. It disgusted her; she felt like she could turn loose on some of them with their own records, which she had from a generation back.

She approached the buggy as Joe took up the lines and prepared to drive out of the gate.

"I don't see why they think you done it, son, it's so unreasonable and unneighborly of them," said she.

"Neighborly!" said Joe, with sudden bitterness in his young voice. "What am I to them but 'the pore folks' boy'? They didn't believe me, Mother, but

when I get a chance to stand up before Judge Maxwell over at Shelbyville, I'll be talking to a gentleman. A gentleman will understand." 150

That sounded like his father, she thought. It moved her with a feeling of the pride which she had reflected feebly for so many years.

"I hope so, son," said she. "If you're not back in a day or two, I'll be over to Shelbyville."

"Drive on, drive on!" ordered Bill, the old black revolver in his hand.

The crowd was impressed by that weapon, knowing its history, as everybody did. Greening's more or less honorable father had carried it with him when he rode in the train of Quantrell, the infamous bushwhacker. It was the old man's boast to his dying day that he had exterminated a family of father and five sons in the raid upon Lawrence with that old weapon, without recharging it.

Joe drove through the open gate without a look behind him. His face was pale, his heart was sick with the humiliation of that day. But he felt that it was only a temporary cloud into which he had stepped, and that clearing would come again in a little while. It was inconceivable to him how anybody could be so foolish as to believe, or even suspect, that he had murdered Isom Chase.

The assembled people having heard all there was to hear, and seen all there was to see at the gate, began to straggle back to the farmhouse to gossip, to gape, and exclaim. To Greening and his family had fallen the office of comforting the widow and arranging for the burial, and now Sol had many offers to sit up with the corpse that night.

Mrs. Newbolt stood at the roadside, looking after the conveyance which was taking her son away to jail, until a bend behind a tall hedge hid it from her eyes. She made no further attempt to find sympathy or support among her neighbors, who looked at her curiously as she stood there, and turned away selfishly when she faced them.

Back over the road that she had hurried along that morning she trudged, slowly and without spirit, her feet like stones. As she went, she tried to arrange the day's happenings in her mind. All was confusion there. The one plain thing, the thing that persisted and obtruded, was that they had arrested Joe on a charge that was at once hideous and unjust. 151

Evening was falling when she reached the turn of the road and looked ahead to her home. She had no heart for supper, no heart to lift the latch of

the kitchen door and enter there. There was no desire in her heart but for her son, and no comfort in the prospect of her oncoming night.

CHAPTER IX

THE SEALED ENVELOPE

In the light of Joe's reluctant testimony and his strange, stubborn, and stiff-necked refusal to go into the matter of the quarrel between himself and Isom; the unexplained mystery of the money which had been found in the burst bag on Isom's breast; and Joe's declaration that he had not seen it until Isom fell: in the light of all this, the people of that community believed the verdict of the coroner's jury to be just.

This refusal of Joe's to talk out and explain everything was a display of the threadbare Newbolt dignity, people said, an exhibition of which they had not seen since old Peter's death. But it looked more like bull-headedness to them.

"Don't the darned fool know he's pokin' his head under the gallus?" they asked.

What was the trouble between him and Isom about? What was he doin' there in the kitchen with the lamp lit that hour of the night? Where did that there money come from, gentlemen? That's what I want you to tell *me*!

Those were the questions which were being asked, man to man, group to group, and which nobody could answer, as they stood discussing it after Joe had been taken away to jail. The coroner mingled with them, giving them the weight of his experience.

"That Newbolt's deeper than he looks on the outside, gentlemen," he said, shaking his serious whiskers. "There's a lot more behind this case than we can see. Old Isom Chase was murdered, and that murder was planned away ahead. It's been a long time since I've seen anybody on the witness-stand as shrewd and sharp as that Newbolt boy. He knew just what to so say and just what to shut his jaws on. But we'll fetch it out of him—or somebody else."

As men went home to take up their neglected tasks, they talked it all over. They wondered what Joe would have done with that money if he had succeeded in getting away with it; whether he would have made it out of the country, or whether the invincible Bill Frost, keen on his scent as a fox-hound, would have pursued him and brought him back.

They wondered how high they built the gallows to hang a man, and discussed the probability of the event being public. They speculated on the manner in which Joe would go to his death, whether boldly, with his head up that way, or cringing and afraid, his proud heart and spirit broken, and whether he would confess at the end or carry his secret with him to the grave. Then they branched off into discussions of the pain of hanging, and wondered whether it was a “more horribler” death than drowning or burning in a haystack, or from eating pounded glass.

It was a great, moving, awakening sensation in the countryside, that taking off of Isom Chase by a mysterious midnight shot. It pulled people up out of the drowse of a generation, and set them talking as they had not talked in twenty years. Their sluggish brains were heated by it, their sleeping hearts quickened.

People were of the undivided opinion that Isom had caught Joe robbing him, and that Joe had shot him in the fear of punishment for the theft. Perhaps it is because chivalry is such a rare quality among the business activities of this life, that none of them believed he was shielding Isom’s wife, and that he was innocent of any wrong himself. They did not approve the attempt of the coroner to drag her into it. The shrewd insight of the little man cost him a good many votes that day. 154

Joe Newbolt could very well be a robber, they said, for all his life had prepared him for a fall before the temptation of money. He could very well be a robber, indeed, and there was no room for him to turn out anything nobler, for wasn’t he the pore folks’ boy?

Ollie was almost as short in her realization of what Joe had done for her as those who knew nothing at all of his motive of silence. In the relief of her escape from public disclosure of her intrigue with Morgan, she enjoyed a luxurious relaxation. It was like sleep after long watching.

She did not understand the peril in which Joe stood on her account, nor consider that the future still held for both of them a trial which would test Joe’s strength as the corrosive tooth of acid challenges the purity of gold. It was enough for her that sunny afternoon, and sufficient to her shallow soul, to know that she was safe. She lay warm and restful in her bed while the neighbor women set the house to rights, and the men moved Isom’s body into the parlor to wait for the coffin which Sol Greening had gone after to the county-seat.

Ollie watched the little warm white clouds against the blue of the October sky, and thought of the fleecy soft things which a mother loves to swaddle her baby in; she watched the shadow of falling leaves upon the floor, blowing past her window on the slant sunbeams.

She was safe!

Joe was accused, but she seemed to hold that a trivial incident in an exciting day. It would pass; he would clear himself, as he deserved to be cleared, and then, when Morgan came back for her and carried her away into his world, everything would be in tune.

Perhaps it was because she knew that Joe was innocent that his accusation appeared so untenable and trivial to her. At any rate, the lawyers over at Shelbyville—wasn't their cunning known around the world—could get him off. If it came to that, she would see that he had a good one, as good as money could employ. Joe had stood by her; she would stand by Joe. That was the extent of her concern that afternoon.

It was pleasant to stretch there in peace, with no task before her, no rude summons to arise and work. Isom would call her no more at dawn; his voice would be silent in that house forever more. There was no regret in the thought, no pang, no pain.

As one lives his life, so he must be pitied in death. Soft deeds father soft memories. There never was but one man who rose with the recollection of pleasant dreams from pillowing his head upon a stone, and that man was under the hand of God. Isom Chase had planted bitterness; his memory was gall.

She was safe, and she was free. She had come into her expectations; the pre-nuptial dreams of enjoying Isom Chase's wealth were suddenly at hand.

Together with the old rifle and Isom's blood-stained garments, the coroner had taken away the little bag of gold, to be used as evidence, he said. He had taken the money, just as it was in the little sack, a smear of blood on it, after counting it before witnesses and giving her a receipt for the amount. Two thousand dollars; one hundred pieces of twenty dollars each. That was the tale of the contents of the canvas bag which had lain grinning on Isom's pulseless heart. It was not a great amount of money, considering Isom's faculty for gaining and holding it. It was the general belief that he had ten, twenty, times that amount, besides his loans, hidden

away, and the secret of his hiding-place had gone out of the world with Isom.

Others said that he had put his money into lands, pointing to the many farms which he owned and rented in the county. But be that as it might, there was Ollie, young and handsome, well paid for her hard year as Isom's wife, free now, and doubtless already willing at heart to make some young man happy. Nobody blamed her for that.

It was well known that Isom had abused her, that her life had been cheerless and lonely under his roof. Those who did not know it from first-hand facts believed it on the general notoriety of the man. Contact with Isom Chase had been like sleeping on a corn-husk bed; there was no comfort in it, no matter which way one turned.

Ollie, her eyes closed languidly, now languidly opened to follow the track of the lamb-fleece clouds, her young body feeling warm and pleasant, as if lately released from a sorely cramped state; Ollie, with little fleeting dreams in her pretty, shallow head, was believed by the women of the neighborhood to be in the way of realizing on Isom's expectations of an heir. It was a little fiction that had taken its beginning from Sol Greening's early talk, and owing to that rumor the coroner had been gentle with her beyond the inclination of his heart.

The young widow smiled as she lay on her pillow and thought of the little intimate touches of tenderness which this baseless rumor had made her the beneficiary of at her neighbor's hands. She was selfish enough to take advantage of their mistaken kindnesses and to surrender to their vigorous elbows the work below stairs. That was her day of freedom; it was her dawn of peace.

It was pleasant to have come through stress and hardship to this restful eddy in the storm of life; to have faced peril and disgrace and come away still clean in the eyes of men. Ollie was content with things as they were, as the evening shadows closed the door upon the events of that trying day.

Quite different was the case of Sarah Newbolt, once more back in her poor shelter, nested in bramble and clambering vine. She was dazed, the song was gone out of her heart. She was bereaved, and her lips were moving in endless repetition of supplication to the Almighty for the safety and restoration of her son.

What was this grim thing of which they had accused her Joe? She could not yet get to the bottom of it, she could not understand how men could be so warped and blind. Why, Joe had told them how it happened, he had explained it as clear as well water, but they didn't believe him. She went out and sat on the porch to think it out, if possible, and come to some way of helping Joe. There was not a friend to turn to, not a counselor to lean upon.

She never had felt it lonely in the old place before, for there was companionship even in the memory of her dead, but this evening as she sat on the porch, the familiar objects in the yard growing dim through the oncoming night, the hollowness of desolation was there. Joe was in prison. The neighbors had refused to believe the word of her boy. There was nobody to help him but her. The hand of everybody else was against him. She had delivered him into bondage and brought this trouble to him, and now she must stir herself to set him free.

"It's all my own doin's," said she in unsparing reproach. "My chickens has come to roost."

After nightfall she went into the kitchen where she sat a dreary while before her stove, leaning forward in her unlovely, ruminating pose. Through the open draft of the stove the red coals within it glowed, casting three little bars of light upon the floor. Now and then a stick burned in two and settled down, showering sparks through the grate. These little flashes lit up her brown and somber face, and discovered the slow tears upon her weathered cheeks. For a long time she sat thus, then at last she lifted her head and looked around the room. Her table stood as she had left it in the morning, no food had passed her lips since then. But the frantic turmoil of the first hours after Joe had been led away to jail had quieted.

A plan of action had shaped itself in her mind. In the morning she would go to Shelbyville and seek her husband's old friend, Colonel Henry Price, to solicit his advice and assistance. In a manner comforted by this resolution, she prepared herself a pot of coffee and some food. After the loneliest and most hopeless meal that she ever had eaten in her life, she went to bed.

In the house of Isom Chase, where neighbors sat to watch the night out beside the shrouded body, there was a waste of oil in many lamps, such an illumination that it seemed a wonder that old Isom did not rise up from his gory bed to turn down the wicks and speak reproof. Everybody must have a light. If an errand for the living or a service for the dead called one from this room to that, there must be a light. That was a place of tragic mystery, a

place of violence and death. If light had been lacking there on the deeds of Isom Chase, on his hoardings and hidings away; on the hour of his death and the mystery of it, then all this must be balanced tonight by gleams in every window, beams through every crevice; lamps here, lanterns there, candles in cupboards, cellar, and nook.

Let there be light in the house of Isom Chase, and in the sharp espionage of curious eyes, for dark days hang over it, and the young widow who draws the pity of all because she cannot weep.

No matter how hard a woman's life with a man has been, when he dies she is expected to mourn. That was the standard of fealty and respect in the neighborhood of Isom Chase, as it is in more enlightened communities in other parts of the world. A woman should weep for her man, no matter what bruises on body his heavy hand may leave behind him, or what scars in the heart which no storm of tears can wash away. Custom has made hypocrites of the ladies in this matter the wide world through. Let no man, therefore, lying bloodless and repellent upon his cooling-board, gather comfort to his cold heart when his widow's tears fall upon his face. For she may be weeping more for what might have been than was.

Isom Chase's widow could not weep at all. That was what they said of her, and their pity was more tender, their compassion more sweet. Dry grief, they said. And that is grief like a covered fire, which smolders in the heart and chars the foundations of life. She ought to be crying, to clear her mind and purge herself of the dregs of sorrow, which would settle and corrode unless flushed out by tears; she ought to get rid of it at once, like any other widow, and settle down to the enjoyment of all the property.

The women around Ollie in her room tried to provoke her tears by reference to Isom's good qualities, his widely known honesty, his ceaseless striving to lay up property which he knew he couldn't take with him, which he realized that his young wife would live long years after him to enjoy. They glozed his faults and made virtues out of his close-grained traits; they praised and lamented, with sighs and mournful words, but Isom's widow could not weep.

Ollie wished they would go away and let her sleep. She longed for them to put out the lamps and let the moonlight come in through the window and whiten on the floor, and bring her soft thoughts of Morgan. She chafed under their chatter, and despised them for their shallow pretense. There was not one of them who had respected Isom in life, but now they sat there, a

solemn conclave, great-breasted sucklers of the sons of men, and insisted that she, his unloved, his driven, abused and belabored wife, weep tears for his going, for which, in her heart, she was glad. 160

It was well that they could not see her face, turned into the shadow, nestled against the pillow, moved now and then as by the zephyr breath of a smile. At times she wanted to laugh at their pretense and humbug. To prevent it breaking out in unseemly sound she was obliged to bite the coverlet and let the spasms of mirth waste themselves in her body and limbs.

When the good women beheld these contractions they looked at each other meaningly and shook dolefully wise heads. Dry grief. Already it was laying deep hold on her, racking her like ague. She would waste under the curse of it, and follow Isom to the grave in a little while, if she could not soon be moved to weep.

Ollie did not want to appear unneighborly nor unkind, but as the night wore heavily on she at last requested them to leave her.

“You are all so good and kind!” said she, sincere for the moment, for there was no mistaking that they meant to be. “But I think if you’d take the lamp out of the room I could go to sleep. If I need you, I’ll call.”

“Now, that’s just what you do, deary,” said red-faced Mrs. Greening, patting her head comfortingly.

The women retired to the spare bedroom where Joe had slept the night before, and from there their low voices came to Ollie through the open door. She got up and closed it gently, and ran up the window-blind and opened the window-sash, letting in the wind, standing there a little while drawing her gown aside, for the touch of it on her hot breast. She remembered the day that Joe had seen her so, the churn-dasher in her hand; the recollection of what was pictured in his face provoked a smile.

There was a mist before the moon like a blowing veil, presaging rain tomorrow, the day of the funeral. It was well known in that part of the country that rain on a coffin a certain sign that another of that family would die within a year. Ollie hoped that it would not rain. She was not ready to die within a year, nor many years. Her desire to live was large and deep. She had won the right, Isom had compensated in part for the evil he had done her in leaving behind him all that was necessary to make the journey pleasant. 161

As she turned into her bed again and composed herself for sleep, she thought of Joe, with a feeling of tenderness. She recalled again what Isom had proudly told her of the lad's blood and breeding, and she understood dimly now that there was something extraordinary in Joe's manner of shielding her to his own disgrace and hurt. A common man would not have done that, she knew.

She wondered if Morgan would have done it, if he had been called upon, but the yea or the nay of it did not trouble her. Morgan was secure in her heart without sacrifice.

Well, tomorrow they would bury Isom, and that would end it. Joe would be set free then, she thought, the future would be clear. So reasoning, she went to sleep in peace.

Ollie's habit of early rising during the past year of her busy life made it impossible for her to sleep after daylight. For a while after waking next morning she lay enjoying that new phase of her enfranchisement. From that day forward there would be no need of rising with the dawn. Time was her own now; she could stretch like a lady who has servants to bring and take away, until the sun came into her chamber, if she choose.

Downstairs there were dim sounds of people moving about, and the odors of breakfast were rising. Thinking that it would be well, for the sake of appearances, to go down and assist them, she got up and dressed.

She stopped before the glass to try her hair in a new arrangement, it was such bright hair, she thought, for mourning, but yet as somber as her heart, bringing it a little lower on the brow, in a sweep from the point of parting. The effect was somewhat frivolous for a season of mourning, and she would have to pass through one, she sighed. After a while, when she went out into Morgan's world of laughter and chatter and fine things. She smiled, patting her lively tresses back into their accustomed place.

Ollie was vain of her prettiness, as any woman is, only in her case there was no soul beneath it to give it ballast. Her beauty was pretty much surface comeliness, and it was all there was of her, like a great singer who sometimes is nothing but a voice.

Sol Greening was in the kitchen with his wife and his son's wife and two of the more distant neighbor women who had remained overnight. The other men who had watched with Sol around Isom's bier had gone off to dig a grave for the dead, after the neighborly custom there. As quick as her

thought, Ollie's eyes sought the spot where Isom's blood had stood in the worn plank beside the table. The stain was gone. She drew her breath with freedom, seeing it so, yet wondering how they had done it, for she had heard all her life that the stain of human blood upon a floor could not be scoured away.

"We was just gettin' a bite of breakfast together," said Mrs. Greening, her red face shining, and brighter for its big, friendly smile.

"I was afraid you might not be able to find everything," explained Ollie, "and so I came down."

"No need for you to do that, bless your heart!" Mrs. Greening said. "But we was just talkin' of callin' you. Sol, he run across something last night that we thought you might want to see as soon as you could."

Ollie looked from one to the other of them with a question in her eyes.¹⁶³

"Something—something of mine?" she asked.

Mrs. Greening nodded.

"Something Isom left. Fetch it to her, Sol."

Sol disappeared into the dread parlor where Isom lay, and came back with a large envelope tied about with a blue string, and sealed at the back with wax over the knotted cord.

"It's Isom's will," said Sol, giving it to Ollie. "When we was makin' room to fetch in the coffin and lay Isom out in it last night, we had to move the center table, and the drawer fell out of it. This paper was in there along with a bundle of old tax receipts. As soon as we seen what was on it, we decided it orto be put in your hands as soon as you woke up."

"I didn't know he had a will," said Ollie, turning the envelope in her hands, not knowing what to make of it, or what to do with it, at all.

"Read what's on the in-vellup," advised Sol, standing by importantly, his hands on his hips, his big legs spread out.

Outside the sun was shining, tenderly yellow like a new plant. Ollie marked it with a lifting of relief. There would be no rain on the coffin. It was light enough to read the writing on the envelope where she stood, but she moved over to the window, wondering on the way.

What was a will for but to leave property, and what need had Isom for making one?

It was an old envelope, its edges browned by time, and the ink upon it was gray.

My last Will and Testament. ISOM CHASE.

N. B.—To be opened by John B. Little, in case he is living at the time of my death. If he is not, then this is to be filed by the finder, unopened, in the probate court.

That was the superscription in Isom's writing, correctly spelled, correctly punctuated, after his precise way in all business affairs. 164

"Who is John B. Little?" asked Ollie, her heart seeming to grow small, shrinking from some undefined dread.

"He's Judge Little, of the county court now," said Sol. "I'll go over after him, if you say so."

"After breakfast will do," said Ollie.

She put the envelope on the shelf beside the clock, as if it did not concern her greatly. Yet, under her placid surface she was deeply moved. What need had Isom for making a will?

"It saves a lot of lawin' and wastin' money on costs," said Sol, as if reading her mind and making answer to her thought. "You'll have a right smart of property on your hands to look after for a young girl like you."

Of course, to her. Who else was there for him to will his property to? A right smart, indeed. Sol's words were wise; they quieted her sudden, sharp pain of fear.

Judge Little lived less than a mile away. Before nine o'clock he was there, his black coat down to his knees, for he was a short man and bowed of the legs, his long ends of hair combed over his bald crown.

The judge was at that state of shrinkage when the veins can be counted in the hands of a thin man of his kind. His smoothly shaved face was purple from congestion, the bald place on his small head was red. He was a man who walked about as if wrapped in meditation, and on him rested a notarial air. His arms were almost as long as his legs, his hands were extremely large, lending the impression that they had belonged originally to another and larger man, and that Judge Little must have become possessed of them by some process of delinquency against a debtor. As he walked along his way those immense hands hovered near the skirts of his long coat, the fingers bent, as if to lay hold of that impressive garment and part it. This, together with the judge's meditative appearance, lent him the aspect of always being on the point of sitting down. 165

“Well, well,” said he, sliding his spectacles down his nose to get the reading focus, advancing the sealed envelope, drawing it away again, “so Isom left a will? Not surprising, not surprising. Isom was a careful man, a man of business. I suppose we might as well proceed to open the document?”

The judge was sitting with his thin legs crossed. They hung as close and limp as empty trousers. Around the room he roved his eyes, red, watery, plagued by dust and wind. Greening was there, and his wife. The daughter-in-law had gone home to get ready for the funeral. The other two neighbor women reposed easily on the kitchen chairs, arms tightly folded, backs against the wall.

“You, Mrs. Chase, being the only living person who is likely to have an interest in the will as legatee, are fully aware of the circumstances under which it was found, and so forth and so forth?”

Ollie nodded. There was something in her throat, dry and impeding. She felt that she could not speak.

Judge Little took the envelope by the end, holding it up to the light. He took out his jack-knife and cut the cord.

It was a thin paper that he drew forth, and with little writing on it. Soon Judge Little had made himself master of its contents, with an *Um-m-m*, as he started, and with an *A-h-h!* when he concluded, and a sucking-in of his thin cheeks.

He looked around again, a new brightness in his eyes. But he said nothing. He merely handed the paper to Ollie.

“Read it out loud,” she requested, giving it back.

Judge Little fiddled with his glasses again. Then he adjusted the paper before his eyes like a target, and read:

I hereby will and bequeath to my beloved son, Isom Walker Chase, all of my property, personal and real; and I hereby appoint my friend, John B. Little, administrator of my estate, to serve without bond, until my son shall attain his majority, in case that I should die before that time. This is my last will, and I am in sound mind and bodily health.

That was all.

CHAPTER X

LET HIM HANG

The will was duly signed and witnessed, and bore a notarial seal. It was dated in the hand of the testator, in addition to the acknowledgment of the notary, all regular, and unquestionably done.

“His son!” said Sol, amazed, looking around with big eyes. “Why, Isom he never had no son!”

“Do we know that?” asked Judge Little, as if to raise the question of reasonable doubt.

Son or no son, until that point should be determined he would have the administration of the estate, with large and comfortable fees.

“Well, I’ve lived right there acrost the road from him all my life, and all of his, too; and I reckon I’d purty near know if anybody knowed!” declared Sol. “I went to school with Isom, I was one of the little fellers when he was a big one, and I was at his weddin’. My wife she laid out his first wife, and I dug her grave. She never had no children, judge; you know that as well as anybody.”

Judge Little coughed dryly, thoughtfully, his customary aspect of deep meditation more impressive than ever.

“Sometimes the people we believe we know best turn out to be the ones we know least,” said he. “Maybe we knew only one side of Isom’s life. Every man has his secrets.”

“You mean to say there was another woman somewheres?” asked Sol, taking the scent avidly.

The women against the wall joined Mrs. Greening in a virtuous, scandalized groan. They looked pityingly at Ollie, sitting straight and white in her chair. She did not appear to see them; she was looking at Judge Little with fixed, frightened stare.

“That is not for me to say,” answered the judge; and his manner of saying it seemed to convey the hint that he *could* throw light on Isom’s past if he should unseal his lips.

Ollie took it to be that way. She recalled the words of the will, “My friend, John B. Little.” Isom had never spoken in her hearing that way of

any man. Perhaps there was some bond between the two men, reaching back to the escapades of youth, and maybe Judge Little had the rusty old key to some past romance in Isom's life.

"Laws of mercy!" said Mrs. Greening, freeing a sigh of indignation which surely must have burst her if it had been repressed.

"This document is dated almost thirty years ago," said the judge. "It is possible that Isom left a later will. We must make a search of the premises to determine that."

"In sixty-seven he wrote it," said Sol, "and that was the year he was married. The certificate's hangin' in there on the wall. Before that, Isom he went off to St. Louis to business college a year or two and got all of his learnin' and smart ways. I might 'a' went, too, just as well as not. Always wisht I had."

"Very true, very true," nodded Judge Little, as if to say: "You're on the trail of his iniquities now, Sol."

Sol's mouth gaped like an old-fashioned corn-planter as he looked from the judge to Mrs. Greening, from Mrs. Greening to Ollie. Sol believed the true light of the situation had reached his brain.

"Walker-Isom Walker Chase! No Walkers around in this part of the country to name a boy after-never was."

"His mother was a Walker, from Ellinoi, dunce!" corrected his wife.

"Oh!" said Sol, his scandalous case collapsing about him as quickly as it had puffed up. "I forgot about her."

"Don't you worry about that will, honey," advised Mrs. Greening, going to Ollie and putting her large freckled arm around the young woman's shoulders; "for it won't amount to shucks! Isom never had a son, and even if he did by some woman he wasn't married to, how's he goin' to prove he's the feller?"

Nobody attempted to answer her, and Mrs. Greening accepted that as proof that her argument was indubitable.

"It-can't-be-true!" said Ollie.

"Well, it gits the best of me!" sighed Greening, shaking his uncombed head. "Isom he was too much of a business man to go and try to play off a joke like that on anybody."

"After the funeral I would advise a thorough search among Isom's papers in the chance of finding another and later will than this," said Judge Little.

“And in the meantime, as a legal precaution, merely as a legal precaution and formality, Mrs. Chase—”

The judge stopped, looking at Ollie from beneath the rims of his specs, as if waiting for her permission to proceed. Ollie, understanding nothing at all of what was in his mind, but feeling that it was required of her, nodded. That seemed the signal for which he waited. He proceeded:

“As a legal formality, Mrs. Chase, I will proceed to file this document for probate this afternoon.”

Judge Little put it in his pocket, reaching down into that deep depository until his long arm was engulfed to the elbow. That pocket must have run down to the hem of his garment, like the oil on Aaron’s beard.

Ollie got up. Mrs. Greening hastened to her to offer the support of her motherly arm.

“I think I’ll go upstairs,” said the young widow.

“Yes, you do,” counseled Mrs. Greening. “They’ll be along with the wagons purty soon, and we’ll have to git ready to go. I think they must have the grave done by now.”

The women watched Ollie as she went uncertainly to the stairs and faltered as she climbed upward, shaking their heads forebodingly. Sol and Judge Little went outside together and stood talking by the door.

“Ain’t it terrible!” said one woman.

“Scan’lous!” agreed the other.

Mrs. Greening shook her fist toward the parlor.

“Old sneaky, slinkin’, miserly Isom!” she denounced. “I always felt that he was the kind of a man to do a trick like that. Shootin’ was too good for him—he orto been hung!”

In her room upstairs Ollie, while entirely unaware of Mrs. Greening’s vehement arraignment of Isom, bitterly indorsed it in her heart. She sat on her tossed bed, the sickness of disappointment heavy over her. An hour ago wealth was in her hand, ease was before her, and the future was secure. Now all was torn down and scattered by an old yellow paper which prying, curious, meddlesome old Sol Greening had found. She bent her head upon her hand; tears trickled between her fingers.

Perhaps Isom had a son, unknown to anybody there. There was that period out of his life when he was at business college in St. Louis. No one knew what had taken place in that time. Perhaps he had a son. If so, they

would oust her, turn her out as poor as she came, with the memory of that hard year of servitude in her heart and nothing to compensate for it, not even a tender recollection. How much better if Joe had not come between her and Curtis Morgan that night—what night, how long ago was it now?—how much kinder and happier for her indeed?

With the thought of what Joe had caused of wreckage in her life by his meddling, her resentment rose against him. But for him, slow-mouthed, cold-hearted lout, she would have been safe and happy with Morgan that hour. Old Isom would have been living still, going about his sordid ways as before she came, and the need of his money would have been removed out of her life forever.

Joe was at the bottom of all this—spying, prying, meddling Joe. Let him suffer for it now, said she. If he had kept out of things which he did not understand, the fool! Now let him suffer! Let him hang, if he must hang, as she had heard the women say last night he should. No act of hers, no word—

“The wagons is coming, honey,” said Mrs. Greening at her door. “We must git ready to go to the graveyard now.”

CHAPTER XI

PETER'S SON

Mint grew under the peach-trees in Colonel Henry Price's garden, purple-stemmed mint, with dark-green, tender leaves. It was not the equal of the mint, so the colonel contended with provincial loyalty, which grew back in Kentucky along the clear, cool mountain streams. But, picked early in the morning with the dew on it, and then placed bouquet-wise in a bowl of fresh well-water, to stand thus until needed, it made a very competent substitute for the Kentucky herb.

In that cool autumn weather mint was at its best, and Colonel Price lamented, as he gathered it that morning, elbow-deep in its dewy fragrance, that the need of it was passing with the last blaze of October days.

Yet it was comforting to consider how well-balanced the seasons and men's appetites were. With the passing of the season for mint, the desire for it left the palate. Frosty mornings called for the comfort of hot toddy, wintry blasts for frothing egg-nog in the cup. Man thirsted and nature satisfied; the economy of the world was thus balanced and all was well. So reasoned Colonel Price comfortably, after his way.

Colonel Price straightened up from his mint-picking with dew on his arm and a flush of gathered blood in his cheeks above his beard. He looked the philosopher and humanitarian that he was that morning, his breast-length white beard blowing, his long and thick white hair brushed back in a rising wave from his broad forehead. He was a tall and spare man, slender of hand, small of foot, with the crinkles of past laughter about his eyes, and in his face benevolence. One would have named him a poet at first look, and argued for the contention on further acquaintance.

But Colonel Price was not a poet, except at heart, any more than he was a soldier, save in name. He never had trod the bloody fields of war, but had won his dignified and honorable title in the quiet ways of peace. Colonel Price was nothing less than an artist, who painted many things because they brought him money, and one thing because he loved it and could do it well.

He painted prize-winning heifers and horses; portraits from the faces of men as nature had made them, with more or less fidelity, and from faded

photographs and treasured daguerreotypes of days before and during the war, with whatever embellishments their owners required. He painted plates of apples which had taken prizes at the county fair, and royal pumpkins and kingly swine which had won like high distinctions. But the one thing he painted because he loved it, and could do it better than anybody else, was corn.

At corn Colonel Price stood alone. He painted it in bunches hanging on barn doors, and in disordered heaps in the husk, a gleam of the grain showing here and there; and he painted it shelled from the cob. No matter where or how he painted it, his corn always was ripe and seasoned, like himself, and always so true to nature, color, form, crinkle, wrinkle, and guttered heart, that farmers stood before it marveling.

Colonel Price's heifers might be—very frequently they were—hulky and bumpy and out of proportion, his horses strangely foreshortened and hindlengthened; but there never was any fault to be found with his corn. Corn absolved him of all his sins against animate and inanimate things which had stood before his brush in his long life; corn apotheosized him, corn lifted him to the throne and put the laurel upon his old white locks.

The colonel had lived in Shelbyville for more than thirty years, in the same stately house with its three Ionic pillars reaching from ground to gable, supporting the two balconies facing toward the east. A square away on one hand was the court-house, a square away on the other the Presbyterian church; and around him were the homes of men whom he had seen come there young, and ripen with him in that quiet place. Above him on the hill stood the famous old college, its maples and elms around it, and coming down from it on each side of the broad street which led to its classic door.

Colonel Price turned his thoughts from mint to men as he came across the dewy lawn, his gleanings in his hand, his bare head gleaming in the morning sun. He had heard, the evening before, of the arrest of Peter Newbolt's boy for the murder of Isom Chase, and the news of it had come to him with a disturbing shock, almost as poignant as if one of his own blood had been accused.

The colonel knew the sad story of Peter marrying below his estate away back there in Kentucky long ago. The Newbolts were blue-grass people, entitled to mate with the best in the land. Peter had debased his blood by marrying a mountain girl. Colonel Price had held it always to Peter's credit

that he had been ashamed of his *mésalliance*, and had plunged away into the woods of Missouri with his bride to hide her from the eyes of his aristocratic family and friends.

Back in Kentucky the colonel's family and the Newbolt's had been neighbors. A few years after Peter made his dash across the Mississippi with his bride, and the journey on horseback to his new home, young Price had followed, drawn to Shelbyville by the fame of that place at a seat of culture and knowledge, which even in that early day had spread afar. The colonel—not having won his title then—came across the river with his easel under one arm and his pride under the other. He had kept both of them in honor all those years.

On the hopes and ambitions of those early days the colonel had realized, in a small way, something in the measure of a man who sets to work with the intention of making a million and finds himself content at last to count his gains by hundreds. He had taken up politics as a spice to the placid life of art, and once had represented his district in the state assembly, and four times had been elected county clerk. Then he had retired on his honors, with a competence from his early investments and an undivided ambition to paint corn.

Through all those years he had watched the struggles of Peter Newbolt, who never seemed able to kick a foothold in the steps of success, and he had seen him die at last, with his unrealized schemes of life around him. And now Peter's boy was in jail, charged with slaying old Isom Chase. Death had its compensations, at the worst, reflected the colonel. It had spared Peter this crowning disgrace.

That boy must be a throw-back, thought the colonel, to the ambuscading, feud-fighting men on his mother's side. The Newbolts never had been accused of crime back in Kentucky. There they had been the legislators, the judges, the governors, and senators. Yes, thought the colonel, coming around the corner of the house, lifting the fragrant bunch of mint to his face and pausing a step while he drank its breath; yes, the boy must be a throw-back. It wasn't in the Newbolt blood to do a thing like that.

The colonel heard the front gate close sharply, drawn to by the stone weight which he had arranged for that purpose, having in mind the guarding of his mint-bed from the incursions of dogs. He wondered who could be coming in so early, and hastened forward to see. A woman was coming up the walk toward the house.

She was tall, and soberly clad, and wore a little shawl over her head, which she held at her chin with one hand. The other hand she extended toward the colonel with a gesture of self-depreciation and appeal as she hurried forward in long strides.

“Colonel Price, Colonel Price, sir! Can I speak to you a minute?” she asked, her voice halting from the shortness of breath.

“Certainly, ma’am; I am at your command,” said the colonel.

“Colonel, you don’t know me,” said she, a little inflection of disappointment in her tone.

She stood before him, and the little shawl over her hair fell back to her shoulders. Her clothing was poor, her feet were covered with dust. She cast her hand out again in that little movement of appeal.

“Mrs. Newbolt, Peter Newbolt’s widow, upon my soul!” exclaimed the colonel, shocked by his own slow recognition. “I beg your pardon, madam. I didn’t know you at first, it has been so long since I saw you. But I was thinking of you only the minute past.”

“Oh, I’m in such trouble, Colonel Price!” said she.

Colonel Price took her by the arm with tender friendliness.

“Come in and rest and refresh yourself,” said he. “You surely didn’t walk over here?”

“Yes, it’s only a step,” said she.

“Five or six miles, I should say,” ventured the colonel.

“Oh, no, only four. Have you heard about my boy Joe?”

The colonel admitted that he had heard of his arrest.

“I’ve come over to ask your advice on what to do,” said she, “and I hope it won’t bother you much, Colonel Price. Joe and me we haven’t got a friend in this world!”

“I will consider it a duty and a pleasure to assist the boy in any way I can,” said the colonel in perfunctory form. “But first come in, have some breakfast, and then we’ll talk it over. I’ll have to apologize for Miss Price. I’m afraid she’s abed yet,” said he, opening the door, showing his visitor into the parlor.

“I’m awful early,” said Mrs. Newbolt hesitating at the door. “It’s shameful to come around disturbin’ folks at this hour. But when a body’s in trouble, Colonel Price, time seems long.”

"It's the same with all of us," said he. "But Miss Price will be down presently. I think I hear her now. Just step in, ma'am."

She looked deprecatingly at her dusty shoes, standing there in the parlor door, her skirts gathered back from them.

"If I could wipe some of this dust off," said she.

"Never mind that; we are all made of it," the colonel said. "I'll have the woman set you out some breakfast; afterward we'll talk about the boy."

"I thank you kindly, Colonel Price, but I already et, long ago, what little I had stomach for," said she.

"Then if you will excuse me for a moment, madam?" begged the colonel, seeing her seated stiffly in an upholstered chair.

She half rose in acknowledgment of his bow, awkward and embarrassed.

"You're excusable, sir," said she.

The colonel dashed away down the hall. She was only a mountain woman, certainly, but she was a lady by virtue of having been a gentleman's wife. And she had caught him without a coat!

Mrs. Newbolt sat stiffly in the parlor in surroundings which were of the first magnitude of grandeur to her, with corn pictures adorning the walls along with some of the colonel's early transgressions in landscapes, and the portraits of colonels in the family line who had gone before. That was the kind of fixings Joe would like, thought she, nodding her serious head; just the kind of things that Joe would enjoy and understand, like a gentleman born to it.

"Well, he comes by it honest," said she aloud.

Colonel Price did not keep her waiting long. He came back in a black coat that was quite as grand as Judge Little's, and almost as long. That garment was the mark of fashion and gentility in that part of the country in those days, a style that has outlived many of the hearty old gentlemen who did it honor, and has descended even to this day with their sons.

"My son's innocent of what they lay to him, Colonel Price," said Mrs. Newbolt, with impressive dignity which lifted her immediately in the colonel's regard.

Even an inferior woman could not associate with a superior man that long without some of his gentility passing to her, thought he. Colonel Price inclined his head gravely.

“Madam, Peter Newbolt’s son never would commit a crime, much less the crime of murder,” he said, yet with more sincerity in his words, perhaps, than lay in his heart.

“I only ask you to hold back your decision on him till you can learn the truth,” said she, unconsciously passing over the colonel’s declaration of confidence. “You don’t remember Joe maybe, for he was only a little shaver the last time you stopped at our house when you was canvassin’ for office. That’s been ten or ’leven—maybe more—years ago. Joe, he’s growed considerable since then.”

“They do, they shoot up,” said the colonel encouragingly.

“Yes; but Joe he’s nothing like me. He runs after his father’s side of the family, and he’s a great big man in size now, Colonel Price; but he’s as soft at heart as a dove.”

So she talked on, telling him what she knew. When she had finished laying the case of Joe before him, the colonel sat thinking it over a bit, ¹⁷⁸one hand in his beard, his head slightly bowed. Mrs. Newbolt watched him with anxious eyes. Presently he looked at her and smiled. A great load of uncertainty went up from her heart in a sigh.

“The first thing to do is to get him a lawyer, and the best one we can nail,” the colonel said.

She nodded, her face losing its worried tension.

“And the next thing is for Joe to make a clean breast of everything, holding back nothing that took place between him and Isom that night.”

“I’ll tell him to do it,” said she eagerly, “and I know he will when I tell him you said he must.”

“I’ll go over to the sheriff’s with you and see him,” said the colonel, avoiding the use of the word “jail” with a delicacy that was his own.

“I’m beholden to you, Colonel Price, for all your great kindness,” said she.

There had been no delay in the matter of returning an indictment against Joe. The grand jury was in session at that time, opportunely for all concerned, and on the day that Joe was taken to the county jail the case was laid before that body by the prosecuting attorney. Before the grand jury adjourned that day’s business a true bill had been returned against Joe Newbolt, charging him with the murder of Isom Chase.

There was in Shelbyville at that time a lawyer who had mounted to his profession like a conqueror, over the heads of his fellow-townsmen as stepping-stones. Perhaps it would be nearer the mark to say that the chins of the men of Shelbyville were the rungs in this ladder, for the lawyer had risen from the barber's chair. He had shaved and sheared his way from that ancient trade, in which he had been respected as an able hand, to the equally ancient profession, in which he was cutting a rather ludicrous and lumbering figure. 179

But he had that enterprise and lack of modesty which has lately become the fashion among young lawyers—and is spreading fast among the old ones, too—which carried him into places and cases where simply learning would have left him without a brief. If a case did not come to Lawyer Hammer, Lawyer Hammer went to the case, laid hold of it by force, and took possession of it as a kidnaper carries off a child.

Hammer was a forerunner of the type of lawyer so common in our centers of population today, such as one sees chasing ambulances through the streets with a business-card in one hand and a contract in the other; such as arrives at the scene of wreck, fire, and accident along with the undertaker, and always ahead of the doctors and police.

Hammer had his nose in the wind the minute that Constable Frost came into town with his prisoner. Before Joe had been in jail an hour he had engaged himself to defend that unsophisticated youngster, and had drawn from him an order on Mrs. Newbolt for twenty-five dollars. He had demanded fifty as his retainer, but Joe knew that his mother had but twenty-five dollars saved out of his wages, and no more. He would not budge a cent beyond that amount.

So, as Mrs. Newbolt and Colonel Price approached the jail that morning, they beheld the sheriff and Lawyer Hammer coming down the steps of the county prison, and between them Joe, like *Eugene Aram*, “with gyves upon his wrists.” The sheriff was taking Joe out to arraign him before the circuit judge to plead to the indictment.

The court convened in that same building where all the county's business was centered, and there was no necessity for taking the prisoner out through one door and in at another, for there was a passage from cells to court-rooms. But if he had taken Joe that way, the sheriff would have lost a seldom-presented opportunity of showing himself on the streets in charge of 180

a prisoner accused of homicide, to say nothing of the grand opening for the use of his ancient wrist-irons.

Lawyer Hammer also enjoyed his distinction in that short march. He leaned over and whispered in his client's ear, so that there would be no doubt left in the public understanding of his relations to the prisoner, and he took Joe's arm and added his physical support to his legal as they descended the steps.

Mrs. Newbolt was painfully shocked by the sight of the irons on Joe's wrists. She groaned as if they clamped the flesh of her own.

"Oh, they didn't need to do that," she moaned.

Joe doubtless heard her, for he lifted his face and ran his eyes through the crowd which had gathered. When he found her he smiled. That was the first look Colonel Price ever had taken into the lad's face.

"No," said he, answering her anguished outbreak with a fervency that came from his heart, "there was no need of that at all."

They followed the sheriff and his charge into the court-room, where Mrs. Newbolt introduced Colonel Price to her son. While Joe and his mother sat in whispered conversation at the attorney's table, the colonel studied the youth's countenance.

He had expected to meet a weak-faced, bony-necked, shock-headed type of gangling youngster such as ranged the Kentucky hills in his own boyhood. At best he had hoped for nothing more than a slow-headed, tobacco-chewing rascal with dodging, animal eyes. The colonel's pleasure, then, both as an artist and an honest man, was great on beholding this unusual face, strong and clear, as inflexible in its molded lines of high purpose and valiant deeds as a carving in Flemish oak. 181

Here was the Peter Newbolt of long ago, remodeled in a stronger cast, with more nobility in his brow, more promise in his long, bony jaw. Here was no boy at all, but a man, full-founded and rugged, and as honest as daylight, the colonel knew.

Colonel Price was prepared to believe whatever that young fellow might say, and to maintain it before the world. He was at once troubled to see Hammer mixed up in the case, for he detested Hammer as a plebeian smelling of grease, who had shouldered his unwelcome person into a company of his betters, which he could neither dignify nor grace.

The proceedings in court were brief. Joe stood, upon the reading of the long, rambling information by the prosecuting attorney, and entered a calm and dignified plea of not guilty. He was held without bond for trial two weeks from that day.

In the sheriff's office Mrs. Newbolt and the colonel sat with Joe, his wrists free from the humiliating irons, and talked the situation over. Hammer was waiting on the outside. Colonel Price having waved him away, not considering for a moment the lowering of himself to include Hammer in the conference.

The colonel found that he could not fall into an easy, advisory attitude with Joe. He could not even suggest what he had so strongly recommended to Mrs. Newbolt before meeting her son—that he make a clean breast of all that took place between himself and Isom Chase before the tragedy. Colonel Price felt that he would be taking an offensive and unwarranted liberty in offering any advice at all on that head. Whatever his reasons for concealment and silence were, the colonel told himself, the young man would be found in the end justified; or if there was a revelation to be made, then he would make it at the proper time without being pressed. Of that the colonel felt sure. A gentleman could be trusted.

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But there was another matter upon which the colonel had no scruples of silence, and that was the subject of the attorney upon whom Joe had settled to conduct his affairs.

"That man Hammer is not, to say the least, the very best lawyer in Shelbyville," said he.

"No, I don't suppose he is," allowed Joe.

"Now, I believe in you, Joe, as strong as any man can believe in another—"

"Thank you, sir," said Joe, lifting his solemn eyes to the colonel's face. The colonel nodded his acknowledgment.

"But, no matter how innocent you are, you've got to stand trial on this outrageous charge, and the county attorney he's a hard and unsparing man. You'll need brains on your side as well as innocence, for innocence alone seldom gets a man off. And I'm sorry to tell you, son, that Jeff Hammer hasn't got the brains you'll need in your lawyer. He never did have 'em, and he never will have 'em—never in this mortal world!"

“I thought he seemed kind of sharp,” said Joe, coloring a little at the colonel’s implied charge that he had been taken in.

“He is sharp,” admitted the colonel, “but that’s all there is to him. He can wiggle and squirm like a snake; but he’s got no dignity, and no learnin’, and what he don’t know about law would make a book bigger than the biggest dictionary you ever saw.”

“Land’s sake!” said Mrs. Newbolt, lifting up her hands despairingly.

“Oh, I guess he’ll do, Colonel Price,” said Joe.

“My advice would be to turn him out and put somebody else in his place, one of the old, respectable heads of the profession here, like Judge Burns.”

“I wouldn’t like to do that, colonel,” said Joe.

“Well, we’ll see how he behaves,” the colonel yielded, seeing that Joe felt in honor bound to Hammer, now that he had engaged him. “We can put somebody else in if he goes to cuttin’ up too many didoes and capers.”

Joe agreed that they could, and gave his mother a great deal of comfort and assurance by his cheerful way of facing what lay ahead of him. He told her not to worry on his account, and not to come too often and wear herself out in the long walk.

“Look after the chickens and things, Mother,” said he, “and I’ll be out of here in two weeks to help you along. There’s ten dollars coming to you from Isom’s; you collect that and buy yourself some things.”

He told her of the order that he had given Hammer for the retaining fee, and asked her to take it up.

“I’ll make it up to you, Mother, when I get this thing settled and can go to work again,” said he.

Tears came into her eyes, but no trace of emotion was to be marked by any change in her immobile face.

“Lord bless you, son, it all belongs to you!” she said.

“Do you care about reading?” the colonel inquired, scarcely supposing that he did, considering the chances which had been his for development in that way.

Mrs. Newbolt answered for Joe, who was slow and deliberative of speech, and always stopped to weigh his answer to a question, no matter how obvious the reply must be.

“Oh, Colonel Price, if you could see him!” said she proudly. “Before he was ten years old he’d read the *Cottage Encyclopedia* and the *Imitation* and

the Bible—from back to back!”

“Well, I’m glad to hear you’re of a studious mind,” said the colonel.

As often as Joe had heard his mother boast of his achievements with those three notable books, he had not yet grown hardened to it. It always gave him a feeling of foolishness, and drowned him in blushes. Now it required some time for him to disentangle himself, but presently he looked at the colonel with a queer smile, as he said:

“Mother always tells that on me.”

“It’s nothing to be ashamed of,” comforted the colonel, marking his confusion.

“And all the books he’s borrowed since then!” said she, conveying a sense of magnitude by the stress of her expression. “He strained his eyes so when he was seventeen readin’ Shuckspur’s writings that the teacher let him have I thought he’d have to put on specs.”

“My daughter and I have a considerable number of books,” said the colonel, beginning to feel about for a bit more elegance in his method of expression, as a thing due from one man of culture to another, “and if you will express your desires I’m sure we shall be glad to supply you if the scope of our library permits.”

Joe thanked him for the offer, that strange little smile coming over his face again.

“It wouldn’t take much of a library, Colonel Price, to have a great many books in it that I’ve never read,” said he. “I haven’t been easy enough in my mind since this thing came up to think about reading—I’ve got a book in my pocket that I’d forgotten all about until you mentioned books.” He lifted the skirt of his short coat, his pocket bulging from the volume wedged into it. “I’ll have a job getting it out, too,” said he.

“It don’t seem to be a very heavy volume,” smiled the colonel. “What work is it?”

“It’s the Book,” said Joe.

Colonel Price laid his hand on the lad’s shoulder and looked him straight in the face.

“Then you’ve got by you the sum and substance of all knowledge, and the beginning and the end of all philosophy,” said he. “With that work in your hand you need no other, for it’s the father of all books.”

"I've thought that way about it myself sometimes," said Joe, as easy and confident in his manner with the colonel, who represented a world to which he was a stranger from actual contact, as a good swimmer in water beyond his depth.

"But if you happen to be coming over this way in a day or two you might stop in if it wouldn't trouble you, and I could name over to you a few books that I've been wanting to read for a long time."

"I intend to lighten your brief period of confinement as much as it is in my power to do," declared the colonel, "and I can speak for my daughter when I say that she will share my anxiety to make you as comfortable as human hands can make you in this place, Joe. We'll come over and cheer you every little while."

Mrs. Newbolt had sat by, like one who had been left behind at a way-station by an express-train, while the colonel and Joe had talked. They had gone beyond her limited powers; there was nothing for her to do but wait for them to come back. Now the colonel had reached her point of contact again.

"You'll be rewarded for your kindness to the widow's son," said she, nodding her head earnestly, tears shining in her eyes.

When he was leaving, Colonel Price felt that he must make one more effort to induce Joe to discharge Hammer and put his case into the hands of a more competent man. Joe was firm in his determination to give Hammer a chance. He was a little sensitive on the matter under the rind, the colonel could see.

"If I was to hire the best lawyer I could find, Colonel Price, people would say then that I was guilty, sure enough," said Joe. "They'd say I was depending more on the lawyer than myself to come clear. Well, colonel, you know that isn't the case."

That seemed to settle it, at least for the present. The colonel summoned the sheriff, who took Joe to his cell. As the colonel and Mrs. Newbolt passed out, Attorney Hammer appeared, presenting his order for the money.

Mrs. Newbolt carried her savings with her. When she had paid Hammer she had sixty cents left in her calloused palm.

"That's egg money," said she, tying it in the corner of her handkerchief. "Oh, colonel, I forgot to ask the sheriff, but do you reckon they'll give my Joe enough to eat?"

“I’ll see to that,” said Hammer officiously.

Hammer was a large, soft man in an alpaca-coat and white shirt without a collar. His hair was very black and exceedingly greasy, and brushed down upon his skull until it glittered, catching every ray of light in his vicinity like a bucket of oil. He walked in long strides, with a sliding motion of the feet, and carried his hands with the palms turned outward, as if ready instantly to close upon any case, fee, or emolument which came in passing contact with him, even though it might be on its way to somebody else.

Mrs. Newbolt was not unfavorably impressed with him, for he seemed very officious and altogether domineering in the presence of the sheriff, but her opinion may have been influenced perhaps by Joe’s determination to have him whether or no. She thanked him for his promise of good offices in Joe’s behalf, and he took her arm and impeded her greatly in her progress down the steps.

After Mrs. Newbolt had taken some refreshment in the colonel’s house, she prepared to return home.

“If I had a hoss, madam,” said the colonel, “I’d hitch up and carry you home. But I don’t own a hoss, and I haven’t owned one for nine years, since the city grew up so around me I had to sell off my land to keep the taxes from eatin’ me up. If I did own a hoss now,” he laughed, “I’d have no place to keep him except under the bed, like they do the houn’-dogs back in Kentucky.”

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She made light of the walk, for Joe’s bright and sanguine carriage had lightened her sorrow. She had hope to walk home with, and no wayfarer ever traveled in more pleasant company.

The colonel and his daughter pressed her to make their home her resting-place when in town, even inviting her to take up her abode there until the trial. This generous hospitality she could not accept on account of the “critters” at home which needed her daily care, and the eggs which had to be gathered and saved and sold, all against the happy day when her boy Joe would walk out free and clear from the door of the county jail.

CHAPTER XII

THE SUNBEAM ON THE WALL

The sheriff was a mild-mannered man, whose head was shaped like the end of a watermelon. His hair was close-cut and very thin at the top, due to the fact that all the nourishing substances both inside and outside his head, or any way appertaining thereto, went into the maintenance of the sheriff's mustache, which was at least twice as large as Bill Frost's.

This, of course, was as it should have been, for even the poorest kind of a sheriff is more than twice as important as the very best sort of constable. In those days it was the custom for sheriffs in that part of the country to train up these prodigious mustaches, perhaps in the belief that such adornments lent them the appearance of competence and valor, of which endowments nature had given them no other testimonial. In any event it is known that many a two-inch sheriff took his stand behind an eight-inch mustache, and walked boldly in the honor of his constituents.

The sheriff of Shelbyville was a type of this class, both in mental depth and facial adornment. He was exceedingly jealous of his power, and it was his belief that too many liberties permitted a prisoner, and too many favors shown, acted in contravention of the law's intent as interpreted by the prosecuting attorney; namely, that a person under the cloud of accusation should be treated as guilty until able to prove himself innocent. Therefore the sheriff would not allow Joe Newbolt to leave his cell to meet visitors after his arraignment.

The meeting between the prisoner and his mother in the office of the jail was to be the last of that sort; all who came in future must see him at the door of his cell. That was the rule laid down to Joe when he parted from his mother and Colonel Price that day.

As a cell in a prison-house, perhaps Joe's place of confinement was fairly comfortable. It was situated in the basement of the old court-house, where there was at least light enough to contemplate one's misery by, and sufficient air to set one longing for the fields. There was but one other prisoner, a horse-thief, waiting for trial.

This loquacious fellow, who was lodged directly across the corridor, took great pains to let Joe see the admiration and esteem in which he held him on account of the distinguished charge under which he was confined. He annoyed Joe to such extent that he asked the sheriff that evening to shift them about if possible.

“Well, I’ll move him if you say so, but I left him there because I thought he’d be company for you,” said the sheriff. “I don’t mind talkin’ in this jail when there’s no more than two in it.”

“I don’t want to talk,” said Joe.

So the horse-thief was removed to the farther end of the corridor, where he kept up a knocking on the bars of his cell during the early hours of the night, and then turned off his diversion by imitating the sound of a saw on steel, which he could do with his tongue against his teeth with such realism as to bring the sheriff down in his nightshirt, with a lantern in one hand and a shotgun in the other.

Joe’s second night in jail passed very much like the first, when they had brought him there all bewildered and dazed. There was a grated window in the wall above his reach, through which he could see the branches of an elm-tree, blowing bare of leaves; beyond that a bit of sky. Joe sat on the edge of his cot that second night a long time after the stars came out, gazing up at the bar-broken bit of sky, reviewing the events leading up to his situation.

There was no resentment in him against the jury of his neighbors whose finding had sent him to jail under the cloud of that terrible accusation; he harbored no ill-feeling for the busy, prying little coroner, who had questioned him so impertinently. There was one person alone, in the whole world of men, to blame, and that was Curtis Morgan. He could not have been far away on the day of the inquest; news of the tragic outcome of Ollie’s attempt to join him must have traveled to his ears.

Yet he had not come forward to take the load of suspicion from Joe’s shoulders by confessing the treacherous thing that he had plotted. He need not have revealed the complete story of his trespass upon the honor of Isom Chase, thought Joe; he could have saved Ollie’s name before the neighbors; and yet relieved Joe of all suspicion. Now that Isom was dead, he could have married her. But Morgan had not come. He was a coward as well as a rascal. It was more than likely that, in fear of being found out, he had fled away.

And suppose that he never came back; suppose that Ollie should not elect to stand forth and explain the hidden part of that night's tragedy? She could not be expected, within reason, to do this. Even the thought that she might weaken and do so was abhorrent to Joe. It was not a woman's part to make a sacrifice like that; the world did not expect it of her. It rested with Morgan, the traitor to hospitality; Morgan, the ingratiating scoundrel, to come forward and set him free. Morgan alone could act honorably in that clouded case; but if he should elect to remain hidden and silent, who would be left to answer but Joe Newbolt?

And should he reveal the thing that would bring him liberty? Was freedom more precious than his honor, and the honor of a poor, shrinking, deluded woman?

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No. He was bound by a gentleman's obligation; self-assumed, self-appointed. He could not tell.

But what a terrible situation, what an awful outlook for him in such event! They hung men for murder on the jail-yard gallows, with a knot of rope behind the left ear and a black cap over the face. And such a death left a stain upon the name that nothing would purify. It was an attainder upon generations unborn.

Joe walked his cell in the agony of his sudden and acute understanding of the desperate length to which this thing might carry him. Hammer had protested, with much show of certainty, that he would get him off without much difficulty. But perhaps Hammer was counting on him to reveal what he had kept to himself at the inquest. What should he do about that in his relations with Hammer? Should he tell him about Morgan, and have him set men on his track to drag him back and make him tell the truth? Granting that they found him, who was there to make him speak?

Could not Morgan and Ollie, to cover their own shame and blame, form a pact of silence or denial and turn back his good intentions in the form of condemnation upon his own head? How improbable and unworthy of belief his tale, with its reservations and evasions, would sound to a jury with Morgan and Ollie silent.

The fright of his situation made him feverish; he felt that he could tear at the walls with his hands, and scream, and scream until his heart would burst. He was unmanned there in the dark. He began to realize this finally after his frenzy had thrown him into a fever. He gave over his pacing of the little cell, and sat down again to reason and plan.

Hammer had made so much talk about the papers which he would get ready that Joe had been considerably impressed. He saw now that it would require something more than papers to make people understand that he had a gentleman's reason, and not a thief's, for concealing what they had pressed him to reveal.

There was a woman first, and that was about all that Joe could make of the situation up to that time. She must be protected, even though unworthy. None knew of that taint upon her but himself and the fugitive author of it, but Joe could not bring himself to contemplate liberty bought at the price of her public degradation. This conclusion refreshed him, and dispelled the phantoms from his hot brain.

After the sounds of the town had fallen quiet, and the knocking of feet on the pavement along his prison wall had ceased, Joe slept. He woke steady, and himself again, long before he could see the sun, yellow on the boughs of the elm-tree.

The sheriff furnished him a piece of comb, and he smoothed his hair by guess, a desperate character, such as he was accounted by the officer, not being allowed the luxury of a mirror. One might lick the quicksilver from the back of a mirror, or open an artery with a fragment of it, or even pound the glass and swallow it. Almost anything was nicer than hanging, so the sheriff said.

Scant as the food had been at Isom's until his revolt had forced a revision of the old man's lifelong standard, Joe felt that morning after his second jail breakfast that he would have welcomed even a hog-jowl and beans. The sheriff was allowed but forty cents a day for the maintenance of each prisoner, and, counting out the twenty-five cents profit which he felt as a politician in good standing to be his due, the prisoners' picking was very lean indeed.

That morning Joe's breakfast had been corn-pone, cold, with no lubricant to ease it down the lane. There had been a certain squeamish liquid in addition, which gave off the smell of a burning straw-stack, served in a large tin cup. Joe had not tasted it, but his nose had told him that it was "wheat coffee," a brew which his mother had made sometimes in the old days of their darkest adversity.

Joe knew from the experience of the previous day that there would be nothing more offered to fortify the stomach until evening. The horse-thief called up from his end of the jail, asking Joe how he liked the fare.

Reserved as Joe was disposed to be toward him, he expressed himself somewhat fully on the subject of the sheriff's cuisine. The horse-thief suggested a petition to the county court or a letter to the sheriff's political opponent. He said that his experience in jails had been that a complaint on the food along about election time always brought good results. Joe was not interested in the matter to that extent. He told the fellow that he did not expect to be a permanent occupant of the jail.

"You think you'll go down the river for a double-nine?" he asked.

"I don't know what you mean," said Joe.

"To the pen for life, kid; that's what I mean."

"I don't know," said Joe gloomily.

"Well, say, I tell you, if they give you the other," said the friendly thief, lifting his naturally high voice to make it carry along the echoing passage, "you'll git plenty to eat, and three times a day, too. When they put a feller in the death-cell they pass in the finest chuck in the land. You know, if a feller's got a smart lawyer he can keep up that line of eatin' for maybe two or three years by appealin' his case and dodges like that."

"I don't want to talk," said Joe.

"Oh, all right, kid," said the thief flippantly. Then he rattled his grated door to draw Joe's attention.

"But, 'y God, kid, the day's comin' to you when you will want to talk, and when you'd give the teeth out of your mouth, and nearly the eyes out of your head, for the sound of a friendly human voice aimed at you. Let 'em take you off down the river to Jeff' City and put you behind them tall walls once, where the best you hear's a cuss from a guard, and where you march along with your hands on the shoulders of the man in front of you; and another one behind you does the same to you, and their eyes all down and their faces the color of corpses, and *then* you'll know!

"You'll hear them old fellers, them long-timers, whisperin' in the night, talkin' to theirselves, and it'll sound to you like wind in the grass. And you'll think of grass and trees and things like that on the outside, and you'll feel like you want to ram your head ag'in' the wall and yell. Maybe you'll do it—plenty of 'em does—and then they'll give you the water-cure, they'll force it down you with a hose till you think you'll bust. I tell you, kid, I *know*, 'y God! I've been there—but not for no double-nine like they'll give you."

The man's voice seemed to be hanging and sounding yet in the corridor, even after he was silent, his cruel picture standing in distorted fancy before Joe's eyes. Joe wiped the sweat from his forehead, breathing through his open mouth.

"Well, maybe they won't, though," said the fellow, resuming as if after considering it, "maybe they'll give you the quick and painless, I don't know."

Joe had been standing at his cell door, drawn to listen to the lecture of his fellow prisoner, terrible, hopeless, as it sounded in his ears. Now he sat on his bedside again, feeling that this was indeed a true forecast of his own doom. The sun seemed already shut out from him in the morning of his day, the prison silence settling, never to be broken again in those shadows where shuffling men filed by, with eyes downcast and faces gray, like the faces of the dead.

Life without liberty would be a barren field, he knew; but liberty without honor would yield no sweeter fruit. And who was there in the world of honorable men to respect a coward who had saved his own skin from the fire by stripping a frail woman's back to the brand? A gentleman couldn't do it, said Joe, at the end, coming back from his sweating race with fear to the starting-place, a good deal cooled, not a little ashamed.

Let them use him as they might; he would stand by his first position in the matter. He would have to keep on lying, as he had begun; but it would be repeating an honorable lie, and no man ever went to hell for that.

The sun was coming through the high cell window, broadening its oblique beam upon the wall. Looking up at it, Joe thought that it must be mid-morning. Now that his panic was past, his stomach began to make a gnawing and insistent demand for food. Many a heavy hour must march by, thought he, before the sheriff came with his beggarly portion. He felt that in case he should be called upon to endure imprisonment long he must fall away to a skeleton and die.

In his end of the corridor the horse-thief was still, and Joe was glad of it. No matter how earnestly he might come to desire the sound of a human voice in time, he did not want to hear the horse-thief's then, nor any other that prophesied such disquieting things.

There was a barred gate across the corridor at the foot of the stairs which led up to the sheriff's office. Joe's heart jumped with the hope that it was

his mother coming when he heard the key in the lock and voices at the grating.

“Right down there, to the right,” the sheriff was directing. “When you want to leave just come here and rattle the lock. I can’t take no chances bringin’ such desperate fellers as him up to the office, colonel. You can see that as well as me.”

What Colonel Price replied Joe could not hear, for his low-modulated voice of culture was like velvet beside a horse-blanket compared to the sheriff’s.

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“I’m over on this side, colonel, sir,” said Joe before he could see him.

And then the colonel stepped into the light which came through the cell window, bringing with him one who seemed as fair to Joe in that somber place as the bright creatures who stood before Jacob in Bethel that night he slept with his head upon a stone.

“This is my daughter,” said Colonel Price. “We called in to kind of cheer you up.”

She offered Joe her hand between the bars; his went forward to meet it gropingly, for it lacked the guidance of his eyes.

Joe was honey-bound, like an eager bee in the heart of some great golden flower, tangled and leashed in a thousand strands of her hair. The lone sunbeam of his prison had slipped beyond the lintel of his low door, as if it had timed its coming to welcome her, and now it lay like a hand in benediction above her brow.

Her hair was as brown as wild honey; a golden glint lay in it here and there under the sun, like the honeycomb. A smile kindled in her brown eyes as she looked at him, and ran out to the corners of them in little crinkles, then moved slowly upon her lips. Her face was quick with the eagerness of youth, and she was tall.

“I’m surely beholden to you, Miss Price, for this favor,” said Joe, lapsing into the Kentucky mode of speech, “and I’m ashamed to be caught in such a place as this.”

“You have nothing to be ashamed of,” said she; “we know you are innocent.”

“Thank you kindly, Miss Price,” said he with quaint, old courtesy that came to him from some cavalier of Cromwell’s day.

“I thought you’d better meet Alice,” explained the colonel, “and get acquainted with her, for young people have tastes in common that old codgers like me have outgrown. She might see some way that I would overlook to make you more comfortable here during the time you will be obliged to wait.”

“Yes, sir,” said Joe, hearing the colonel’s voice, but not making much out of what he was saying.

He was thinking that out of the gloom of his late cogitations she had come, like hope hastening to refute the argument of the horse-thief. His case could not be so despairing with one like her believing in him. It was a matter beyond a person such as a horse-thief, of course. One of a finer nature could understand.

“Father spoke of some books,” she ventured; “if you will—”

Her voice was checked suddenly by a sound which rose out of the farther end of the corridor and made her start and clutch her father’s arm. Joe pressed his face against the bars and looked along at his fellow prisoner, who was dragging his tin cup over the bars of his cell door with rapid strokes.

When the thief saw that he had drawn the attention of the visitors, he thrust his arm out and beckoned to the colonel. “Mister, I want to ask you to do me a little turn of a favor,” he begged in a voice new to Joe, so full of anguish, so tremulous and weak. “I want you to carry out to the world and put in the papers the last message of a dyin’ man!”

“What’s the matter with you, you poor wretch?” asked the colonel, moved to pity.

“Don’t pay any attention to him,” advised Joe; “he’s only acting up. He’s as strong as I am. I think he wants to beg from you.”

The colonel turned away from him to resume his conference with Joe, and the horse-thief once more rattled his cup across the bars.

“That noise is very annoying,” said the colonel, turning to the man tartly. “Stop it now, before I call the sheriff!”

“Friend, it’s a starvin’ man that’s appealin’ to you,” said the prisoner, “it’s a man that ain’t had a full meal in three weeks. Ask that gentleman what we git here, let him tell you what this here sheriff that’s up for election agin serves to us poor fellers. Corn dodger for breakfast, so cold you could keep

fish on it, and as hard as the rocks in this wall! That's what we git, and that's all we git. Ask your friend."

"Is he telling the truth?" asked the colonel, looking curiously at Joe.

"I'm afraid he is, colonel, sir."

"I'll talk to him," said the colonel.

In a moment he was listening to the horse-thief's earnest relation of the hardships which he had suffered in the Shelbyville jail, and Joe and Alice were standing face to face, with less than a yard's space between them, but a barrier there as insuperable as an alp.

He wanted to say something to cause her to speak again, for her low voice was as wonderful to him as the sound of some strange instrument moved to unexpected music by a touch in the dark. He saw her looking down the corridor, and swiftly around her, as if afraid of what lay in the shadows of the cells, afraid of the memories of old crimes which they held, and the lingering recollection of the men they had contained.

"He'll not do any harm, don't be afraid," said he.

"No, I'm not," she told him, drawing a little nearer, quite unconsciously, he knew, as she spoke. "I was thinking how dreadful it must be here for you, especially in the night. But it will not be for long," she cheered him; "we know they'll soon set you free."

"I suppose a person would think a guilty man would suffer more here than an innocent one," said he, "but I don't think that's so. That man down there knows he's going to be sent to the penitentiary for stealing a horse, but he sings."

She was looking at him, a little cloud of perplexity in her eyes, as if there was something about him which she had not looked for and did not quite understand. She blushed when Joe turned toward her, slowly, and caught her eyes at their sounding.

He was thinking over a problem new to him, also—the difference in women. There was Ollie, who marked a period in his life when he began to understand these things, dimly. Ollie was not like this one in any particular that he could discover as common between them. She was far back in the past today, like a simple lesson, hard in its hour, but conquered and put by. Here was one as far above Ollie as a star.

Miss Price began to speak of books, reaching out with a delicate hesitancy, as if she feared that she might lead into waters too deep for him

to follow. He quickly relieved her of all danger of embarrassment on that head by telling her of some books which he had not read, but wished to read, holding to the bars as he talked, looking wistfully toward the spot of sunlight which was now growing as slender as a golden cord against the gray wall. His eyes came back to her face, to find that look of growing wonder there, to see her quick blush mount and consume it in her eyes like a flame.

“You’ve made more of the books that you’ve read than many of us with a hundred times more,” said she warmly. “I’ll be ashamed to mention books to you again.”

“You oughtn’t say that,” said he, hanging his head in boyish confusion, feeling that same sense of shyness and desire to hide as came over him when his mother recounted his youthful campaign against the three books on the Newbolt shelf.

“You remember what you get out of them,” she nodded gravely, “I don’t.”

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“My father used to say that was one advantage in having a few,” said he.

The colonel joined them then, the loud-spoken benediction of the horse-thief following him. There was a flush of indignation in his face and fire in his eyes.

“I’ll expose the scoundrel; I’ll show him that he can’t rob both the county and the helpless men that misfortune throws into his hands!” the colonel declared.

He gave his hand to Joe in his ceremonious fashion.

“I’ve got some pressing business ahead of me with the sheriff,” he said, “and we’ll be going along. But I’ll manage to come over every few days and bring what cheer I can to you, Joe.”

“Don’t put yourself out,” said Joe; “but I’ll be mighty glad to see you any time.”

“This is only a cloud in your life, boy; it will pass, and leave your sky serene and bright,” the colonel cheered.

“I’ll see how many of the books that you’ve named we have,” said Alice. “I’m afraid we haven’t them all.”

“I’ll appreciate anything at all,” said Joe.

He looked after her as far as his eyes could follow, and then he listened until her footsteps died, turning his head, checking his breath, as if holding

his very life poised to catch the fading music of some exquisite strain.

When she was quite out of hearing, he sighed, and marked an imaginary line upon the wall. Her head had reached to there, just on a level with a certain bolt. He measured himself against it to see where it struck in his own height. It was just a boy's trick. He blushed when he found himself at it.

He sat on his bedside and took up the Book. The humor for reading seemed to have passed away from him for then. But there was provender for thought, new thought, splendid and bright-colored. He felt that he had been associating, for the first time in his life, with his own kind. He never had seen Alice Price before that day, for their lives had been separated by all that divides the eminent from the lowly, the rich from the poor, and seeing her had been a moving revelation. She had come into his troubled life and soothed it, marking a day never to be forgotten. He sat there thinking of her, the unopened book in his hand.

How different she was from Ollie, the wild rose clambering unkept beside the hedge. She was so much more delicate in form and face than Ollie—Ollie, who—There was a sense of sacrilege in the thought. He must not name her with Ollie; he must not think of them in the measure of comparison. Even such juxtaposition was defiling for Alice. Ollie, the unclean!

Joe got up and walked his cell. How uncouth he was, thought he, his trousers in his boot-tops, his coat spare upon his growing frame. He regarded himself with a feeling of shame. Up to that time he never had given his clothing any thought. As long as it covered him, it was sufficient. But it was different after seeing Alice. Alice! What a soothing name!

Joe never knew what Colonel Price said to the sheriff; but after the little gleam of sun had faded out of his cell, and the gnawings of his stomach had become painfully acute, his keeper came down with a basket on his arm. He took from it a dinner of boiled cabbage and beef, such as a healthy man might lean upon with confidence, and the horse-thief came in for his share of it, also.

When the sheriff came to Joe's cell for the empty dishes, he seemed very solicitous for his comfort and welfare.

"Need any more cover on your bed, or anything?"

No, Joe thought there was enough cover; and he did not recall in his present satisfied state of stomach, that his cell lacked any other comfort that the sheriff could supply. 202

“Well, if you want anything, all you’ve got to do is holler,” said the sheriff in a friendly way.

There is nothing equal to running for office to move the love of a man for his fellows, or to mellow his heart to magnanimous deeds.

“Say,” called the horse-thief in voice softened by the vapors of his steaming dinner, “that friend of yours with the whiskers all over him is ace-high over here in this end of the dump! And say, friend, they could keep me here for life if they’d send purty girls like that one down here to see me once in a while. You’re in right, friend; you certainly air in right!”

Colonel Price had kindled a fire in his library that night, for the first chill of frost was in the air. He sat in meditative pose, the newspaper spread wide and crumpling upon the floor beside him in his listlessly swinging hand. The light of the blazing logs was laughing in his glasses, and the soft gleam of the shaded lamp was on his hair.

Books by the hundred were there in the shelves about him. Old books, brown in the dignity of age and service to generations of men; new books, tucked among them in bright colors, like transient blooms in the homely stability of garden soil. There was a long oak table, made of native lumber and finished in its natural color, smoke-brown from age, like the books; and there was Alice, like a nimble bee skimming the sweets of flowers, flitting here and there in this scholar’s sanctuary.

Colonel Price looked up out of his meditation and followed her with a smile.

“Have you found them all?” he asked.

“I’ve found Milton and *The Lays of Ancient Rome* and *Don Quixote*, but I can’t find the *Meditations of Marcus Aurelius*,” said she. 203

“Judge Maxwell has it,” he nodded; “he carried it away more than a month ago. It was the first time he ever met an English translation, he said. I must get it from him; he has a remarkably short memory for borrowed books.”

Alice joined him in the laugh over the judge’s shortcoming.

“He’s a regular old dear!” she said.

“Ah, yes; if he was only forty years younger, Alice—if he was only forty years younger!” the colonel sighed.

“I like him better the way he is,” said she.

“Where did that boy ever hear tell of Marcus Aurelius?” he wondered.

“I don’t know.” She shook her head. “I don’t understand him, he seems so strange and deep. He’s not like a boy. You’d think, from talking with him, that he’d had university advantages.”

“It’s blood,” said the colonel, with the proud swelling of a man who can boast that precious endowment himself, “you can’t keep it down. There’s no use talking to me about this equality between men at the hour of birth; it’s all a poetic fiction. It would take forty generations of this European scum such as is beginning to drift across to us and taint our national atmosphere to produce one Joe Newbolt! And he’s got blood on only one side, at that.

“But the best in all the Newbolt generations that have gone before seem to be concentrated in that boy. He’ll come through this thing as bright as a new bullet, and he’ll make his mark in the world, too. Marcus Aurelius. Well, bless my soul!”

“Is it good?” she asked, stacking the books which she had selected on the table, standing with her hand on them, looking down at her smiling father with serious face.

“I wouldn’t say that it would be good for a young lady with forty beaux and unable to choose among them, or for a frivolous young thing with three dances a week—”

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“Oh, never more than two at the very height of social dissipation in Shelbyville!” she laughed.

He lifted a finger, imposing silence, and a laugh lurked in his eyes.

“No, I’d not say that such a light-headed creature would find much fodder in the ruminations and speculations and wise conclusions of our respected friend, Marcus,” said he. “But a lad like Joe Newbolt, with a pair of eyes in his head like a prophet, will get a great deal of good, and even comfort, out of that book.”

“We must get it from Judge Maxwell,” said she conclusively.

“A strange lad, a strange lad,” reflected the colonel.

“So tall and strong,” said she. “Why, from the way his mother spoke of him, I expected to see a little fellow with trousers up to his knees.”

She sat at the table and began cutting the leaves of a new magazine.

Colonel Price lifted his paper, smoothed the crumples out of it, adjusted the focus of his glasses, and resumed reading the county news. They seemed contented and happy there, alone, with their fire in the chimney. Fire itself is a companion. It is like youth in a room.

There was between them a feeling of comradeship and understanding which seldom lives where youth stands on one hand, age on the other. Years ago Alice's mother had gone beyond the storms and vexations of this life. Those two remaining of the little family had drawn together, closing up the space that her absence had made. There seemed no disparity of years, and their affection and fidelity had come to be a community pride.

Alice was far from being the frivolous young thing that her father's banter indicated. She had a train of admirers, never thinning from year to year, to be certain, for it had been the regular fate of adolescent male Shelbyville to get itself tangled up in love with Alice Price ever since her high-school days. Many of the youngsters soon outgrew the affection; but it seemed to become a settled and permanent affliction in others, threatening to incapacitate them from happiness, according to their young view of it, and blast their ambitions in the face of the world.

Every girl, to greater or less extent, has her courtiers of that kind. Nature has arranged this sort of tribute for the little queen-bees of humanity's hives. And so there were other girls in Shelbyville who had their train of beaux, but there was none quite so popular or so much desired as Alice Price.

Alice was considered the first beauty of the place. Added to this primary desirability was the fact that, in the fine gradations of pedigrees and the stringent exactions of blood which the patrician families of Shelbyville drew, Colonel Price and his daughter were the topmost plumes on the peacock of aristocracy. Other young ladies seemed to make all haste to assuage the pangs of at least one young man by marrying him, and to blunt the hopes of the rest by that decisive act. Not so Alice Price. She was frank and friendly, as eager for the laughter of life as any healthy young woman should be, but she gave the young men kindly counsel when they became insistent or boresome, and sent them away.

Shelbyville was founded by Kentuckians; some of the old State's best families were represented there. A person's pedigree was his credentials in the society of the slumbering little town, nestled away among the blue hills of Missouri. It did not matter so much about one's past, for blood will have

its vagaries and outflings of youthful spirit; and even less what the future promised, just so there was blood to vouch for him at the present.

Blood had not done a great deal for Shelbyville, no matter what its excellencies in social and political life. The old town stood just about as it was finished, sixty years and more before that time. Upstart cities had sprung up not far away, throwing Shelbyville into hopeless shadow. The entire energies of its pioneers seemed to have been expended in its foundation, leaving them too much exhausted to transmit any of their former fire and strength to their sons. It followed that the sons of Shelbyville were not what their fathers had been.

Of course, there were exceptions where one of them rose once in a while and made a streak across the state or national firmament. Some of them were eminent in the grave professions; most of them were conductors of street cars in Kansas City, the nearest metropolis. There was not room in Shelbyville for all its sons to establish themselves at law, even if they had all been equipped, and if a man could not be a lawyer or a college professor, what was open to him, indeed, but conducting a street-car? That was a placid life.

It is remarkable how Kentuckians can maintain the breed of their horses through many generations, but so frequently fall short in the standard of their sons. Kentuckians are only an instance. The same might be said of kings.

Not understanding her exactions in the matter, nor her broader requirements, Shelbyville could not make out why Alice Price remained unmated. She was almost twenty, they said, which was coming very close to the age-limit in Shelbyville. It was nothing unusual for girls to marry there at seventeen, and become grandmothers at thirty-seven.

If she wanted better blood than she could find in Shelbyville, the old gentlemen said, twisting their white old heads in argumentative finality, she'd have to go to the nobility of Europe. Even then she'd be running her chances, by Ned! They grew indignant when she refused to have their sons. They took it up with the colonel, they remonstrated, they went into pedigrees and offered to produce documents.

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There was Shelley Bryant's father, a fine, straight-backed old gentleman with beard as white as the plumage of a dove. His son was a small, red-faced, sandy-haired, pale-eyed chap with spaces between his big front teeth. He traded in horses, and sometimes made as much as fifteen dollars on a

Saturday. His magnitude of glory and manly dignity as compared to his father's was about that of a tin pan to the sun.

When Alice refused Shelley, the old general—he had won the title in war, unlike Colonel Price—went to the colonel and laid the matter off with a good deal of emphasis and flourishing of his knotted black stick. If a woman demanded blood, said the general, where could she aspire above Shelley? And beyond blood, what was there to be considered when it came to marrying and breeding up a race of men?

Champion that he was of blood and lineage, Colonel Price was nettled by the old gentleman's presumptuous urging of his unlikely son's cause.

"I am of the opinion, sir," Colonel Price replied, with a good bit of hauteur and heat, "that my daughter always has given, and always will give, the preference to brains!"

General Bryant had not spoken to the colonel for two months after that, and his son Shelley had proved his superiority by going off to Kansas City and taking a job reading gas-meters.

Colonel Price went to the mantel and filled his pipe from the tobacco-jar. He sat smoking for a little while, his paper on his knee.

"The lad's in deeper trouble, I'm afraid, than he understands," said he at last, as if continuing his reflections aloud, "and it may take a bigger heave to pull him out than any of us think right now."

"Oh, I hope not," said Alice, looking across at him suddenly, her eyes wide open with concern. "I understood that this was just a preliminary proceeding, a sort of formality to conform to the legal requirements, and that he would be released when they brought him up before Judge Maxwell. At least, that was the impression that he gave me of the case himself."

"Joe is an unsophisticated and honest lad," said the colonel. "There is something in the case that he refused to disclose or discuss before the coroner's jury, they say. I don't know what it is, but it's in relation to the quarrel between him and Isom Chase which preceded the tragedy. He seems to raise a point of honor on it, or something. I heard them say this afternoon that it was nothing but the fear that it would disclose his motive for the crime. They say he was making off with old Chase's money, but I don't believe that."

"They're wrong if they think that," said she, shaking her head seriously, "he'd never do a thing like that."

“No, I don’t believe he would. But they found a bag of money in the room, old Chase had it clamped in the hook of his arm, they say.”

“Well, I’m sure Joe Newbolt never had his hands on it, anyhow,” said she.

“That’s right,” approved the colonel, nodding in slow thoughtfulness; “we must stand up for him, for his own sake as well as Peter’s. He’s worthy.”

“And he’s innocent. Can’t you see that, father?”

“As plain as daylight,” the colonel said.

The colonel stretched out his legs toward the blaze, crossed his feet and smoked in comfort.

“But I wonder what it can be that the boy’s holding back?”

“He has a reason for it, whatever it is,” she declared.

“That’s as certain as taxes,” said the colonel. “He’s a remarkable boy, considering the chances he’s had—bound out like a nigger slave, and beaten and starved, I’ll warrant. A remark-able lad; very, very. Don’t you think so, Alice?”

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“I think he is, indeed,” said she.

A long silence.

A stick in the chimney burned in two, the heavy ends outside the dogs dropped down, the red brands pointing upward. The colonel put his hand to his beard and sat in meditation. The wind was rising. Now and then it sounded like a groan in the chimney-top. Gray ashes formed, frost-like, over the ardent coals. The silence between them held unbroken.

Both sat, thought-wandering, looking into the fire....

CHAPTER XIII

UNTIL THE DAY BREAK

Although Isom Chase had been in his grave a week, and Judge Little had been cracking his coat-tails over the road between his home and the county-seat daily, the matter of the will and the administration of the estate remained as in the beginning.

Judge Little had filed the will for probate, and had made application for letters of administration, which the court had denied. Under the terms of the will, it was pointed out, he was empowered to act in that capacity only in case of the testator's death before the majority of the legatee. The date of the document proved that the heir was now long past his majority, and the only interest that remained to Judge Little in the matter seemed to be the discovery of the testator's unknown, unseen, and unbelievered-in son.

If Isom ever had fathered a son, indeed, and the child had died in infancy, the fact had slipped the recollection of the oldest settler. Perhaps the proof of that mysterious matter lay in the hands of the two witnesses to Isom's will. They should know, if anybody knew, people said.

One of these witnesses, Thomas Cogshawl, had died long since, and there remained behind neither trace nor remembrance of him save a leaning, yellowed tombstone carrying the record of his achievements in this world. They were succinctly recounted in two words: Born and Died. His descendants were scattered, his family dispersed.

The other witness, John Owens, was in the county poorhouse, deaf, dumb, and blind, his children dead, his money gone. Communication with him, except by prods and thumps, had been out of the question for ten years and more.

On the advice of her neighbors, Ollie had engaged a lawyer to guard her interests, and make a fight in the courts, if it came to that, in an effort to retain the property. It was a shame, said the neighbors; Isom never had a son, or, if he did have one, he had no business to do any such surreptitious fathering.

While they denounced Isom, Judge Little was advertising in the metropolitan papers for the mysterious legatee, for there is no man so

faithful to his trust as the administrator of another's estate. Although the property had not yet succeeded to his hands, the judge was proceeding in confidence. If the existence of Isom Chase's son could not be proved, neither could it be disproved.

And there stood the will in Isom's writing as plain as cow tracks, naming him as administrator. It would all work into his hands at the end, and there were rewards and emoluments for an administrator who understood his business, in that estate.

That is true in the case of any executor in the affairs of dead men, or receiver in the muddled business of the living. That accounts for such men's inflexibility in carrying out the provisions of unfeeling testators and the decrees of heartless courts. The law must be applied to the letter, the wishes of the deceased fulfilled to the last hateful particular, for the longer the administrator or receiver is in place, the longer flows the soothing stream of fees.

Ollie had passed out of the brief tranquillity which had settled on her after the inquest and funeral. Worry had overtaken her again, and a longing for the return of Morgan, which seemed destined never to be quieted.

There was not so much concern for her in the ultimate disposal of Isom's estate, for she had consoled herself all along, since the discovery of the will, that she would soon be above the need of his miserly scrapings and hoarded revenues of stint. Morgan would come, triumphant in his red-wheeled buggy, and bear her away to the sweet recompense of love, and the quick noises of life beyond that drowsy place. For Morgan, and love, she could give it all over without one regret, or a glance behind.

Yet, with the thought of what she already had given for Morgan and love a quick catching of pain, a troubled stirring bordering on panic, rose in her breast. Where was Morgan, why did he remain away when he might come boldly now, like a man, and claim his own? What if Morgan never should come back? What if she should find herself a double widow, bereft of both the living and the dead?

During her days she watched for him, straining her eyes up and down the dust-white road. At night her cheek burned upon her pillow, and her tears ran down, yearning for the man who had her heart's love in his keeping and seemed unworthy of the trust.

At such times her anger would flame hot against Joe. If he had not come into her affairs and muddled them, like a calf in a kitchen, all of this uncertainty and longing would have been spared her. And it would be like the fool now, the miserable, bleating bull-calf, to turn back on his word and betray her. In that case, what should she do? Bow her head, meekly, and bear him out? She did not think so. There was little chance that anybody would credit Joe if he should turn now on his own evidence, less if she should maintain that his first version of the tragedy was true. For what he had done by his impertinent meddling between her and Morgan he deserved to suffer. He must grin and bear it now, said she.

Besides this feeling of revenge on Joe's luckless head, Ollie had her reasons of selfishness and security for desiring him out of the way. With him in prison for a long time—people said it would be for life—the secret of her indiscretion with Morgan would be safe. And then, if Morgan never came back, perhaps another.

But she recoiled from the thought that they might hang Joe for the murder of Isom. She did not want him hung, for through her gathering cloud of blame for his too faithful guardianship of his master's house, she had gleams of tenderness and gratitude for him. She could not help comparing him with Morgan in such moments of softness. Morgan had let that boy drive him away; he seemed to have gone with such a terror of him that he never had looked back. Joe, on the other hand, had stood by her through the storm. No, she did not want them to hang Joe, but it would be quite easy and comfortable with him out of the way for a long, long time.

Public opinion was framing toward giving her the relief that she desired. If anybody suspected that Ollie was concerned in her husband's death, it was some remote person whose opinion did not affect the public mind. The current belief was that Joe alone was to blame.

No matter how severe the world may be upon a woman after she is down in the mire, there is no denying that it is reluctant to tumble her from her eminence and throw her there. A woman will find more champions than detractors in the face of the most serious charge; especially a young and pretty one, or one whose life has been such as to shape sympathy for her in itself.

All her neighbors knew that Isom's wife had suffered. That year of penance in her life brought Ollie before them in a situation which was an argument and plea for their sympathy and support.

In spite, then, of the coroner's attempt at the inquest to drag Ollie into the tragedy, and to give foundation for his shrewd suspicion that there had been something between Isom's wife and bondman which the husband was unaware of, no sensation nor scandal had come of that. The case was widely talked of, and it was the hope of every voter in the county that he would be drawn on the jury to try the boy accused of the murder. Even the busiest farmers began to plan their affairs so they would have at least one day to spare to attend the trial at its most interesting point.

The date set for the trial was approaching, and so was election day. The prosecuting attorney, being up for reelection, hadn't time, at that busy hour, to try a homicide case. He had to make speeches, and bestir himself to save his valuable services to the state. The man penned in jail, growing thin of cheek and lank of limb, could wait. There would be other homicide cases, but there never would be another prosecuting attorney so valuable as that one offering himself, and his young ambitions, on the altar of public service. That was according to his view. So he notified Hammer that the state would not be ready for trial on the day set.

This pleased Hammer well enough, for the greater the delay the wider the notoriety of the case would spread, the larger his audience would be. By mutual agreement, the case was put over for one month.

Joe protested against this delay in vain. Hammer said that they would profit by it, as the ferment of the public mind would settle meantime, and prejudice would not be so sharp. He talked a great deal about "character witnesses," which Joe couldn't see the need of, and took down the names of all the people whom Joe could name as having known him all his life. Then Hammer went his way, to make speeches in the campaign in support of the worthy sheriff.

So Joe found himself with another month ahead of him before he could even hope to walk out into the sun again.

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Jail was wearing on him. The disgrace of it was torture to his sensitive mind, without the physical chafing to pull him down to bones. Those two weeks had taken off his frame a great deal of the flesh that he had gained during the summer. His gauntness was more pronounced than it ever had been before.

Mrs. Newbolt walked in twice a week to see him, carrying with her a basket of biscuits and other homely things dear to her son's palate. All of which the sheriff speared with knitting-needles, and tried on various

domestic animals, to make certain that the Widow Newbolt did not cheat the gallows out of its due by concealing saws in pies, or introducing poison to her hopeless offspring in boiled eggs.

But all of her tempting relishes, or such of them, at least, as reached Joe, were powerless to fill his hollow cheeks, growing thinner and paler day by day. He could not eat with relish, he could not sleep with peace. If it had not been for the new light that Alice Price had brought into his life, he must have burned his young heart to ashes in his restiveness.

Twice again the colonel and Alice had visited Joe, once to carry to him the books for which he had expressed a desire, and again to bring the *Meditations of Marcus Aurelius*, which Alice herself had gone after to Judge Maxwell's house. Each time Joe fancied that she left a radiance behind her that brightened and warmed his cell for days.

Nobody else in the town troubled himself about the prisoner's welfare, for nobody else knew him. Two of the ministers had called at the jail in the first days of Joe's incarceration, in a sort of urging-to-penitence state of mind, just as if they were assured of Joe's guilt by reason of his very obscurity. Joe had told them that he had a religion of his own which seemed to fill all present needs, and did not want to make any change. He was respectful, but lofty in his bearing. So they put him down as a stiff-necked son of Belial, and went away, leaving him to save himself if he thought he was equal to the task, in a manner of challenge.

In the face of this clerical abandonment, people wondered over the deep interest that Colonel Price and his daughter seemed to have in the Widow Newbolt's son, who had neither pride of family nor of possessions to recommend him.

Joe had not yet brought himself to the belief that it was necessary to take his lawyer into his confidence, although Hammer had made it unfeelingly plain to him that the withholding of any vital fact would be fatal to his cause. Although Joe was beginning to experience a deep and disquieting concern about the outcome of the trial, he was disposed to give Morgan an honest man's chance to come forward and take his share of it upon himself. If he should do that, then Joe felt that he would be morally free to disclose all that took place in the kitchen on the night Isom lost his life.

In case that Morgan did not come, or that he had gone beyond the reach of Hammer or anybody else to fetch him back, then there would not be one word of evidence to uphold him, or justify his seemingly ridiculous stand of

reticence. Yet, perhaps Morgan was waiting until the trial day; perhaps he knew all about it, and would appear in time. So argued Joe, in his great desire to be just to everybody.

He reviewed the matter in this wise with ceaseless repetition, always arriving at this same end, from which he drew the comfort of hope. Perhaps Morgan would come in time. At any event, he would wait until the last minute of the last hour, and give him a man's chance to do what was honorable and fair.

The talkative horse-thief had been tried and condemned, and had gone his cheerful way to the penitentiary to serve three years. Before leaving he had taken pains to sound again his forecast of what was waiting Joe "down the river," in case they did not give him the "quick and painless." He never had forgiven Joe his unwillingness to gossip with him in jail. The fellow's vindictiveness was evident in the sneering delight that he took on his last night in jail in calling Joe out of his sleep, or pretended sleep, to hear his description of the terrors waiting a man condemned to prison for life.

Now that he was gone, Joe felt that his words lived after him, like mold upon the walls, or a chilling damp between the stones. The recollection of them could not be denied his abnormally sharpened senses, nor the undoubted truth of their terrifying picture shut out of his imagination by any door of reasoning that he had the strength to close. Condemnation to prison would mean the suspension of all his young hopes and healthy desires; it would bring him to the end of his activities in the world as suddenly as death. Considering ambition, love, happiness, men in prison were already dead. They lived only in their faculty for suffering.

Would Morgan come to save him from that fate? That was his sole speculation upon a solution of his pressing trouble. Without Morgan, Joe did not consider any other way.

Colonel Price had received lately a commission for a corn picture from a St. Louis hotel, upon which he was working without pause. He had reached that state of exalted certainty in relation to corn that he never was obliged to put aside his colors and wait the charge of inspiration. His inspirational tide always was setting in when corn was the subject. Work with the colonel in such case was a matter of daylight.

On account of the order, the colonel had no time for Joe, for art with him, especially corn art, was above the worries and concerns of all men. He did not forget the prisoner in the white heat of his commission. For several days

he had it in his mind to ask Alice to visit him, and carry to him the assurance of the continuance of the family interest and regard. But it was an unconventional thing to request of a young lady; a week slipped past before the colonel realized it while he temporized in his mind.

At last he approached it circuitously and with a great deal of diplomatic concealment of his purpose, leaving ample room for retreat without unmasking his intention, in case he should discern indications of unwillingness.

By that time the election was over and the country regularly insured against anarchy, devastation, and ruin for two years longer. The prosecuting attorney and the sheriff had been reelected; the machinery of the law was ready to turn at the grist.

The colonel was pleased to see that Alice seconded him in his admission that they had been treating Joe Newbolt shamefully. Of course the sheriff was partly to blame for that, having set himself up with metropolitan importance, now that he was secure in office. He had put aside Wednesday as the one day of the week on which visitors, other than relatives or counsel of prisoners, would be permitted to enter the jail.

It chanced to be a Wednesday morning when the colonel got around to it finally, and they agreed heartily and warmly that somebody ought to go and carry a little gleam of cheer and encouragement to Joe. The colonel looked at his unfinished picture, then at the mellow light of the autumn day, so much like the soul of corn itself, and then at Alice. He lifted his eyebrows and waved his hands in a gesture of helplessness.

“Never mind,” said she; “you go ahead with the picture; I’ll go alone.”

The colonel blessed her, and turned to his picture with a great sigh of relief. Alice left him to prepare for her visit, a flutter of eagerness in her heart, a feeling of timid nervousness which was unaccountable and strange.

She was not accustomed to trembling at the thought of meeting young men. Usually she went forward to the ordeal with a smile, which the victim would not have gathered a great deal of pleasure from, in most cases, if he had been able to read, for he would have seen her appraisal of him on her lips. There was none of this amusing measurement of Joe, no sounding of his shallows with her quick perception like a sunbeam finding the pebbles in the bottom of a brook. There was something in his presence

which seemed like a cool wind on the forehead, palpable, yet profound from the mystery of its source.

She had been surprised by the depth of this unpromising subject, to whom she had turned at first out of pity for his mother. The latent beauties of his rugged mind, full of the stately poetry of the old Hebrew chronicles, had begun to unfold to her sympathetic perception in the three visits she had made in her father's company. Each visit had brought some new wonder from that crude storehouse of his mind, where Joe had been hoarding quaint treasures all his lonely, companionless years.

And Joe, even in his confinement, felt that he was free in a larger sense than he ever had been before. He was shaking out his wings and beginning to live understandingly and understood. It was beyond him to believe it sometimes; beyond him always to grasp the reality of Alice Price, and her friendship for one so near the dust as he.

What was there about the poor folks' boy, bound out but yesterday to Isom Chase, and still bound to his estate under the terms of his articles? What was there in him to reach out and touch the sympathies of this beautiful young woman, who came to him with the scent of violets in her hair? Others had despised him for his poverty, and fastened a name upon him which was in itself a reproach. And still misunderstanding, they had carried him off to prison, charged with a dark and hideous crime. Now ~~this~~ light had come to him in his despair, like the beam of that white star above the Judean plains. Like that star, she would stand far off to guide him, and exalt his soul by its strivings to attain her level. There their relations must cease. He might yearn his heart away in the gulf that lay between them, and stretch out his empty hands for evermore, never to feel its nearer warmth upon his breast. He was the poor folks' boy.

There was a wan sun on the day she came alone to the jail, a day so long remembered by Joe and held by him so dear. A solemn wind was roaming the tree-tops outside his cell window; the branches stood bleak and bare against the mottled sky.

Alice wore a dress of some soft gray material, which seemed to embrace her in warm comfort, and reveal her in a new and sprightly loveliness. Her rippled hair was free upon her temples, her ear peeped out from beneath it with a roguish tint upon it, as if it waited to be kissed, and blushed for its own temerity. A gay little highland bonnet rode the brown billows of her abundant hair, saucy and bold as a corsair, with one bright little feather at its

prow. Perhaps it was no more than a goose quill, or a cock's plume dipped in dye, but to Joe it seemed as glorious as if it had been plucked from the fairest wing in the gardens of paradise.

The marvel of it came over Joe again as he stood close against the bars to greet her. She, so rare and fine, so genteel and fair, caring enough for him and his unpromising fate to put aside the joyous business of her unhampered life and seek him in that melancholy place. It seemed a dream, yet she was there, her delicate dark brows lifted questioningly, as if uncertain that he would approve her unconventional adventure, a smile in the depths of her serene, frank eyes. Her cheeks were glowing from the sparks of morning, and her ungloved hand was reaching out to meet him.²²¹

He clasped it, and welcomed her with joy that he could not have simulated any more than he could have hidden. There was a tremor in his voice; a hot sweep of blood flamed in his face like a confession of his secret soul.

"I never saw you look so tall," said he slowly, measuring her with adoring eyes.

"Maybe it's the dress," said she, looking herself over with a little expressive sweep of the hands, as if to put all the blame on that innocent nun-gray gown, if there was blame to be borne.

She wore a little bunch of mignonette upon her breast, just at the point where the slashing of her bodice ended, and the gray gave way to a wedge of virginal white, as if her sempstress had started to lay bare her heart. The flowers quivered as from some internal agitation, nestling their pale gold spikes against their lovely bed.

"I don't know that it's the dress," said he, "but you do look taller than usual, it seems to me."

She laughed, as if she found humor in his solemn repetition of such a trivial discovery.

"Well, I can't help being tall," she said. "How tall would you have a lady grow? How tall do you think one ought to be?"

"As high as my heart," said Joe, remembering *Orlando's* words.

The color deepened in her cheeks; she caught her breath with a little "Oh!"

She wondered what sprout of blue-blooded and true-blooded nobility in Shelbyville there was capable of turning a reply like that without straining

for it more than that pale cavalier with his worn clothing hanging loose upon his bony frame. When she ventured to lift her eyes to his face, she found him grasping a bar of the cell door with one hand, as if he would tear it from its frame. His gaze was fixed upon the high window, he did not turn. She felt that he was struggling with himself that moment, but whether to drive to speech or to withhold it, she could not tell.

“I wish I could go out there and run about five miles this morning,” he sighed.

She gave him sigh for sigh, feeling that something was lost. He had not striven with himself merely to say that. But from there they went on to talk of his coming trial, and to expose the mutual hope that no further excuse would be advanced for its continuance. He seemed to be certain that the trial would see an end of his difficulty, and she trembled to contemplate any other outcome.

So they stood and talked, and her face was glowing and her eyes were bright.

“Your cheeks are as red as bitter-sweet,” said he.

“There was frost last night,” she laughed, “and the cool wind makes my face burn.”

“I know just how it feels,” said he, looking again toward the window with pathetic wistfulness, the hunger of old longings in his eyes.

“It will not be long now until you are free,” she said in low voice of sympathy.

He was still looking at the brown branches of the bare elm, now palely touched with the cloud-filtered autumn sun.

“I know where there’s lots of it,” said he, as if to himself, “out in the hills. It loves to ramble over scrub-oak in the open places where there’s plenty of sun. I used to pick armloads of it the last year I went to school and carry it to the teacher. She liked to decorate the room with it.”

He turned to her with apologetic appeal, as if to excuse himself for having wandered away from her in his thoughts.

“I put it over the mantel,” she nodded; “it lasts all winter.”

“The wahoo’s red now, too,” said he. “Do you care for it?”

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“It doesn’t last as long as bitter-sweet,” said she.

“Bitter-sweet,” said he reflectively, looking down into the shadows which hung to the flagstones of the floor. Then he raised his eyes to hers and

surprised them brimming with tears, for her heart was aching for him in a reflection of his own lonely pain.

“It is emblematic of life,” said he, reaching his hand out through the bars to her, as if to beg her not to grieve over the clouds of a day; “you know there are lots of comparisons and verses and sayings about it in that relation. It seems to me that I’ve always had more of the bitter than the sweet—but it will all come out right in time.”

She touched his hand.

“Do you like mignonette?” she asked. “I’ve brought you some.”

“I love it!” said he with boyish impetuosity. “I had a bed of it last—no, I mean the summer before last—before I was—before I went to work for Isom.”

She took the flowers from her bosom and placed them in his hand. The scent of them was in his nostrils, stirring memories of his old days of simple poverty, of days in the free fields. Again he turned his face toward the window, the little flowers clutched in his hand. His breast heaved as if he fought in the deep waters of his soul against some ignoble weakness.

She moved a little nearer, and reached timidly through the bars with the breathless quiet of one who offers a caress to a sleeper. Her finger-tips touched his arm.

“Joe,” said she, as if appealing in pity to him for permission to share his agony.

He lifted the flowers to his lips and kissed the stems where her hand had clasped them; then bowed his head, his strong shoulders against the bars.

“Joe!” Her voice was a whisper in his ear, more than pity in it, so it seemed to him in the revelation of that moment; more than entreaty, more than consolation.

Her hand was on his arm; he turned to her, shaking the fallen locks of his wild hair back from his brow. Then her hand was in his, and there was a warm mist, as of summer clouds, before his eyes. Her face was before him, and near—so near. Not red like the bitter-sweet, but pale as the winter dawn. Her eyes were wide, her chin was lifted, and he was straining her to him with the jail door bars against his breast.

Love comes that way, and death; and the blow of sorrow; and the wrench of life’s last bitter pang. Only life is slow; tedious and laggard with its burdens and its gleams.

He remembered in a moment; the pressure of the bars against his breast recalled him to his sad estate. He released her hand and fell back a step from her, a sharp cry on his lips as if he had seen her crushed and mangled just beyond his reach.

“I didn’t mean to do that, Alice; I didn’t mean to do that!” said he, dropping to his knees before her as if struck down by a stunning blow. He bowed his head in contrite humiliation.

“I forgot where I was, Alice; I forgot!”

There was no displeasure in her face as she stood panting before the barred door, her hands to her heaving breast, her head thrown back. Her lips were parted; there was a light of exaltation in her eyes, as of one who has felt the benediction of a great and lasting joy. She put her hand through the bars again, and touched his bowed head.

“Don’t do that, Joe,” said she.

The sheriff’s key sounded in the lock of the corridor gate.

“Time’s up,” he called.

“All right; I’m coming,” Alice returned.

Joe stood, weak and trembling. He felt as if he had, in the heat of some great passion, rashly risked life, and more than life; that he had only now dragged his battered body back to the narrow, precarious ledge from which he had leaped, and that safety was not his.

“I must go now,” said she, soft and low and in steady voice. “Good-bye.”

She gave him her hand, and he clung to it like a nestling fastening upon the last branch interposing between it and destruction.

“I forgot where I was,” said he weakly, his shaken mind incapable of comprehending things as they were, his abasement over the breach that he had committed being so profound. She withdrew her hand. When it was gone out of his, he remembered how warm it was with the tide of her young body, and how soft for his own work-roughened fingers to meet and enfold.

“I must go now,” said she again. Her feet sounded in the corridor as she ran away. A little way along she stopped. She was beyond his sight, but her voice sounded near him when she called back “Good-bye!”

She had not gone in anger nor displeasure, thought he, getting hand of his confused senses after a while, standing as she had left him, the flowers in his hand. Strangely exulting, strangely thrilling, mounting a moment like an eagle, plunging down now like a stone, Joe walked his cell.

What had he done, drawn on by that which he had read in her eyes in that poignant moment! In jail, locked behind a grated door of steel, he had taken her hand and drawn her to him until the shock of the bars had called back his manhood. He had taken advantage of her friendship and sympathy.

Prison was no place for love; a man locked in jail charged with a crime had no right to think of it. It was base of him, and unworthy. Still—mounting again in a swift, delicious flight—it was sweet to know what her eyes had told him, sweeter to rest assured that she had not left him in scorn. Down again, a falling clod. Unless he had misinterpreted them in the ignorance of his untutored heart. Yet, that is a language that needs no lexicon, he knew.

Who is so simple, indeed, as to be unaware of that? How different this passion from that which Ollie's uncovered bosom had stirred; how he burned with shame at the memory of that day!

Up and down he strode the morning through, his long, thin legs now spare in his boot-tops, his wide, bony shoulders sharp through his coat. The strong light fell on his gaunt face as he turned toward the window; shadows magnified its hollows when he turned toward the door. Now that the panic of it had left him, the sweetness of it remained.

How soft her hand was, how her yielding body swayed in his arm! How delicious her breath was on his face; how near her eyes, speaking to him, and her lips; how near her parted, warm, red lips!

He took up the Book, and turned with trembling hands to a place that he remembered well. There was something that he had read, not feeling, not understanding, words of which came back to him now. The Songs of Songs, Which is Solomon's.

Ah, the Song of Songs! The music of it now was written in his heart. It was not the song in glorification and exaltation of the church that the translators had captioned it; not a song full of earthly symbols meant to represent spiritual passions. Joe had read it, time and again, in that application, and it had fallen flavorless upon his understanding. No; it was the song of a strong man to the woman whom he loved.

And the music of it, old but ever new in its human appeal, now was written in his heart.

Thy lips are like a thread of scarlet, and thy speech is comely. Thou art all fair, my love; there is no spot in thee.... Until the day break, and the shadows flee away, turn, my beloved....

Ah, until the day break!

In his rapt exaltation the boy's face beamed as he strode swiftly the length of his cell. It would not be long until daybreak now. The judge would understand him, and would not press a man to tell what he had delicate reasons for concealing, when the concealment could bring harm to nobody, but boundless good to one weak creature who must wither otherwise in the blaze of shame.

He remembered the strong face and the long iron-gray hair of Judge Maxwell; only a little while ago Joe had given him some apples which he had stopped to admire as he drove past Isom's orchard in his sagging, mud-splashed, old buggy. He was a good man; the uprightness of his life spoke from his face. Judge Maxwell was a man to understand.

Poor Ollie; poor weak, shrinking Ollie! Her frightened eyes glowed hot in his memory of the day of the inquest, carrying to him their appeal. Poor, mistaken, unguided Ollie! He would protect her to the last, as he had done at the beginning, and trust and hope that the judge, and Alice, and the colonel, and the whole world, would understand in due and proper time.

CHAPTER XIV

DESERTED

John Owens, the surviving witness to Isom Chase's will, spent his dreary days at the poorhouse whittling long chains of interlocking rings, and fantastic creatures such as the human eye never beheld in nature, out of soft pine-wood. He had taken up that diversion shortly after the last of his afflictions, blindness, fell upon him and, as white pine was cheap, the superintendent of the institution indulged him without stint.

Uncle John, as he was called long years before the hard-riding world threw him, was a preacher back in the days of his youth, middling manhood and prosperity. He had ridden the country in the Campbellite faith, bringing hundreds into the fold, with a voice as big as a bull's, and a long beard, which he wore buttoned under his vest in winter. And now in his speechlessness, darkness, and silence, he still preached in his way, carving out the beast with seven heads and ten horns, and female figures of hideous mien, the signification of which nobody rightly knew.

Uncle John had a little slate upon which he wrote his wants, but nobody had discovered any way of communicating with him save by taking his hand and guiding it to the object for which he had asked. For a long time he had written the one word "Paint" on his slate. That was the beginning of his use of it, when one word was all that he could get on a side of it at a time. After his fingers had become sensitive through his new art of whittling and feeling, he improved his writing, until he made it plain that he wanted paint to adorn his carved figures, so they could be sold. 229

It was the hope of the poor old soul that he could whittle himself out of the poorhouse, and live free and independent upon the grotesque productions of his knife, if they would give him paint to make them attractive, and thus get a start. He did not know how fantastic and ridiculous they were, having only his own touch to guide him to judgment of their merits.

Perhaps he was no less reasonable in this belief than certain painters, musicians, and writers, who place their own blind value upon the craft of

their hands and brains, and will not set them aside for any jury that the world can impanel.

Uncle John never came to realize his hopes of freedom, any more than he ever came to realize the uselessness of paint for his angels when he had no eyes for applying it. He whittled on, in melancholy dejection, ring upon ring in his endless chains of rings, forging in bitter irony the emblems of bondage, when his old heart so longed to be free.

It was a bright day in the life of Uncle John Owens, then, when Ollie's lawyer called at the poorhouse and placed under his hands some slender slips of cardboard bearing raised letters, the A B C of his age.

His bearded old face shone like a window in which a light has been struck as his fluttering fingers ran over the letters. He fumbled excitedly for his slate which hung about his neck, and his hand trembled as he wrote:

"More—book—more."

It had been an experiment, the lawyer having doubted whether Uncle John's untrained fingers, dulled by age, could pick out the letters, large as they were. He had nothing more to offer, therefore, and no way of answering the appeal. But that night an order for the New Testament in raised characters for the blind went out from Shelbyville.

Judge Little was making no progress in establishing the will. Nobody had come forward in answer to his advertisements in the city papers, claiming for himself the distinction of being Isom Chase's son. But the judge gave Ollie to understand, in spite of his quiescence while he searched for the heir, that the courts must settle the question. If there were fees to be had out of that estate, Judge Little was the man to get them.

Meantime, in his cell in the county jail, Joe Newbolt was bearing the heaviest penance of his life. Alice had not come again. Two visiting days had passed, and there would be no more before the date of the trial, which was set for the following Monday. But since that dun morning when she had given him the mignonette, and he had drawn her unresisting body to the barrier of his prison door, she had visited him no more.

Joe reproached himself for it. He accused himself of having offended beyond forgiveness. In the humiliation which settled upon him, he wasted like water in the sun. The mignonette which she had given him withered, dried; its perfume vanished, its blossoms turned gray. She came no more. What did it matter if they convicted him before the judge, said he, now that

Alice had condemned him in her heart. He lamented that he had blundered into such deep offending. His untutored heart had seen only the reflection of his own desire in her eyes that day. She did not care for him. It was only pity that he had distorted into love.

He had inquired about her, timidly, of the sheriff, who had looked at him with a slow wink, then formed his mouth into an egg-shaped aperture and held it so an exasperating while, as if he meant to whistle. The sheriff's clownish behavior nettled Joe, for he was at a loss to understand what he meant.

"I thought maybe she'd sent over some books," said Joe, blushing like a hollyhock.

"Books!" said the sheriff, with a grunt.

"Yes, sir," Joe answered, respectfully.

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"Huh, she never sent no books," said the sheriff, turning away.

After a little he came back and stood before Joe's door, with his long legs far apart, studying the prisoner calculatively, as a farmer stands when he estimates the weight of a hog.

"Cree-mo-nee!" said he.

He laughed then, much to Joe's confusion, and totally beyond his comprehension. The sheriff left him with that. From the passage his laugh came back.

The day was Friday; Joe plucked up a little hope when he heard the sheriff conducting somebody to the corridor gate. It was Colonel Price, who had exercised his political influence over the sheriff and induced him to set aside his new regulations for the day. The colonel made apologies to Joe for what might seem his lack of interest in his welfare.

Joe inquired of him concerning Alice, with respectful dignity. She was well, said the colonel, and asked to be remembered. What else the colonel said on that occasion Joe did not recall. All that he could think of was that Alice had desired to be remembered.

What an ironical message to send him, thought Joe. If she only had come herself, and given him the assurance with her eyes that there was no stored censure, no burning reproach; if she had come, and quieted the doubt, the uncertainty, of his self-tortured soul. His case had become secondary beside Alice. The colonel talked of it, but Joe wondered if the mignonette in her garden was dead. The colonel shook his head gravely when he went away

from the jail that day. It was plain that the boy was suffering with that load on his mind and the uncertainty of the outcome pressing upon him. He mentioned it to Alice.

"I think we'd better try to get him another lawyer," said the colonel. "Hammer never will be equal to that job. It will be more the size of Judge Burns, or one of the old heads. That boy's in a pickle, Alice, and a mighty tight one, at that."

"But he's innocent—you don't doubt that?" said she.

"Not for a minute," the colonel declared. "I guess I should have been looking after him closer, but that picture intervened between us. He's wearing away to a shadow, chafing and pining there in jail, poor chap."

"Do you think he'll consent to your employing another lawyer for him?" she asked, searching his face wistfully.

"I don't know; he's so set in the notion of loyalty to Hammer—just as if anybody could hurt Hammer's feelings! If the boy will consent to it, I'll hire Judge Burns at my own expense."

"I don't suppose he will," sighed she.

"No, I reckon not, his notions are so high-flown," the colonel admitted, with evident pride in the lofty bearing of the widow's son.

"He's longing for a run over the hills," said she. "He told me he was."

"A year of it in there would kill him," the colonel said. "We must get him a lawyer who can disentangle him. I never saw anybody go down like that boy has gone down in the last month. It's like taking a wild Indian out of the woods and putting him in a cage."

The colonel put aside the corn picture for the day, and went out to confer with Judge Burns, a local lawyer who had gained a wide reputation in the defense of criminal cases. He was a doubly troubled man when he returned home that evening, for Joe had been firm in his refusal either to dismiss Hammer or admit another to his defense. In the library he had found Alice, downcast and gloomy, on the margin of tears.

"Why, honey, you mustn't mope around this way," he remonstrated gently. "What is it—what's gone wrong with my little manager?"

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She raised up from huddling her head against her arms on the table, pushed her fallen hair back from her eyes and gave him a wan smile.

"I just felt so lonely and depressed somehow," said she, placing her hand on his where it lay on the table. "Never mind me, for I'll be all right. What

did he say?"

"Judge Burns?"

"Joe."

The colonel drew a chair near and sat down, flinging out his hand with impatient gesture.

"I can't do anything with him," said he. "He says one lawyer will do as well as another, and Hammer's doing all that can be done. 'They'll believe me or they'll not believe me, colonel, and that's all there is to it,' says he, 'and the best lawyer in the world can't change that.' And I don't know but he's right, too," the colonel sighed. "He's got to come out with that story, every word of it, or there'll never be a jury picked in the whole State of Missouri that'll take any stock in his testimony."

"It will be a terrible thing for his mother if they don't believe him," said she.

"We'll do all that he'll allow us to do for him, we can't do any more. It's a gloomy outlook, a gloomy case all through. It was a bad piece of business when that mountain woman bound him out to old Isom Chase, to take his kicks and curses and live on starvation rations. He's the last boy in the world that you'd conceive of being bound out; he don't fit the case at all."

"No, he doesn't," said she, reflectively.

"But don't let the melancholy thing settle on you and disturb you, child. He'll get out of it—or he'll not—one way or the other, I reckon. It isn't a thing for you to take to heart and worry over. I never should have taken you to that gloomy old jail to see him, at all."

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"I can't forget him there—I'll always see him there!" she shuddered. "He's above them all—they'll never understand him, never in this world!"

She got up, her hair hanging upon her shoulders, and left him abruptly, as if she had discovered something that lay in her heart. Colonel Price sat looking after her, his back very straight, his hand upon his knee.

"Well!" said he. Then, after a long ruminative spell: "Well!"

That same hour Hammer was laboring with his client in the jail, as he had labored fruitlessly before, in an endeavor to induce him to impart to him the thing that he had concealed at the coroner's inquest into Isom Chase's death. Hammer assured him that it would not pass beyond him in case that it had no value in establishing his innocence.

“Mr. Hammer, sir,” said Joe, with unbending dignity and firmness, “if the information you ask of me was mine to give, freely and honorably, I’d give it. You can see that. Maybe something will turn up between now and Monday that will make a change, but if not, you’ll have to do the best you can for me the way it stands. Maybe I oughtn’t expect you to go into the court and defend me, seeing that I can’t help you any more than I’m doing. If you feel that you’d better drop out of the case, you’re free to do it, without any hard feelings on my part, sir.”

Hammer had no intention of dropping the case, hopeless as he felt the defense to be. Even defeat would be glorious, and loss profitable, for his connection with the defense would sound his name from one end of the state to the other.

“I wouldn’t desert you in the hour of your need, Joe, for anything they could name,” said Hammer, with significant suggestion.

His manner, more than his words, carried the impression that they had named sums, recognizing in him an insuperable barrier to the state’s case, but that he had put his tempters aside with high-born scorn.

“Thank you,” said Joe.

“But if Missis Chase was mixed up in it any way, I want you to tell me, Joe,” he pressed.

Joe said nothing. He looked as stiff and hard as one of the iron hitching-posts in front of the court-house, thought Hammer, the side of his face turned to the lawyer, who measured it with quick eyes.

“Was she, Joe?” whispered Hammer, leaning forward, his face close to the bars.

“The coroner asked me that,” replied Joe, harshly.

This unyielding quality of his client was baffling to Hammer, who was of the opinion that a good fatherly kick might break the crust of his reserve. Hammer had guessed the answer according to his own thick reasoning, and not very pellucid morals.

“Well, if you take the stand, Joe, they’ll make you tell it then,” Hammer warned him. “You’d better tell me in advance, so I can advise you how much to say.”

“I’ll have to get on somehow without your advice, thank you sir, Mr. Hammer, when it comes to how much to say,” said Joe.

“There’s not many lawyers—and I’ll tell you that right now in a perfectly plain and friendly way—that’d go ahead with your case under the conditions,” said Hammer. “But as I told you, I’ll stick to you and see you through. I wash my hands of any blame for the case, Joe, if it don’t turn out exactly the way you expect.”

Joe saw him leave without regret, for Hammer’s insistence seemed to him inexcusably vulgar. All men could not be like him, reflected Joe, his hope leaping forward to Judge Maxwell, whom he must soon confront.

Joe tossed the night through with his longing for Alice, which gnawed him like hunger and would not yield to sleep, for in his dreams his heart went out after her; he heard her voice caressing his name. He woke with the feeling that he must put the thought of Alice away from him, and frame in his mind what he should say when it came his turn to stand before Judge Maxwell and tell his story. If by some hinted thing, some shade of speech, some qualification which a gentleman would grasp and understand, he might convey his reason to the judge, he felt that he must come clear.

He pondered it a long time, and the face of the judge rose before him, and the eyes were brown and the hair in soft wavelets above a white forehead, and Alice stood in judgment over him. So it always ended; it was before Alice that he must plead and justify himself. She was his judge, his jury, and his world.

It was mid-afternoon when Mrs. Newbolt arrived for her last visit before the trial. She came down to his door in her somber dress, tall, bony and severe, thinner of face herself than she had been before, her eyes bright with the affection for her boy which her tongue never put into words. Her shoes were muddy, and the hem of her skirt dragged, for, high as she had held it in her heavy tramp, it had become splashed by the pools in the soft highway.

“Mother, you shouldn’t have come today over the bad roads,” said Joe with affectionate reproof.

“Lands, what’s a little mud!” said she, putting down a small bundle which she bore. “Well, it’ll be froze up by tomorrow, I reckon, it’s turnin’ sharp and cold.”

She looked at Joe anxiously, every shadow in his worn face carving its counterpart in her heart. There was no smile of gladness on her lips, for

smiles had been so long apart from her life that the nerves which commanded them had grown stiff and hard.

“Yes,” said Joe, taking up her last words, “winter will be here in a little while now. I’ll be out then, Mother, to lay in wood for you. It won’t be long now.”

“Lord bless you, son!” said she, the words catching in her throat, tears rising to her eyes and standing so heavy that she must wipe them away.

“It will all be settled next week,” Joe told her confidently.

“I hope they won’t put it off no more,” said she wearily.

“No; Hammer says they’re sure to go ahead this time.”

“Ollie drove over yesterday evening and brought your things from Isom’s,” said she, lifting the bundle from the floor, forcing it to him between the bars. “I brought you a couple of clean shirts, for I knew you’d want one for tomorrow.”

“Yes, Mother, I’m glad you brought them,” said Joe.

“Ollie, she said she never would make you put in the rest of your time there if she had anything to say about it. But she said if Judge Little got them letters of administration he was after she expected he’d try to hold us to it, from what he said.”

“No matter, Mother.”

“And Ollie said if she ever did come into Isom’s property she’d make us a deed to our place.”

Mrs. Newbolt’s face bore a little gleam of hope when she told him this. Joe looked at her kindly.

“She could afford to, Mother,” said he, “it was paid for in interest on that loan to Isom.”

“But Isom, he never would ’a’ give in to that,” said she. “Your pap he paid twelve per cent interest on that loan for sixteen years.”

“I figured it all up, Mother,” said he.

There was nothing for her to sit on in the corridor; she stood holding to the bars to take some of the weight from her tired feet.

“I don’t want to hurry you off, Mother,” said Joe, “but I hate to see you standing there all tired out. If the sheriff was a gentleman he’d fetch you a chair. I don’t suppose there’d be any use in asking him.”

“Never mind, Joe, it takes more than a little walk like that to play me out.”

“You’d better stop in at Colonel Price’s and rest a while before you start back,” he suggested.

“Maybe I will,” said she.

She plunged her hand into the black draw-string bag which she carried on her arm, rummaging among its contents.

“That little rambo tree you planted a couple of years ago had two apples on it,” she told him, “but I never noticed ’em all summer, the leaves was so thick and it was such a little feller, anyhow.”

“It is a little one to begin bearing,” said Joe, with a boy’s interest in a thing that he has done with his own hand turning out to be something.

“Yes; and I aimed to leave them on the tree till you could see them, but the hard wind yesterday shook ’em off. Here they are, I’ve fetched ’em to you, son.”

Joe took the apples, the recollection of the high hopes which he had centered around that little apple-tree when he planted it coming back to him like a scented wind at dawn. He had planned to make that tree the nucleus of an orchard, which was to grow and spread until it covered the old home place, the fields adjoining, and lifted the curse of poverty from the Newbolt name. It had been a boyish plan which his bondage to Isom Chase had set back.

He had not given it up for a day while he labored in Chase’s fields. When he became his own man he always intended to take it up and put it through. Now, there in his hand, was the first fruit of his big intention, and in that moment Joe reviewed his old pleasant dream.

He saw again as he had pictured it before, to the relief of many a long, hot day in Isom’s fields, his thousand trees upon the hills, the laden wagons rolling to the station with his barrels of fruit, some of it to go to far lands across the sea. He saw again the stately house with its white columns and deep porticoes, in the halls of which his fancy had reveled many a happy hour, and he saw—the bars of his stone cell and his mother’s work-hardened hands clasping them, while she looked at him with the pain of her sad heart speaking from her eyes. A heavy tear rolled down his hollow cheek and fell upon the apples in his hand.

For the pain of prison he had not wept, nor for its shame. The vexing circumstance of being misunderstood, the dread threat of the future had not

claimed a tear. But for a dream which had sprung like a sweet flower in his young heart and had passed away like a mist, he wept.

His mother knew nothing about that blasted dream; the gloom of his cell concealed his tears. He rubbed the fruit along his coat sleeve, as if to make it shine, as a fruiterer polishes the apples in his stall.

“All right, Mother, I’m glad you brought them,” he said, although there was no gladness in his voice.

“I planned to fetch you in some fried chicken today, too,” said she, “but the pesky rooster I had under the tub got away when I went to take him out. If you’d like some, Joe, I’ll come back tomorrow.”

“No, no; don’t you tramp over here tomorrow, Mother,” he admonished, “and don’t bother about the chicken. I don’t seem to have any appetite any more. But you wait till I’m out of here a day or two; then you’ll see me eat.”

“Well, then I guess I’ll be goin’ on back, Joe; and bright and early Monday morning I’ll be on hand at the court. Maybe we’ll be able to go home together that evenin’, son.”

“Hammer says it will take two or three days,” Joe told her, “but I don’t see what they can do to make it string out that long. I could tell them ²⁴⁰all about it in ten minutes. So we mustn’t put our hopes too high on Monday, Mother.”

“I’ll beseech the Lord all day tomorrow, son, to open their ears that they may hear,” said she solemnly. “And when the time comes to speak tell it all, Joe, tell it all!”

“Yes, Mother, when the time comes,” said he gently.

“Tell ’em all Isom said to you, son,” she charged.

“Don’t you worry over that now, Mother.”

She felt that her son drew away from her, in his haughty manner of self-sufficiency, as he spoke. She sighed, shaking her head sadly. “Well, I’ll be rackin’ off home,” she said.

“If you stop at the colonel’s to rest a while, Mother—and I wish you would, for you’re all tired out—you might hand this book back to Miss Price. She loaned it to me. Tell her I read it long ago, and I’d have sent it back before now, only I thought she might come after it herself some time.”

His mother turned to him, a curious expression in her face.

“Don’t she come any more, Joe?”

“She’s been busy with other things, I guess,” said he.

“Maybe,” she allowed, with a feeling of resentment against the book on account of its cold, unfriendly owner.

She had almost reached the corridor gate when Joe called after her.

“No, don’t tell her that,” he requested. “Don’t tell her anything. Just hand it back, please, Mother.”

“Whatever you say, Joe.”

Joe heard the steel gate close after her and the sheriff’s voice loud above his mother’s as they went toward the door.

Loyal as he was to his mother, the thought of her went out with her, and in her place stood the slender figure of youth, her lips “like a thread of scarlet.” One day more to wait for the event of his justification and vindication, or at least the beginning of it, thought Joe.

Ah, if Alice only would come to lighten the interval!

CHAPTER XV

THE STATE VS. NEWBOLT

The court-house at Shelbyville was a red brick structure with long windows. From the joints of its walls the mortar was falling. It lay all around the building in a girdle of gray, like an encircling ant-hill, upon the green lawn. Splendid sugar-maples grew all about the square, in the center of which the court-house stood, and close around the building.

In a corner of the plaza, beneath the largest and oldest of these spreading trees, stood a rotting block of wood, a section of a giant tree-trunk, around which centered many of the traditions of the place. It was the block upon which negro slaves had been auctioned in the fine old days before the war.

There was a bench beside the approach to the main door, made from one of the logs of the original court-house, built in that square more than sixty years before the day that Joe Newbolt stood to answer for the murder of Isom Chase. The old men of the place sat there in the summer days, whittling and chewing tobacco and living over again the stirring incidents of their picturesque past. Their mighty initials were cut in the tough wood of the bench, to endure long after them and recall memories of the hands which carved them so strong and deep.

Within the court-house itself all was very much like it had had been at the beginning. The court-room was furnished with benches, the judge sat behind a solemn walnut desk. The woodwork of the room was thick with many layers of paint, the last one of them grim and blistered now, scratched by stout finger-nails and prying knife-blades. The stairway leading from the first floor ascended in a broad sweep, with a turn half-way to the top.

The wall along this stairway was battered and broken, as if the heels of reluctant persons, dragged hither for justice to be pronounced upon them, had kicked it in protest as they passed. It was as solemn and gloomy a stairway as ever was seen in a temple of the law. Many had gone up it in their generation in hope, to descend it in despair. Its treads were worn to splinters; its balustrade was hacked by the knives of generations of loiterers. There was no window in the wall giving upon it; darkness hung over its first landing on the brightest day. The just and the unjust alike were

shrouded in its gloomy penumbra as they passed. It was the solemn warder at the gate, which seemed to cast a taint over all who came, and fasten a cloud upon them which they must stand in the white light of justice to purge away.

When the civil war began, the flag of the Union was taken down from the cupola of the court-house. In all the years that had passed since its close, the flag never had been hoisted to its place of honor again. That event was not to take place, indeed, until twenty years or more after the death of Isom Chase, when the third court-house was built, and the old generation had passed away mainly, and those who remained of it had forgotten. But that incident is an incursion into matters which do not concern this tale.

Monday morning came on dull and cloudy. Shelbyville itself was scarcely astir, its breakfast fires no more than kindled, when the wagons of farmers and the straggling troops of horsemen from far-lying districts began to come in and seek hitching-room around the court-house square. It looked very early in the day as if there was going to be an unusual crowd for the unusual event of a trial for murder.

Isom Chase had been widely known. His unsavory reputation had spread wider than the sound of the best deeds of the worthiest man in the county. It was not so much on account of the notoriety of the old man, which had not died with him, as the mystery in the manner of his death, that people were anxious to attend the trial.

It was not known whether Joe Newbolt was to take the witness-stand in his own behalf. It rested with him and his lawyer to settle that; under the law he could not be forced to testify. The transcript of his testimony at the inquest was ready at the prosecutor's hand. Joe would be confronted with that, and, if there was a spark of spunk in him, people said, he would rise up and stand by it. And then, once Sam Lucas got him in the witness-chair, it would be all day with his evasions and concealments.

Both sides had made elaborate preparations for the trial. The state had summoned forty witnesses; Hammer's list was half as long. It was a question in the public speculation what either side expected to prove or disprove with this train of people. Certainly, Hammer expected to prove very little. His chief aim was to consume as much time before the jury as possible, and disport himself in the public eye as long as he could drag out an excuse. His witnesses were all from among the old settlers in the Newbolt neighborhood over in Sni, who had the family record from the date

of the Kentucky hegira. They were summoned for the purpose of sustaining and adding color to the picture which Hammer intended to draw of his client's well-known honesty and clean past.

Fully an hour before Judge Maxwell arrived to open court, the benches down toward the front were full. This vantage ground had been preempted mainly by the old men whose hearing was growing dim. They sat there with their old hands, as brown as blackberry roots, clasped over their sticks and umbrellas, their peaked old chins up, their eyes alert. Here and there among them sat an ancient dame, shawled and kerchiefed, for the day was chill; and from them all there rose the scent of dry tobacco-leaves, and out of their midst there sounded the rustling of paper-bags and the cracking of peanut-shells.

"Gosh m' granny!" said Captain Bill Taylor, deputy sheriff, as he stood a moment after placing a pitcher of water and a glass on the bench, ready for Judge Maxwell's hand. "They're here from Necessity to Tribulation!"

Of course the captain was stretching the territory represented by that gathering somewhat, for those two historic post offices lay farther away from Shelbyville than the average inhabitant of that country ever journeyed in his life. But there was no denying that they had come from surprising distances.

There was Uncle Posen Spratt, from Little Sugar Creek, with his steer's-horn ear trumpet; and there were Nick Proctor and his wife, July, from the hills beyond Destruction, seventeen miles over a road that pitched from end to end when it didn't slant from side to side, and took a shag-barked, sharp-shinned, cross-eyed wind-splitter to travel. There sat old Bev Munday, from Blue Cut, who hadn't been that far away from home since Jesse James got after him, with his old brown hat on his head; and it was two to one in the opinion of everybody that he'd keep it there till the sheriff ordered him to lift it off. Hiram Lee, from Sni-a-bar Township was over there in the corner where he could slant up and spit out of the window, and there was California Colboth, as big around the waist as a cow, right behind him. She had came over in her dish-wheeled buggy from Green Valley, and she was staying with her married son, who worked on the railroad and lived in that little pink-and-blue house behind the water-tank.

Oh, you could stand there—said Captain Taylor—and name all the old settlers for twenty-seven mile in a ring! But the captain hadn't the time, even if he was taken with the inclination, for the townspeople began to

come, and it was his duty to stand at the door and shut off the stream when all the benches were full.

That was Judge Maxwell's order; nobody was to be allowed to stand around the walls or in the aisles and jig and shuffle and kick up a disturbance just when the lawyers or witnesses might be saying something that the captain would be very anxious to hear. The captain indorsed the judge's mandate, and sustained his judgment with internal warmth.

General Bryant and Colonel Moss Punton came early, and sat opposite each other in the middle of the aisle, each on the end of a bench, where they could look across and exchange opinions, yet escape being crowded by the mongrel stock which was sure to come pouring in soon. A good many unnoted sons of distinguished fathers arrived in pairs and troops, with perfumery on their neckties and chewing-gum in their teeth; and their sisters, for the greater part as lovely as they were knotty, warty, pimply, and weak-shanked, came after them in churchlike decorum and settled down on the benches like so many light-winged birds. But not without a great many questioning glances and shy explorations around them, not certain that this thing was proper and admissible, it being such a mixed and dry-tobacco atmosphere. Seeing mothers here, grandfathers there, uncles and aunts, cousins and neighbors everywhere, they settled down, assured, to enjoy the day.

It was a delightfully horrid thing to be tried for murder, they said, even though one was obscure and nobody, a bound servant in the fields of the man whom he had slain. Especially if one came off clear.

Then Hammer arrived with three law-books under his arm. He was all sleek and shining, perfumed to the last possible drop. His alpaca coat had been replaced by a longer one of broadcloth, his black necktie surely was as dignified and somberly learned of droop as Judge Burns', or Judge Little's, or Attorney Pickell's, who got Perry Norris off for stealing old man Purvis' cow.

Mrs. Newbolt was there already, awaiting him at the railing which divided the lawyers from the lawed, lawing, and, in some cases, outlawed. She was so unobtrusive in her rusty black dress, which looked as if it were made of storm-streaked umbrellas, that nobody had noticed her.

Now, when they saw her stand and shake hands with Hammer, and saw Hammer obsequiously but conspicuously conduct her to a chair within the sacred precincts of the bar, there were whisperings and straightenings of

backs, and a stirring of feet with that concrete action which belongs peculiarly to a waiting, expectant crowd, but is impossible to segregate or individually define.

Judge Maxwell opened the door of his chamber, which had stood tall and dark and solemnly closed all morning just a little way behind the bench, and took his place. At the same moment the sheriff, doubtless timing himself to the smooth-working order, came in from the witness-room, opening from the court-room at the judge's right hand, with the prisoner.

Joe hesitated a little as the sheriff closed the door behind them, his hand on the prisoner's shoulder, as if uncertain of what was next required of him. The sheriff pushed him forward with commanding gesture toward the table at which Hammer stood, and Joe proceeded to cross the room in the fire of a thousand eyes.

It seemed to him that the sheriff might have made the entrance less spectacular, that he could have brought him sooner, or another way. That was like leading him across a stage, with the audience all in place, waiting the event. But Joe strode along ahead of the sheriff with his head up, his long, shaggy hair smoothed into some semblance of order, his spare garments short and outgrown upon his bony frame. His arms were ignominiously bound in the sheriff's handcuffs, linked together by half a foot of dangling chain.

That stirring sigh of mingled whispers and deep-drawn breaths ran over the room again; here and there someone half rose for a better look. The dim-eyed old men leaned forward to see what was coming next; Uncle Posen Spratt put up his steer's-horn trumpet as if to blow the blast of judgment out of his ear.

Joe sat in the chair which Hammer indicated; the sheriff released one hand from the manacles and locked the other to the arm of the chair. Then Captain Taylor closed the door, himself on the outside of it, and walked down to the front steps of the court-house with slow and stately tread. There he lifted his right hand, as if to command the attention of the world, and pronounced in loud voice this formula:

"Oy's, oy's, oy's! The hon'r'bl' circuit court of the *hum*teenth judicial district is now in session, pursu'nt t' 'j'urnm'nt!"

Captain Taylor turned about as the last word went echoing against the First National Bank, and walked slowly up the stairs. He opened the court-

room door and closed it; he placed his back against it, and folded his arms upon his breast, his eyes fixed upon a stain on the wall.

Judge Maxwell took up some papers from the desk, and spread one of them before him.

“In the matter of Case No. 79, State vs. Newbolt. Gentlemen, are you ready for trial?”

The judge spoke in low and confidential voice, meant for the attorneys at the bar only. It scarcely carried to the back of the room, filled with the sound-killing vapors from five hundred mouths, and many of the old men in the front seats failed to catch it, even though they cupped their hands behind their ears.

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Sam Lucas, prosecuting attorney, rose.

Slight and pale, with a thin chest and a stoop forward, he was distinguished by the sharp eyes beside his flat-bridged nose, so flattened out, it seemed, by some old blow, that they could almost communicate with each other across it. His light, loose hair was very long; when he warmed up in speaking he shook it until it tumbled about his eyes. Then it was his habit to sweep it back with the palm of his hand in a long, swinging movement of the arm. It was a most expressive gesture; it seemed as if by it he rowed himself back into the placid waters of reasoning. Now, as he stood before Judge Maxwell, he swept his palm over his forelock, although it lay snug and unruffled in its place.

“Your honor, the state is ready,” said he, and remained standing.

Hammer pushed his books along the table, shuffled his papers, and rose ponderously. He thrust his right hand into the bosom of his coat and leaned slightly against the left in an attitude of scholarly preparedness.

“Your honor, the defense is ready,” he announced.

CHAPTER XVI

“SHE COMETH NOT,” HE SAID

Joe, his face as white as some plant that has sprung in a dungeon, bent his head toward his mother, and placed his free hand on hers where it lay on the arm of her chair.

“It will soon be over with now, Mother,” he encouraged, with the hope in his heart that it would, indeed, be so.

With an underling in his place at the door, Captain Taylor advanced to take charge of the marshaling of the jury panel. There ensued a great bustling and tramping as the clerk called off the names of those drawn.

While this was proceeding, Joe cast his eyes about the room, animated by a double hope: that Alice would be there to hear him tell his story; that Morgan had come and was in waiting to supply the facts which honor sealed upon his own tongue. He could see only the first few rows of benches with the certainty of individual identification; they were filled with strangers. Beyond them it was conglomerate, that fused and merged thing which seemed a thousand faces, yet one; that blended and commingled mass which we call the public. Out of the mass Joe Newbolt could not sift the lean, shrewd face of Curtis Morgan, nor glean from it the brown hair of Alice Price.

The discovery that Alice was not there smote him with a feeling of sudden hopelessness and abandonment; the reproaches which he had kindled against himself in his solitary days in jail rose up in redoubled torture. He blamed the rashness of an unreasoning moment in which he had forgotten time and circumstance. Her interest was gone from him now, where, if he had waited for vindication, he might have won her heart.

But it was a dream, at the best, he confessed, turning away from his hungry search of the crowd, his head drooping forward in dejection. What did it matter for the world’s final exculpation, if Alice were not there to hear?

His mother nodded to somebody, and touched his hand. Ollie it was, whom she greeted. She was seated near at hand, beside a fat woman with a red and greasy face, whose air of protection and large interest proclaimed

her a relative. Joe thought that she filled pretty well the bill that Ollie had made out of her mother, on that day when she had scorned her for having urged her into marriage with Isom.

Ollie was very white in her black mourning dress, and thinner of features than when he had seen her last. She smiled, and nodded to him, with an air of timid questioning, as if doubtful whether he had expected it, and uncertain how it would be received. Joe bowed his head, respectfully.

What a wayside flower she seemed, thought he; how common beside Alice! Yet, she had been bright and refreshing in the dusty way where he had found her. He wondered why she was not within the rail also, near Hammer, if she was for him; or near the prosecutor, if she was on the other side.

He was not alone in this speculation. Many others wondered over that point also. It was the public expectation that she naturally would assist the state in the punishment of her husband's slayer; but Sam Lucas was not paying the slightest attention to her, and it was not known whether he even had summoned her as a witness.

And now Captain Taylor began to create a fresh commotion by clearing the spectators from the first row of benches to make seats for the jury panel. Judge Maxwell was waiting the restoration of order, leaning back in his chair. Joe scanned his face.

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Judge Maxwell was tall and large of frame, from which the study and abstemiousness of his life had worn all superfluous flesh. His face, cleanly shaved, was expressive of the scholarly attainments which made his decisions a national standard. The judge's eyes were bushed over with great, gray brows, the one forbidding cast in his countenance; they looked out upon those who came for judgment before him through a pair of spring-clamp spectacles which seemed to ride precariously upon his large, bony nose. The glasses were tied to a slender black braid, which he wore looped about his neck.

His hair was long, iron-gray, and thick; he wore it brushed straight back from his brow, without a parting or a break. It lay in place so smoothly and persistently through all the labor of his long days, that strangers were sometimes misled into the belief that it was not his own. This peculiar fashion of dressing his hair, taken with the length and leanness of his jaw, gave the judge a cast of aquiline severeness which his gray eyes belied

when they beamed over the tops of his glasses at floundering young counsel or timid witness.

Yet they could shoot darts of fire, as many a rash lawyer who had fallen under their censure could bear witness. At such moments the judge had a peculiar habit of drawing up his long back and seemingly to distend himself with all the dignity which his cumulative years and honors had endured, and of bowing his neck to make the focus of his eyes more direct as he peered above his rimless glasses. He did not find it necessary to reprimand an attorney often, never more than once, but these occasions never were forgotten. In his twenty-five years' service on the bench, he never had been reversed.

Joe felt a revival of hope again under the influence of these preparations for the trial. Perhaps Alice was there, somewhere among the people back in the room, he thought. And the colonel, also, and maybe Morgan. Who could tell? There was no use in abandoning hope when he was just where he could see a little daylight.

Joe sat up again, and lifted his head with new confidence. His mother sat beside him, watching everything with a sharpness which seemed especially bent on seeing that Joe was given all his rights, and that nothing was omitted nor slighted that might count in his favor.

She watched Hammer, and Captain Taylor; she measured Sam Lucas, the prosecutor, and she weighed the judge. When Hammer did something that pleased her, she nodded; when the prosecutor interposed, or seemed to be blocking the progress of the case, she shook her head in severe censure.

And now Joe came in for his first taste of the musty and ancient savor of the law. He had hoped that morning to walk away free at evening, or at least to have met the worst that was to come, chancing it that Morgan failed to appear and give him a hand. But he saw the hours waste away with the most exasperating fiddling, fussing and scratching over unprofitable straw.

What Hammer desired in a juryman, the prosecuting attorney was hotly against, and what pleased the state's attorney seemed to give Hammer a spasmodic chill. Instead of selecting twelve intelligent men, the most intelligent of the sixty empaneled, both Hammer and the prosecutor seemed determined to choose the most dense.

That day's sweating labor resulted in the selection of four jurymen. Hammer seemed cheered. He said he had expected to exhaust the panel and

get no more than two, at the best. Now it seemed as if they might secure the full complement without drawing another panel, and that would save them at least four days. That must have been an exceedingly lucky haul of empty heads, indeed.

Joe could not see any reason for elation. The prospect of freedom—or the worst—had withdrawn so far that there was not even a pin-point of daylight in the gloom. Alice had not shown her face. If she had come at all, she had withheld herself from his hungry eyes. His heart was as bleak that night as the mind of the densest juryman agreed upon between Hammer and the attorney for the state.

Next day, to the surprise of everybody, the jury was completed. And then there followed, on the succeeding morning, a recital by the prosecuting attorney of what he proposed and expected to prove in substantiation of the charge that Joe Newbolt had shot and killed Isom Chase; and Hammer's no shorter statement of what he was prepared to show to the contrary.

Owing to the unprecedented interest, and the large number of people who had driven in from the country, Judge Maxwell unbent from his hard conditions on that day. He instructed Captain Taylor to admit spectators to standing-room along the walls, but to keep the aisles between the benches clear.

This concession provided for at least a hundred more onlookers and listeners, who stood forgetful of any ache in their shanks throughout the long and dragging proceedings well satisfied, believing that the coming sensations would repay them for any pangs of inconvenience they might suffer.

It was on the afternoon of the third day of the trial that Sol Greening, first witness for the state, was called.

Sol retailed again, in his gossipy way, and with immense enjoyment of his importance, the story of the tragedy as he had related it at the inquest. Sam Lucas gave him all the rope he wanted, even led him into greater excursions than Sol had planned. Round-about excursions, to be sure, and inconsequential in effect, but they all led back to the tragic picture of Joe Newbolt standing beside the dead body of Isom Chase, his hat in his hand, as if he had been interrupted on the point of escape.

Sol seemed a wonderfully acute man for the recollection of details, but there was one thing that had escaped his memory. He said he did not

remember whether, when he knocked on the kitchen door, anybody told him to come in or not. He was of the opinion, to the best of his knowledge and belief—the words being supplied by the prosecutor—that he just knocked, and stood there blowing a second or two, like a horse that had been put to a hard run, and then went in without being bidden. Sol believed that was the way of it; he had no recollection of anybody telling him to come in.

When it came Hammer's turn to question the witness, he rose with an air of patronizing assurance. He called Sol by his first name, in easy familiarity, although he never had spoken to him before that day. He proceeded as if he intended to establish himself in the man's confidence by gentle handling, and in that manner cause him to confound, refute and entangle himself by admissions made in gratitude.

But Sol was a suspicious customer. He hesitated and he hummed, backed and sidled, and didn't know anything more than he had related. The bag of money which had been found with Isom's body had been introduced by the state for identification by Sol. Hammer took up the matter with a sudden turn toward sharpness and belligerency.

"You say that this is the same sack of money that was there on the floor with Isom Chase's body when you entered the room?" he asked.

"That's it," nodded Sol.

"Tell this jury how you know it's the same one!" ordered Hammer, in stern voice.

"Well, I seen it," said Sol.

"Oh, yes, you saw it. Well, did you go over to it and make a mark on it so you'd know it again?"

"No, I never done that," admitted Sol.

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"Don't you know the banks are full of little sacks of money like that?" Hammer wanted to know.

"I reckon maybe they air," Sol replied.

"And this one might be any one of a thousand like it, mightn't it, Sol?"

"Well, I don't reckon it could. That's the one Isom had."

"Did you step over where the dead body was at and heft it?"

"'Course I never," said Sol.

"Did you open it and count the money in it, or tie a string or something onto it so you'd know it when you saw it again?"

"No, I never," said Sol sulkily.

“Then how do you know this is it?”

“I tell you I seen it,” persisted Sol.

“Oh, you seen it!” repeated Hammer, sweeping the jury a cunning look as if to apprise them that he had found out just what he wanted to know, and that upon that simple admission he was about to turn the villainy of Sol Greening inside out for them to see with their own intelligent eyes.

“Yes, I said I seen it,” maintained Sol, bristling up a little.

“Yes, I heard you say it, and now I want you to tell this jury how you *know!*”

Hammer threw the last word into Sol’s face with a slam that made him jump. Sol turned red under the whiskers, around the whiskers, and all over the uncovered part of him. He shifted in his chair; he swallowed.

“Well, I don’t just know,” said he.

“No, you don’t—just—know!” sneered Hammer, glowing in oily triumph. He looked at the jury confidentially, as on the footing of a shrewd man with his equally shrewd audience.

Then he took up the old rifle, and Isom’s bloody coat and shirt, which were also there as exhibits, and dressed Sol down on all of them, working hard to create the impression in the minds of the jurors that Sol Greening was a born liar, and not to be depended on in the most trivial particular.

Hammer worked himself up into a sweat and emitted a great deal of perfume of barberish—and barbarous—character, and glanced around the court-room with triumph in his eyes and satisfaction at the corners of his mouth.

He came now to the uncertainty of Sol’s memory on the matter of being bidden to enter the kitchen when he knocked. Sol had now passed from doubt to certainty. Come to think it over, said he, nobody had said a word when he knocked at that door. He remembered now that it was as still inside the house as if everybody was away.

Mrs. Greening was standing against the wall, having that moment returned to the room from ministering to her daughter’s baby. She held the infant in her arms, waiting Sol’s descent from the witness-chair so she might settle down in her place without disturbing the proceedings. When she heard her husband make this positive declaration, her mouth fell open and her eyes widened in surprise.

“Why Sol,” she spoke up reprovably, “you told me Joe—”

It had taken the prosecuting attorney that long to glance around and spring to his feet. There his voice, in a loud appeal to the court for the protection of his sacred rights, drowned that of mild Mrs. Greening. The judge rapped, the sheriff rapped; Captain Taylor, from his post at the door, echoed the authoritative sound.

Hammer abruptly ceased his questioning of Sol, after the judge had spoken a few crisp words of admonishment, not directed in particular at Mrs. Greening, but more to the public at large, regarding the decorum of the court. Sam Lucas thereupon took Sol in hand again, and drew him on to replace his former doubtful statement by his later conclusion. As Sol left the witness-chair Hammer smiled. He handed Mrs. Greening's name to the clerk, and requested a subpoena for her as a witness for the defense.

Sol's son Dan was the next witness, and Hammer put him through a similar course of sprouts. Judge Maxwell allowed Hammer to disport uncurbed until it became evident that, if given his way, the barber-lawyer would drag the trial out until Joe was well along in middle life. He then admonished Hammer that there were bounds fixed for human existence, and that the case must get on.

Hammer was a bit uppish and resentful. He stood on his rights; he invoked the sacred constitution; he referred to the revised statutes; he put his hand into his coat and spread his legs to make a memorable protest.

Judge Maxwell took him in hand very kindly and led safely past the point of explosion with a smile of indulgence. With that done, the state came to Constable Bill Frost and his branching mustaches, which he had trimmed up and soaped back quite handsomely.

To his own credit and the surprise of the lawyers who were watching the case, Hammer made a great deal of the point of Joe having gone to Frost, voluntarily and alone, to summon him to the scene of the tragedy. Frost admitted that he had believed Joe's story until Sol Greening had pointed out to him the suspicious circumstances.

"So you have to have somebody else to do your thinkin' for you, do you?" said Hammer. "Well, you're a fine officer of the law and a credit to this state!"

"I object!" said the prosecuting attorney, standing up in his place, very red around the eyes.

The judge smiled, and the court-room tittered. The sheriff looked back over his shoulder and rapped the table for order.

“Comment is unnecessary, Mr. Hammer,” said the judge. “Proceed with the case.”

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And so that weary day passed in trivial questioning on both sides, trivial bickerings, and waste of time, to the great edifications of everybody but Joe and his mother, and probably the judge. Ten of the state’s forty witnesses were disposed of, and Hammer was as moist as a jug of cold water in a shock of wheat.

When the sheriff started to take Joe back to jail, the lad stood for a moment searching the breaking-up and moving assembly with longing eyes. All day he had sat with his back to the people, not having the heart to look around with that shameful handcuff and chain binding his arm to the chair. If Alice had been there, or Colonel Price, neither had come forward to wish him well.

There were Ollie and her mother, standing as they had risen from their bench, waiting for the crowd ahead of them to set in motion toward the door, and here and there a face from his own neighborhood. But Alice was not among them. She had withdrawn her friendship from him in his darkest hour.

Neither had Morgan appeared to put his shoulder under the hard-pressing load and relieve him of its weight. Day by day it was growing heavier; but a little while remained until it must crush out his hope forever. Certainly, there was a way out without Morgan; there was a way open to him leading back into the freedom of the world, where he might walk again with the sunlight on his face. A word would make it clear.

But the sun would never strike again into his heart if he should go back to it under that coward’s reprieve, and Alice—Alice would scorn his memory.

CHAPTER XVII

THE BLOW OF A FRIEND

Progress was swifter the next day. The prosecuting attorney, apparently believing that he had made his case, dismissed many of his remaining witnesses who had nothing to testify to in fact. When he announced that the state rested, there was a murmur and rustling in the room, and audibly expressed wonderment over what the public thought to be a grave blunder on Sam Lucas's part.

The state had not called the widow of Isom Chase to the stand to give testimony against the man accused of her husband's murder. The public could not make it out. What did it mean? Did the prosecutor hold her more of an enemy than a friend to his efforts to convict the man whose hand had made her a widow? Whispers went around, grave faces were drawn, wise heads wagged. Public charity for Ollie began to falter.

"Him and that woman," men said, nodding toward Joe, sitting pale and inscrutable beside his blustering lawyer.

The feeling of impending sensation became more acute when it circulated through the room, starting from Captain Taylor at the inner door, that Ollie had been summoned as a witness for the defense; Captain Taylor had served the subpoena himself.

"Well, in that case, Sam Lucas knew what he was doing," people allowed. "Just wait!" It was as good as a spirituous stimulant to their lagging interest. "Just you wait till Sam Lucas gets hold of her," they said.

Hammer began the defense by calling his character witnesses and establishing Joe's past reputation for "truth and veracity and general uprightness."

There was no question in the character which Joe's neighbors gave him. They spoke warmly of his past record among them, of his fidelity to his word and obligation, and of the family record, which Hammer went into with free and unhampered hand.

The prosecutor passed these witnesses with serene confidence. He probably believed that his case was already made, people said, or else he was reserving his fire for Isom's widow, who, it seemed to everybody, had

turned against nature and her own interests in allying herself with the accused.

The morning was consumed in the examination of these character witnesses, Hammer finishing with the last of them just before the midday adjournment. The sheriff was preparing to remove the prisoner. Joe's hand had been released from the arm of the chair, and the officer had fastened the iron around his wrist. The proceeding always struck Joe with an overwhelming wave of degradation and now he stood with bowed head and averted face.

"Come on," said the sheriff, goggling down at him with froggish eyes from his vantage on the dais where the witness-chair stood, his long neck on a slant like a giraffe's. The sheriff took great pleasure in the proceeding of attaching the irons. It was his one central moment in the eyes of the throng.

Joe looked up to march ahead of the sheriff out of the room, and his eyes met the eyes of Alice. She was not far away, and the cheer of their quick message was like a spoken word. She was wearing the same gray dress that she had worn on that day of days, with the one bright feather in her bonnet, and she smiled, nodding to him. And then the swirl of bobbing heads and moving bodies came between them and she was lost. 261

He looked for her again as the sheriff pushed him along toward the door, but the room was in such confusion that he could not single her out. The judge had gone out through his tall, dark door, and the court-room was no longer an awesome place to those who had gathered for the trial. Men put their hats on their heads and lit their pipes, and bit into their twists and plugs of tobacco and emptied their mouths of the juices as they went slowly toward the door.

Mrs. Greening was the first witness called by Hammer after the noon recess. Hammer quickly discovered his purpose in calling her as being nothing less than that of proving by her own mouth that her husband, Sol, was a gross and irresponsible liar.

Hammer went over the whole story of the tragedy—Mrs. Greening having previously testified to all these facts as a witness for the state—from the moment that Sol had called her out of bed and taken her to the Chase home to support the young widow in her hour of distraction and fear. By slow and lumbering ways he led her, like a blind horse floundering along a heavy

road, through the front door, up the stairs into Ollie's room, and then, in his own time and fashion, he arrived at what he wanted to ask.

"Now I want you to tell this jury, Mrs. Greening, if at any time, during that night or thereafter, you discussed or talked of or chatted about the killing of Isom Chase with your husband?" asked Hammer.

"Oh laws, yes," said Mrs. Greening.

The prosecuting attorney was rising slowly to his feet. He seemed concentrated on something; a frown knotted his brow, and he stood with his open hand poised as if to reach out quickly and check the flight of something which he expected to wing in and assail the jury.

Said Hammer, after wiping his glistening forehead with a yellow silk handkerchief:

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"Yes. And now, Mrs. Greening, I will ask you if at any time your husband ever told you what was said, if anything, by any party inside of that house when he run up to the kitchen door that night and knocked?"

"I object!" said the prosecutor sharply, flinging out his ready hand.

"Don't answer that question!" warned the judge.

Mrs. Greening had it on her lips; anybody who could read print on a signboard could have told what they were shaped to say. She held them there in their preliminary position of enunciation, pursed and wrinkled, like the tied end of a sausage-link.

"I will frame the question in another manner," said Hammer, again feeling the need of his large handkerchief.

"There is no form that would be admissible, your honor," protested the prosecutor. "It is merely hearsay that the counsel for the defense is attempting to bring out and get before the jury. I object!"

"Your course of questioning, Mr. Hammer, is highly improper, and in flagrant violation to the established rules of evidence," said the judge. "You must confine yourself to proof by this witness of what she, of her own knowledge and experience, is cognizant of. Nothing else is permissible."

"But, your honor, I intend to show by this witness that when Sol Greening knocked on that door—"

"I object! She wasn't present; she has testified that she was at home at that time, and in bed."

This from the prosecutor, in great heat.

"Your honor, I intend to prove—" began Hammer.

“This line of questioning is not permissible, as I told you before,” said the judge in stern reproof.

But Hammer was obdurate. He was for arguing it, and the judge ordered the sheriff to conduct the jury from the room. Mrs. Greening, red and uncomfortable, and all at sea over it, continued sitting in the witness-chair while Hammer laid it off according to his view of it, and the prosecutor came back and tore his contentions to pieces.

The judge, for no other purpose, evidently, than to prove to the defendant and public alike that he was unbiased and fair—knowing beforehand what his ruling must be—indulged Hammer until he expended his argument. Then he laid the matter down in few words.

Mrs. Greening had not been present when her husband knocked on the door of Isom Chase’s kitchen that night; she did not know, therefore, of her own experience what was spoken. No matter what her husband told her he said, or anybody else said, she could not repeat the words there under oath. It would be hearsay evidence, and such evidence was not admissible in any court of law. No matter how important such testimony might appear to one seeking the truth, the rules of evidence in civilized courts barred it. Mrs. Greening’s lips must remain sealed on what Sol said Joe said, or anybody said to someone else.

So the jury was called back, and Mrs. Greening was excused, and Hammer wiped off the sweat and pushed back his cuffs. And the people who had come in from their farmsteads to hear this trial by jury—all innocent of the traditions and precedents of practice of the law—marveled how it could be. Why, nine people out of nine, all over the township where Sol Greening lived, would take his wife’s word for anything where she and Sol had different versions of a story.

It looked to them like Sol had told the truth in the first place to his wife, and lied on the witness-stand. And here she was, all ready to show the windy old rascal up, and they wouldn’t let her. Well, it beat all two o’clock!

Of course, being simple people who had never been at a university in their lives, they did not know that Form and Precedent are the two pillars of Strength and Beauty, the Jachin and Boaz at the entrance of the temple of the law. Or that the proper genuflections before them are of more importance than the mere bringing out of a bit of truth which might save an accused man’s life.

And so it stood before the jury that Sol Greening had knocked on the door of Isom Chase's kitchen that night and had not been bidden to enter, when everybody in the room, save the jury of twelve intelligent men—who had been taken out to keep their innocence untainted and their judgment unbiased by a gleam of the truth—knew that he had sat up there and lied.

Hammer cooled himself off after a few minutes of mopping, and called Ollie Chase to the witness-chair. Ollie seemed nervous and full of dread as she stood for a moment stowing her cloak and handbag in her mother's lap. She turned back for her handkerchief when she had almost reached the little gate in the railing through which she must pass to the witness-chair. Hammer held it open for her and gave her the comfort of his hand under her elbow as she went forward to take her place.

A stir and a whispering, like a quick wind in a cornfield, moved over the room when Ollie's name was called. Then silence ensued. It was more than a mere listening silence; it was impertinent. Everybody looked for a scandal, and most of them hoped that they should not depart that day with their long-growing hunger unsatisfied.

Ollie took the witness-chair with an air of extreme nervousness. As she settled down in her cloud of black skirt, black veil, and shadow of black sailor hat, she cast about the room a look of timid appeal. She seemed to be sounding the depths of the listening crowd's sympathy, and to find it shallow and in shoals.

Hammer was kind, with an unctuous, patronizing gentleness. He seemed to approach her with the feeling that she might say a great deal that would be damaging to the defendant if she had a mind to do it, but with gentle adroitness she could be managed to his advantage. Led by a question here, a helping reminder there, Ollie went over her story, in all particulars the same as she had related at the inquest.

Hammer brought out, with many confidential glances at the jury, the distance between Ollie's room and the kitchen; the fact that she had her door closed, that she had gone to bed heavy with weariness, and was asleep long before midnight; that she had been startled by a sound, a strange and mysterious sound for that quiet house, and had sat up in her bed listening. Sol Greening had called her next, in a little while, even before she could master her fright and confusion and muster courage to run down the hall and call Joe.

Hammer did well with the witness; that was the general opinion, drawing from her a great deal about Joe's habit of life in Isom's house, a great deal about Isom's temper, hard ways, and readiness to give a blow.

She seemed reluctant to discuss Isom's faults, anxious, rather, to ease them over after the manner of one whose judgment has grown less severe with the lapse of time.

Had he ever laid hands on her in temper? Hammer wanted to know.

"Yes." Her reply was a little more than a whisper, with head bent, with tears in her sad eyes. Under Hammer's pressure she told about the purchase of the ribbon, of Isom's iron hand upon her throat.

The women all over the room made little sounds of pitying deprecation of old Isom's penury, and when Hammer drew from her, with evident reluctance on her part to yield it up, the story of her hard-driven, starved, and stingy life under Isom's roof, they put their handkerchiefs to their eyes.

All the time Ollie was following Hammer's kind leading, the prosecuting attorney was sitting with his hands clasped behind his head, balancing his weight on the hinder legs of his chair, his foot thrown over his knee. Apparently he was bored, even worried, by Hammer's pounding attempts to make Isom out a man who deserved something slower and less merciful than a bullet, years before he came to his violent end.

Through it all Joe sat looking at Ollie, great pity for her forlorn condition and broken spirit in his honest eyes. She did not meet his glance, not for one wavering second. When she went to the stand she passed him with bent head; in the chair she looked in every direction but his, mainly at her hands, clasped in her lap.

At last Hammer seemed skirmishing in his mind in search of some stray question which might have escaped him, which he appeared unable to find. He turned his papers, he made a show of considering something, while the witness sat with her head bowed, her half-closed eyelids purple from much weeping, worrying, and watching for the coming of one who had taken the key to her poor, simple heart and gone his careless way.

"That's all, Missis Chase," said Hammer.

Ollie leaned over, picked up one of her gloves that had fallen to the floor, and started to leave the chair. Her relief was evident in her face. The prosecutor, suddenly alive, was on his feet. He stretched out his arm, staying her with a commanding gesture.

“Wait a minute, Mrs. Chase,” said he.

A stir of expectation rustled through the room again as Ollie resumed her seat. People moistened their lips, suddenly grown hot and dry.

“Now, just watch Sam Lucas!” they said.

“Now, Mrs. Chase,” began the prosecutor, assuming the polemical attitude common to small lawyers when cross-examining a witness; “I’ll ask you to tell this jury whether you were alone in your house with Joe Newbolt on the night of October twelfth, when Isom Chase, your husband, was killed?”

“Yes, sir.”

“This man Morgan, the book-agent, who had been boarding with you, had paid his bill and gone away?”

“Yes, sir.”

“And there was absolutely nobody in the house that night but yourself and Joe Newbolt?”

“Nobody else.”

“And you have testified, here on this witness-stand, before this court and this jury”—that being another small lawyer’s trick to impress the witness with a sense of his own unworthiness—“that you went to bed early that night. Now, where was Joe Newbolt?”

“I guess he was in bed,” answered Ollie, her lips white; “I didn’t go to see.”

“No, you didn’t go to see,” repeated the prosecutor with significant stress. “Very well. Where did your husband keep his money in the house?”

“I don’t know; I never saw any of it,” Ollie answered.

The reply drew a little giggling laugh from the crowd. It rose and died even while Captain Taylor’s knuckles were poised over the panel of the door, and his loud rap fell too late for all, save one deep-chested farmer in a far corner, who must have been a neighbor of old Isom. This man’s raucous mirth seemed a roar above the quiet of the packed room. The prosecutor looked in his direction with a frown. The sheriff stood up and peered over that way threateningly.

“Preserve order, Mr. Sheriff,” said the judge severely.

The sheriff pounded the table with his hairy fist. “Now, I tell you I don’t want to hear no more of this!” said he.

The prosecutor was shaken out of his pose a bit by the court-room laugh. There is nothing equal to a laugh for that, to one who is laboring to impress his importance upon the world. It took him some time to get back to his former degree of heat, skirmishing around with incidental questioning. He looked over his notes, pausing. Then he faced Ollie again quickly, leveling his finger like a pointer of direct accusation.

“Did Joe Newbolt ever make love to you?” he asked.

Joe’s face flushed with resentful fire; but Ollie’s white calm, forced and strained that it was, remained unchanged.

“No, sir; he never did.”

“Did he ever kiss you?”

“No, I tell you, he didn’t!” Ollie answered, with a little show of spirit.

Hammer rose with loud and voluble objections, which had, for the first time during the proceedings, Joe’s hearty indorsement. But the judge waved him down, and the prosecutor pressed his new line of inquisition.

“You and Joe Newbolt were thrown together a good deal, weren’t you, Mrs. Chase—you were left there alone in the house while your husband was away in the field, and other places, frequently?”

“No, not very much,” said Ollie, shaking her head.

“But you had various opportunities for talking together alone, hadn’t you?”

“I never had a chance for anything but work,” said Ollie wearily.

Unawed by the sheriff’s warning, the assembly laughed again. The sound ran over the room like a scudding cloud across a meadow, and when the sheriff stood again to set his censorious eye upon someone responsible, the last ripple was on the farther rows. Nobody can catch a laugh in a crowd; it is as evasive as a pickpocket. Nobody can turn with watchful eye upon it and tell in what face the ribald gleam first breaks. It is as impossible as the identification of the first stalk shaken when a breeze assails a field of grain.

The sheriff, not being deeper than another man, saw the fatuity of his labor. He turned to the court with a clownish gesture of the hands, expressive of his utter inability to stop this thing.

“Proceed with the case,” said the judge, understanding the situation better than the sheriff knew.

The prosecuting attorney labored away with Ollie, full of the feeling that something masked lay behind her pale reticence, some guilty conspiracy

between her and the bound boy, which would show the lacking motive for the crime. He asked her again about Morgan, how long she had known him, where he came from, and where he went—a question to which Ollie would have been glad enough to have had the answer herself.

He hung on to the subject of Morgan so persistently that Joe began to feel his throat drying out with a closing sensation which he could not swallow. He trembled for Ollie, fearing that she would be forced into telling it all. That was not a woman's story, thought he, with a heart full of resentment for the prosecutor. Let him wait till Morgan came, and then—

But what grounds had he now for believing Morgan might come? Unless he came within the next hour, his coming might be too late.

“You were in bed and asleep when the shot that killed your husband was fired, you have told the jury, Mrs. Chase?” questioned the prosecutor, dropping Morgan at last.

“Yes, sir.”

“Then how did it come that when Mrs. Greening and her daughter-in-law arrived a few minutes later you were all dressed up in a white dress?” 270

“I just slipped it on,” said she.

“You just slipped it on,” repeated the prosecutor, turning his eyes to the jury, and not even facing Mrs. Chase as he spoke, but reading into her words discredit, suspicion, and a guilty knowledge.

“It was the only one I had besides two old wrappers. It was the one I was married in, and the only one I could put on to look decent in before people,” said she.

A crowd is the most volatile thing in the world. It can laugh and sigh and groan and weep, as well as shout and storm, with the ease of an infant, and then immediately regain its immobility and fixed attention. With Ollie's simple statement a sound rose from it which was a denunciation and a curse upon the ashes of old Isom Chase. It was as if a sympathetic old lady had shaken her head and groaned:

“Oh, shame on you—shame!”

Hammer gave the jury a wide-sweeping look of satisfaction, and made a note on the tumbled pile of paper which lay in front of him.

The prosecutor was a man with congressional aspirations, and he did not care to prejudice his popularity by going too far in baiting a woman, especially one who had public sympathy in the measure that it was plainly

extended to Ollie. He eased up, descending from his heights of severity, and began to address her respectfully in a manner that was little short of apology for what his stern duty compelled him to do.

“Now I will ask you, Mrs. Chase, whether your husband and this defendant, Joe Newbolt, ever had words in your hearing?”

“Once,” Ollie replied.

“Do you recall the day?”

“It was the morning after Joe came to our house to work,” said she. 271

“Do you remember what the trouble was about and what said?”

“Well, they said a good deal,” Ollie answered. “They fussed because Joe didn’t get up when Isom called him.”

Joe felt his heart contract. It seemed to him that Ollie need not have gone into that; it looked as if she was bent not alone on protecting herself, but on fastening the crime on him. It gave him a feeling of uneasiness. Sweat came out on his forehead; his palms grew moist. He had looked for Ollie to stand by him at least, and now she seemed running away, eager to tell something that would sound to his discredit.

“You may tell the jury what happened that morning, Mrs. Chase.”

Hammer’s objection fell on barren ground, and Ollie told the story under the directions of the judge.

“You say there was a sound of scuffling after Isom called him?” asked the prosecutor.

“Yes, it sounded like Isom shook him and Joe jumped out of bed.”

“And what did Joe Newbolt say?”

“He said, ‘Put that down! I warned you never to lift your hand against me. If you hit me, I’ll kill you in your tracks!’”

“That’s what you heard Joe Newbolt say to your husband up there in the loft over your head?”

The prosecutor was eager. He leaned forward, both hands on the table, and looked at her almost hungrily. The jurymen shuffled their feet and sat up in their chairs with renewed interest. A hush fell over the room. Here was the motive at the prosecutor’s hand.

“That’s what he said,” Ollie affirmed, her gaze bent downward.

She told how Isom had come down after that, followed by Joe. And the prosecutor asked her to repeat what she had heard Joe say once more for the 272

benefit of the jury. He spoke with the air of a man who already has the game in the bag.

When the prosecutor was through with his profitable cross-examination, Hammer tried to lessen the effect of Ollie's damaging disclosure, but failed. He was a depressed and crestfallen man when he gave it up.

Ollie stepped down from the place of inquisition with the color of life coming again into her drained lips and cheeks, the breath freer in her throat. Her secret had not been torn from her fearful heart; she had deepened the cloud that hung over Joe Newbolt's head. "Let him blab now," said she in her inner satisfaction. A man might say anything against a woman to save his neck; she was wise enough and deep enough, for all her shallowness, to know that people were quick to understand a thing like that.

In passing back to her place beside her mother she had not looked at Joe. So she did not see the perplexity, anxiety, even reproach, which had grown in Joe's eyes when she testified against him.

"She had no need to do that," thought Joe, sitting there in the glow of the prosecutor's triumphant face. He had trusted Ollie to remain his friend, and, although she had told nothing but the truth concerning his rash threat against Isom, it seemed to him that she had done so with a studied intent of working him harm.

His resentment rose against Ollie, urging him to betray her guilty relations with Morgan and strip her of the protecting mantle which he had wrapped about her at the first. He wondered whether Morgan had not come and entered into a conspiracy with her to shield themselves. In such case what would his unfolding of the whole truth amount to, discredited as he already was in the minds of the jurors by that foolish threat which he had uttered against Isom in the thin dawn of that distant day? 273

Perhaps Alice had gone away, also, after hearing Ollie's testimony, in the belief that he was altogether unworthy, and already branded with the responsibility for that old man's death. He longed to look behind him and search the throng for her, but he dared not.

Joe bowed his head, as one overwhelmed by a sense of guilt and shame, yet never doubting that he had acted for the best when he assumed the risk on that sad night to shield his master's wife. It was a thing that a man must do, that a man would do again.

He did not know that Alice Price, doubting not him, but the woman who had just left the witness-stand and resumed her place among the people, was that moment searching out the shallow soul of Ollie Chase with her accusing eyes. She sat only a little way from Ollie, in the same row of benches, beside the colonel. She turned a little in her place so she could see the young widow's face when she came down from the stand with that new light in her eyes. Now she whispered to her father, and looked again, bending forward a little in a way that seemed impertinent, considering that it was Alice Price.

Ollie was disconcerted by this attention, which drew other curious eyes upon her. She moved uneasily, making a bustle of arranging herself and her belongings in the seat, her heart troubled with the shadow of some vague fear.

Why did Alice Price look at her so accusingly? Why did she turn to her father and nod and whisper that way? What did she know? What could she know? What was Joe Newbolt and his obscure life to Colonel Price's fine daughter, sitting there dressed better than any other woman in the room? Or what was Isom Chase, his life, his death, or his widow, to her?

Yet she had some interest beyond a passing curiosity, for Ollie could feel the concentration of these sober brown eyes upon her, even when she turned to avoid them. She recalled the interest that Colonel Price and his daughter had taken in Joe. People had talked of it at first. They couldn't understand it any more than she could. The colonel and his daughter had visited Joe in jail, and carried books to him, and treated him as one upon their own level.

What had Joe told them? Had the coward betrayed her?

Ollie was assailed again by all her old, dread fears. What if they should get up and denounce her? With all of Colonel Price's political and social influence, would not the public, and the judge and jury, believe Joe's story if he should say it was true? She believed now that it was all arranged for Joe to denounce her, and that timid invasion of color was stemmed in her cheeks again.

It was a lowering day, with a threat of unseasonable darkness in the waning afternoon. The judge looked at his watch; Captain Taylor stirred himself and pushed the shutters back from the two windows farthest from the bench, and let in more light.

People did not know just what was coming next, but the atmosphere of the room was charged with a foreboding of something big. No man would risk missing it by leaving, although rain was threatening, and long drives over dark roads lay ahead of many of the anxious listeners.

Hammer was in consultation with Joe and his mother. He seemed to be protesting and arguing, with a mighty spreading of the hands and shaking of the head. The judge was writing busily, making notes on his charge to the jury, it was supposed.

The prosecuting attorney took advantage of the momentary lull to get up and stretch his legs, which he did literally, one after the other, shaking his shanks to send down his crumpled pantaloons. He went to the window with lounging stride, hands in pockets, and pushed the sash a foot higher. There he stood, looking out into the mists which hung gray in the maple trees.

The jurymen, tired and unshaved, and over the momentary thrill of Ollie's disclosure, lolled and sprawled in the box. It seemed that they now accepted the thing as settled, and the prospect of further waiting was boresome. The people set up a little whisper of talk, a clearing of throats, a blowing of noses, a shifting of feet, a general preparation and readjustment for settling down again to absorb all that might fall.

The country folk seated in the vicinity of Alice Price, among whom her fame had traveled far, whom many of their sons had loved, and languished for, and gone off to run streetcars on her account, turned their freed attention upon her, nudging, gazing, gossiping.

"Purty as a picture, ain't she?"

"Oh, I don't know. You set her 'longside of Bessie Craver over at Pink Hill"—and so on.

The judge looked up from his paper suddenly, as if the growing sound within the room had startled him out of his thought. His face wore a fleeting expression of surprise. He looked at the prosecutor, at the little group in conference at the end of the table below him, as if he did not understand. Then his judicial poise returned. He tapped with his pen on the inkstand.

"Gentlemen, proceed with the case," said he.

The prosecuting attorney turned from the window with alacrity, and Hammer, sweating and shaking his head in one last gesture of protest to his client—who leaned back and folded his arms, with set and stubborn face—rose ponderously. He wiped his forehead with his great, broad handkerchief,

and squared himself as if about to try a high hurdle or plunge away in a race.

“Joseph Newbolt, take the witness-chair,” said he.

CHAPTER XVIII

A NAME AND A MESSAGE

When Hammer called his name, Joe felt a revival of his old desire to go to the witness-chair and tell Judge Maxwell all about it in his own way, untenable and dangerous as his position had appeared to him in his hours of depression. Now the sheriff released his arm, and he went forward eagerly. He held up his hand solemnly while the clerk administered the oath, then took his place in the witness-chair. Ollie's face was the first one that his eyes found in the crowd.

It seemed as if a strong light had been focused upon it, leaving the rest of the house in gloom. The shrinking appeal which lay in her eyes moved him to pity. He strove to make her understand that the cunning of the sharpest lawyer could set no trap which would surprise her secret from him, nor death itself display terrors to frighten it out of his heart.

It seemed that a sunbeam broke in the room then, but perhaps it was only the clearing away of doubt and vacillation from his mind, with the respectable feeling that he had regained all the nobility which was slipping from him, and had come back to a firm understanding with himself.

And there was Alice, a little nearer to the bar than he had expected to see her. Her face seemed strained and anxious, but he could not tell whether her sympathy was dearer, her feeling softer for him in that hour than it would have been for any other man. Colonel Price had yielded his seat to a woman, and now he stood at the back of the room in front of the inner door as a privileged person, beside Captain Taylor. 277

Mrs. Newbolt sat straight-backed and expectant, her hand on the back of Joe's empty chair, while the eager people strained forward to possess themselves of the sensation which they felt must soon be loosed among them.

Joe's hair had grown long during his confinement. He had smoothed it back from his forehead and tucked it behind his ears. The length of it, the profusion, sharpened the thinness of his face; the depth of its blackness drew out his pallor until he seemed all bloodless and cold.

Three inches of great, bony arm showed below his coat sleeves; that spare garment buttoned across his chest, strained at its seams. Joe wore the boots which he had on when they arrested him, scarred and work-worn by the stubble and thorns of Isom Chase's fields and pastures. His trousers were tucked into their wrinkled tops, which sagged half-way down his long calves.

Taken in the figure alone, he was uncouth and oversized in his common and scant gear. But the lofty nobility of his severe young face and the high-lifting forehead, proclaimed to all who were competent in such matters that it was only his body that was meanly clad.

Hammer began by asking the usual questions regarding nativity and age, and led on with the history of Joe's apprenticeship to Chase, the terms of it, its duration, compensation; of his treatment at his master's hands, their relations of friendliness, and all that. There was a little tremor and unsteadiness in Joe's voice at first, as of fright, but this soon cleared away, and he answered in steady tones.

The jurors had straightened up out of their wearied apathy, and were listening now with all ears. Joe did not appear to comprehend their importance in deciding his fate, people thought, seeing that he turned from them persistently and addressed the judge.

Joe had taken the stand against Hammer's advice and expectation, for he had hoped in the end to be able to make his client see the danger of such a step unless he should go forward in the intention of revealing everything. Now the voluble lawyer was winded. He proceeded with extreme caution in his questioning, like one walking over mined ground, fearing that he might himself lead his client into some fateful admission.

They at length came down to the morning that Isom went away to the county-seat to serve on the jury, and all had progressed handsomely. Now Joe told how Isom had patted him on the shoulder that morning, for it had been the aim of Hammer all along to show that master and man were on the most friendly terms, and how Isom had expressed confidence in him. He recounted how, in discharge of the trust that Isom had put in him, he had come downstairs on the night of the tragedy to look around the premises, following in all particulars his testimony on this point before the coroner's jury.

Since beginning his story, Joe had not looked at Ollie. His attention had been divided between Hammer and the judge, turning from one to the other.

He addressed the jury only when admonished by Hammer to do so, and then he frequently prefaced his reply to Hammer's question with:

"I beg your pardon, gentlemen," as if he feared he might have hurt their feelings by his oversight.

Ollie was cold with apprehension as Joe approached the point in his recital where the danger lay for her. He seemed now to be unaware of her presence, and the fact that he did not seek to assure her with his eyes gave a somber color to her doubts. She knew Hammer's crafty reputation, and understood his eagerness to bring his client off clear. Perhaps he had worked on Joe to make a clean breast of it. Maybe he was going to tell.

All her confidence of a little while ago dissolved, the ease which followed her descent from the witness-chair vanished. She plucked at her dark vestments with trembling hands, her lips half open, her burning eyes on Joe's unmoved face. If he should tell before all these people, before that stern, solemn judge—if he should tell!

Joe went on with his story, Hammer endeavoring to lead him, to the best of his altogether inadequate ability, around the dangerous shoals. But there was no avoiding them. When it came to relating the particulars of the tragedy, Hammer left it all to Joe, and Joe told the story, in all essentials, just as he had told it under the questioning of the coroner.

"We had some words, and Isom started for the gun," said he.

He went over how he had grappled with Isom in an endeavor to prevent him turning the gun against him; told of the accidental discharge of the weapon; the arrival of Sol Greening.

Judge Maxwell leaned back in his chair and listened, his face a study of perplexity and interest. Now and then he lifted his drooping lids and shot a quick, searching glance at the witness, as if seeking to fathom the thing that he had covered—the motive for Isom Chase's act. It was such an inadequate story, yet what there was of it was undoubtedly true.

After Hammer had asked further questions tending to establish the fact of good feeling and friendship between Joe and Isom, he gave it over, knowing full well that Joe had set back his chances of acquittal further than he had advanced them by his persistency in testifying as he had done.

The jury was now in a fog of doubt, as anybody with half an eye could see, and there was Sam Lucas waiting, his eyes glistening, his hard lips set in anticipation of the coming fight.

“Take the witness,” said Hammer, with something in his manner like a sigh.

The prosecuting attorney came up to it like a hound on the scent. He had been waiting for that day. He proceeded with Joe in a friendly manner, and went over the whole thing with him again, from the day that he entered Isom’s house under bond service to the night of the tragedy. Sam Lucas went with Joe to the gate; he stood with him in the moonlight there; then he accompanied him back to the house, clinging to him like his own garments.

“And when you opened the kitchen door and stepped inside of that room, what did you do?” asked the prosecutor, arranging the transcript of Joe’s testimony before the coroner’s jury in his hands.

“I lit the lamp,” said Joe.

“Yes; you lit the lamp. Now, *why* did you light the lamp?”

“Because I wanted to see,” replied Joe.

“Exactly. You wanted to see.”

Here the prosecutor moved his eyes slowly along the two rows of jurors as if he wanted to make certain that none of them had escaped, and as if he desired to see that every one of them was alert and wakeful for what he was about to develop.

“Now, tell the jury *what* you wanted to see.”

“Object!” from Hammer, who rose with his right hand held high, his small finger and thumb doubled in his palm, like a bidder at an auction.

“Now, your honor, am I to be—” began the prosecutor with wearied patience.

“Object!” interrupted Hammer, sweating like a haymaker.

“To *what* do you object, Mr. Hammer?” asked the court mildly.

“To anything and everything he’s about to ask!” said Hammer hotly. 281

The court-room received this with a laugh, for there were scores of cornfield lawyers present. The judge smiled, balancing a pen between finger and thumb.

“The objection is overruled,” said he.

“When you lit that lamp, what did you want to see?” the prosecutor asked again.

“I wanted to see my way upstairs,” Joe answered.

The prosecutor threw off his friendly manner like a rustic flinging his coat for a fight. He stepped to the foot of the dais on which the witness

chair stood, and aimed his finger at Joe's face.

"What were you carrying in your hand?" he demanded, advancing his finger a little with every word, as if it held the key to the mystery, and it was about to be inserted in the lock.

"Nothing, sir."

"What had you hidden in that room that you wanted a light to find?"

Ha, he's coming down to it now! whispered the people, turning wise looks from man to man. Uncle Posen Spratt set his horn trumpet to his ear, gave it a twist and settled the socket of it so firmly that not a word could leak out on the way.

"I hadn't hidden anything, sir," said Joe.

"Where did Isom Chase keep his money?"

"I don't know."

"Had you ever seen him putting any of it away around the barn, or in the haystack, maybe?"

"No, I never did, sir," Joe answered, respectfully.

The prosecutor took up the now historic bag of gold-pieces and held it up before the witness.

"When did you first see this bag of money?" he asked, solemn and severe of voice and bearing.

"When Isom was lying on the floor, after he was shot."

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"You didn't see it when he was trying to get the gun, and when you say you were struggling with him, doing the best you could to hold him back?"

Joe turned to the judge when he answered.

"It might have been that Isom had it in his arm, sir, when he made for the place where the gun was hanging. I don't know. But he tried to keep me off, and he hugged one arm to his side like he was trying to hide something he didn't want me to see."

"You never saw that bag of money until the moment that Isom Chase fell, you say," said the prosecutor, "but you have testified that the first words of Isom Chase when he stepped into the kitchen and saw you, were 'I'll kill you!' Why did he make that threat?"

"Well, Isom was a man of unreasonable temper," said Joe.

"Isn't it a fact that Isom Chase saw you with that bag of money in your hand when he came in, and sprang for the gun to protect his property?"

Joe turned to the judge again, with an air of respectful patience.

“I never saw that little pouch of money, Judge Maxwell, sir, until Isom fell, and lay stretched out there on the floor. I never saw that much money before in my life, and I expect that I thought more about it for a minute than I did about Isom. It all happened so quick, you know, sir.”

Joe spoke the last words with a covert appeal in them, as if placing the matter before the judge alone, in the confidence of his superior understanding, and the belief that he would feel their truth.

The judge seemed to understand. He nodded encouragingly and smiled.

“Do you recall the morning after your arrival at the home of Isom Chase to begin your service there, when you threatened to kill him?” asked the prosecutor.

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“I do recall that morning,” admitted Joe; “but I don’t feel that it’s fair to hold me to account for words spoken in sudden anger and under trying circumstances. A young person, you know, sir”—addressing the judge—“oftentimes says things he don’t mean, and is sorry for the next minute. You know how hot the blood of youth is, sir, and how it drives a person to say more than he means sometimes.”

“Now, your honor, this defendant has counsel to plead for him at the proper time,” complained the prosecutor, “and I demand that he confine himself to answering my questions without comment.”

“Let the witness explain in his own way,” said the judge, who probably felt that this concession, at least, was due a man on trial for his life. There was a finality in his words which did not admit of dispute, and the prosecuting attorney was wise enough not to attempt it.

“You threatened to kill Isom Chase that morning when he laid hands on you and pulled you out of bed. Your words were, as you have heard Mrs. Chase testify under oath in that very chair where you now sit, ‘If you hit me, I’ll kill you in your tracks!’ Those were your words, were they not?”

“I expect I said something like that—I don’t just remember the exact words now—but that was what I wanted him to understand. I don’t think I’d have hurt him very much, though, and I couldn’t have killed him, because I wasn’t armed. It was a hot-blooded threat, that’s all it was.”

“You didn’t ordinarily pack a gun around with you, then?”

“No, sir, I never did pack a gun.”

“But you said you’d kill old Isom up there in the loft that morning, and you said it in a way that made him think you meant it. That’s what you wanted him to understand, wasn’t it?” 284

“I talked rough, but I didn’t mean it—not as bad as that anyhow.”

“No, that was just a little neighborly joke, I suppose,” said the prosecutor sneeringly. He was playing for a laugh and he got it.

Captain Taylor almost skinned his knuckles rapping them down that time, although the mirth was neither general nor boisterous. Joe did not add to Lucas’s comment, and he went on:

“Well, what were you doing when Isom Chase opened the door and came into the kitchen that night when he came home from serving on the jury?”

“I was standing by the table,” said Joe.

“With your hat in your hand, or on your head, or where?”

“My hat was on the table. I usually left it there at night, so it would be handy when I came down in the morning. I threw it there when I went in, before I lit the lamp.”

“And you say that Isom opened the door, came in and said, ‘I’ll kill you!’ Now, what did he say before that?”

“Not a word, sir,” insisted Joe.

“Who else was in that room?”

“Nobody, sir.”

The prosecutor leaned forward, his face as red as if he struggled to lift a heavy weight.

“Do you mean to sit there and tell this jury that Isom Chase stepped right into that room and threatened to kill you without any reason, without any previous quarrel, without seeing you doing something that gave him ground for his threat?”

Joe moved his feet uneasily, clasped and unclasped his long fingers where they rested on the arm of his chair, and moistened his lips with his tongue. The struggle was coming now. They would rack him, and tear him, and break his heart. 285

“I don’t know whether they’ll believe it or not,” said he at last.

“Where was Ollie Chase when Isom came into that room?” asked the prosecutor, lowering his voice as the men who tiptoed around old Isom when he lay dead on the kitchen floor had lowered theirs.

“You have heard her say that she was in her room upstairs,” said Joe.

“But I am asking you this question,” the prosecutor reminded him sharply. “Where was Ollie Chase?”

Joe did not meet his questioner’s eyes when he answered. His head was bowed slightly, as if in thought.

“She was in her room, I suppose. She’d been in bed a long time, for it was nearly midnight then.”

The prosecuting attorney pursued this line of questioning to a persistent and trying length. He wanted to know all about the relations of Joe and Ollie; where their respective rooms were, how they passed to and from them, and the entire scheme of the household economy.

He asked Joe pointedly, and swung back to that question abruptly and with sharp challenge many times, whether he ever made love to Ollie; whether he ever held her hands, kissed her, talked with her when Isom was not by to hear what was said.

The people snuggled down and forgot the oncoming darkness, the gray forerunner of which already had invaded the room as they listened. This was what they wanted to hear; this was, in their opinion, getting down to the thing that the prosecutor should have taken up at the beginning and pushed to the guilty end. They had come there, day after day, and sat patiently waiting for that very thing. But the great sensation which they expected seemed a tedious thing in its development.

Joe calmly denied the prosecutor’s imputations, and put them aside with an evenness of temper and dignity which lifted him to a place of high regard in the heart of every woman present, from grandmother to high-school miss. For even though a woman believes her sister guilty, she admires the man who knows when to hold his tongue.

For two hours and more Sam Lucas kept hammering away at the stern front of the defendant witness. He had expected to break him down, simple-minded country lad that he supposed him to be, in a quarter of that time, and draw from him the truth of the matter in every detail. It was becoming evident that Joe was feeling the strain. The tiresome repetition of the questions, the unvarying denial, the sudden sorties of the prosecutor in attempt to surprise him, and the constant labor of guarding against it—all this was heaping up into a terrific load.

Time and again Joe’s eyes had gone to the magnet of Alice Price’s face, and always he had seen her looking straight at him—steadily,

understandingly, as if she read his purpose. He was satisfied that she knew him to be innocent of that crime, as well as any of the indiscretions with Ollie which the prosecutor had attempted to force him to admit. If he could have been satisfied with that assurance alone, his hour would have been blessed. But he looked for more in every fleeting glance that his eyes could wing to her, and in the turmoil of his mind he was unable to find that which he sought.

Sam Lucas, seeing that the witness was nearing the point of mental and physical strain at which men go to pieces, and the vigil which they have held above their secrets becomes open to surprise, hung to him with his worriment of questions, scarcely granting him time to sigh.

Joe was pestered out of his calm and dignified attitude. He twisted in his chair, where many a confounded and beset soul had writhed before him, and ran his fingers through his long hair, disturbing it into fantastic disorder. His breath came through his open lips, his shoulders sagged wearily, his long back was bent as he drooped forward, whipping his fagged mind to alertness, guarding every word now, weighing every answer a deliberate while. Sweat drenched his face and dampened the thick wisps of hair. He scooped the welling moisture from his forehead with his crooked finger and flung it to the floor with a rustic trick of the fields.

Sam Lucas gave him no respite. Moment by moment he pressed the panting race harder, faster; moment by moment he grew more exacting, imperative and pressing in his demands for unhesitating replies. While he harassed and urged the sweating victim, the prosecutor's eyes narrowed, his thin lips pressed hard against his teeth. The moment was approaching for the final assault, for the fierce delivery of the last, invincible dart.

The people felt it coming, and panted with the acute pleasures of expectation; Hammer saw its hovering shadow, and rose to his feet; Mrs. Newbolt suffered under the strain until she rocked from side to side, unconscious of all and everybody but herself and Joe, and groaned.

What were they going to do to Joe—what were they going to do?

Sam Lucas was hurling his questions into Joe's face, faster and faster. His voice was shaded now with the inflection of accusation, now discredit; now it rose to the pitch of condemnation, now it sank to a hoarse whisper of horror as he dwelt upon the scene in Isom Chase's kitchen, the body of old Isom stretched in its own blood upon the floor.

Joe seemed to stumble over his replies, to grope, to flounder. The agony of his soul was in his face. And then, in a moment of tortured desperation he rose from his seat, tall, gaunt, disordered, and clasped his hand to his forehead as if driven to the utmost bound of his endurance and to the outer brink of his resources.

The prosecutor paused with leveled finger, while Joe, remembering himself, pushed his hair back from his brow like one waking from a hot and troubled sleep, and resumed his seat. Then suddenly, in full volume of voice, the prosecutor flung at him the lance for which he had been weakening Joe's defenses through those long and torturing hours.

"Tell this jury what the 'words' were which you have testified passed between you and Isom Chase after he made the threat to kill you, and before he ran for the gun!"

Hammer bellowed forth an objection, which was quietly overruled. It served its purpose in a way, even though it failed in its larger intent, for the prosecutor's headlong assault was checked by it, the force of his blow broken.

Joe sat up as if cold water had been dashed over him. Instead of crushing him entirely, and driving him to the last corner shrinking, beaten and spiritless, and no longer capable of resistance, it seemed to give him a new grip on himself, to set his courage and defiance again on the fighting line.

The prosecuting attorney resented Hammer's interference at the moment of his victory—as he believed it—and turned to him with an ugly scowl. But Hammer was imperturbable. He saw the advantage that he had gained for Joe by his interposition, and that was more than he had expected. Only a moment ago Hammer had believed everything lost.

Sam Lucas repeated the question. Joe drew himself up, cold and forbidding of front. He met the prosecutor eye to eye, challenge for challenge.

"I can't tell you that, sir," he replied.

"The time has come when you must tell it, your evasions and dodgings will not avail you any longer. What were those words between you and Isom Chase?"

"I'm sorry to have to refuse you—" began Joe.

"Answer-my-question!" ordered the prosecutor in loud voice, banging his hand upon the table to accent its terror.

In the excitement of the moment people rose from their seats, women dropping things which they had held in their laps, and clasping other loose articles of apparel to their skirts as they stood uncouthly, like startled fowls poising for flight.

Joe folded his arms across his chest and looked into the prosecutor's inflamed face. He seemed to erect between himself and his inquisitor in that simple movement an impenetrable shield, but he said nothing. Hammer was up, objecting, making the most of the opportunity. Captain Taylor rapped on the panel of the old oak door; the crouching figures in the crowd settled back to their seats with rustlings and sighs.

Sam Lucas turned to the judge, the whiteness of deeper anger sweeping the flush of excitement from his face. His voice trembled.

"I insist, your honor, that the witness answer my question!"

Hammer demanded that the court instruct his client regarding his constitutional privileges. Mrs. Newbolt leaned forward and held out her hands in dumb pleading toward her son, imploring him to speak.

"If the matter which you are withholding," began the judge in formal speech, "would tend to incriminate you, then you are acting within your constitutional rights in refusing to answer. If not, then you can be lodged in jail for contempt of court, and held there until you answer the question which the prosecuting attorney has asked you. Do you understand this?"

"Yes, sir; I understand," said Joe.

"Then," said the judge, "would it incriminate you to reply to the prosecuting attorney's question?"

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A faint flush spread on Joe's face as he replied:

"No, Judge Maxwell, it wouldn't incriminate me, sir."

Free for the moment from his watchful sword-play of eyes with the prosecutor, Joe had sought Alice's face when he replied to the judge. He was still holding her eyes when the judge spoke again.

"Then you must answer the question, or stand in contempt of court," said he.

Joe rose slowly to his feet. The sheriff, perhaps thinking that he designed making a dash for liberty, or to throw himself out of a window, rushed forward in official zeal. The judge, studying Joe's face narrowly, waved the officer back. Joe lifted a hand to his forehead in thoughtful gesture and stroked back his hair, standing thus in studious pose a little while. A

thousand eyes were bent upon him; five hundred palpitating brains were aching for the relief of his reply. Joe lifted his head and turned solemnly to the judge.

"I can't answer the prosecuting attorney's question, sir," he said. "I'm ready to be taken back to jail."

The jurors had been leaning out of their places to listen, the older ones with hands cupped to their ears. Now they settled back with disappointed faces, some of them shaking their heads in depreciation of such stubbornness.

"You are making a point of honor of it?" said the judge, sharply but not unkindly, looking over his glasses at the raw citadel of virtue which rose towerlike before him.

"If you will forgive me, sir, I have no more to say," said Joe, a flitting shadow, as of pain, passing over his face.

"Sit down," said the judge.

The prosecutor, all on fire from his smothered attempt to uncover the information which he believed himself so nearly in possession of, started to say something, and Hammer got the first syllable of his objection out of his mouth, when the judge waved both of them down. He turned in his chair to Joe, who was waiting calmly now the next event.

Judge Maxwell addressed him again. He pointed out to Joe that, since he had taken the witness-stand, he had thus professed his willingness to lay bare all his knowledge of the tragedy, and that his reservation was an indication of insincerity. The one way in which he could have withheld information not of a self-incriminating nature, was for him to have kept off the stand. He showed Joe that one could not come forward under such circumstances and tell one side of a story, or a part of it, confessing at the same time that certain pertinent information was reserved.

"No matter who it hurts, it is your duty now to reveal the cause of your quarrel between yourself and Isom Chase that night, and to repeat, to the best of your recollection, the words which passed between you."

He explained that, unless Joe should answer the question, it was the one duty of the court to halt the trial there and send him to jail in contempt, and hold him there, his case undecided, until he would answer the question asked.

Joe bowed respectfully when the judge concluded, conveying in that manner that he understood.

“If anything could be gained by it, sir, by anybody—except myself, perhaps—or if it would bring Isom back to life, or make anybody happier, I wouldn’t refuse a minute, sir,” said Joe. “What Mr. Lucas asks me to tell I’ve refused to tell before. I’ve refused to tell it for my own mother and Mr. Hammer and—others. I respect the law and this court, sir, as much as any man in this room, and it pains me to stand in this position before you, sir.

“But I can’t talk about that. It wouldn’t change what I’ve told about the way Isom was killed. What I’ve told you is the truth. What passed between Isom and me before he took hold of the gun isn’t mine to tell. That’s all there is to be said, Judge Maxwell, sir.”

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“You must answer the prosecuting attorney’s question,” said Judge Maxwell sternly. “No matter what motive of honor or fealty to the dead, or thought of sparing the living, may lie behind your concealment of these facts, the law does not, cannot, take it into account. Your duty now is to reply to all questions asked, and you will be given another opportunity to do so. Proceed, Mr. Prosecutor.”

Hammer had given it up. He sat like a man collapsed, bending over his papers on the table, trying to make a front in his defeat before the public. The prosecuting attorney resumed the charge, framing his attack in quick lunges. He was in a clinch, using the short-arm jab.

“After Isom Chase came into the room you had words?”

“We had some words,” replied Joe slowly, weary that this thing should have to be gone over again.

“Were they loud and boisterous words, or were they low and subdued?”

“Well, Isom talked pretty loud when he was mad,” said Joe.

“Loud enough for anybody upstairs to hear—loud enough to wake anybody asleep up there?”

“I don’t know,” said Joe coldly, resentful of this flanking subterfuge.

He must go through that turmoil of strain and suffering again, all because Morgan, the author of this evil thing, had lacked the manhood to come forward and admit his misdeeds.

The thoughts will travel many a thousand miles while the tongue covers an inch; even while Joe answered he was thinking of this. More crowded upon him as he waited the prosecutor’s next question. Why should he suffer

all that public misjudgment and humiliation, all that pain and twisting of the conscience on Morgan's account? What would it avail in the end? Perhaps Ollie would prove unworthy his sacrifice for her, as she already had proved ungrateful. Even then the echo of her testimony against him was in his ears.

Why should he hold out faithfully for her, in the hope that Morgan would come—vain hope, fruitless dream! Morgan would not come. He was safe, far away from there, having his laugh over the muddle that he had made of their lives.

"I will ask you again—what were the words that passed between you and Isom Chase that night?"

Joe heard the question dimly. His mind was on Morgan and the white road of the moonlit night when he drove away. No, Morgan would not come.

"Will you answer my question?" demanded the prosecutor.

Joe turned to him with a start. "Sir?" said he.

The prosecutor repeated it, and stood leaning forward for the answer, his hands on the table. Joe bent his head as if thinking it over.

And there lay the white road in the moonlight, and the click of buggy wheels over gravel was in his ears, as he knew it must have sounded when Morgan drove away, easy in his loose conscience, after his loose way. Why should he sacrifice the promise of his young life by meekly allowing them to fasten the shadow of this dread tragedy upon him, for which Morgan alone was to blame?

It was unfair—it was cruelly unjust! The thought of it was stifling the breath in his nostrils, it was pressing the blood out of his heart! They were waiting for the answer, and why should he not speak? What profit was there in silence when it would be so unjustly interpreted?

As Ollie had been thoughtless of Isom, so she might be thoughtless of him, and see in him only a foolish, weak instrument to use to her own advantage. Why should he seal his lips for Ollie, go to the gallows for her, perhaps, and leave the blight of that shameful end upon his name forever?

He looked up. His mind had made that swift summing up while the prosecutor's words were echoing in the room. They were waiting for his answer. Should he speak?

Mrs. Newbolt had risen. There were tears on her old, worn cheeks, a yearning in her eyes that smote him with an accusing pang. He had brought

that sorrow upon her, he had left her to suffer under it when a word would have cleared it away; when a word—a word for which they waited now—would make her dun day instantly bright. Ollie weighed against his mother; Ollie, the tainted, the unclean.

His eyes found Ollie's as he coupled her name with his mother's in his mind. She was shrinking against her mother's shoulder—she had a mother, too—pale and afraid.

Mrs. Newbolt stretched out her hands. The scars of her toilsome years were upon them; the distortion of the labor she had wrought for him in his helpless infancy was set upon their joints. He was placing his liberty and his life in jeopardy for Ollie, and his going would leave mother without a stay, after her sacrifice of youth and hope and strength for him.

Why should he be called upon to do this thing—why, *why*?

The question was a wild cry within his breast, lunging like a wolf in a leash to burst his lips. His mother drew a step nearer, unstayed by the sheriff, unchecked by the judge. She spread her poor hands in supplication; the tears coursed down her brown old cheeks.

“Oh, my son, my son—my little son!” she said.

He saw her dimly now, for tears answered her tears. All was silent in that room, the silence of the forest before the hurricane grasps it and bends it, and the lightnings reave its limbs.

“Mother,” said he chokingly, “I—I don't know what to do!”

“Tell it all, Joe!” she pleaded. “Oh, tell it all—tell it all!”

Her voice was little louder than a whisper, yet it was heard by every mother in that room. It struck down into their hearts with a sharp, riving stab of sympathy, which nothing but sobs would relieve.

Men clamped their teeth and gazed straight ahead at the moving scene, unashamed of the tears which rolled across their cheeks and threaded down their beards; the prosecutor, leaning on his hands, bent forward and waited.

Joe's mind was in a tornado. The débris of past resolutions was flung high, and swirled and dashed in a wild tumult. There was nothing tangible in his reasoning, nothing plain in his sight. A mist was before his eyes, a fog was over his reason. Only there was mother, with those soul-born tears upon her face. It seemed to him then that his first and his most sacred duty was to her.

The seconds were as hours. The low moaning of women sounded in the room. Somebody moved a foot, scraping it in rude dissonance across the floor. A girl's voice broke out in sudden sobbing, which was as quickly stifled, with sharp catching of the breath.

Judge Maxwell moved in his chair, turning slowly toward the witness, and silence fell.

They were waiting; they were straining against his doubts and his weakening resolution of past days, with the concentration of half a thousand minds.

A moment of joy is a drop of honey on the tongue; a moment of pain is bitterer than any essence that Ignatius ever distilled from his evil bean. The one is as transitory as a smile; the other as lingering as a broken bone.

Joe had hung in the balance but a matter of seconds, but it seemed to him a day. Now he lifted his slim, white hand and covered his eyes. They were waiting for the word out there, those uplifted, eager faces; the judge waited, the jury waited, mother waited. They were wringing it from him, and honor's voice was dim in its counsel now, and far away.

They were pressing it out of his heart. The law demanded it, justice demanded it, said the judge. Duty to mother demanded it, and the call of all that lay in life and liberty. But for one cool breath of sympathy before he yielded—for one gleam of an eye that understood!

He dropped his hand at his side, and cast about him in hungry appeal. Justice demanded it, and the law. But it would be ignoble to yield, even though Morgan came the next hour and cleared the stain away.

Joe opened his lips, but they were dry, and no sound issued. He must speak, or his heart would burst. He moistened his lips with his hot tongue. They were demanding his answer with a thousand burning eyes.

"Tell it, Joe—tell it all!" pleaded his mother, reaching out as if to take his hand.

Joe's lips parted, and his voice came out of them, strained and shaken, and hoarse, like the voice of an old and hoary man.

"Judge Maxwell, your honor—"

"No, no! Don't tell it, Joe!"

The words sounded like a warning call to one about to leap to destruction. They broke the tenseness of that moment like the noise of a

shot. It was a woman's voice, rich and full in the cadence of youth; eager, quick, and strong.

Mrs. Newbolt turned sharply, her face suddenly clouded, as if to administer a rebuke; the prosecutor wheeled about and peered into the room with a scowl. Judge Maxwell rapped commandingly, a frown on his face.

And Joe Newbolt drew a long, free breath, while relief moved over his troubled face like a waking wind at dawn. He leaned back in his chair, taking another long breath, as if life had just been granted him at a moment when hope seemed gone.

The effect of that sudden warning had been stunning. For a few seconds the principals in the dramatic picture held their poses, as if standing for the camera. And then the lowering tempest in Judge Maxwell's face broke.

"Mr. Sheriff, find out who that was and bring him or her forward!" he commanded.

There was no need for the sheriff to search on Joe's behalf. Quick as a bolt his eyes had found her, and doubt was consumed in the glance which passed between them. Now he knew all that he had struggled to know of everything. First of all, there stood the justification of his long endurance. He had been right. She had understood, and her opinion was valid against the world.

Even as the judge was speaking, Alice Price rose.

"It was I, sir," she confessed, no shame in her manner, no contrition in her voice.

But the ladies in the court-room were shocked for her, as ladies the world over are shocked when one of their sisters does an unaccountably human thing. They made their feelings public by scandalized aspirations, suppressed *oh-h-hs*, and deprecatative shakings of the heads.

The male portion of the audience was moved in another direction. Their faces were blank with stunned surprise, with little gleams of admiration moving a forest of whiskers here and there whose owners did not know who the speaker was.

But to everybody who knew Alice Price the thing was unaccountable. It was worse than interrupting the preacher in the middle of a prayer, and the last thing that Alice Price, with all her breeding, blood and education would have been expected to do. That was what came of leveling oneself to the

plane of common people and “pore” folks, and visiting them in jail, they said to one another through their wide-stretched eyes.

Alice went forward and stood before the railing. The prosecuting attorney drew out a chair and offered it to Mrs. Newbolt, who sat, staring at Alice with no man knew what in her heart. Her face was a strange index of disappointment, surprise, and vexation. She said nothing, and Hammer, glowing with the dawning of hope of something that he could not well define, squared around and gave Alice a large, fat smile.

Judge Maxwell regarded her with more surprise than severity, it appeared. He adjusted his glasses, bowed his neck to look over them, frowned, and cleared his throat. And poor old Colonel Price, overwhelmed entirely by this untoward breach of his daughter’s, stood beside Captain Taylor shaking his old white head as if he was undone forever.

“I am surprised at this demonstration, Miss Price,” said the judge. “Coming from one of your standing in this community, it is doubly shocking, for your position in society should be, of itself, a guarantee of your loyalty to the established organization of order. It should be your endeavor to uphold rather than defeat, the ends of justice.

“The defendant at the bar has the benefit of counsel, who is competent, we believe, to advise him. Your admonition was altogether out of place. I am pained and humiliated for you, Miss Price.

“This breach is one which could not, ordinarily, be passed over simply with a reprimand. But, allowing for the impetuosity of youth, and the emotion of the moment, the court will excuse you with this. Similar outbreaks must be guarded against, and any further demonstration will be dealt with severely. Gentlemen, proceed with the case.”

Alice stood through the judge’s lecture unflinchingly. Her face was pale, for she realized the enormity of her transgression, but there was neither fear nor regret in her heart. She met the judge’s eyes with honest courage, and bowed her head in acknowledgment of his leniency when he dismissed her.

From her seat she smiled, faintly above the tremor of her breast, to Joe. She was not ashamed of what she had done, she had no defense to make for her words. Love is its own justification, it wants no advocate to plead for it before the bar of established usage. Its statutes have needed no revision since the beginning, they will stand unchanged until the end.

The prosecuting attorney had seen his castle fall, demolished and beyond hope of repair, before a charge from the soft lips of a simple girl. Long and hard as he had labored to build it up, and encompass Joe within it, it was in ruins now, and he had no heart to set his hand to the task of raising it again that day. He asked for an adjournment to morning, which the weary judge granted readily.

People moved out of the room with less haste and noise than usual, for the wonder, and the puzzle, of what they had heard and seen was over them.

What was the aim of that girl in shutting that big, gangling, raw-boned boy's mouth just when he was opening it to speak, and to speak the very words which they had sat there patiently for days to hear? What was he to Alice Price, and what did she know of the secret which he had been keeping shut behind his stubborn lips all that time? That was what they wanted to know, and that was what troubled them because they could not make it out at all.

Colonel Price made his way forward against the outpouring stream to Alice. He adjusted her cloak around her shoulders, and whispered to her. She was very pale still, but her eyes were fearless and bright, and they followed Joe Newbolt with a tender caress as the sheriff led him out, his handcuffs in his pocket, the prisoner's long arms swinging free.

Ollie and her mother were standing near Colonel Price and Alice, waiting for them to move along and open the passage to the aisle. As Alice turned from looking after Joe, the eyes of the young women met, and again Ollie felt the cold stern question which Alice seemed to ask her, and to insist with unsparing hardness that she answer.

A little way along Alice turned her head and held Ollie's eyes with her own again. As plain as words they said to the young widow who cringed at her florid mother's side:

"You slinking, miserable, trembling coward, I can see right down to the bottom of your heart!"

Joe returned to his cell with new vigor in his step, new warmth in his breast, and a new hope in his jaded soul. There was no doubt now, no groping for a sustaining hand. Alice had understood him, and Alice alone, when all the world assailed him for his secret, and would have torn it from his lips in shame. She had given him the sympathy, for the lack of which he must have fallen; the support, for the want of which he must have been lost.

For a trying moment that afternoon he had forgotten, almost, that he was a gentleman, and under a gentleman's obligation. There had been so much uncertainty, and fear, and so many clouded days. But a man had no excuse, he contended in his new strength, even under the direst pressure, to lose sight of the fact that he was a gentleman. Morgan had done that. Morgan had not come. But perhaps Morgan was not a gentleman at all. That would account for a great deal, everything, in fact.

There would be a way out without Morgan now. Since Alice understood, there would be shown a way. He should not perish on account of Morgan, and even though he never came it would not matter greatly, now that Alice understood.

He was serene, peaceful, and unworried, as he had not been for one moment since the inquest. The point of daylight had come again into his dark perspective; it was growing and gleaming with the promise and cheer of a star.

Colonel Price had no word of censure for his daughter as they held their way homeward, and no word of comment on her extraordinary and immodest—according to the colonel's view—conduct fell from his lips until they were free from the crowd. Then the colonel:

“Well, Alice?”

“Yes, Father.”

“Why did you do it—why didn't you let him tell it, child? They'll hang him now, I tell you, they'll hang that boy as sure as sundown! And he's no more guilty of that old man's death than I am.”

“No, he isn't,” said she.

“Then why didn't you let him talk, Alice? What do you know?”

“I don't know anything—anything that would be evidence,” she replied. “But he's been a man all through this cruel trial, and I'd rather see him die a man than live a coward!”

“They'll hang that boy, Alice,” said the colonel, shaking his head sadly. “Nothing short of a miracle can save him now.”

“No, they'll never do that,” said she, in quiet faith.

The colonel looked at her with an impatient frown.

“What's to save him, child?” he asked.

“I don't know,” she admitted, thoughtfully. Then she proceeded, with an earnestness that was almost passionate: “It isn't for himself that he's

keeping silent—I'm not afraid for *him* on account of what they wanted to make him tell! Can't you see that, Father, don't you understand?"

"No," said the colonel, striking the pavement sharply with his stick, "I'll be switched if I do! But I know this bad business has taken hold of you, Alice, and changed you around until you're nothing like the girl I used to have.

"It's too melancholy and sordid for you to be mixed up in. I don't like it. We've done what we can for the boy, and if he wants to be stubborn and ³⁰³run his neck into the noose on account of some fool thing or another that he thinks nobody's got a right to know, I don't see where you're called on to shove him along on his road. And that's what this thing that you've done today amounts to, as far as I can see."

"I'm sorry that you're displeased with me, Father," said she, but with precious little indication of humility in her voice, "but I'd do the same thing over again tomorrow. Joe didn't want to tell it. What he needed just then was a friend."

That night after supper, when Colonel Price sat in the library gazing into the coals, Alice came in softly and put her arm about his shoulders, nestling her head against his, her cheek warm against his temple.

"You think I'm a bold, brazen creature, Father, I'm afraid," she said.

"The farthest thing from it in this world," said he. "I've been thinking over it, and I know that you were right. It's inscrutable to me, Alice; I lack that God-given intuition that a woman has for such things. But I know that you were right, and time and events will justify you."

"You remember that both Mr. Hammer and Mr. Lucas asked Joe and Mrs. Chase a good deal about a book-agent boarder, Curtis Morgan?" said she.

"Only in the way of incidental questioning," he said. "Why?"

"Don't you remember him? He was that tall, fair man who sold us the *History of the World*, wasn't he?"

"Why, it is the same name," said the colonel. "He was a man with a quick eye and a most curious jumble of fragmentary knowledge on many subjects, from roses to rattlesnakes. Yes, I remember the fellow very well, since you speak of him."

"Yes. And he had little fair curls growing close to his eyes," said ³⁰⁴she. "It's the same man, I'm certain of that."

"Why, what difference does it make?" asked he.

“Not any—in particular—I suppose,” she sighed.

The colonel stroked her hair.

“Well, Alice, you’re taking this thing too much at heart, anyhow,” he said.

Later that night, long after Joe Newbolt had wearied himself in pacing up and down his cell, with the glow of his new hope growing brighter as his legs grew heavier, Alice sat by her window, gazing with fixed eyes into the dark.

On her lips there was a name and a message, which she sent out from her heart with all the dynamic intensity of her strong, young being. A name and a message; and she sped them from her lips into the night, to roam the world like a searching wind.

CHAPTER XIX

THE SHADOW OF A DREAM

Judge Little was moving about mysteriously. It was said that he had found track of Isom's heir, and that the county was to have its second great sensation soon.

Judge Little did not confirm this report, but, like the middling-good politician that he was, he entered no denial. As long as the public is uncertain either way, its suspense is more exquisite, the pleasure of the final revelation is more sweet.

Riding home from the trial on the day that Joe made his appearance on the witness-stand, Sol Greening fell in with the judge and, with his nose primed to follow the scent of any new gossip, Sol worked his way into the matter of the will.

"Well, I hear you've got track of Isom's boy at last, Judge?" said he, pulling up close beside the judge's mount, so the sound of the horses' feet sucking loose from the clay of the muddy road would not cheat him out of a word.

Judge Little rode a low, yellow horse, commonly called a "buckskin" in that country. He had come to town unprovided with a rubber coat, and his long black garment of ordinary wear was damp from the blowing mists which presaged the coming rain. In order to save the skirts of it, in which the precious and mysterious pockets were, the judge had gathered them up about his waist, as an old woman gathers her skirts on wash-day. He sat in the saddle, holding them that way with one hand, while he handled the reins with the other.

"All things are possible," returned the judge, his tight old mouth screwed up after the words, as if more stood in the door and required the utmost vigilance to prevent them popping forth.

Sol admitted that all things were indeed possible, although he had his doubts about the probability of a great many he could name. But he was wise enough to know that one must agree with a man if one desires to get into his warm favor, and it was his purpose on that ride to milk Judge Little

of whatever information tickling his vanity, as an ant tickles an aphis, would cause him to yield.

“Well, he’s got a right smart property waitin’ him when he comes,” said Sol, feeling important and comfortable just to talk of all that Isom left.

“A considerable,” agreed the judge.

“Say forty or fifty thousand worth, heh?”

“Nearer seventy or eighty, the way land’s advancing in this county,” corrected the judge.

Sol whistled his amazement. There was no word in his vocabulary as eloquent as that.

“Well, all I got to say is that if it was me he left it to, it wouldn’t take no searchin’ to find me,” he said. “Is he married?”

“Very likely he is married,” said the judge, with that portentous repression and caution behind his words which some people are able to use with such mysterious effect.

“Shades of catnip!” said Sol.

They rode on a little way in silence, Sol being quite exhausted on account of his consuming surprise over what he believed himself to be finding out. Presently he returned to his prying, and asked:

“Can Ollie come in for her dower rights in case the court lets Isom’s will stand?”

“That is a question,” replied the judge, deliberating at his pause and sucking in his cheeks, “which will have to be decided.”

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“Does he favor Isom any?” asked Sol.

“Who?” queried the judge.

“Isom’s boy.”

“There doubtless is some resemblance—it is only natural that there should be a resemblance between father and son,” nodded the judge. “But as for myself, I cannot say.”

“You ain’t seen him, heh?” said Sol, eyeing him sharply.

“Not exactly,” allowed the judge.

“Land o’ Moab!” said Sol.

They rode on another eighty rods without a word between them.

“Got his picture, I reckon?” asked Sol at last, sounding the judge’s face all the while with his eager eyes.

“I turn off here,” said the judge. “I’m takin’ the short cut over the ford and through Miller’s place. Looks like the rain would thicken.”

He gave Sol good day, and turned off into a brush-grown road which plunged into the woods.

Sol went on his way, stirred by comfortable emotions. What a story he meant to spread next day at the county-seat; what a piece of news he was going to be the source of, indeed!

Of course, Sol had no knowledge of what was going forward at the county farm that very afternoon, even the very hour when Joe Newbolt was sweating blood on the witness stand, If he had known, it is not likely that he would have waited until morning to spread the tale abroad.

This is what it was.

Ollie’s lawyer was there in consultation with Uncle John Owens regarding Isom’s will. Consultation is the word, for it had come to that felicitous pass between them. Uncle John could communicate his thoughts freely to his fellow-beings again, and receive theirs intelligently.

All this had been wrought not by a miracle, but by the systematic preparation of the attorney, who was determined to sound the secret which lay locked in that silent mind. If Isom had a son when that will was made a generation back, Uncle John Owens was the man who knew it, and the only living man.

In pursuit of this mystery, the lawyer had caused to be printed many little strips of cardboard in the language of the blind. These covered all the ground that he desired to explore, from preliminaries to climax, with every pertinent question which his fertile mind could shape, and every answer which he felt was due to Uncle John to satisfy his curiosity and inform him fully of what had transpired.

The attorney had been waiting for Uncle John to become proficient enough in his new reading to proceed without difficulty. He had provided the patriarch with a large slate, which gave him comfortable room for his big characters. Several days before that which the lawyer had set for the exploration of the mystery of Isom Chase’s heir, they had reached a perfect footing of understanding.

Uncle John was a new man. For several weeks he had been making great progress with the New Testament, printed in letters for the blind, which had come on the attorney’s order speedily. It was an immense volume, as big as

a barn-door, as Uncle John facetiously wrote on his slate, and when he read it he sat at the table littered over with his interlocked rings of wood, and his figures of beast and female angels or demons, which, not yet determined.

The sun had come out for him again, at the clouded end of his life. It reached him through the points of his fingers, and warmed him to the farthest spot, and its welcome was the greater because his night had been long and its rising late.

On that afternoon memorable for Joe Newbolt, and all who gathered at the court-house to hear him, Uncle John learned of the death of Isom Chase. The manner of his death was not revealed to him in the printed slips of board, and Uncle John did not ask, very likely accepting it as an event which comes to all men, and for which he, himself, had long been prepared.

After that fact had been imparted to the blind preacher, the lawyer placed under his eager fingers a slip which read:

“Did you ever witness Isom Chase’s will?”

Uncle John took his slate and wrote:

“Yes.”

“When?”

“Thirty or forty years ago,” wrote Uncle John—what was a decade more or less to him? “When he joined the Order.”

Uncle John wrote this with his face bright in the joy of being able to hold intelligent communication once more.

More questioning brought out the information that it was a rule of the secret brotherhood which Isom had joined in those far days, for each candidate for initiation to make his will before the administration of the rites.

“What a sturdy old goat that must have been!” thought the lawyer.

“Do you remember to whom Isom left his property in that will?” read the pasteboard under the old man’s hands.

Uncle John smiled, reminiscently, and nodded.

“To his son,” he wrote. “Isom was the name.”

“Do you know when and where that son was born?”

Uncle John’s smile was broader, and of purely humorous cast, as he bent over the slate and began to write carefully, in smaller hand than usual, as if he had a great deal to say.

“He never was born,” he wrote, “not up to the time that I lost the world. Isom was a man of Belial all his days that I knew him. He was set on a son from his wedding day.

“The last time I saw him I joked him about that will, and told him ³⁰⁹ he would have to change it. He said no, it would stand that way. He said he would get a son yet. Abraham was a hundred when Isaac was born, he reminded me. Did Isom get him?”

“No,” was the word that Uncle John’s fingers found. He shook his head, sadly.

“He worked and saved for him all his life,” the old man wrote. “He set his hope of that son above the Lord.”

Uncle John was given to understand the importance of his information, and that he might be called upon to give it over again in court.

He was greatly pleased with the prospect of publicly displaying his new accomplishment. The lawyer gave him a printed good-bye, shook him by the hand warmly, and left him poring over his ponderous book, his dumb lips moving as his fingers spelled out the words.

They were near the end and the quieting of all this flurry that had risen over the property of old Isom Chase, said the lawyer to himself as he rode back to town to acquaint his client with her good fortune. There was nothing in the way of her succession to the property now. The probate court would, without question or doubt, throw out that ridiculous document through which old Judge Little hoped to grease his long wallet.

With Isom’s will would disappear from the public notice the one testimony of his only tender sentiment, his only human softness; a sentiment and a softness which had been born of a desire and fostered by a dream.

Strange that the hard old man should have held to that dream so stubbornly and so long, striving to gain for it, hoarding to enrich it, growing bitterer for its long coming, year by year. And at last he had gone out in a flash, leaving this one speaking piece of evidence of feeling and tenderness behind. ³¹⁰

Perhaps Isom Chase would have been different, reflected the lawyer, if fate had yielded him his desire and given him a son; perhaps it would have softened his hand and mellowed his heart in his dealings with those whom he touched; perhaps it would have lifted him above the narrow strivings

which had atrophied his virtues, and let the sunlight into the dark places of his soul.

So communing with himself, he arrived in town. The people were coming out of the court-house, the lowering gray clouds were settling mistily. But it was a clearing day for his client; he hastened on to tell her of the turn fortune had made in her behalf.

CHAPTER XX

“THE PENALTY IS DEATH!”

When court convened the following morning for the last act in the prolonged drama of Joe Newbolt's trial, the room was crowded even beyond the congestion of the previous day.

People felt that Sam Lucas was not through with the accused lad yet; they wanted to be present for the final and complete crucifixion. It was generally believed that, under the strain of Lucas's bombardment, Joe would break down that day.

The interference of Alice Price, unwarranted and beyond reason, the public said, had given the accused a respite, but nothing more. Whatever mistaken notion she had in doing it was beyond them, for it was inconceivable that she could be wiser than another, and discover virtues in the accused that older and wiser heads had overlooked. Well, after the rebuke that Judge Maxwell had given her, *she* wouldn't meddle again soon. It was more than anybody expected to see her in court again. No, indeed, they said; that would just about settle *her*.

Such a fine girl, too, and such a blow to her father. It was a piece of forwardness that went beyond the imagination of anybody in the town. Could it be that Alice Price had become tainted with socialism or woman's rights, or any of those wild theories which roared around the wide world outside Shelbyville and created such commotion and unrest? Maybe some of those German doctrines had got into her head, such as that young Professor Gobel, whom the regents discharged from the college faculty last winter, used to teach.

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It was too bad; nearly everybody regretted it, for it took a girl a long time to live down a thing like that in Shelbyville. But the greatest shock and disappointment of all was, although nobody would admit it, that she had shut Joe's mouth on the very thing that the public ear was itching to hear. She had cheated the public of its due, and taken the food out of its mouth when it was ravenous. That was past forgiveness.

Dark conjectures were hatched, therefore, and scandalous hints were set traveling. Mothers said, well, they thanked their stars that she hadn't

married *their* sons; and fathers philosophized that you never could tell how a filly would turn out till you put the saddle on her and tried her on the road. And the public sighed and gasped and shook its head, and was comfortably shocked and satisfyingly scandalized.

The sheriff brought the prisoner into court that morning with free hands. Joe's face seemed almost beatific in its exalted serenity as he saluted his waiting mother with a smile. To those who had seen the gray pallor of his strained face yesterday, it appeared as if he had cast his skin during the night, and with it his harassments and haunting fears, and had come out this morning as fresh and unscarred as a child.

Joe stood for a moment running his eyes swiftly over the room. When they found the face they sought a warm light shot into them as if he had turned up the wick of his soul. She was not so near the front as on the day before, yet she was close enough for eye to speak to eye.

People marked the exchange of unspoken salutations between them, and nudged each other, and whispered: "There she is!" They wondered how she was going to cut up today, and whether it would not end for her by getting herself sent to jail, along with that scatter-feathered young crow whom she seemed to have taken into her heart.

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Ollie was present, although Joe had not expected to see her, he knew not why. She was sitting in the first row of benches, so near him he could have reached over and taken her hand. He bowed to her; she gave him a sickly smile, which looked on her pale face like a dim breaking of sun through wintry clouds.

To the great surprise and greater disappointment of the public in attendance upon the trial, Sam Lucas announced, when court opened, that the state would not proceed with the cross-examination of the defendant. Hammer rose with that and stated that the defense rested. He had no more witnesses to call.

Hammer wore a hopeful look over his features that morning, a reflection, perhaps, of his client's unworried attitude. He had not been successful in his attempt to interview Alice Price, although he had visited her home the night before. Colonel Price had received him with the air of one who stoops to contact with an inferior, and assured him that he was delegated by Miss Price—which was true—to tell Mr. Hammer that she knew nothing favorable to his client's cause; that her caution in his moment of stress had nothing behind it but the unaccountable impulse of a young and sympathetic girl.

Hammer accepted that explanation with a large corner of reservation in his mind. He knew that she had visited the jail, and it was his opinion that his client had taken her behind the door of his confidence, which he had closed to his attorney. Alice Price knew something, she must know something, Hammer said. On that belief he based his intention of a motion for a new trial in case of conviction. He would advance the contention that new evidence had been discovered; he would then get Alice Price into a corner by herself somewhere and make her tell all she knew.

That was why Hammer smiled and felt quite easy, and turned over in his mind the moving speech that he had prepared for the jury. He was glad of the opportunity which that great gathering presented. It was a plowed field waiting the grain of Hammer's future prosperity.

Hammer kept turning his eyes toward Alice Price, where she sat in the middle of the court-room beside the colonel. He had marked an air of uneasiness, a paleness as of suppressed anxiety in the girl's face. Now and then he saw her look toward the door where Captain Taylor stood guard, in his G. A. R. uniform today, as if it were a gala occasion and demanded decorations.

For whom could she be straining and watching? Hammer wondered. Ah, no doubt about it, that girl knew a great deal more of the inner-working of his client's mind than he did. But she couldn't keep her secret. He'd get it out of her after filing his motion for a new trial—already he was looking ahead to conviction, feeling the weakness of his case—and very likely turn the sensation of a generation loose in Shelbyville when he called her to the witness-stand. That was the manner of Hammer's speculations as he watched her turning her eyes toward the door.

Ollie sat beside her mother, strangely downcast for all the brightening of her affairs. Joe had passed through the fire and come out true, although he might have faltered and betrayed her if it had not been for the sharp warning of Alice Price, cast to him like a rope to a drowning man. Like Hammer, like a thousand others, she wondered why Alice had uttered that warning. What did she know? What did she suspect? It was certain, above everything else, that she knew Joe was guiltless. She knew that he was not maintaining silence on his own account.

How did she know? Had Joe told her? Ollie struggled with the doubt and perplexity of it, and the fear which lay deep in her being made her long to cringe there, and shield her face as from fire. She could not do that, any

more than she had succeeded in her desire to remain away from court that morning. There was no need for her there, her testimony was in, they were through with her. Yet she could not stay away. She must be there for the final word, for the last sight of Joe's prison-white face.

She must whip herself to sit there as boldly as innocence and cheat the public into accepting the blanched cheek of fear for the wearing strain of sorrow; she must sit there until the end. Then she could rise up and go her way, no matter how it turned out for Joe. She could leave there with her guilty secret in her heart and the shame of her cowardice burning like a smothered coal in her breast.

It would hurt to know that Joe had gone to prison for her sake, even though he once had stepped into the doorway of her freedom and cut off her light. The knowledge that Alice Price loved him, and that Joe loved her, for she had read the secret in their burning eyes, would make it doubly hard. She would be cheating him of liberty and robbing him of love. Still, they would be no more than even, at that, said she, with a recurring sweep of bitterness. Had Joe not denied them both to her? All of this she turned in her mind as she sat waiting for court to open that somber morning.

The rain in yesterday's threat had come; it was streaking the windows gray, and the sound of the wind was in the trees, waving their bare limbs as in fantastic grief against the dull clouds. There was no comfort in youth and health and prettiness of face and form; no pride in possession of lands and money, when a hot and tortuous thing like conscience was lying so ill-concealed behind the thin wall of her breast.

She thought bitterly of Curtis Morgan, who had failed her so completely. Never again in the march of her years would she need the support of his hand and comforting affection as she needed it then. But he had gone away and forgotten, like a careless hunter who leaves his uncovered fire after him to spring in the wind and go raging with destructive curse through the forest. He had struck the spark to warm himself a night in its pleasurable glow; the hands of ten thousand men could not quench its flame today.

Judge Maxwell had been conferring with the lawyers in the case these few minutes, setting a limit to their periods of oration before the jury, to which both sides agreed after the usual protestations. The court-room was very quiet; expectancy sat upon the faces of all who waited when Sam Lucas, prosecuting attorney, rose and began his address to the jury.

He began by calling attention to what he termed the “peculiar atrocity of this crime,” and the circumstances surrounding it. He pointed out that there could have been no motive of revenge behind the act, for the evidence had shown, even the testimony of the defendant himself had shown, that the relations between Chase and his bondman were friendly. Isom Chase had been kind to him; he had reposed his entire trust in him, and had gone away to serve his country as a jurymen, leaving everything in his hands.

“And he returned from that duty, gentlemen,” said he, “to meet death at the treacherous hands of the man whom he had trusted, there upon his own threshold.

“When Isom Chase was found there by his neighbor, Sol Greening, gentlemen, this bag of money was clasped to his lifeless breast. Where did it come from? What was Isom Chase doing with it there at that hour of the night? This defendant has testified that he does not know. Did Isom Chase carry it with him when he entered the house? Not likely.

“You have heard the testimony of the bankers of this city to the effect that he carried no deposit with any of them. Isom Chase had returned to his home that fatal night from serving on a jury in this court-house. That duty held him there until past ten o’clock, as the records show. Where did that bag of gold come from? What was it doing there? This defendant has sworn that he never saw it before, that he knows nothing at all about it. Yet he admits that ‘words’ passed between him and Isom Chase that night.

“What those words were he has locked up in the secret darkness of his guilty breast. He has refused to tell you what they were, refused against the kindly counsel of the court, the prayers of his aged mother, the advice of his own attorney, and of his best friends. Joe Newbolt has refused to repeat those words to you, gentlemen of the jury, but I will tell you what the substance of them was.”

The prosecutor made a dramatic pause; he flung his long, fair locks back from his forehead; he leveled his finger at Joe as if he held a weapon aimed to shoot him through the heart.

Mrs. Newbolt looked at the prosecutor searchingly. She could not understand why the judge allowed him to say a thing like that. Joe displayed no indication of the turmoil of his heart. But the light was fading out of his face, the gray mist of pain was sweeping over it again.

“Those words, gentlemen of the jury,” resumed the prosecutor, “were words of accusation from the lips of Isom Chase when he entered that door and saw this man, his trusted servant, making away with that bag of money, the hoarded savings of Isom Chase through many an industrious year.

“I tell you, gentlemen of the jury, that this defendant, afraid of the consequences of his act when he found himself discovered in the theft, and was compelled to surrender the money to its lawful owner—I tell you then, in that evil moment of passion and disappointment, this defendant snatched that rifle from the wall and shot honest, hardworking old Isom Chase down like a dog!”

“No, no!” cried Mrs. Newbolt, casting out her hands in passionate denial. “Joe didn’t do it!”

“Your honor,” began the prosecutor, turning to the court with an expression of injury in his voice which was almost tearful, “am I to be interrupted—”

“Madam, you must not speak again,” admonished the judge. “Mr. Sheriff, see that the order is obeyed.”

The sheriff leaned over.

“Ma’am, I’ll have to put you out of here if you do that agin,” said he.

Joe placed his hand on his mother’s shoulder and whispered to her. She nodded, as if in obedience to his wish, but she sat straight and alert, her dark eyes glowing with anger as she looked at the prosecutor.

The prosecutor was composing himself to proceed.

“This defendant had robbed old Isom Chase of his hoarded gold, gentlemen of the jury, and that was not all. I tell you, gentlemen, Joe Newbolt had robbed that trusting old man of more than his gold. He had robbed him of his sacred honor!”

Hammer entered vociferous objections. Nothing to maintain this charge had been proved by the state, said he. He insisted that the jury be instructed to disregard what had been said, and the prosecutor admonished by the court to confine himself to the evidence.

The court ruled accordingly.

“There has been ample evidence on this point,” contended the prosecutor. “The conspiracy of silence entered into between this defendant and the widow of Isom Chase—entered into and maintained throughout this trial—is sufficient to brand them guilty of this charge before the world. More; when

Sol Greening's wife arrived a few minutes after the shooting, Mrs. Chase³¹⁹ was fully dressed, in a dress, gentlemen of the jury, that it would have taken her longer to put on—"

Merely surmises, said Hammer. If surmises were to be admitted before that court and that jury, said he, he could surmise his client out of there in two minutes. But the court was of the opinion that the evidence warranted the prosecutor there. He was allowed to proceed.

"Ollie Chase could not have dressed herself that way in those few intervening minutes. She had made her preparations long before that tragic hour; she was ready and waiting—waiting for what?

"Gentlemen, I will tell you. Joe Newbolt had discovered the hiding-place of his employer's money. He had stolen it, and was preparing to depart in secrecy in the dead of night; and I tell you, gentlemen of the jury, he was not going alone!"

"Oh, what a scandalous lie!" said Mrs. Newbolt in a horrified voice which, low-pitched and groaning that it was carried to the farthest corner of that big, solemn room.

The outburst caused a little movement in the room, attended by considerable noise and some shifting of feet. Some laughed, for there are some to laugh everywhere at the most sincere emotions of the human breast. The judge rapped for order. A flush of anger mounted to his usually passive face; he turned to the sheriff with a gesture of command.

"Remove that woman from the room, Mr. Sheriff, and retain her in custody!" said he.

The sheriff came forward hastily and took Mrs. Newbolt by the arm. She stood at his touch and stretched out her hands to the judge.

"I didn't mean to say it out loud, Judge Maxwell, but I thought it so hard, I reckon, sir, that it got away. Anybody that knows my Joe—" ³²⁰

"Come on, ma'am," the sheriff ordered.

Joe was on his feet. The sheriff's special deputy put his hands on the prisoner's shoulders and tried to force him down into his seat. The deputy was a little man, sandy, freckled, and frail, and his efforts, ludicrously eager, threw the court-room into a fit of unseemly laughter. The little man might as well have attempted to bend one of the oak columns which supported the court-house portico.

Judge Maxwell was properly angry now. He rapped loudly, and threatened penalties for contempt. When the mirth quieted, which it did with a suddenness almost tragic, Joe spoke. "I wish to apologize to you for mother's words, sir," said he, addressing the judge, inclining his head slightly to the prosecuting attorney afterward, as if to include him, upon second thought. "She was moved out of her calm and dignity by the statement of Mr. Lucas, sir, and I give you my word of honor that she'll say no more. I'd like to have her here by me, sir, if you'd grant me that favor. You can understand, sir, that a man needs a friend at his side in an hour like this."

Judge Maxwell's face was losing its redness of wrath; the hard lines were melting out of it. He pondered a moment, looking with gathered brows at Joe. The little deputy had given over his struggle, and now stood with one hand twisted in the back of Joe's coat. The sheriff kept his hold on Mrs. Newbolt's arm. She lifted her contrite face to the judge, tears in her eyes.

"Very well," said the judge, "the court will accept your apology, and hold you responsible for her future behavior. Madam, resume your seat, and do not interrupt the prosecuting attorney again."

Mrs. Newbolt justified Joe's plea by sitting quietly while the prosecutor continued. But her interruption had acted like an explosion in the train of his ideas; he was so much disconcerted by it that he finished rather tamely, reserving his force, as people understood, for his closing speech.

Hammer rose in consequence, and plunged into the effort of his life. He painted the character of Isom Chase in horrible guise; he pointed out his narrowness, his wickedness, his cruelty, his quickness to lift his hand. He wept and he sobbed, and splashed tears all around him.

It was one of the most satisfying pieces of public oratory ever heard in Shelbyville, from the standpoint of sentiment, and the view of the unschooled. But as a legal and logical argument it was as foolish and futile as Hammer's own fat tears. He kept it up for an hour, and he might have gone on for another if his tears had not given out. Without tears, Hammer's eloquence dwindled and his oratory dried.

Mrs. Newbolt blessed him in her heart, and the irresponsible and vacillating public wiped its cheeks clean of its tears and settled down to have its emotions warped the other way. Everybody said that Hammer had done well. He had made a fine effort, it showed what they had contended

for all along, that Hammer had it naturally in him, and was bound to land in congress yet.

When the prosecutor resumed for the last word he seemed to be in a vicious temper. He seemed to be prompted by motives of revenge, rather than justice. If he had been a near relative of the deceased, under the obligation of exacting life for life with his own hands, he could not have shown more vindictive personal resentment against the accused. He reverted to Joe's reservation in his testimony.

"There is no question in my mind, gentlemen of the jury," said he, "that the silence behind which this defendant hides is the silence of guilt, and that silence brands him blacker than any confession that his tongue could make.

"'Words passed between us,' and 'it was between him and me.' That, gentlemen of the jury, is the explanation this defendant gives, the only, the weak, the obviously dishonest explanation, that he ever has offered, or that the kindly admonishment of this court could draw from his lips. Guilt sits on his face; every line of his base countenance is a confession; every brutal snarl from his reluctant tongue is testimony of his evil heart. He was a thief, and, when he was caught, he murdered. 'Out of his own mouth he has uttered his condemnation,' and there is but one penalty fitting this hideous crime—the penalty of death!

"Never before has the fair name of our county been stained by such an atrocious crime; never before has there been such a conspiracy between the guilty to defeat the ends of justice in this moral and respected community. I call upon you, gentlemen of the jury, for the safety of our households and the sanctity of our hearths, to bring in your verdict of guilty under the indictment.

"It is a solemn and awful thing to stand here in the presence of the Almighty and ask the life of one of his creatures, made by Him in His own image and endowed by Him with reason and superiority above all else that moves on the earth or in the waters under it. But this man, Joe Newbolt, has debased that image and abused that reason and superiority which raises him above the beasts of the field. He has murdered a defenseless old man; he has, by that act and deed, forfeited his right to life and liberty under the law."

The prosecutor made one of his effective pauses. There was the stillness of midnight in the crowded court-room. The sound of dashing rain was loud

on the window-panes, the hoarse voice of the gray old elm which combed the wind with its high-flung branches, was like the distant groan of the sea.

In that aching silence Ollie Chase turned suddenly, as if she had heard someone call her name. She started, her white face grew whiter. But nobody seemed conscious of her presence, except the prosecutor, who wheeled upon her and leveled his accusing finger at her where she sat.

There was the bearing of sudden and reckless impulse in his act. He surely had not meditated that bold challenge of one who had passed under his merciless hand, and was now, according to all accepted procedure, beyond his reach and his concern. But Sam Lucas did that unusual thing. He stood pointing at her, his jaw trembling as if the intensity of his passion had palsied his tongue.

“Gentlemen of the jury, what part this woman played in that dark night’s work the world may never know,” said he. “But the world is not blind, and its judgments are usually justified by time. This woman, Ollie Chase, and this defendant have conspired to hold silence between them, in what hope, to what unholy end, God alone knows. But who will believe the weak and improbable story this woman has told on the witness-stand? Who is so blind that he cannot see the stain of her infidelity and the ghastly blight of that midnight shadow upon her quaking soul?”

He turned from her abruptly. Hammer partly rose, as if to enter an objection. He seemed to reconsider it, and sat down. Ollie shrank against her mother’s shoulders, trembling. The older woman, fierce as a dragon in the sudden focus of the crowd’s attention and eyes, fixed in one shifting sweep from the prosecuting attorney to her daughter, put her arm about Ollie and comforted her with whispered words.

The prosecutor proceeded, solemnly:

“I tell you, gentlemen, that these two people, Ollie Chase and Joseph Newbolt, alone in that house that night, alone in that house for two days before this tragedy darkened it, before the blood of gray old Isom Chase ran down upon its threshold, these two conspired in their guilt to hide the truth.”

“If this woman would open her lips, if this woman would break the seal of this guilty compact and speak, the mystery of this case would dissolve, and the heroic romance which this defendant is trying to put over the squalid facts of his guilt would turn out only a sordid story of midnight lust

and robbery. If conscience would trouble this woman to speak, gentlemen of the jury—but she has no conscience, and she has no heart!”

He turned again to Ollie, savagely; her mother covered her with her arm, as if to protect her from a blow.

“There she cowers in her guilty silence, in what hope God alone knows, but if she would speak—”

“I will speak!” Ollie cried.

CHAPTER XXI

OLLIE SPEAKS

Ollie's voice, low and steady in earnest determination, broke the current of his denunciation as a knife severs a straining cord. The suddenness of her declaration almost made the prosecutor reel. She was sitting up, straight and outwardly calm, pushing her cloak and other detached belongings away from her with an unconscious movement of disencumbering herself for some desperate leap.

"I'll tell everything—if you'll let me—now," said she, rising to her feet.

She was white and cold, but steady, and sternly resolute. The prosecutor had not expected that; his challenge had been only a spectacular play for effect. Her offer to speak left him mentally groping behind himself for a support. It would have been different if he had been certain of what she desired to say. As she stood before him there, bloodless, and in such calm of outward aspect that it was almost hysterical, he did not know whether she was friend or foe.

Joe had not expected it; the hundreds of spectators had not looked for that, and Hammer was as much surprised as a ponderous, barber-minded man could be. Yet he was the first, of all of them there, to get his wits in hand. The prosecutor had challenged her, and, he argued, what she had to say must be in justification of both herself and Joe. He stood up quickly, and demanded that Ollie Chase be put under oath and brought to the witness-stand.

Ollie's mother had hold of her hand, looking up into her face in great consternation, begging her to sit down and keep still. In general, people were standing, and Uncle Posen Spratt was worming the big end of his steer-horn trumpet between shoulders of men and headgear of women to hear what he could not see.

Judge Maxwell commanded order. The prosecuting attorney began to protest against the fulfilment of the very thing that, with so much feeling and earnestness, he had demanded but a minute before.

"Considering this late hour in the proceedings, your honor—" he began.

Judge Maxwell silenced him with a stern and reproving look.

“It is never too late for justice, Mr. Prosecutor,” said he. “Let that woman come forward and be sworn.”

Hammer went eagerly to the assistance of Ollie, opening the little gate in the railing for her officiously, putting his palm under her elbow in his sustaining fashion. The clerk administered the oath; Ollie dropped her hand wearily at her side.

“I lied the other day,” said she, as one surrendering at the end of a hopeless defense, “and I’m tired of hiding the truth any more.”

Joe Newbolt was moved by a strange feeling of mingled thankfulness and regret. Tears had started to his eyes, and were coursing down his face, unheeded and unchecked. The torture of the past days and weeks, the challenge of his honor, the doubt of his sincerity; the rough assaults of the prosecuting attorney, the palpable unfriendliness of the people—none of these things ever had drawn from him a tear. But this simple act of justice on the part of Ollie Chase moved the deep waters of his soul.

His mother had taken his hand between her rough palms, and was chafing it, as if to call back its warmth and life. She was not looking at her son, for her faith had not departed from him for one moment, and would not have diminished if they had condemned him under the accusation. Her eyes were on Ollie’s face, her lips were murmuring beneath her breath:

“Thank the Lord for His justice and mercy! Thank the Lord, thank the Lord!”

Ollie had settled in the witness-chair again, in the midst of her wide-skirted mourning habit, as on that other day. Joe Newbolt prayed in his heart for the mitigation of public censure, and for strength to sustain her in her hour of sacrifice.

That Ollie had come forward to save him—unasked, unexpected—was like the comfort of a cloak against the wintry wind. The public believed that she was going to “own up” to it now, and to clinch the case against Joe. Some of them began to make mental calculations on the capacity of the jail yard, and to lay plans for securing passes to the hanging.

Hammer stepped forward to question the witness, and the prosecuting attorney sat down, alert and ready to interpose in case things should start the wrong way. He had lost sight of justice completely, after the fixed habit of his kind, in his eagerness to advance his own prospects by securing the conviction of the accused.

Ollie sat facing Judge Maxwell, who had turned in his swivel-chair; moved out of his bearing of studious concentration, which was his usual characteristic on the bench.

“Now, Mrs. Chase, tell your story in your own way, and take your own time for it,” said Hammer, kindly patronizing.

“I don’t want Joe to suffer for me,” she said, letting her sad eyes rest on him for a moment. “What he kept back wasn’t for his own sake. It was for mine.”

“Yes; go on, Mrs. Chase,” said Hammer as she hesitated there.

“Joe didn’t shoot Isom. That happened just the way he’s said. I know all about it, for I was there. Joe didn’t know anything about that money. I’ll tell you about that, too.”

“Now, your honor,” began the prosecutor complainingly, “it seems to me that the time and place for evidence of this nature has gone by. This witness has testified already, and to an entirely different set of facts. I don’t know what influences have been at work to induce her to frame up a new story, but—”

“Your zeal is commendable, Mr. Prosecutor,” said the judge, “but it must not be allowed to obscure the human rights at hazard in this case. Let the witness proceed.”

Ollie shuddered like one entering cold water as she let her eyes take a flight out over the crowd. Perhaps she saw something in it that appalled her, or perhaps she realized only then that she was about to expose the nakedness of her soul before the world.

“Go ahead, Mrs. Chase,” prompted Hammer. “You say you know about that sack of money?”

“I was taking it away with me,” said she, drawing a long breath and expelling it with an audible sigh.

She seemed very tired, and she looked most hopeless, pitiable, and forlorn; still there was no wavering from the task that she had set for herself, no shrinking from its pain. “I was going to meet Curtis Morgan, the book-agent man that you’ve asked me about before. We intended to run off to the city together. Joe knew about it; he stopped me that night.”

She paused again, picking at her fingers nervously.

“You say that Joe stopped you—” Hammer began. She cut him off, taking up her suspended narrative without spirit, as one resumes a burden.

“Yes, but let me tell you first.” She looked frankly into Judge Maxwell’s eyes.

“Address the jury, Mrs. Chase,” admonished Hammer. She turned and looked steadily into the foreman’s bearded face.

“There never was a thing out of the way between me and Joe. Joe never made love to me; he never kissed me, he never seemed to want to. When Curtis Morgan came to board with us I was about ready to die, I was so tired and lonesome and starved for a kind word.

“Isom was a hard man—harder than anybody knows that never worked for him. He worked me like I was only a plow or a hoe, without any feeling or any heart. Morgan and me—Mr. Morgan, he—well, we fell in love. We didn’t act right, and Joe found it out. That was the day that Mr. Morgan and I planned to run away together. He was coming back for me that night.”

“You say that you and Morgan didn’t act right,” said Hammer, not satisfied with a statement that might leave the jurymen the labor of conjecture. “Do you mean to say that there were improper relations between you? that you were, in a word, unfaithful to your husband, Isom Chase?”

Ollie’s pale face grew scarlet; she hung her head.

“Yes,” she answered, in voice shamed and low.

Her mother, shocked and astounded by this public revelation, sat as if crouching in the place where Ollie had left her. Judge Maxwell nodded encouragingly to the woman who was making her open confession.

“Go on,” said he.

His eyes shifted from her to Joe Newbolt, who was looking at Ollie with every evidence of acute suffering and sympathy in his face. The judge studied him intently; Joe, his attention centered on Ollie, was insensible to the scrutiny.

Ollie told how she and Morgan had made their plans in the orchard that afternoon, and how she had gone to the house and prepared to carry out the compact that night, not knowing that Joe had overheard them and sent Morgan away. She had a most attentive and appreciative audience. She spoke in a low voice, her face turned toward the jury, according to Hammer’s directions. He could not afford to have them lose one word of that belated evidence.

“I knew where Isom hid his money,” said she, “and that night when I thought Joe was asleep I took up the loose board in the closet of the room

where Isom and I slept and took out that little sack. There was another one like it, but I only took my share. I'd worked for it, and starved and suffered, and it was mine. I didn't consider that I was robbing him."

"You were not," Hammer assured her. "A wife cannot rob her husband, Mrs. Chase. And then what did you do?"

"I went downstairs with that money in my hand and laid it on the kitchen table while I fixed my hat. It was dark in the kitchen, and when I was ready to go to meet Mr. Morgan in the place agreed on between us, I struck a match to find my way to the door without bumpin' into a chair or something and making a noise that would wake up Joe.

"I didn't know he was already up and watching for me to start. He was at the door when I opened it, and he told me to light the lamp. I wouldn't do it. I didn't want him to see me all dressed and ready to leave, and I wanted to try to slip that sack of money off the table before he saw it, too. He came in; I guess he put his hat down on the table in the dark, and it fell on top of the sack.

"When he lit the lamp in a minute you couldn't have told there was anything under the hat unless you stood in a certain place, where it showed a little under the brim. Joe told me he knew all about Morgan and me, and that he'd sent him away. He said it was wrong for me to leave Isom; he said that Isom was better than Morgan, bad as he was.

"I flared up and got mad at Joe, but he was gentle and kind, and talked to me and showed me where I was wrong. I'd kind of tried to make love to Joe a little before that," she confessed, her face flushing hotly again, "before Mr. Morgan came, that was. I'll tell you this so you'll know that there was nothing out of the way between me and Joe.

"Joe didn't seem to understand such things. He was nothing but a boy till the night Isom was killed. He didn't take me up on it like Morgan did. I know it was wrong in me; but Isom drove me to it, and I've suffered for it—more than I can ever make you understand."

She appealed to the judge in her manner of saying that; appealed as for the absolution which she had earned by a cruel penance. He nodded kindly, his face very grave.

"Yes, Mrs. Chase," said Hammer. "And then what did you do next?"

"Well, while Joe was persuading me to go back to bed I put my arms around his neck. I wanted to smooth it over with him, so he'd go to bed first

and I could take the money and put it back, for one thing; and because I really was sorry for what I'd done, and was ashamed of it, and felt lonesome and kicked out, and like nobody didn't care.

"Isom came in and saw us standing there that way, with my hands on Joe's shoulders, and he rushed up and said: 'I'll kill you!' He said we was standing there hugging each other, and that we'd disgraced him; but that wasn't so. It was all my fault, but Joe didn't tell him that."

"And what did Joe tell him, Mrs. Chase?" asked Hammer, aglow with the victory which he felt to be already in his hand. He looked with gloating triumph at the prosecuting attorney, who sat at the table twirling a pencil in his fingers, and did not lift his eyes.

"Joe told Isom he was making a mistake, and then Isom ripped and swore and threatened to kill us both. He looked around for something to do it with, and he saw that sack of money under Joe's hat. He jumped for the table and grabbed it, and then he made for the gun. I told Joe to stop him, and Joe tried. But he was too late. The rest of it happened just like Joe's already told you."

Ollie's head drooped forward wearily, and her hands lay passively in her lap. It seemed that she considered the story concluded, but Hammer was not of that mind.

"After Isom fell—after the gun went off and Isom fell—what did you and Joe do?" he asked.

"We heard somebody coming in a minute. We didn't know who it could be, but I was afraid. I knew if it got out on me about my start to run off with Morgan, and all the rest of it, I'd be ruined and disgraced forever.

"Joe knew it too, better than I did. I didn't have to tell him, and I never even hinted for him to do what he did. I never even thought of that. I asked him what we'd do, and he told me to go upstairs and leave him to do the talking. I went. I was coward enough to go and leave him to bear the blame. When Joe lied at the inquest to save me, I backed him up in it, and I stuck to it up till now. Maybe I was a little mad at him for coming between me and Mr. Morgan, but that was just a streak. That's the only lie Joe's told, and you can see he never would have told that to save himself. I don't want to see him suffer any more for me."

Ollie concluded her recital in the same low, dragging and spiritless voice in which she had begun it. Conscience whipped her through, but it could not

make her unafraid. Hammer turned to the prosecutor with questioning eyes. Lucas announced that he did not desire to cross-examine the witness, and the judge dismissed her.

Ollie went back to her mother. No demonstration accompanied her passing, but a great sigh sounded over the room as the tenseness of the listening strain relaxed, and the fulness of satisfaction came in its place.

Mrs. Newbolt still clung to her son's hand. She nodded at the prosecuting attorney with glowing eyes, as if glorying over him in the moment of his defeat. Alice Price smiled joyously, and leaned back from her posture of concentration. The colonel whispered to her, bringing the palms of his hands together in silent but expressive applause. The prosecuting attorney stood.

"Your honor—" he began, but Judge Maxwell, lifting his head from the reflecting pose into which he had fallen when Ollie left the stand, silenced him with an impatient gesture.

"One moment, Mr. Prosecutor," said he.

The prosecutor flushed, and sat down in ruffled dignity.

"I merely wanted to make a motion for dismissal," said he, sarcastically, as if it was only the merest incidental in the day's proceedings.

"That is not the procedure," said the judge. "The state owes it to this defendant to absolve him before the public of the obloquy of this unfounded and cruel accusation."

"Vindication is what we demand, your honor," said Hammer grandly; "vindication before the world!"

He spread his arms wide, as if the world stood before him, fat and big of girth like himself, and he meant to embrace it with the next breath.

"You shall have it, Mr. Hammer," said the judge. He turned to the jury. "Gentlemen of the jury, this case has come to a sudden and unexpected end. The state's case, prosecuted with such worthy energy and honorable intention, has collapsed. Your one duty now, gentlemen, is to return a verdict of not guilty. Will it be necessary for you to retire to the jury room?"

The jurymen had been exchanging glances. Now the foreman rose, tall and solemn, with beard upon his breast.

"Your honor, it will not be necessary for the jury to retire," said he. "We are ready to return our verdict."

According to the form, the foreman wrote out the verdict on the blank provided by statute; he stood with his fellows while the clerk of the court read it aloud:

“We, the jury, find the defendant not guilty.”

The judge looked down at Joe, who had turned to his mother, smiling through his tears.

“You are free, God bless you!” said he.

When a judge says so much more upon the bench than precedent, form, and custom prescribe for him to say; when he puts down the hard mask of the law and discovers his human face behind it, and his human heart moving his warm, human blood; when a judge on the bench does that, what can be expected of the unsanctified mob in front of him?

It was said by many that Captain Taylor led the applause himself, but there were others who claimed that distinction for Colonel Price. No matter.

While the house did not rise as one man—for in every house there are old joints and young ones, which do not unlimber with the same degree of alacrity, no matter what the incitement—it got to its feet in surprising order, with a great tossing of arms and waving of hats and coats. In the midst of this glad turmoil stood Uncle Posen Spratt, head and shoulders above the crowd, mounted on a bench, his steer’s horn ear-trumpet to his whiskered lips, like an Israelitish priest, blowing his famous fox-hound blast, which had been heard five miles on a still autumn night.

Less than half an hour before, the public would have attended Joe Newbolt’s hanging with all the pleasurable and satisfactory thrills which men draw from such melancholy events. Now it was clamoring to lift him to its shoulders and bear him in triumph through the town.

Judge Maxwell smiled, and adjourned court, which order nobody but his clerk heard, and let them have their noisy way. When the people saw him come down from the bench they quieted, not understanding his purpose; and when he reached out his hand to Joe, who rose to meet him, silence settled over the house. Judge Maxwell put his arm around Joe’s shoulder in fatherly way while he shook hands with Mrs. Newbolt. What he said, nobody but those within the bar heard, but he gave Joe’s back an expressive slap of approval as he turned to the prosecuting attorney.

People rushed forward with the suddenness of water released, to shake hands with Joe when they understood that the court was in adjournment.

They crowded inside the rail, almost overwhelming him, exclaiming in loud terms of admiration, addressing him familiarly, to his excessive embarrassment, pressing upon him their assurances that they knew, all the time, that he didn't do it, and that he would come out of it with head and tail both up, as he had come through.

Men who would have passed him yesterday without a second thought, and who would no more have given their hands to him on the footing of equality—unless they had chanced to be running for office—than they would have thrust them into the fire, now stood there smiling and jostling and waiting their turns to reach him, all of them chattering and mouthing and nodding heads until one would have thought that each of them was a prophet, and had predicted this very thing.

The old generals, colonels, majors, and captains—that was the lowest rank in Shelbyville—and the noncommissioned substantial first citizens of the county, were shaking hands among themselves, and nodding and smiling, full of the fine feeling of that moment. It was a triumph of chivalry, they said; they had witnessed the renaissance of the old spirit, the passing of which, and the dying out and dwindling of it in the rising generation, they had so long and lamentably deplored.

There, before their eyes, they had seen this uncouth grub transformed into a glorious and noble thing, and the only discord in the miraculous harmony of it was the deep-lying regret that it was not a son of Shelbyville who had thus proved himself a man. And then the colonels and others broke off their self-felicitation to join the forward mob in the front of the room, and press their congratulations upon Joe.

Joe, embarrassed and awkward, tried to be genial, but hardly succeeded in being civil, for his heart was not with them in what he felt to be nothing but a cheap emotion. He was looking over their heads, and peering between their shoulders, watching the progress of a little red feather in a Highland bonnet, which was making its way toward him through the confusion like a bold pennant upon the crest of battle. Joe pushed through the wedging mass of people around, and went to the bar to meet her.

In the time of his distress, these who now clamored around him with professions of friendliness had not held up a hand to sustain him, nor given him one good word to shore up his sinking soul. But there was one who had known and understood; one whose faith had held him up to the heights of honor, and his soul stood in his eyes to greet her as he waited for her to

come. He did not know what he would say when hand touched hand, but he felt that he could fall down upon his knees as a subject sinks before a queen.

Behind him he heard his mother's voice, thanking the people who offered their congratulations. It was a great day for her when the foremost citizens of the county came forward, their hats in their hands, to pay their respects to her Joe. She felt that he was rising up to his place at last, and coming into his own.

Joe heard his mother's voice, but it was sound to him now without words. Alice was coming. She was now just a little way beyond the reach of his arm, and her presence filled the world.

The people had their quick eyes on Alice, also, and they fell apart to let her pass, the flame of a new expectation in their keen faces. After yesterday's strange act, which seemed so prophetic of today's climax in the case, what was she going to do? Joe wondered in his heart with them; he trembled in his eagerness to know.

She was now at the last row of benches, not five feet distant from him, where she stood a second, while she looked up into his face and smiled, lifting her hand in a little expressive gesture. Then she turned aside to the place where Ollie Chase sat, shame-stricken and stunned, beside her mother.

The women who had been sitting near Ollie had withdrawn from her, as if she had become unclean with her confession. And now, as Alice approached, Ollie's mother gave her a hard, resentful look, and put her arm about her daughter as if to protect her from any physical indignities which Alice might be bent on offering.

Ollie shrank against her mother, her hair bright above her somber garb, as if it was the one spot in her where any of the sunshine of her past remained. Alice went to her with determined directness. She bent over her, and took her by the hand.

"Thank you! You're the bravest woman in the world!" she said.

Ollie looked up, wonder and disbelief struggling against the pathetic hopelessness in her eyes. Alice bent lower. She kissed the young widow's pale forehead.

Joe was ashamed that he had forgotten Ollie. He saw tears come into Ollie's eyes as she clung closer to Alice's hand, and he heard the shocked

gasping of women, and the grunts of men, and the stirring murmur of surprise which shook the crowd. He opened the little gate in the railing and went out.

“You didn’t have to do that for me, Ollie,” said he, kindly; “I could have got on, somehow, without that.” 338

“Both of you—” said Ollie, a sob shaking her breath; “it was for both of you!”

There was a churchlike stillness around them. Colonel Price had advanced, and now stood near the little group, a look of understanding in his kind old face. Ollie mastered her sudden gust of weeping, and shook her disordered hair back from her forehead, a defiant light in her eyes.

“I don’t care now, I don’t care what *anybody* says!” said she.

Her mother glanced around with the fire of battle in her eyes. In that look she defied the public, and uttered her contempt for its valuation and opinion. Alice Price had lifted her crushed and broken daughter up. She had taken her by the hand, and she had kissed her, to show the world that she did not hold her as one defiled. Judge Maxwell and all of them had seen her do it. She had given Ollie absolution before all men.

Ollie drew her cloak around her shoulders and rose to her feet.

“Remember that; for both of you, for one as much as the other,” said she, looking into Alice’s eyes. “Come on, Mother; we’ll go home now.”

Ollie walked out of the court-room with her head up, looking the world in the face. In place of the mark of the beast on her forehead, she was carrying the cool benediction of a virtuous kiss. Joe and Alice stood looking after her until she reached the door; even the most careless there waited her exit as if it was part of some solemn ceremony. When she had passed out of sight beyond the door, the crowd moved suddenly and noisily after her. For the public, the show was over.

Alice looked up into Joe’s face. There was uncertainty in his eyes still, for he was no wiser than those in their generations before him who had failed to read a woman’s heart. Alice saw that cloud hovering before the 339 sun of his felicity. She lifted her hands and gave them to him, as one restoring to its owner something that cannot be denied.

Face to face for a moment they stood thus, hands clasped in hands. For them the world was empty of prying eyes, wondering minds, impertinent faces. For a moment they were alone.

The jurors had come out of the box, and were following the crowd. Hammer was gathering up his books and papers, Judge Maxwell and the prosecuting attorney were talking with Mrs. Newbolt. The sheriff was waiting near the bar, as if he had some duty yet before him to discharge. A smile had come over Colonel Price's face, where it spread like a benediction as Joe and Alice turned to enter the world again.

"I want to shake hands with you, Joe," said the sheriff, "and wish you good luck. I always knowed you was as innercent as a child."

Joe obliged him, and thanked him for his expression, but there were things in the past which were not so easily wiped from the memory—especially a chafed ring around his left wrist, where the sheriff's iron had galled him when he had fretted against it during the tense moments of those past days.

Sam Lucas offered Joe his hand.

"No hard feeling, Joe, I hope?" said he.

"Well, not in particular—oh, well, you were only doing your duty, as you saw it," said Joe.

"You could have saved the county a lot of money, and yourself and your friends a lot of trouble and anxiety, if you'd told us all about this thing at the beginning," complained Lucas, with lingering severity.

"As for that—" began Colonel Price.

"You knew it, Miss Price," Lucas cut in. "Why didn't you make him tell?"

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"No," said Alice, quietly, "I didn't know, Mr. Lucas. I only believed in him. Besides that, there are some things that you can't *make* a gentleman tell!"

"Just so," said Judge Maxwell, coming down from the bench with his books under his arm.

"Bless your heart, honey," said Mrs. Newbolt, touching Alice's hair with gentle, almost reverent hand, "you knew him better than his old mother did!"

Colonel Price bowed ceremoniously to Mrs. Newbolt.

"I want you and Joe to come home with us for some refreshment," said he, "after which the boy and I must have a long, long talk. Mr. Hammer, sir," said he, giving that astonished lawyer his hand, "I beg the honor of shaking hands with a rising gentleman, sir!"

CHAPTER XXII

A SUMMONS OF THE NIGHT

There was a voice of moaning abroad in the night. It sounded as the rain swept through the rocking trees and bent its spears against Judge Maxwell's study windows; it sighed in his chimney like an old man turning the ashes of spent dreams. It was an unkind night for one to be abroad, for the rain seemed as penetrating as sorrow. Few passed upon the street beneath the judge's windows where his dim light glowed.

Now and then the sound of hoofs and wheels rose above the wail of the storm, sharp for a moment as it passed, quickly dimmed, quickly lost. It was a night to be beneath one's own roof, beside one's own fire, feeling the thankfulness for such plain comforts which one passes over in the sunny days.

Judge Maxwell had a fire of hickory wood in his chimney, and a tall, dark bottle on the small stand at his elbow. On the long table at his other hand stood his shaded lamp, pouring its concentrated beams upon his papers and books, leaving the corners of the room in shadows. The judge sat with his glass in his hand, studying the fire.

All day, since the adjournment of court, the remarkable termination of and disclosures in the case of State against Newbolt had been flowing through his mind; all day, all evening, the white, strong face of the defendant youth had stood before his eyes. He could not turn from it, nor forget the appeal of those grave, gray eyes.

Never before, in his long and honorable life, had the judge been moved by a case as this had moved him. There was nothing in all his rich experience to equal it. In all his reading—

"Hum-m-m," said the judge, reflectively, remembering. He rose slowly and went to the bookcase nearest the fire. He took down a leather-bound volume and returned to his chair, where he sat with his legs crossed, supporting the heavy book upon his knee. Reflectively he turned the pages, reflectively he read, shaking his head when he had done.

"No, it is not a parallel," said he. "The matter involved has only a remote similitude. I do not believe the annals of jurisprudence contain another case

to compare with that of our own Joe Newbolt.”

The judge put the volume back in its place, pausing at the table as he returned to his chair to turn down the flame of the lamp. It was too bright for the judge's mood; it was inharmonious with the penitential night. Almost like a voice, strident and in discord above the sobbing music of an orchestra, thought the judge. The firelight was better for a mood such as his.

One can see farther back by the soft glow of wood coals, leaning over and looking into them, than under the gleam of the strongest lamp. Judge Maxwell had a long vista behind him to review, and it seemed to him that night that it was a picture with more shadow than gleam. This day's events had set him upon the train of retrospection, of moody thought.

He had seen that boy, Joe Newbolt, leap out of the obscurity of his life into the place of heroes, as he would have had his own son do, if he could have kept him by his side and fashioned his life. But that boy was gone; long years ago he had left him, and none had come after him to stand in his place. His little, worn books, which he used to sprawl upon the floor and read, were treasured there on their sacred shelf behind the bookcase glass. The light had failed out of the eyes which had found wonders in them, more than thirty years ago.

The lad's mother had followed him; nobody remained to the judge now out of those days of his struggle and slow-mounting hope, save old Hiram, his negro man, a family servitor since the times of slavery, and he was trembling on the limb to fall.

Yes, that was the way that he would have had his own boy stand, true to a trust, faithful in his honor, even under the beam of the gallows-tree; stand as that lad Joe Newbolt had stood, unschooled though he was in everything but that deep sense of duty devolving on one born free. Such nobility was the peculiar birthright of the true American.

Scarcely behind Joe Newbolt stood that hitherto weak woman, Ollie Chase. It called for courage to do what she had done. She had only to keep her peace, and hide whatever pity she felt and pain she suffered on account of the lad who stood ready to sacrifice his life for her, to proceed upon her way clean in the eyes of men. She must have endured the tortures of hidden fires through those weeks of uncertainty and suspense, thought he.

Yes, Ollie Chase had her own nobility; the laurel was due her poor, smirched brow, just as much as it was to Joe Newbolt's lofty forehead.

Contrition doubtless played its part in driving her to open confession, and the pain of concealment must have been hard to bear. But there was an underlying nobility in that woman's heart which had urged her on stronger than all. It is a spark in the breast of even the most debased, thought the judge, which abnegation and sacrifice often kindle into a beautiful flame.

And there was Alice Price, with her fine intuition and sublime faith. What a white soul that strong young woman had, said he; what a beautiful and spotless heart. In that kiss which she had stooped to press on the young widow's forehead she had wiped away the difference which Ollie's sin had set between her and other women. It was an act of generosity without ostentation, which he doubted whether Alice Price herself was aware of in its farthest significance. It was the spontaneous act of womanly sympathy and unconscious charity.

What Ollie Chase had said to them as they stood before her, Judge Maxwell did not know, but what was written in their young faces as they turned from watching her go, the whole world might have read—if it had been as watchful and wise as he. What a fitting mate she was for that young lion, Joe Newbolt, thought the judge; such a mate, indeed, as he would have chosen for his own son if God had seen fit to give him that transcendent joy.

Judge Maxwell found himself greatly concerned about Joe Newbolt's future. He wondered what he would make of it if left to go about it in his own way; what he would make of it if properly armed and encouraged. He followed that speculation a long way down the future, building dimly, but pleasantly, in his dream.

A ring sounded at the front door.

Judge Maxwell did not even withdraw his eyes from the fire. Some lawyer over in one of the other two counties embraced in that circuit telegraphing to ask some favor of delay, or favor of something else. To ask a favor, certainly; lawyers never telegraphed to confer favors. Old Hiram, dozing by the kitchen stove, would hear.

Presently old Hiram's shuffling feet sounded along the hall outside Judge Maxwell's study door. The outer door opened and closed. Old Hiram came into the judge's room, a candle in his hand.

"There's a man wishin' to see you, judge, sah," he announced.

Judge Maxwell started from his reverie. In the minute that had passed between the ring at the door and the entry of Hiram, he had put the visitor

out of his head.

“A gentleman to see me, Hiram? Who is it?”

“No, sah; I don’t think he’s ’zactly a gentleman, sah. I don’t know who he is; he nevah give me no card, sah, but he’s moughty sploshed and blustery lookin’.”

“Well—” the judge rose, halting his speech as if thinking of one thing and speaking of another—“fetch him in here, Hiram.”

“He’s drippin’ and drappin’ like a leaky pail, sah,” said Hiram, shaking his cottony old head.

“No matter; he’ll do no harm, Hiram.”

Hiram brought the visitor in. The judge advanced to meet him.

The stranger’s rubber coat glistened in the light, and the hat that he carried in his hand trickled a little stream on the carpet as he crossed the room. Old Hiram lingered at the door, holding his candle aloft.

The stranger stopped midway between Judge Maxwell and the door, as if uncertain of his welcome, or conscious just at that moment of his drenched and dripping state. He was a tall man and sparely built, and his light-colored wet hair lay in little ringlets against his temples. His mustache was short and stubby. His garments were splashed with mud, as if he had come a long distance over rough roads. There was a haggard and harried look in the man’s eyes; he seemed at the highest pitch of nervous tension. His lips were set in a grim line, as if he struggled to hold something from utterance. His eyes were wide and wild.

“Judge Maxwell,” he began, looking around him from side to side in quick starts, “I must apologize to you for coming into your house in this condition, and for this late call. But I’m here on important business; I ask you to give me a few minutes of your time alone.”

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The judge nodded to Hiram, who closed the door after him.

“Take off that wet coat—give me your hat, and sit here,” said the judge, pulling a chair around to the fire.

The visitor drew off his rubber garment.

“Thank you, sir,” said he. “My name is Morgan, and I’ve come over hell’s highway, as the man said, to get to Shelbyville tonight.”

“Not Curtis Morgan?” said Judge Maxwell, lifting his eyes in startled surprise, staying the stream of liquor that he was decanting into a glass.

“Yes. You’ve heard my name before tonight, I see,” the visitor said.

“Just so,” replied the judge, in his studious way. “Drink this, unless you have scruples?”

“It looks to me like a life-preserver to a drowning man,” said Morgan, with a glimmer of his every-day facetiousness. He drained the glass; the judge motioned for him to sit down. Morgan did so, and stretched his wet feet to the fire.

“I’ve got a story to tell you, Judge Maxwell,” said he, again casting his quick, almost fearful look around, “that will sound to you, maybe, like a wild-eyed dream. But I want to tell you right now, it ain’t no dream—not by a million miles! I wish it was,” he added, with a serious twist of the head.

“Go on,” said the judge.

“I’ve hurried here, Judge Maxwell, to do what I can in the name of justice and humanity,” Morgan said. “That boy, Joe Newbolt, on trial here before you for the murder of old man Chase, is innocent. That boy is telling the truth, Judge, and I’ll stake my neck on that. I’ve got a story to tell you that will clear up all he’s holding back, and I’ll tell it, if I swing for it!”

Morgan was greatly agitated. He stopped there, looking earnestly into the judge’s face.

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“Why have you waited so long?” asked the judge, sternly.

Morgan leaned over, clutching at the judge’s arm.

“Am I too late—is it over—have they convicted him?” he asked.

“Yes, it’s over,” nodded the judge, studying Morgan’s face narrowly.

“Merciful heavens!” said Morgan, springing to his feet, looking around for his coat and hat. “We must stop this thing before it’s too late, Judge—I tell you we must stop it! Isn’t there some way—have they convicted Joe?”

“Sit down, Morgan, and calm yourself. Hold your feet out to the blaze and dry them,” the judge admonished, kindly.

“What’s happened?” asked Morgan, wildly, not heeding the command.

“You shall hear it all in time,” promised the judge. “Sit down here and tell me what you’ve been doing all these weeks. Where have you been?”

“Judge, I’ve been over in Saint Joe selling books,” said Morgan, “and I’ll tell you the truth, Judge, I never intended to come back here.” He turned and faced the judge, leaning forward earnestly, his face white. He lowered his voice to a hoarse whisper. “But I had to come back—I was sent back by—by a voice!”

“Just so,” nodded Judge Maxwell.

“You may think it’s a pipe-dream, Judge, but it ain’t. It’s the solemn truth, if I ever told it in my life. I intended to let Joe Newbolt go on and carry what he’d picked up, and then when he was out of the way in the pen, or worse, maybe, I intended to hunt Ollie up and marry her. I didn’t want that business that Joe Newbolt’s been keeping back let out on her, don’t you see, Judge? It concerns her and me, Judge; it ain’t the kind of a story a man’s folks would want told around about his wife, you understand?”

The judge nodded.

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“All right,” said Morgan, wiping his forehead, which was beaded with sweat, “Last night along about ten o’clock I was in my room reading the account in the paper of how Joe had refused on the stand yesterday to tell anything, and how a young woman had stood up in the court-room and backed him up and encouraged him in his stand. I was reading along comfortable and all right, when I seemed to hear somebody call me by my name.

“I tell you I seemed to hear it, for there wasn’t a soul in that room but myself, Judge. But that voice seemed to sound as close to my ear as if it come out of a telephone. And it was a woman’s voice, too, believe me or not, Judge!”

“Yes?” said the judge, encouragingly, still studying Morgan’s face, curiously.

“Yes, sir. She repeated my name, ‘Curtis Morgan,’ just that way. And then that voice seemed to say to me, ‘Come to Shelbyville; start now, start now!’

“Say, I got out of my chair, all in a cold sweat, for I thought it was a call, and I was slated to pass in my checks right there. I looked under everything, back of everything in that room, and opened the door and took a dive down the hall, thinkin’ maybe some swift guy was tryin’ to put one over. Nobody there. As empty, Judge, I tell you, as the pa’m of my hand! But it’s no stall about that voice. I heard it, as plain as I ever heard my mother call me, or the teacher speak to me in school.

“I stood there holding onto the back of my chair, my legs as weak under me as if I’d stayed in swimmin’ too long. I didn’t think anything about going to Shelbyville, or anywhere else, but hell, I guess, for a minute or two. I tell you, Judge, I thought it was a call!”

Morgan was sweating again in the recollection of that terrible experience. He wiped his face, and looked around the room, listened as the rain splashed against the window, and the wind bent the branches of the great trees beside the wall.

“Well?” said Judge Maxwell, leaning forward in his turn, waiting for Morgan’s next word.

“I tell you, Judge, I kept hearing that thing in my ear that way, every little while, till I threw some things in my grip and started for the depot. There wasn’t any train out last night that’d fetch me within fifty miles of here. I went back to my room and went to bed. But it didn’t let up on me. Off and on, all night, just about the time I’d doze off a little, I’d seem to hear that voice. I went to the depot this morning, and caught the eight o’clock train out. I’d ’a’ made it in here at two this afternoon if it hadn’t been for a washout between here and the junction that put the trains on this branch out of service.

“I took a rig and I started to drive over. I got caught in the rain and lost the road. I’ve been miles out of my way, and used up three horses, but I was bound to come. And I’m here to take my medicine.”

“I see,” said the judge. “Well, Morgan, I think it was the voice of conscience that you heard, but you’re no more to blame than any of us, I suppose, because you failed to recognize it. Few of us pay enough attention to it to let it bother us that way.”

“Believe me or not, it wasn’t any pipe-dream!” said Morgan, so earnestly that the flippancy of his slangy speech did not seem out of place. “It was a woman’s voice, but it wasn’t the voice of any woman in this world!”

“It’s a strange experience,” said the judge.

“You can call it that!” shuddered Morgan, expressive of the inadequacy of the words. “Anyhow, I don’t want to hear it again, and I’m here to take my medicine, and go to the pen if I’ve got to, Judge.”

Judge Maxwell put out his hand, impatiently.

“Don’t try to make yourself out a martyr, Morgan,” said he. “You knew—and you know—very well that you hadn’t done anything for which you could be punished, at least not by a prison sentence.”

“Well, I don’t know,” said Morgan, twisting his head argumentatively, as if to imply that there was more behind his villainy than the judge supposed, “but I thought when a feller got to foolin’ with another man’s wife—”

“Oh, pshaw!” cut in the judge. “You’re thinking of it as it should be, not as it is. The thing that you’re guilty of, let me tell you for your future guidance and peace, is only a misdemeanor in this state, not a felony. In a case like this it ought to be a capital offense. You’ve shown that there’s something in you by coming back to take your medicine, as you say, and voice or no voice, Morgan, I’m going to give you credit for that.”

“If the devil ever rode a man!” said Morgan.

“No, it was far from that,” reproved the judge.

“It got me goin’, Judge,” said Morgan, scaring up a little jerky laugh, “and it got me goin’ *right*! It stuck to me till I got on that train and headed for this town, and I’ll hear the ring of it in my ear to my last—what’s that?”

Morgan started to his feet, pale and shaking.

“It was the wind,” said the judge.

“Well, I’m here, anyhow, and I came fast as I could,” said Morgan, appealingly. “Do you think it’ll stick to me, and keep it up?”

“Why should it?” said the judge. “You’ve done your duty, even though whipped to it.”

“If the devil ever whipped a man!” breathed Morgan, “I’m that man.”

Judge Maxwell had doubted the man’s sanity at first, when he began to talk about the voice. Now he only marveled at this thing, so elusive of all human science to explain, or human philosophy to define. He recalled an experience of a friend—one who had been for many years court stenographer—who, in a distant city, had been impelled to seize his pencil on a certain night, and write a message which he seemed to hear plainly dictated into his ear by one in Shelbyville. As soon as the post could carry a message to the man whose voice the stenographer had heard, he was asked about the telepathic communication. He at once mailed to the man who had taken it down, more than two thousand miles away, the identical message, word for word. It had been an experiment, he said.

Perhaps something like that had occurred in Morgan’s case, or perhaps the man merely had dreamed, a recurring dream such as everybody has experienced, and the strong impression of his vision had haunted him, and driven him to the act. And perhaps someone of vigorous intellect and strong will had commanded him. Perhaps—no matter. It was done.

Morgan was there, and the record of justice in the case of state against Newbolt was about to be made final and complete.

“You say it’s all over, Judge,” spoke Morgan. “What did they do with Joe?”

“What happened in court today,” said Judge Maxwell, rising to his feet, “you would have heard if you had been there. But as you were not, it is not for me to relate. That is the privilege of another, as the matter of your condemnation or acquittal is in other hands than mine.”

“I know I acted like a dog,” admitted Morgan, sincerely contrite, “both to Ollie and to Joe. But I’m here to take my medicine, Judge. I thought a lot of that little woman, and I’d ’a’ made a lady of her, too. That was it. Judge; that was at the bottom of this whole business. Ollie and I planned to skip out together, and Joe put his foot in the mess and upset it. That’s what the fuss between him and old Isom was over, you can put that down in your book, Judge. I’ve got it all lined out, and I can tell you just—”

“Never mind; I think I understand. You’d have made a lady of her, would you? But that was when she was clean, and unsuspected in the eyes of the world. How far would your heroism go, Morgan, if you met her in the street tonight, bespattered with public scorn, bedraggled with public contempt, crushed by the discovery of your mutual sin against that old man, Isom Chase? Would you take her to your heart then, Morgan? Would you be man enough to step out into the storm of scorn, and shoulder your part of the load like a man?”

“If I found her in the lowest ditch I’d take her up, Judge, and I’d marry her—if she’d have me then!” said Morgan, earnestly. “When a man’s careless and free, Judge, he sees things one way; when he comes up on a short rope like this, he sees them another.”

“You are right, Morgan,” said the judge.

He walked the length of the room, hands clasped behind his back, his head bent in thought. When he came back to the fire he stood a little while before Morgan, looking at him with intent directness, like a physician sounding for a baffling vagary which lies hidden in the brain.

There was a question in his face which Morgan could not grasp. It gave him a feeling of impending trouble. He shifted uneasily in his chair.

“Stay here until I return,” commanded the judge. “I shall not be long.”

“I’m here to take my medicine,” reiterated Morgan, weakly. “I wouldn’t leave if the road was open to me, Judge.”

Judge Maxwell went to the door, calling for Hiram. Hiram was not far away. His candle was still burning; he came bobbing along the hall with it held high so he could look under it, after the manner of one who had been using candles all his life.

“My overcoat, Hiram, and my neck shawl,” ordered the judge. He turned to Morgan, who was standing on the hearth.

“Wait for me, I’ll not be long away.”

“It’s a blusterin’ and a blowin’ mighty bad, Judge. I’ll get my coat—”

“No, no, Hiram; there’s something for you to do here. Watch that man; don’t let him leave.”

“He ain’t gwine a-leave, Judge, sah,” said Hiram with calm significance.

Hiram held up the great frieze coat, and the judge plunged his arms into it. Then the old negro adjusted the shawl about his master’s shoulders, and tucked the ends of it inside the coat, buttoning that garment over them, to shield the judge’s neck from the driving rain.

The judge turned back into the room to throw another stick on the fire. The lamp was burning low; he reached over to turn up the wick. The flame jumped, faltered, went out.

“Hah, I’ve turned it out, Morgan. Well, no matter. You’ll not need more light than the fire throws. Make yourself comfortable, Morgan.”

With a word to Hiram, the judge opened the door and stepped out into the night.

On the pavement the wind met him rudely, and the rain drove its cold arrows against his kind old face. Wonderful are the ways of Providence, thought Judge Maxwell, bending his head to bring his broad hat-brim to shield his face, and complete are the accounts of justice when it is given that men may see them down to the final word.

The wind laid hold of the judge’s coat, and tugged at it like a vicious dog; it raged in the gaunt trees, and split in long sighs upon the gable-ends and eaves. There was nobody abroad. For Shelbyville the hour was late; Judge Maxwell had the street to himself as he held on his way.

Past the court-house he fought the wind, and a square beyond that. There he turned down a small street, where the force of the blast was broken, looking narrowly about him to right and left at the fronts of houses as he passed.

Simeon Harrison, Ollie Chase's father, lately had given over his unprofitable struggle with the soil. He had taken a house near the Methodist church and gone into the business of teaming. He hauled the merchants' goods up from the railroad station, and moved such inhabitants of Shelbyville as once in a while made a change from one abode to another.

Sim had come to Shelbyville with a plan for setting up a general livery business, in which ambition he had been encouraged by Ollie's marriage to Isom Chase, to whom he looked, remotely, for financial backing. But that had turned out a lean and unprofitable dream.

Since Isom's death Ollie had returned to live with her parents, and Sim's prospects had brightened. He had put a big sign in front of his house, upon which he had listed the many services which he stood ready to perform for mankind, in consideration of payment therefor. They ranged from moving trunks to cleaning cisterns, and, by grace of all of them, Sim was doing very well.

When Sim Harrison heard of his daughter's public confession of shameful conduct with her book-agent boarder, he was a highly scornful man. He scorned her for her weakness in yielding to what he termed the "dally-faddle" of the book-agent, and he doubly scorned her for repudiating her former testimony. The moral side of the matter was obscure to him; it made no appeal.

His sense of personal pride and family honor was not touched by his daughter's confession of shame, any more than his soul was moved to tenderness and warmth for her honest rescue of Joe Newbolt from his overhanging peril. He was voluble in his declarations that they would "put the screws" to Ollie on the charge of perjury. Sim would have kept his own mouth sealed under like circumstances, and it was beyond him to understand why his daughter had less discretion than her parent. So he bore down on the solemn declaration that she stood face to face with a prison term for perjury.

Sim had made so much of this that Ollie and her mother were watching that night out in fear and trembling, sitting huddled together in a little room with the peak of the roof in the ceiling, a lamp burning between them on the stand. Their arms lay listlessly in their laps, they turned their heads in quick starts at the sound of every footfall on the board walk, or when the wind swung the loose-jointed gate and flung it against its anchorings. They were waiting for the sheriff to come and carry Ollie away to jail.

In front of Sim Harrison's house there was a little porch, not much bigger than a hand held slantingly against its weathered side, and in the shadow of it one who had approached unheard by the anxious watchers through the blustering night, stood fumbling for the handle of a bell. But Sim Harrison's door was bald of a bell handle, as it was bare of paint, and now a summons sounded on its thin panel, and went roaring through the house like a blow on a drum.

Mrs. Harrison looked meaningly at Ollie; Ollie nodded, understandingly. The summons for which they had waited had come. The older woman rose in resigned determination, went below and opened the door.

"It is Judge Maxwell," said the dark figure which stood large and fearful in Mrs. Harrison's sight. "I have come to see Mrs. Chase."

"Yes, sir; I'll call her," said the trembling woman.

Ollie had heard from the top of the stairs. She was descending in the darkness, softly. She spoke as her mother turned from the door.

"I was expecting you—some of you," said she.

"Very well, then," said Judge Maxwell, wondering if that mysterious voice had worked another miracle. "Get your wraps and come with me."

Mrs. Harrison began to groan and wail. Couldn't they let the poor child stay there till morning, under her own mother's roof? It was a wild and terrible night, and Lord knew the poor, beaten, bruised, and weary bird would not fly away!

"Save your tears, madam, until they are needed," said the judge, not feeling that he was called upon to explain the purpose of his visit to her.

"I'm ready to go," announced Ollie, hooded and cloaked in the door.

Sim Harrison was stirring about overhead. He came to the top of the stairs with a lamp in his hand, and wanted to know what the rumpus was about.

"It's Judge Maxwell—he's come for Ollie!" said his wife, in a despairing wail.

"I knowed it, I knowed it!" declared Sim, with fatalistic resignation, above which there was perhaps a slight note of triumph in seeing his own prediction so speedily fulfilled.

To Harrison and his wife there was no distinction between the executive and judicial branches of the law. Judge or sheriff, it was all one to them, each being equally terrible in their eyes.

“When can she come home, Judge, when can she come back?” appealed Mrs. Harrison, in anguished pleading.

“It rests with her,” returned the judge.

He gave Ollie his arm, and they passed together in silence up the street. They had proceeded a square before the judge spoke. 357

“I am calling you on an unusual mission, Mrs. Chase,” he said, “but I did not know a better way than this to go about what I felt it my duty to do.”

“Yes, sir,” said she. He could feel her tremble as she lightly touched his arm.

They passed the court-house. There was a light in the sheriff’s office, but they did not turn in there, and a sigh for that temporary respite, at least, escaped her. The judge spoke again.

“You left the court-room today before I had a chance to speak to you, Mrs. Chase. I wanted to tell you how much I admired your courage in coming forward with the statement that cleared away the doubt and tangles from Joe Newbolt’s case. You deserve a great deal of credit, which I am certain the public will not withhold. You are a brave little woman, Ollie Chase.”

There it was again! Twice in a day she had heard it, from eminent sources each time. The world was not a bleak desert, as she had thought, but a place of kindness and of gentle hearts.

“I’m glad you don’t blame me,” she faltered, not knowing what to make of this unexpected turn in the night’s adventure.

“A brave little woman!” repeated the judge feelingly. “And I want you to know that I respect and admire you for what you have done.”

Ollie was silent, but her heart was shouting, leaping, and bounding again in light freedom, as it had lifted that morning when Alice Price had spoken to her in her despair. At last, she said, with earnestness:

“I promise you I’ll be a good woman, too, from now on, Judge Maxwell, and I’m thankful to you for your kind words.”

“We turn in here—this is my door,” said the judge.

Mystified, wondering what the next development of this strange excursion into the night would be, but satisfied in her mind that it meant no ill for her now, Ollie waited while the judge found the keyhole, for which he groped in the dark. 358

“And the matter of the will was all disposed of by the probate judge today, I hear,” said the judge, his hand on the door.

“Yes, sir.”

“Then your life is all before you, to make of it what you will,” said he, placing his hand on her shoulder, as she stood with him in the dim hall. He opened the study door. The wood on the grate was blazing brightly. Ollie saw someone standing before it, bending slightly forward in the pose of expectation. He was tall and of familiar figure, and the firelight was playing in the tossed curls of his short, fair hair.

“In there,” said the judge, “if you care to go.”

Ollie did not stir. Her feet felt rooted to the floor in the wonder and doubt of this strange occurrence.

“Ollie!” cried the man at the hearthstone, calling her name imploringly. He came forward, holding out pleading hands.

She stood a moment, as if gathering herself to a resolution. A sob rose in her throat, and broke from her lips transformed into a trembling, sharp, glad cry. It was as if she had cast the clot of sorrow from her heart. Then she passed into the room and met him.

Judge Maxwell closed the door.

CHAPTER XXIII

LEST I FORGET

Mrs. Newbolt was cutting splints for her new sun-bonnet out of a pasteboard box. She hitched her chair back a little farther into the shadow of the porch, for the impertinent sun was winking on her bright scissors, dazzling her eyes.

It was past the turn of the afternoon; a soft wind was moving with indolence among the tender leaves, sleepy from the scents of lilac and apple bloom which it had drunk on its way. And now it loitered under the eaves of the porch to mix honeysuckle with its stream of drowsy sweets, like a chemist of Araby the Blest preparing a perfume for the harem's pride.

There was the gleam of fresh paint on the walls of the old house. The steps of the porch had been renewed with strong timber, the rotting siding had been replaced. Mrs. Newbolt's chair no longer drew squeaks and groans from the floor of the porch as she rocked, swaying gently as her quick shears shaped the board. New flooring had been laid there, and painted a handsome gray; the falling trellis between gate and door had been plumbed and renewed.

New life was everywhere about the old place, yet its old charm was undisturbed, its old homeliness was unchanged. Comfort had come to dejection, tidiness had been restored to beauty. The windows of the old house now looked upon the highway boldly, owing the world nothing in the way of glass.

Where the sprawling rail fence had lain for nearly forty years, renewed piecemeal from time to time as it rotted away, its corners full of brambles, its stakes and riders overrun with poison-vine; where this brown, jointed structure had stretched, like a fossil worm, a great transformation had come. The rails were gone, the brambles were cleared away, and a neat white fence of pickets stretched in front of the house. This was flanked on either hand by a high fence of woven wire, new to that country then, at once the wonder of the old inhabitants, the despair of prowling hogs and the bewilderment of hens. There was a gate now where the old gap had been; it

swung shut behind one with an eager little spring, which startled agents and strangers with the sharpness of its click.

The shrubbery had been cleared of dead wood, and the underlying generations of withered honeysuckle vines which had spread under the green upon the old trellis, had been taken away. Freshness was there, the mark of an eager, vigorous hand. The matted blue grass which sodded the yard had been cut and trimmed to lines along the path. A great and happy change had come over the old place, so long under the shadow. People stopped to admire it as they passed.

“Well, well; it’s the doin’s of that boy, Joe Newbolt!” they said.

Mrs. Newbolt paused in her clipping of bonnet slats to make a menacing snip at a big white rooster which came picking around the steps. The fowl stretched his long neck and turned his bright eye up to his mistress with a slanting of the head.

“How did you git out of that pen, you old scalawag?” she demanded.

The rooster took a long and dignified step away from her, where he stood, with little appearance of alarm, turning his head, questioning her with his shining eye. She made a little lunge with her shears.

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“Yes, I’m goin’ to tell Joe on you, you scamp!” she threatened.

“Coo-doot-cut!” said the rooster, looking about him with a long stretching of the neck.

“Yes, you better begin to cackle over it,” said she, speaking in solemn reproof, as if addressing a child, “for Joe he’ll just about cut your sassy old head clean off! If he don’t do that, he’ll trim down that wing of yourn till you can’t bat a skeeter off your nose with it, you redick-lous old critter!”

But it was not the threat of Joe that had drawn the cry of alarm from the fowl. The sound of steps was growing along the path from the front gate, and the fowl scampered off to the cover of the gooseberry vines, as Mrs. Newbolt turned to see who the visitor was. The scissors fell from her lap, and her spool trundled off across the porch.

“Laws, Sol Greening, you give me a start, sneakin’ up like that!”

Sol laughed out of his whiskers, with a big, loose-rolling sound, and sat on the porch without waiting to be asked.

“I walked up over the grass,” said he. “It’s as soft under your feet as plowed ground. They say Joe’s got one of them lawn-cutters to mow it with?”

“Well, what if he has?” she wanted to know. “He’s got a good many things and improvements around here that you folks that’s lived here for seventy years and more never seen before, I reckon.”

“He sure is a great feller for steppin’ out his own way!” marveled Sol. “I never seen such a change in a place inside of a year as Joe’s made in this one—never in my mortal borned days. It was a lucky day for Joe when Judge Maxwell took a likin’ to him that way.”

Mrs. Newbolt was looking away toward the hills, a dreamy cast in her placid face. 362

“Yes,” said she, “there’s no denyin’ that. But Joe he’d ’a’ got along, Judge Maxwell or no Judge Maxwell. Only it’d ’a’ been slower and harder for him.”

“He would ’a’,” nodded Sol, without reservation. “No discountin’ on that. That boy beats anything this here country ever perduced, barrin’ none, and I ain’t sayin’ that, either, ma’am, just to please you.”

“Much thanks I owe you for what you think of Joe!” said she, scornfully. “You was ready enough, not so very long ago, to set the whole world ag’in’ him if you could.”

“Well, circumstantial evidence—” began Sol.

“Oh, circumstantial nest-eggs!” said she, impatiently. “You’d known Joe all his life, and you know very well he didn’t shoot Isom Chase any more than you done it yourself!”

“Well, mistakes is humant,” sighed Sol, taking advantage of that universal absolution. “They say Judge Maxwell’s goin’ to leave everything he’s got to Joe, and he’s got a considerable, I reckon.”

“I don’t know as Joe’d take it,” said she, folding her hands in her lap. “Judge Maxwell had a hard time to git Joe to let him put in the money to do things around here, and send him to college over in Shelbyville last winter. Joe let him do it on the understandin’ that it was a loan, to be paid interest on and paid back when he was able.”

“Well, from the start he’s makin’ it don’t look like the judge ’d have very long to wait for his money,” said Sol. “Twenty acres of apple trees all in a orchard together, and twenty acres of strawberries set out betwixt and between the rows!”

He looked over the hillside and little apron of valley where Joe’s young orchard spread. Each tiny tree was a plume of leaves; the rows stretched out

to the hilltop, and over.

"I can figger out how twenty acres of apples can be picked and took care of," reflected Sol, as if going over with himself something which he had given thought to before, "but I'll be durned if I can figger out how any man's goin' to pick and take care of twenty acres of strawberries!"

"Joe knows," said his mother.

"Well, I hope he does," sighed Sol, the sigh being breathed to give expression of what remained unspoken. No matter what his hopes, his doubts were unshaken.

No man had ever taken care of twenty acres of strawberries—nor the twentieth part of one acre, for that matter—in that community. No man could do it, according to the bone-deep belief of Sol and his kind.

"Joe says that's only a little dab of a start," said she.

"Cree-mo-nee!" said Sol, his mouth standing open like a mussel shell in the sun. "When'll they be ripe?"

"Next spring."

"Which?" queried Sol, perking his head in puzzled and impertinent way, very much as the rooster had done a little while before him.

"Next spring, I said," she repeated, nodding over her bonnet, into which she was slipping the splints.

"No crop this year?"

"No; Joe says it weakens the plants to bear the first year they're set. It takes the strength away from the roots, he says. He goes through the field and snips off every bloom he sees when he's hoein' among 'em, and I help him between times. We don't git all of 'em, by a mighty sight, though."

Sol shook his head with wise depreciation.

"Throwin' away money," said he.

"Did you ever raise any strawberries?" she inquired, putting down the bonnet, bringing Sol up with a sharp look.

"Reckon I raised as many as Joe ever did, and them mainly with a spoon," said Sol.

The joke was not entirely new; it could not have been original with Sol by at least three hundred years. But it did very well as an excuse for Sol to laugh. He was always looking for excuses to laugh, that was the one virtue in him. Without his big laugh he would have been an empty sack without a bottom.

“Joe got them rows mighty purty and straight,” said Sol, squinting along the apple trees.

“Yes, he set ’em out accordin’ to geog’aphy,” said she.

“Which?” said Sol.

“Ge-og’a-phy, I said. Didn’t you never hear tell of that before neither, Sol Greening?”

“Oh,” said Sol, lightly, as if that made it all as plain to him as his own cracked thumbs. “How much does Joe reckon he’ll git off of that patch of berries when it begins to bear?”

“I never heard him say he expected to make anything,” said she, “but I read in one of them fruit-growin’ papers he takes that they make as much as three hundred dollars an acre from ’em back in Ellinoi.”

Sol got up, slowly; took a backward step into the yard; filled his lungs, opened his mouth, made his eyes round. Under the internal pressure his whiskers stood on end and his face grew red. “Oh, you git *out*!” said he.

“I can show it to you in the paper,” she offered, making as if to put aside her sewing.

Sol laid a finger on his palm and stood with his head bent. After a bit he looked up, his eyes still round.

“If he even makes a hundred, that’ll be two thousand dollars a year!”

It was such a magnificent sum that Sol did not feel like taking the familiarity with it of mentioning it aloud. He whispered it, giving it large, rich sound.

“Why, I reckon it would be,” said she, offhand and careless, just as if two thousand a year, more or less, mattered very little to Joe.

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“That’s more than I ever made in my whole dad-blame life,” said Sol.

“Well, whose fault is it, Sol?” asked she.

“I don’t believe it can be done!”

“You’ll see,” she assured him, comfortably.

“And Joe he went and stuck to the old place,” reflected Sol. “He might ’a’ got some better land for his sperimentin’ and projeckin’ if he’d ’a’ looked around.”

“He was offered land, all the land a man could want,” said she. “Ollie wanted him to take over the Chase home place and farm it when she and Morgan married and left, but Joe he said no; the Newbolts had made their failures here, he said, and here they was goin’ to make their success. He had

to redeem the past, Joe said, and wipe out the mistakes, and show folks what a Newbolt can do when he gits his foot set right."

"He'll do it, too," said Sol, without a reserved grudge or jealousy; "he's doin' it already."

"Yes, I always knew Joe would," said she. "When he was nothing but a little shaver he'd read the *Cottage Encyclopedia* and the *Imitation* and the Bible, from back to back. I said then he'd be governor of this state, and he will."

She spoke confidently, nodding over her work.

"Shucks! How do you know he will?"

Sol's faith was not strong in this high-flying forecast. It seemed to him that it was crowding things a little too far.

"You'll live to see it," said she.

Sol sat with his back against a pillar of the porch, one foot on the ground, the other standing on the boards in front of him, his hands locked about his doubled knee. He sat there and looked up at the Widow Newbolt, raising his eyebrows and rolling his eyes, but not lifting his head, which was slightly bent. "Well, what's to be's to be," said he. "When's he goin' to marry?" 366

"When he's through goin' to college."

"That'll be two or three years, maybe?"

"Maybe."

"Hum; Alice Price she'll be gettin' purty well along by that time."

"She's not quite a year older than Joe," Mrs. Newbolt corrected him, with some asperity, "and she's one of the kind that'll keep. Well, I was married myself, and had a baby, when I was nineteen. But that's no sign."

"Joe'll build, I reckon, before then?" guessed Sol.

"No; Alice don't want him to. She wants to come here a bride, to this house, like I come to it long, long ago. We'll fix up and make ready for her, little by little, as we go along. It'll be bringin' back the pleasure of the old days, it'll be like livin' my courtship and marriage over. This was a fine house in the days that Peter brought me here, for Peter, he had money then, and he put the best there was goin' into it."

"It looks better than any house around here now, since you fixed it up and painted it," said Sol.

"It's better inside than outside," said she, with a woman's pride in a home, which justifies her warmth for it. "We had it all plastered and

varnished. The doors and casin's and all the trimmin's are walnut, worth their weight in gold, now, almost, Judge Maxwell says."

"Yes, the curly walnut's all gone, years and years ago," said Sol.

"It passed away with the pioneers," sighed she.

"I suppose they'll build in time, though?" Sol said.

"I 'low they will, maybe, after I'm gone," said she.

"Well, well!" said Sol. He sat silent a little while. "Folks never have got over wonderin' on the way she took up with Joe," he said.

Mrs. Newbolt flashed up in a breath.

"Why should anybody wonder, I'd like for you to tell me?" she demanded. "Joe he's good enough for her, and too good for anybody else in this county! Who else was there for Joe, who else was there for Alice?"

Sol did not attempt to answer. It was beyond him, the way some people figgered, he thought in the back of his mind. There was his own girl, Tilda Bell. He considered her the equal to any Newbolt that ever straddled a horse and rode over from Kentucky. But then, you never could tell how tastes run.

"Well, reckon I'll have to be rackin' out home," said he, getting up, tiptoeing to take the cramp out of his legs.

"Yes, and I'll have to be stirrin' the pots to get supper for my boy Joe," she said.

The smoke from her kitchen fire rose white as she put in dry sumac to give it a start. It mounted straight as a plume for a little way, until it met the cool air of evening which was beginning to fall. There it spread, like a floating silken scarf, and settled over the roof. It draped down slowly over the walls, until it enveloped the old home like the benediction of a loving heart.

The sun was descending the ladder of the hills; low now it stood above them, the valley in shadow more than half its breadth, a tender flood of gold upon the slope where the new orchard waved its eager shoots; the blessing of a day was passing in the promise of a day to come.

Out of the kitchen came the cheerful sound of batter for the corn bread being beaten in the bowl, and with it Sarah Newbolt's voice in song:

Near the cross, O Lamb of God—

The beating of the batter dimmed the next line. Then it rose to the close—

*Let me walk from day to day,
With its shadow o'er me.*

The clasp of the oven door was heard, and silence followed.

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Sarah was standing on the porch again wiping her hands on her apron, looking away toward the fields. The sun was dipping now into the forest cresting the hills; the white rooster was pacing the outside of the wire enclosure from which he had escaped, in frantic search of an opening to admit him to his perch, his proud head all ruffled in his baffled eagerness, his dangling wattles fiery red.

The smoke had found the low places in garden and lawn, where it hovered; a dove wailed from the old orchard, where a pair of them nested year after year; a little child-wind came with soft fingers, and laid them on the waiting woman's hair.

Her face quickened with a smile. Joe was coming home from the field. Over his shoulder he carried his hoe, and as he came on toward her in yard-long strides his mother thought of the young soldiers she had seen march away to the war, carrying their guns in that same free confidence of careless strength. His hat was pushed back from his forehead, the collar of his blue flannel shirt was open. His boyish suspenders had been put away in favor of a belt, which was tight-drawn about his slim waist.

Very trim and strong, and confident he looked, with the glow of youth in his cheeks, and the spark of happiness in his gray eyes. He was well set in the form of a man now, the months since his imprisonment having brought him much to fasten upon and hold.

Joe made the same great splashing that he had made on that spring evening of a year gone by, when he came home from work to step into the shadow which so quickly grew into a storm. But there was no shadow ahead of him this night; there was no somber thing to bend down the high serenity of his happy heart.

He stood before the glass hung above the wash bench and smoothed his hair. Mrs. Newbolt was standing by the stove, one of the lids partly removed, some white thing in her hand which she seemed hesitating over consigning to the flames.

"What've you got there, Mother?" he asked cheerily as he turned to take his place at the waiting table.

“Laws,” said she, in some perturbation, her face flushed, holding the thing in her hand up to his better view, “it’s that old paper I got from Isom when I—a year ago! I mislaid it when the men was paintin’ and plasterin’, and I just now run across it stuck back of the coffee jar.”

For a moment Joe stood behind her, silently, looking over her shoulder at the signature of Isom Chase.

“It’s no use now,” said she, her humiliation over being confronted with this reminder of her past perfidy against her beloved boy almost overwhelming her. “We might as well put it in the stove and git it out of sight.”

Joe looked at her with a smile, his face still solemn and serious for all its youth and the fires of new-lit hope behind his eyes. He laid his hand upon her shoulder assuringly, and closed the stove.

“Give it to me, Mother,” said he, reaching out his hand.

She placed the bond of his transference to Isom Chase in it, and those old heart-wrung tears of hers, which had been dry upon her cheeks now for many a happy day, welled, and flowed down silently.

Joe folded the paper.

“I’ll keep it, Mother,” said he, “so that it will stand as a reminder to me in prosperity that I was once poor and in bondage; and in my happiness that it may tell me of the days when I was forsaken and in prison, with only my mother’s faithful hand to comfort me.

“I’ll put it away and keep it, Mother, lest in my prosperity some day I may forget the Lord; forget that He giveth, and that He taketh away, also; that His hand chastiseth in the same measure that it bestows blessings upon us. I’ll leave it up here, Mother, on the old shelf; right where I can see it every time I take down the Book.”

W. B. C.

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